Islam and Political Theories

Muhammad Taqi Usmani · English translation from the Arabic edition (Amman, 2014)

Islam and Political Theories
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Islam and Political Theories

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In the name of God, the Most Gracious, the Most Merciful

> **"Judgement belongs to God alone."** — Sūrat al-Anʿām (6:57)

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In the name of God, the Most Gracious, the Most Merciful

Translator’s Foreword

[p. 13] Praise be to God, Lord of the worlds, and blessings and peace upon the best of His creation, Muhammad, and upon all his family and companions. To proceed:

This book originated as a series of lectures that our teacher, His Eminence Shaykh ʿAllāma Mufti Muhammad Taqi Usmani — may God the Exalted preserve and protect him — kindly delivered during a training course held by Jāmiʿa Dār al-ʿUlūm Karachi for scholars of the Sharia, teachers at religious institutes and seminaries, and those working in the field of fatwa in Pakistan. Its aim was to acquaint them with the most important topics discussed in political science, beginning with an explanation of its first principles, passing through an introduction to the various political theories and systems of government, and ending with a discussion of the principles and foundations of Islam that it has legislated in the political sphere, together with the forms of their practical application in the present age.

The lectures had been recorded on tape. Our two teachers, Shaykh ʿAbdullāh Memon and Shaykh Muhammad Muzammil Kāpāriyā — may God preserve and protect them both — undertook to transcribe and arrange them, and they had the good fortune of seeing them printed in book form after His Eminence Shaykh Mufti Muhammad Taqi Usmani — may God preserve and protect him — had revised them. He made changes to them, on the one hand by deleting some matters he considered unhelpful, and on the other by adding a number of important topics and issues, as well as correcting their wording and arranging their material. Thus the book has been presented in its final form to Urdu readers.

I considered myself very fortunate when His Eminence the Shaykh, may God preserve him, charged me with rendering it into Arabic, despite my weakness and shortcomings in this blessed language, its literature and its styles. That is on the one hand. On the other hand, a shiver would seize me at the magnitude of the responsibility that weighed on my shoulders whenever I pictured myself acting as interpreter between the Shaykh, may God preserve him, and Arab readers on so important a subject as politics. Nevertheless — through God’s grace and the prayers of His Eminence the Shaykh, may God preserve him — I rolled up my sleeves and applied myself in earnest until the work of translation and revision was completed [p. 14] in about three months. What we present today to Arab readers comes with the hope that they will attribute to the translator — not to the Shaykh, may God preserve him — any error they find in it.

It should be noted that the book is divided into two parts. The first of them was devoted by His Eminence the Shaykh to introducing political science, its various schools, and the many systems of government arising from and based upon it. (He did not, however, withhold his critique and comments on them from an Islamic point of view wherever that was needed.) Naturally, he drew on a great many Arabic and foreign sources in preparing it, but he did not see much use in giving references to them or listing their titles: first, because of the difficulty of doing so, and second, because in that part he dealt only with the established, accepted questions of political science.

The second part contains an exposition of the rulings and teachings of Islam in the political sphere, accompanied by the opinions of the jurists (fuqahāʾ) and theologians (mutakallimūn) and their differing points of view. In it he made a point of citing the texts of the Qur’an and Sunna and the

other sources on which he relied in setting out the positions of the jurists and theologians and their proofs.

Hence the book contains between its covers an introduction to the various political theories and prevailing systems of government on the one hand, and the premises and principles of Islam in the political sphere on the other — which will help, God willing, to clarify the basic features of Islamic government that are consistent with the demands of the present age and in harmony with its circumstances and needs.

Finally, I ask God the Exalted to accept this effort and to make it beneficial to the Umma, so that it may have the good fortune of contributing to guiding and correcting political efforts and to attaining the goal of establishing Islamic government in the full sense of the word. Amen.

Kalimullah ibn Dāwūd Khān (One of those whom God has blessed with being a student of His Eminence Shaykh ʿAllāma Mufti Muhammad Taqi Usmani, may God preserve and protect him) Karachi – Pakistan 11 Muḥarram al-Ḥarām 1435 AH / 16 November 2013 CE

Foreword by His Eminence Shaykh Mufti Muhammad Rafi Usmani, may God preserve and protect him

[p. 15] We praise Him and send blessings upon His noble Messenger. To proceed:

It pleases and delights us — we, the teachers of Jāmiʿa Dār al-ʿUlūm Karachi and those affiliated with it — and it fills us with hope and expectation, that it has begun to take steps in the study of the burning issues that pose astonishing new challenges in most areas and fields of life for Muslims in general, and for the scholars of the Sharia among them in particular.

It is well known that with the passing of the fifteenth century CE, the Muslims were deprived of the land of al-Andalus — the lost paradise of Islam — which they had ruled for nearly a thousand years with all the splendour and power; and not only that, but they had attended to the sciences there with such care that it made them the leaders and guides of humanity in them. One never ceases to marvel that the West did not feel the stirrings of progress until the day the political star of the Muslims began to set. For the Muslims slid towards backwardness throughout the world as a result of the catastrophe of the fall of al-Andalus, while it gave Europe the opportunity to advance in the field of progress and development after it had been floundering in the darkness of ignorance and the black night of backwardness.

About a century after the catastrophe of the fall of al-Andalus, the countries of the West achieved great material development: on the one hand they managed to discover America, and on the other Vasco da Gama found a sea route to India. Although these were two simple events at first sight, they left a marked effect on changing the course of history and geography, and played a tangible role in bringing about a revolution in human society.

Thus began Europe's journey towards industrial development, and it made rapid strides in the field of the natural sciences and modern technology, drawing a great deal in this on the efforts of the scholars of al-Andalus, gleaning from the tables of their learning and harvesting the fruits of their labours. Through the products of their thought and the fabric of their efforts it attained what we Muslims did not. It seized [p. 16] the opportunity and devoted all its powers to exploiting it, which resulted in revolutions and clear, evident changes in thought, economics and politics at a pace that exceeded every measure. Among these were the countless modern issues that the Industrial Revolution in England gave birth to, in addition to the far-reaching changes produced by the French Revolution. These two revolutions changed the course of human life throughout the world.

It is our duty as Muslims — and especially as people devoted to the Sharia sciences — in the age in which we live, to offer solutions to the problems of the age and to its demands that arose from these two revolutions, and to confront the blatant challenges that face us in the light of current developments; all of this in the light of the lofty Islamic values and ideals, alongside the pure creeds of Islam and its sublime jurisprudence.

In short, many fields have opened up which look to the scholars of the Sharia to devote their efforts, exhaust their energies and apply their qualifications to them. The tragedy is that they have opened at a time when the Muslims are passing through the worst and lowest state in their history — enough to make the weeping weep — and they are, God forbid, on the verge of collapse and at the brink of ruin. Before now, Islam never faced a challenge without having among its sons those capable of resisting it. The philosophy of the Greeks did not penetrate the lands of the Muslims except when there were among them people able to resist it with argument and proof, such as the Greatest Imam Abū Ḥanīfa (may God have mercy on him) and other mujtahid imams. No sooner did the domain of the Islamic governments expand, their conquests widen and their demands and requirements consequently increase, than Islam carried within it those who undertook to resolve them and meet their needs — such as al-Māturīdī, Fakhr al-Dīn al-Rāzī and al-Ghazālī (may God have mercy on them) and other Islamic thinkers who bore the marks of asceticism and the adornment of piety.

Today, however, the revolution is more widespread and more comprehensive, its issues more complex and its problems harder to solve; and the pressure has grown greater since the scholars among the Muslims now lack, first, the necessary scholarly qualifications and physical energies, and second, sincerity and piety. [p. 17] All of this has in turn contributed to making their situation more aggravated and their position more dangerous. Yet since God has guaranteed this religion permanence and survival until the Day of Resurrection, in every age He raises up from among the Muslims those who undertake to provide Islamic solutions to every question and problem that humanity encounters or suffers.

We can limit the most important issues facing Islam, on which it requires its sons to concentrate, to five fields:

(1) Thought and philosophy. Just as, when Greek philosophy was translated into Arabic and reached the lands of the Muslims with its predominant materialist tendencies and heretical spirit, the Muslim scholars confronted it with all competence and merit — first by learning it and excelling in its method of argument, and second by using that very method to refute its proofs and expose the falsity of its

arguments — which may be regarded as an immortal achievement and a bright blaze on the brow of Islamic history;

so today, Western materialist philosophy and the intellectual misguidance that follows it pose a blatant challenge and an overwhelming assault on the beliefs and principles of the Islamic Umma. It has thus become the responsibility of its scholars to resist it by answering the objections it has raised and the doubts it has stirred up, following the same method their predecessors followed: first by mastering that philosophy, and second by using its own style as a weapon to refute and silence it.

(2) Economics. The English revolution brought about astonishing development in it, and it came to be dominated by two schools of thought and the two economic systems born of them, which the world has known and experienced under the names capitalism and its opposite, socialism. What concerns us Muslims in this respect is that we explain to the world the economic system of Islam, so that it may arbitrate between those two prevailing systems — especially since the issue of economics has taken first place among the burning, important issues of the world, and has raised countless questions from the point of view of the Sharia, and specifically from the perspective of Islamic jurisprudence. Praise be to God, who has enabled some Muslims to begin to fill [p. 18] the tangible gap in these two fields; work has also begun in other fields, but the need for still more attention remains pressing and urgent.

(3) Politics. The world has witnessed a number of modern political theories and the various kinds of systems and methods of government that followed from them. It thus falls on the shoulders of the scholars of Islam to study them and then to clarify the clear, decisive position of Islam on them: distinguishing what is in harmony with the principles of Islam — which may properly be called Islamic politics — from what contradicts and clashes with them, which we consider heretical and irreligious; in addition to revealing the merits of Islamic politics and the dividing line that separates it from what prevails in the world today under the name of the democratic system, monarchy, and others.

(4) Medicine. Modern inventions have brought about tremendous development in it, which makes it all the more necessary for Muslim scholars to attend to studying the mass of jurisprudential questions accumulating in it, so that they can respond to the challenge this progress and development poses to them, and to what is actually put before them from the east and west of the earth in the way of questions about the permissibility or prohibition of things, and about the position of the Sharia on methods of treatment and the ways of medication current in the world. As we mentioned earlier, many scholars and muftis around the world have turned their attention to this field as well, but it still needs more effort and care from them to meet its needs and fulfil its requirements.

(5) Law and legislation. This is a field in which the Muslims were the foremost champions and the winners of the race, for the world had never known a codified, systematic law like that which distinguished Islamic jurisprudence and which enjoyed codification, foundation-laying and derivation of a kind the world had not witnessed before. But in later ages Europe gave it attention and so advanced in it over the rest of humanity, Muslims included, becoming its pioneers and leaders. Although a group of scholars has had the good fortune to serve it, it, like the preceding fields, still needs those who will delve into it with distinction and skill.

At any rate, these are five areas and fields that face the Muslims. In each [p. 19] of them there are thorny issues and complex questions. Their due can be fulfilled, and they can then be harnessed and the rulings of Islam applied in them, only if a sufficient number and a great many of the sons of the Umma devote their lives to specializing and becoming expert in them — some in one, others in another, and so on.

In keeping with the principle "What cannot be attained in full should not be abandoned in full", the Dār al-ʿUlūm Karachi family held a training course on economics and its issues from an Islamic perspective. A considerable number of scholars took part in it with eagerness and energy, and showed how greatly they valued its importance and great usefulness. It produced the book *Business and the Contemporary Economy in the Light of Islam*, which can be taken as a basis for large-scale projects in this field. Dār al-ʿUlūm Karachi has had the good fortune of playing its full part and prominent role in performing the communal obligation (wājib kifāʾī) that weighed on the shoulders of the Muslims of Pakistan, represented by its Vice-President, His Eminence Shaykh Mufti Muhammad Taqi Usmani — may God grant him well-being and bless his life — who has delved deeply into the study of economic questions and become thoroughly versed in them, and then compared them with the rulings and teachings of Islam, after simplifying them and casting them in a modern form so that they have become easily accessible to all who seek them among ordinary people.

Today we are embarking on a course on politics, hoping, by God's grace and generosity, that He will grant it acceptance and make it beneficial to the Muslims, as with its sister course held on economics, and that He will raise up from among the participating scholars someone who will devote his life to one of those five areas, giving it his attention and dedicating his care to it.

You have come here from the remotest and nearest parts of the country, covering long and arduous journeys, and I therefore pray for you from the depths of my heart, as I find a hadith ringing in my ears and running through my mind again and again — the saying of the Prophet ﷺ: "Whoever follows a path seeking knowledge in it, God makes easy for him a path to Paradise."[1]

> [1] *Sunan al-Tirmidhī*, ed. Shākir (5/28), Chapters on Knowledge; he said: "This is a ḥasan hadith." Hadith no. 2646.

Introducing the Subject

[p. 20] Praise be to God, Lord of the worlds, and blessings and peace upon our master and patron Muhammad, the trustworthy Prophet, and upon all his family and companions, and upon all who follow them in excellence until the Day of Judgement. To proceed:

Honoured scholars of the Sharia: as His Eminence the President of the University, may God preserve him, has explained to you, the modern age has directed at the Muslims diverse challenges in many fields and from various directions. He, may God preserve him, excelled in analysing them and limiting them to five fields, which call for exceptional attention from Muslim scholars and require mighty efforts from them. I personally believe that the fields of economics and politics are the most

important and most dangerous of them, for they have left lasting effects on human life in this age of ours. In addition, they have very often given rise to questions and stirred up doubts among people: if we accept that the prevailing systems are impermissible according to the Sharia, because their foundations and principles clash with the foundations and principles of Islam, then what way is there to replace those foundations with these principles, and to run the helm of these rulings in accordance with them?

How often we are asked, and others are asked: if we purified our economic system of usury (ribā) on the grounds that God has forbidden it, and the scholars also consider bank interest to be part of forbidden usury, is there a Sharia alternative to it that could be adopted to run the economic system in this age? If we dissociated ourselves from modern political theories and abandoned the systems of government generated by them, on the grounds that they oppose Islam and clash with the Sharia, how could the helm of government be run according to the rulings of Islam in the present age and the demands of its political circles?! For various religious circles never cease to claim that Islam is free of monarchy and does not permit individual governments or dictatorships either, and that democracy too does not fully accord with its rulings — or so, at least, a serious and circumspect section of them maintains. So the question that arises in the mind of the child of the twentieth century is: what is the Islamic system of government? How can it be applied and implemented in the modern age while taking account of its demands, needs, circumstances and requirements?!

[p. 21] Since the fields of economics and politics are alike in facing this challenge and confronting this question in the first place, and because of their eminent position among those fields in the second place, we have devoted this course to the study of political issues, after the first one was devoted to economics and modern business. In it we aim, first, to review the various political theories and to pause over them; and second, to explain a plan and a picture of the actual application and real implementation of the rulings and principles of Islam. Although the period allotted to this course is ten days only — which is very short relative to the vastness and ramifications of the subject of politics, to the extent that we can say that political science has today assumed the character of an independent science that enjoys a great many works — we will nonetheless try, with God’s help, to present to you an introduction to its important topics and a concise, summarized study of it, God willing. God, glorified be He, is the one whose help is sought.

Politics and the First Works Written on It

Political science is not a modern science invented by Western men. Rather, it is an ancient science the world has known since the dawn of philosophy, since it is one of its branches and divisions. For the philosophers first divided wisdom — or say philosophy — into two basic parts: theoretical wisdom and practical wisdom. Then each of them was divided into three parts: the theoretical into the divine, the mathematical and the natural; and the practical into the refinement of character (ethics), household management (economics), and civil politics.

From this it is clear that politics is one branch of philosophy, which its practitioners have continued to treat in research and reflection alongside its other branches.

As for the first book on politics, I believe it is *The Republic* of the famous Greek philosopher Plato. He arranged it in the light of what he had learned from his teacher Socrates during his apprenticeship to him, merging his own personal opinions into it. This book of his has been translated into English under the title “Republic”. It is most likely the first work on politics in the world, since the era of Plato goes back to around 400 years before Christ.

[p. 22] The book is worth reading, since it gives us a clear picture of the kind of writing and style of thinking that prevailed in that age. Although it is a large book, benefiting from it is somewhat difficult, especially in comparison with the style of writing prevalent in our age. For it is not arranged technically, and the topics are not set down in sequence and succession; rather he followed the method of dialogue in it — that is, conversation between two or more persons — and so presented all the topics in the form of a dialogue in which such-and-such a person met so-and-so, asked him about such-and-such, and he answered him thus. Although it can be regarded as the first brick and signpost in the field of politics, many of its discussions are shrouded in obscurity, or the allegorical style used in it makes them ambiguous. The researcher therefore faces a great problem and encounters extreme difficulty in extracting a conclusion from it or in identifying a position on something. At any rate, it takes pride in being the first book in the field of politics, and its author was the first to use the word “republic”.

His most prominent student, Aristotle — who perhaps enjoyed more fame than his teacher in philosophical circles — then followed in his footsteps. He recorded the various portions of Plato’s philosophy and presented them in the form of a book. To him goes the credit for founding all the fields of the natural sciences: you will hardly find a branch of them without finding him to be its first founder. Take, for example, medicine, zoology, geology, astronomy, optics and so on.

Among the works with which he enriched the human library is a book on politics entitled *Politics* itself, and this book of his is in truth an elevated and developed form of Plato’s *Republic*, mentioned above. However, his book *Politics* surpasses Plato’s *Republic* in the merits of its arrangement and composition, alongside its simplification of topics and clarification of issues, all of which the former lacks, as mentioned a little earlier.

His book has been printed in translation under the title “Politics”, and fate has allowed me to read a large part of it. In the course of reading it, the reader soon gains a keen sense that philosophy, its methods and its ways of expression have undergone great changes and many upheavals, [p. 23] and that the philosophy studied by students in the scholarly circles of the Indian subcontinent, represented by the books written on it such as *al-Maybudhī*, *al-Hidāya al-Saʿīdiyya*, *al-Ṣadrā* and *al-Shams al-Bāzigha*, is not the philosophy of Aristotle. Rather, it is a branch of philosophy that the world knew centuries after Aristotle and is called Neoplatonic philosophy. Among the things that distinguish the two is that Aristotle’s philosophy is marked by a focus on practical aspects more than theory, while the Neoplatonic philosophy is entirely its opposite, being dominated in its discussions by the theoretical side more than the practical.

At any rate, his book deserves to be read by people of learning so that they may come to know Aristotle’s method and his arrival at forms of knowledge and philosophical theories that the world today calls “the most modern theories”, wilfully blind to the clear, established facts, since Aristotle

preceded them by thousands of years. What further increases the standing of his book and makes it a source of pride is that the scholars of politics have agreed that it is the main source and original reference for the theories that followed it throughout the history of humanity and over the course of human life.

In sum: politics is one of the ancient sciences that has enjoyed people's attention and scholarly service for a long time, beginning with Socrates and Plato, passing through Aristotle, and those political thinkers who followed in his footsteps. However, the basis of all of them and the centre of their discussions was nothing but pure theories that the toil of their minds and the labour of their thought produced alone. They therefore produced nothing but illusions built on mere speculation stripped of the light of revelation. But after the Muslims plunged into its depths, bearing a flame of faith and holding in their hands a torch of the light of revelation, they transformed its course and made of it an independent science which they called "Sharia governance" (*al-siyāsa al-sharʿiyya*). They devoted their care to it through research, writing and reflection until they reached its summit and attained its peak, so that it became capable of guaranteeing the soundness of the order of humanity and its safety if humanity took it into account and put it into practice.

However, in our course we shall refrain from exhausting its discussions and covering its subject matter, confining ourselves to its most important angles and practical dimensions which, in general, the scholars of the Sharia urgently need to know. Bear in mind that I am not one of the men of politics, nor one of the specialists [p. 24] and experts in its sciences; it is merely the extent of my knowledge from my study and reading of the books of these people. In the light of my survey and analysis of works on politics, I have chosen several headings to treat in this course of ours, devoting myself to explaining them and reaching sound conclusions about them with all my effort, God willing. These headings are as follows:

(1) How did the state (*State*) arise in this world? That is: how did it occur to human beings to form a state that divides society into a ruler who commands and a ruled who obeys? Since systems of government and practical political methods are closely connected with people's views on the beginning and rise of the state, it is fitting for people of Sharia knowledge to become acquainted with those theories, so as to be able to know these systems with insight and mastery.

(2) The second heading on which I would like to shed light is: an introduction to the various political systems and their philosophies and the ideas at work behind their rise and distinctiveness, such as monarchy, aristocracy, fascism, and democracy with its various branches and divisions.

(3) An introduction to systems of government and the kinds of powers. Under each political system the helm of government can be steered in many ways. Which method is preferable for forming the government? How many ministries and departments should it have, and how are powers distributed among them? We would like to present an introduction to the systems of government prevailing in the world today (as well as what prevailed in the past), such as the presidential system and the parliamentary system, for example, with their merits and the differences between them.

(3) [sic] In the course of introducing the systems of government, we shall move on to explaining the original sources of legislation and the basic sources of law-making. We shall likewise pass through

the history of these systems from their origin to their actual implementation in the external world, and we shall cast a passing glance at the history of the two revolutions — the French and the Industrial in England — owing to their prominent, tangible role in the upheavals of the political world and in changing the course of history.

(4) Finally, we shall pause over the teachings of Islam and its rulings in the field of politics, and examine possible formulas and forms that could be adopted to apply and implement those rulings in [p. 25] this age of ours, while taking account of its needs and demands.

This, then, is a quick survey of the topics we shall treat through research and study in this course of ours, God willing.

PART ONE

Chapter One: The Origin and Development of the State

Introduction

[p. 27] Since the study of government and its systems is among the most important subjects that political science undertakes to study, the first thing its scholars and philosophers attended to was the discussion of the origin and development of the state, answering in this several questions: How did authority appear in simple human societies? How did man join the ranks of government? In this regard, from the earliest time that humanity knew political science, several theories have been discovered, which we must review here — even if only briefly — because of their prominent role in creating and shaping the political systems in the world that followed them.

It should be known that the theories we are about to explain are merely the product of the ideas of people who were bare of divine revelation and deprived of heavenly guidance, relying in them on their pure rationalism and on whatever analogies and conjectures they found palatable. Then, when they arrived at some theory on the basis of analogy and conjecture, they searched for evidence for it, and so supported and strengthened it.

The First Theory: The Social Contract Theory

The first of the theories that prevailed and became famous in political science in this regard is the theory of the social contract, designated in English by the term “Social Contract”. In summary: that human beings, in their earliest period on earth, lived an individual life without being governed by a government, founded upon a state, or bound by a law or committed to a constitution; rather, their concern was concentrated on self-interest. This condition of theirs is called in the terminology of political science “the original condition” (State of Nature). (Those who advanced this idea had no evidence for what they said; but since they refused to submit to heavenly guidance, they discovered by the toil of their minds that human beings must have passed a period in which they were not divided into two groups, ruler and ruled — what they called the original condition.) And since this pervasive anarchic condition was a likely site of conflict and collision between [p. 28] the interests of human individuals — such that the interest of one required him to do something contrary to the interest of the other — disputes broke out among them and quarrels occurred. So they gathered to think about establishing a system that all of them would follow, which would protect them and their interests and protect them from conflict when interests clashed. Their thinking led them to agree to live under a mechanism that would impose laws through a ruling authority; and through this social agreement authority appeared in the world.

In sum, this theory holds that human beings themselves, by way of contracting among themselves, established the system of authority to protect their interests. Although this theory — the social

contract theory — became famous through its interpreters mentioned below in the fifteenth century CE [sic], the researcher will find its conceptions in the writings and works of the ancient philosophers as well.

Curiously, however, on the basis of this one theory two political systems were later established that conflict clearly with each other and contradict each other explicitly, whose paths diverge and whose effects differ in every way: namely, the doctrine of absolute rule and the doctrine of popular sovereignty.

In detail: many scholars of politics interpreted the social contract theory to mean that when human beings delegated — for their own interest — all their rights, powers and authority to the [ruling] authority, it became, and ought to become, a despotic authority in managing their affairs, possessing absolute sovereignty and authority.

They held to this on the grounds that the social contract was concluded among human beings in the wake of a clash of interests and a struggle of demands; for each individual human being narrows the scope of his thinking and confines himself to what achieves his self-interest and what he considers it to be. So he should not be left free to follow whatever path he wishes in determining good and evil and distinguishing between what is sound and what is corrupt. Rather, since he has delegated authority over himself to the government, its head is the one who determines good and evil and distinguishes right from wrong — not with regard to his own self-interest, but with regard to the interests of the whole people. If he decrees something, then every one of his subjects is obliged and bound to act on it, [p. 29] even if against his will.

The greatest example of the application of this principle was presented by Socrates himself, the teacher of Plato, born in Athens. He had presented in the fields of religion and ethics many theories conflicting with the deep-rooted prevailing theories before him, to the point that he contradicted idolatry and refuted it (except that he did not believe in the Hereafter, as al-Qifṭī says in *Akhbār al-Ḥukamāʾ*, 1/87). So the government put him on trial and charged him with corrupting the youth and insulting religious traditions. Socrates relied on the fact that merely presenting new theories in ethics and opposing what people had previously believed was never considered a crime; yet the government paid no heed to that, but put him behind bars, and the court sentenced him to death.

His disciples and admirers — among them great wealthy men — also arranged for him to escape: first from the prison, and second from the state of Athens, so that its authority would have no power over him; for at that time the city-state system prevailed among the Greeks. But Socrates refused their initiative, explaining that — as a citizen of this city — he had covenanted to follow the commands of authority, whatever it might be, as holding absolute and despotic authority over him. He added: therefore, in fulfilment of that contract of mine, I prefer to remain in prison and submit to the process of execution, even if I consider it unjust and contrary to the demands of justice and the principles of fairness. Thus he carried out the death sentence on himself by drinking a cup of poison, according to the method of execution prevailing at the time. History has recorded his stance and remembered that he did not seize the opportunities to escape from prison despite their being easily available, regarding that as a betrayal of what he had covenanted with the government.

This, then, is an extreme interpretation of the theory of absolute rule on the basis of the social contract. It was its prevailing understanding until the fifteenth century CE, when France produced three specialist philosophers in the field of politics who have dominated mention and citation in the political sources written after them: Thomas Hobbes, Locke, and Rousseau. [Tr.: so in the original; Hobbes and Locke were English, not French, and they belong to the 17th century, Rousseau to the 18th.] Later authors in the field of politics relied on their books so heavily that they occupied first place [p. 30] in the list of political sources and references. Although their times were close to each other, their ideas and interpretations of the social contract theory were different and divergent. Hobbes and Locke held the view of the social contract as we have mentioned, while Rousseau interpreted it in an entirely opposite way. He held that authority did not arise by itself; rather, the people imposed it on themselves through social contracting among themselves. Therefore the source of legitimacy and sovereignty for every ruler is the people itself, and it is the people who granted the rulers authority, power and strength. Accordingly, the rulers must represent the people in managing the affairs of authority by laws expressing the general will of the people. If they do not do so, and manage the system contrary to what the people desire, or in a way that conflicts with its interests and demands, that is regarded as equivalent to breaking the social contract, and the people have the right to depose them and topple their government for breaking this contract.

He rejected the idea that the social contract theory leads to absolute rule, and emphasized that government ought to conform to the will of the people itself. His philosophy helped shape the political events that ultimately led to the outbreak of the French Revolution, whose details will come later, God willing.

The Second Theory: The Theory of Force

Some philosophers advanced another theory on the origin of the state entitled “the theory of force”. In summary: the state arose on the basis of force; that is, before forming communities, people quarrelled among themselves in the absence of authority and state, and some prevailed over others, so that by virtue of his victory one became the ruler and the other the ruled.

It is expressed in English by the phrase “wars begot states”. In detail, as mentioned above: the establishment of the state and authority was not born of peaceful contracting; rather, it happened by chance, as a result of the victory of some people over others in the wars that broke out and the conflicts that flared up in the wake of clashing interests.

[p. 31] Of course, the adherents of this idea do not regard obtaining authority by the use of force as in any way unjust or tyrannical. Rather, it is attributed to Aristotle that whoever prevails over someone prevails over him only by virtue of qualities and merits he possesses that qualify him to prevail, and that force is in reality a manifestation through which the dust is cleared from those qualifications of his. Hence, since his acquisition of authority by prevailing in fact goes back to a quality inherent in him, it was in no way contrary to the demands of justice and reason.

The Third Theory: The Patriarchal or Matriarchal Theory

Its gist: the basis of the state is the family; that is, every family has a head who leads it. Then several families come together to form a tribe whose head is its ruler; then several tribes come together to form a state, and one of their members is chosen to lead it and manage the system of its government.

If we examine this theory closely, we find that it does not differ much from the social contract theory. For people — whether within the scope of the tribe or the state — when they choose one of them as a leader for themselves, choose him only by contracting among themselves; except that this contracting may be concluded verbally, or may take place among them in meaning only.

The Fourth Theory: The Theory of Divine Origin

If we let our gaze roam over the meaning of the theories just mentioned and the bases on which they are built, we find them bare of any reasonable basis apart from flimsy conjectures and false analogies. They had no evidence whatsoever, nor any proof, that this contract actually took place among human beings, or that wars and conflicts were what produced the origin of the state. Rather, they are theories in whose wilderness they wandered aimlessly, merely because they refused to believe that God is the one who created human beings and sent them into the world to realize certain aims under the shade of rulings and particular directives. Their refusal of faith in God and in His being the Creator made them stumble in the deserts of conjecture and guesswork, until their condition became the best illustration of the words of God, glorified and exalted: **“They have no knowledge of that; they only conjecture”** [al-Jāthiya, 45:24],

[p. 32] and of His words, mighty and exalted: **“They follow nothing but conjecture, and they only guess”** [al-Anʿām, 6:116].

As for those who believe in God — and that He is the one who created the universe and all within it, and sent human beings down to earth for a particular end — they have no need of such conjectures and analogies. Take, for example, the Muslims and the People of the Book, who believe that God created Adam — the first human being — and sent him down to earth only after making him a ruler, and the rest of humanity ruled by and subordinate to him. Hence humanity never passed through a period in which it lived an anarchic life not governed by a government; or, in other words, it never encountered a condition that could be called “the original condition” (State of Nature) according to the interpretation of the philosophers who held the social contract theory. In sum, their faith in God and His appointing of the first human being as His vicegerent (*istikhlāf*) saved them from running after the conjecture and the analogy latent in the social contract theory. This is what scholars of politics designate by the term: divine origin.

Since this theory belongs not only to the Muslims but also to those philosophers who believe in God, their word agreed on the principle that God is the one who created man and established government and authority for him. However, there are other schools that stumbled and wandered aimlessly in interpreting this theory, going in it to the point of extremism, saying: whoever assumes authority does so only on God’s behalf, so human beings have no right ever to depose him. Indeed, some of them went even further, saying: when a tyrannical ruler is set over a people who abuses them and brings afflictions and calamities upon them, that is in reality a punishment from God that has descended

upon them for their evil deeds. Since it is a punishment from God in which His will is manifested, the servants should not strive to remove him from the seat of government, even by safe, peaceful means; for that would amount to resisting what God is pleased with and opposing His will. From this they derived the rule that whoever ascends the throne of authority must be obeyed and submitted to, for in that lies God's will and by it His love is attained.

In truth, this problem arose only from their failure to distinguish between God's religious rulings (*aḥkām dīniyya*) and His cosmic will (*mashīʾa kawniyya*), although there is a great difference between the two. There is no doubt that God the Exalted sometimes [p. 33] sets a people of evil governors over them because of their evil deeds — as God mentioned at the beginning of Sūrat al-Isrāʾ, that when the Children of Israel spread corruption in the land and became exceedingly arrogant in it, twice God sent against them servants of His of great might, who disgraced them and utterly destroyed all that they had taken over.

Likewise, it is reported that the Prophet ﷺ said: "Your governors are [as] your deeds." [Tr.: i.e. your rulers are a reflection of your own deeds.]

However, this is God's cosmic will, and it does not mean that people should be content with it and not strive to replace them with righteous governors. Rather, the religious rulings legislated by God require them in such a case to turn back from their errant ways, trying to reform the system. They must depose the government and topple its system by whatever attempts are possible for them within the framework of safe, peaceful mechanisms. As for fighting (armed rebellion against him), it is forbidden in the general run of cases, because it leads to bloodshed among the Muslims and other evils that are among the most harmful to the Umma, and which the Sharia has forbidden to the Muslims so long as they can find a way to avoid it — as will come in detail in the second part of the book, God willing.

But removing him by peaceful means is among the duties of the Muslims. Its example is thus like an illness that befalls someone: there is no doubt that it is by God's will, and no doubt also that it is often a punishment for sins and evil deeds; yet treating it is in no way opposition to God's good pleasure or contrary to His will. Rather, God, glorified be He, Himself commands, in such a situation, seeking forgiveness and seeking treatment by whatever means are permitted by the Sharia.

So this has been a quick passing look at those political theories that are researched and debated in political science, and which later became the basis of the various systems of government.

Chapter Two: An Introduction to the Various Political Systems

Introduction

[p. 35] The second topic to which we would like to turn our attention is an introduction to the political systems the world has witnessed and that have prevailed in it, irrespective of the political theories explained in the first chapter. By political system we mean: the system that determines the course of political life in terms of the form of government — whether individual or collective — the merits and

practices of the government, the method of its formation, and so on. We can divide all the political systems the world has known up to this day of ours into three categories: monarchy, aristocracy and democracy. From these three, other branches emerged as new forms of government, and we cannot avoid briefly introducing these three systems in order to reach the core of the main subject of the book.

(1) Monarchy

Perhaps the oldest of the systems of government and the most influential and dominant in the world is the monarchical system of government, for it has continued in human societies from the beginning until this day of ours in its various forms and diverse shapes. Indeed, it had dominance and influence in most periods of human history. Although this word in reality means a kind of government headed by a king, whose government is individual and in which the king alone exercises rule, the patterns of its application in the external world have never been uniform; rather, they have differed and varied with differing times and countries, so that it too has come to have many types:

(1) The system of absolute monarchical rule

Among its most important features is that the king in it is not bound by any law or constitution; rather, his tongue becomes the source of law. Whatever he says takes on the character of law, without his needing in that any consultation, agreement or ratification by anyone (and even if he consulted someone in some [p. 36] cases, that was regarded as a favour from him, not an obligation). He is thus the holder of all powers in the state: he issues the laws, interprets them and undertakes their execution, and he himself undertakes judgement in resolving disputes and settling controversies, since the matter of judgement ultimately reverts to him. So his opinion is the [decisive] opinion and his word is the [final] word, whether in civil or criminal cases. In contrast to what prevails today — that the court must, in criminal cases, follow the laws that determine the punishment of the offender — the absolute ruler was never bound by such laws. Rather, if his anger flared against someone, he would order him sewn up in a donkey's skin, or order that someone be walled up alive in a wall, and that would become the law regarding that person.

This despotic absolute system is what bred tyrants such as Pharaoh and Nimrod, whose arrogance through their authority went so far that they claimed lordship!

(2) Consultative monarchy

Its meaning: that the king himself holds the legislative and executive powers in it, but he has a council (*shūrā*) which he consults in enacting and implementing laws and in other administrative affairs. The kinds of this council and its powers differ: there is what was called "Council" (al-majlis), and there is what was called the senate (majlis al-shuyūkh), and there is what was called by other names. Its forms also differ in terms of whether it is binding or not. In some states the king would consult the shūrā council without being bound to follow their advice as a matter of necessity or obligation, such that nothing deterred him from ruling against it and nothing prevented him from opposing it; while in other states the king was bound and strictly restricted to follow the shūrā and to issue whatever law or decision its members agreed upon.

It should be known that the cities of Greece were the most civilized and advanced cities in the world in ancient times, and the city-state system prevailed there at the time; that is, each city was an independent state with its own independent government. Cities at that time were fortified, surrounded by the walls of a strong fortress, so the inhabitants of one fortress regarded themselves as citizens of one state, [p. 37] and each city of them was self-governing and almost completely independent of the others, to the point that all the cities of Greece did not form a single federal state governed by one unified federal government. The kings of those cities followed at first the system of absolute rule, then converted it into the system of consultative monarchy, and some of them formed councils of shūrā to advise them in their various affairs. The shūrā was then binding in many of those cities, and not binding in some, while others set frameworks for it by dividing commands and issues into two kinds: those in which following the shūrā was binding and those in which it was not. This account goes back to 300–400 years before the Messiah, upon him be peace.

(3) Religious monarchy

It means: a monarchical system of government in which religion plays its role as a basic source of authority and rule. The king was chosen in it on the basis of religion, and was authenticated by the men of religion; so he remained throughout the period of his rule — and in the affairs of government — subject to them in general, in the sense that he was bound to follow the rulings of religion according to the interpretation they gave of them. This kind of monarchy prevailed among the Christians for a long period, whose beginning goes back to 300 [years] after the raising of the Messiah to heaven.

In detail: the followers of Jesus, upon him be peace, and his disciples continued to face war and aggression at the hands of their opponents, who had borne enmity towards them for three centuries. They used to propagate their religion and call people to it secretly and covertly, adhering to the pure doctrine of divine unity (*tawḥīd*) upon which Jesus, upon him be peace, had left them. During those three centuries, the hostile Jewish zealots entered their religion, led by Paul, who introduced into Christianity false doctrines such as the Trinity, redemption and the like. The struggle continued between the original Christians and the current led by Paul, until Paul’s current prevailed and the followers of Jesus, upon him be peace, suffered a defeat that led to their extinction, or so few remained that they could barely suffice to resist the current. Thus Paul managed to triumph over true Christianity, distort its beliefs and corrupt [p. 38] its rulings, until the word “Christianity” came to be applied to this new religion that Paul brought into being, by which he opposed the call of Jesus, upon him be peace, and raided his teachings and his law.

In that period the Roman emperor Constantine (Constantine the Great, who founded the city of Constantinople named after him, and which became the capital of the Roman Empire) embraced the corrupted Christianity led by Paul — having previously been a pagan. His embrace of Christianity was the opening of Christianity’s entry among the Romans. Pauline Christianity was led in his era by Athanasius, and it was he who conferred legitimacy on Constantine’s government from the religious point of view — which was a beginning for religious monarchy among the Romans. This monarchy proceeded on the rule that purely religious affairs were delegated to the head of the Church — who was called the Pope — so that his word in them was regarded as final and decisive, while purely

political affairs belonged to the king, so that his word in them was the final word. Nevertheless, the king was bound to follow the commands of the Church and was to some extent subject to its rulings, because the authority for determining the nature of affairs — whether religious or political — lay with the Pope. Since one scabbard cannot hold two swords, the question of the distribution of competences and powers between the Church and the state continued to be a pressing crisis and a great tragedy in the history of the Roman Empire, and so remained a burning, intractable problem in which the struggle raged, until democracy came and freed itself from the influence of the Church in state affairs by restricting its authority to the city of the Vatican only.

The fourth type: Constitutional monarchy

"It is a political system in which the king rules on the basis of powers defined by a constitution." It is the opposite of the absolute monarchy mentioned earlier, since the king himself in it is not the source of legislation, completely independent in issuing rulings and taking measures; rather, his powers, the work of his government and the force of his law are defined within the framework of that constitution, from which he may not deviate even a hand-span.

It too has existed in various eras of humanity and various parts of the inhabited world. It existed in Greece for a period, and Rome too witnessed it in some periods of its history, and especially [p. 39] in the periods after the Middle Ages, when monarchy was in most cases constitutional.

Among this type is what prevailed in several states: the monarchy subordinate to the parliamentary system, as in Britain, for example, where the monarch is Queen Elizabeth, but her functions are purely ceremonial and symbolic, while executive authority is exercised by the prime minister, the council of ministers or the house of representatives!

As you have noticed, "monarchy" is a polysemous general term (*kullī mushakkik*) that may be applied to every kind of monarchy, including absolute monarchy and ceremonial symbolic monarchy. Among kings there are those whose tongues are the source of law, and those who possess no authority at all except that they are crowned with the name of king. A brief introduction to its four types and their forms has passed before us, as they were embodied in various periods of humanity and their phases. On the other hand, the spread of democracy in the world has damaged the reputation of monarchy and distorted its image to the point that it has been regarded as an absolute evil in all its forms and shapes. Interacting with this false propaganda, we see some people negating its existence [in Islam] and rejecting it decisively from the Islamic point of view. In truth, a categorical ruling of rejection or acceptance on it absolutely is not correct; rather, it is a heading under which may fall both its sound and its corrupt kinds, and under whose concept is included what is beneficial and useful among its forms and what is harmful and injurious among its shapes.

As for the Noble Qur'an, we find it describing Ṭālūt (Saul) as king, mentioning his appointment as king in the context of bestowing favour and grace; as it also reminded the Children of Israel of His favour in making them kings: **"and made you kings"** [al-Māʾida, 5:20]. It likewise described David and Solomon as kings. Those who have turned their faces towards democracy — by their very nature of negating the existence of monarchy in Islam — have come with feeble interpretations and frigid,

strained explanations in explaining this verse and interpreting the [word] monarchy in it, so as to make it agree with their purpose and suit their aim.

The truth is that the ruling on a system of government as right or wrong, or acceptance or rejection, does not turn only on its name and heading, but on its meaning and the powers of the king in it, and the foundations and principles he will follow in managing its affairs. If all this is free of anything that clouds it from [p. 40] the Sharia point of view, then the system is acceptable, and there is no justification for rejecting it in the Sharia, whatever its name and heading!

The upshot is that what prevails and has spread among us — that monarchy is an absolute evil — is nothing but the product of erroneous propaganda raised by modernist thinkers against it, out of partisanship for and preference for democracy; and we will come to its details in the coming pages, God willing. Islam does not make the ruling on a system depend on its name and heading only, but on its foundations and premises, which will be taken as basic principles in managing the helm of the system and running the wheel of government.

(2) Aristocracy

A coined word taken from “the nobles” (*al-ashrāf*), meaning: a class of people of high status and prominent social position. In summary, this system [holds that] government and authority are not deserved by every Tom, Dick and Harry from among the rabble and riff-raff of the people; rather, they are the special preserve of a small number of citizens who are higher in status than others because of their family connections, their wealth and their particular abilities. Hence it is not the right of others to rule or seek rule.

There was also disagreement among the pioneers of this system in identifying the nobles who form the aristocratic class, and who therefore deserve rule over others by merit and worth. One said: they are those who possess lofty lineage distinguishing them from others of lowly lineage. Another said: they are those who occupy a prominent place in society from the religious point of view. Others defined them by their possession of abilities and noble human qualities, such as being the bravest and most intelligent of people. Thus their criteria for identifying the class of nobles among whom is confined the right to ascend the throne of authority and attain power and capability differed. However, all of them are united by this common measure: that authority is deserved only by a special group of people with a prominent social position distinguishing them from others; as for the rest, they must simply concede this right to them, submit to them and obey them.

It should be known that Aristotle and Plato were the originators of this idea and the inventors of this term, for they put forward the philosophy of intellectual aristocracy, holding that the right to rule should [p. 41] belong to those with prominent abilities and intellectual qualifications only. But this idea of theirs remained a wish and a fancy only, and was never actually realized in the external world, since no system has ever been established in which the rulers are chosen on the basis of their status and their mastery of knowledge.

It is worth noting here that aristocracy was originally applied to a form of government dominated by persons of prominent social standing. Today, however, it is also applied to the form in which this

upper class does not directly exercise rule, but enjoys complete influence and full dominance over the rulers, such that it would be no exaggeration to regard them as the actual ruling party; in such a case too it is called aristocratic government.

What has become prevalent today in the use of [the word] “bureaucracy” in fact means this kind of system of government. Its gist is that administrative officials are able to dominate and take control of the system so that important government affairs are not concluded, and the state’s important policies are not adopted, except in accordance with their wishes and the fulfilment of their demands; and they press the rulers so hard as to force them to follow them, to the point that they find no possibility of departing from their demands and wishes.

The word is compounded of bureau, meaning administrative officials, and (cracy) meaning rule; and the meaning of the compound is: that rule in reality belongs to the administrative officials and no one else.

With regard to identifying the upper class that deserves to rule people and lands, aristocracy has been divided into several types:

(a) Intellectual aristocracy: which is — as mentioned — an idea presented by Aristotle and Plato, but it never enjoyed actual application in external reality.

(b) Racial aristocracy: It means: that the right to rule the country is confined to the members of one tribe or the members of a particular race, so that the king is only from among them.

It found currency and influence among a considerable number of nations and civilizations, and specifically in Hindu civilization, where the belief prevailed that rule was the special right of the members of [p. 42] the upper castes — Brahmans, Rajputs and Kshatriyas.

(c) Religious aristocracy, or theocracy A word of Greek origin, compounded of two Greek words: “theo”, meaning god (from it comes the word “Theology” for divinity, i.e. the science of God), and “cracy”, meaning rule. So the meaning of the word is: the rule of God.

The motive behind the launching of this system was a blessed, splendid idea: that true rule in this universe belongs to God, glorified and exalted, and therefore whoever assumes authority over people and lands should be subject to and follow the rulings of God, glorified and exalted. The question these people faced was: who has the authority to interpret the law of God, glorified and exalted, and to specify His rulings? Christianity delegated this authority to the Pope and charged him with interpreting the divine law and specifying its rulings, then informing the ruler of them so that he would be compelled to act on them and implement them. The outcome was that theocracy came in fact to be confined in its meaning to the rule of the men of religion, after it had linguistically denoted the rule of God. Hence we see that the word is usually translated today in this second sense (the rule of the men of religion), not the first (the rule of God).

As we mentioned a little earlier, the sultan’s subjection to the rulings of the Pope continued to be an intractable problem in the history of the Christian governments among the Romans. It caused, on the one hand, the outbreak of partisanships and the intensification of rifts between state and Church; and on the other, since the Pope enjoyed unlimited and unrestricted authority in specifying rulings and

legislating them, he was not slow to exploit it many times, on various occasions, in what was illegitimate and not beneficial — especially when this authority passed into the hands of worshippers of personal interest and servants of selfish whims, whose care for it and greed for obtaining it drove them to choose harsh plans and practise ferocious policies that made the Romans live suffocated in an atmosphere of hardship, injustice and aggression for many centuries. This ultimately resulted in the people's rebellion against religion, and consequently in the establishment of democracy on the ruins of the refutation of the Church's authority and the ending of its interference in state affairs, until [p. 43] the word "theocracy" today became an insult and a disgrace that does not strike the ears except to bring to the mind the image of those hardships and calamities that the people of Rome suffered and endured during the authority of the popes and priests.

Since the word "theocracy" has today come to be a disgrace, many Muslims have come to apply to it the ruling of categorical rejection from the Sharia point of view, ignoring and feigning ignorance of the essential difference between its original philosophy, on whose foundation it was built, and what its practical application among the Christians came to. From this we see today that whenever scholars speak of the Islamic system of government, or demand it in Pakistan, or contribute their share in politics aspiring to establish Islamic government, from the first moment the modernist secular class sets about aiming arrows at them and launching raids on them, shouting at the top of their voices with all condemnation and denunciation that these people claim to set the state alight in the fire of theocracy, and that we shall resist them and fight them, and so on and so forth… — without any of the opponents or supporters directing their attention to understanding the reality of the word and the idea at work behind it: that it in truth denotes "the rule of God", which is a great principle in Islamic politics that God has explained in an eloquent, elegant style in His words, glorified be He: **"Judgement belongs to God alone"** [al-Anʿām, 6:57; Yūsuf, 12:40, 67]. Consider, then, the gravity of the position of one who denounces it and proclaims — without awareness or insight — that it has no share in Islam! Does not his denouncing it and his judgement of its absolute prohibition entail negating the rule of God in Islam?!

Once more we clarify that theocracy in its original concept and meaning — namely that true rule in the universe belongs only to God, and that government should be subject to the divine law — is a sound, correct idea that agrees with what is established in Islam and what the Noble Qur'an has declared more than once. But when it was actually realized in the external world, it was accompanied by many evils and attended by numerous abuses that led to the distortion of its image and the ruining of its reputation. In what follows we shall turn to clarifying the distortion and disfigurement it faced at the hands of the men of the earlier religions: Judaism, Hinduism and Christianity.

Jewish and Hindu theocracy

[p. 44] The first theocracy to appear on the face of the earth belonged to the Jews. All the Children of Israel — before the sending of Jesus, upon him be peace — were charged with following the law of Moses, upon him be peace, revealed to him in the Torah, which they called "the Law". However, most of its rulings concerned worship, purity and the like, and few of them concerned the civil and civilizational aspect of human life. So when they resolved to establish the state and run its system on

the basis of the law of the Torah — which, as mentioned, was almost devoid of civil rulings — they very often faced an issue whose ruling the Torah had not stated. So, to learn the divine rulings and enact law in their light in such cases, they delegated authority and power to the scholars and men of religion. They had a particular way of performing this task: their rabbi would sit in a tent devoted to this purpose called “the Tent of Worship” [Tr.: i.e. the Tabernacle], in which was placed an ark of a special kind, covered with a covering of gold. The rabbi would watch for suitable weather in which the flashing of lightning in the sky could be hoped for. He would sit near this ark in an attitude of watching, reciting some of its verses and invocations; when the lightning began to flash, this rabbi would rise saying that Yahweh (meaning: God) had revealed to him through this lightning the ruling of such-and-such on this issue.

Thus the belief prevailed and spread among them that Yahweh informed the rabbi of His law on new cases by speaking to him directly.

They would resort to it whenever they faced such an issue or such a situation befell them. The rabbi would take up his place in the Tent of Worship to wait for the lightning that would lead him to revelation according to their corrupt claims. If it flashed — fine; otherwise he would continue his watch to claim a ruling on the issue, alleging that it had been revealed to him or inspired to him.

It is clear that the claims of unveiling (*kashf*) and direct inspiration from God to their rabbi were nothing but fancies and illusions not based on firm evidence or sound reasoning; rather, it was greed for preserving their leadership and continuing their headship that led them to invent them. Therefore

[p. 45] their alleged, fabricated law was nothing but an expression of their whims and desires, their personal inclinations and opinions, which they would enforce in the land as the rule and law of God — whereas in reality it was far removed from the law of God, His rulings and His good pleasure.

Something similar to this theocracy also prevailed in Hinduism, where the Brahman caste held the authority to know the law of God, glorified and exalted, through direct contact with Him.

What the two theocracies — Jewish and Hindu — have in common is that both imposed on the whole people the obligation of the alleged law as being from God, according to what the men of religion reported and enforced, without anyone having any possibility of challenging its standing on the grounds that it was not from God, and that it was nothing but what their own selves had invented and their desires had run after.

At any rate, this kind of theocracy, based on the claim of direct revelation from God to the priesthood and the men of religion, was prevalent and widespread in Judaism and Hinduism, and it still continues among the “Lamas”, who are based in Tibet and Japan.

Since the kings among them were also bound to comply with this alleged divine law that was communicated to the priesthood and religious leadership — which amounted to subjecting them to the authority and control of these people — they tried to free themselves from it, until they managed to do so by way of alliance and collusion with some of the men of religion, who declared that the authority to know God’s rulings and His law through direct revelation had passed to the king, in what God inspired him with. Thus authority was handed over to the king, resulting in the belief that what he says is nothing but an expression of the divine law. This was followed by another arbitrary

philosophy: that the king is a creature created from Paradise, raised under special care from God, and sent down into the world bearing and possessing his authority directly from God. Therefore obedience to him is obligatory in all his commands and laws whatever they may be — even if he is tyrannical in rule, transgresses in command and oppresses the subjects — for all that is only according to God's good pleasure and entirely according to His will. Hence all the subjects must bear it and endure it, and never dare to take any step to remove him or topple his system. Thus theocracy blended with religious monarchy!

Christian theocracy

[p. 46] It should be known, first, that our master Jesus, upon him be peace, was sent to the Children of Israel specifically, to turn them away from polytheism and other corrupt beliefs and deeds that had crept into their religion at the hands of the falsifying deniers. His law was a copy of the Torah, entirely in line with the original except for some particular rulings (and this exception is only permissible according to our view as Muslims). As for the Bible, it is clear from it that the purpose of sending Jesus, upon him be peace, as a prophet was only to implement the Torah and apply its law, not to abrogate or change it; for many texts in it are reported from our master Jesus, upon him be peace, that convey this meaning. So the law of Jesus, upon him be peace, was not different in anything from the law of Moses, upon him be peace, according to the original belief of the Christians. But "Paul", among the distortion and falsification that befell Christianity, also introduced into it this deviant doctrine: that the Torah — with all the rulings in it — had been abrogated by the mission of Jesus, upon him be peace.

It should be known that Paul (Saint Paul) existed in the time of Jesus, upon him be peace, and was a Jew whose name was "Saul". No sooner had Jesus, upon him be peace, been raised to heaven and his disciples begun calling people to his religion than this man turned into a spiteful enemy of theirs, sparing no effort in harming and persecuting them. He continued thus until he suddenly claimed that — on his way back from Damascus — he had seen a light from heaven more brilliant than the sun; so he fell to the ground because of it and heard a voice speaking to him and saying to him in Arabic [sic: Acts 26:14 has "in the Hebrew tongue"]: "Saul, Saul, why do you persecute me?" He claimed that it was Jesus, upon him be peace, and that he meant by the persecution the persecution of his companions and disciples. He also claimed that after this incident he repented of what he had been engaged in during his past life, and left Judaism as a believer in the Lord Jesus Christ. So this Paul arose and introduced much distortion into original, pure Christianity, and brought into being another Christianity, which has no connection to the first, its beliefs or its practices. The prevailing beliefs that Christians embrace today, and which are regarded as the foundations of the Christian religion, are nothing but the product of the thought of Paul, who racked his mind and laboured his thought and so invented these [p. 47] deformed, false doctrines in order to harm Christianity, corrupt it and distort it. Even in this day of yours, the "Holy Bible" is in your hands — and it has received an abundant share of distortion — yet you will not find in it anything about the doctrine of the Trinity, nor the doctrine of redemption and atonement.

Among Paul's distortion of and tampering with Christianity in its beliefs was that he regarded the Torah as a curse, and claimed that Jesus had been sent to deliver people and save them from the curse of the Torah. As for the account of the means he adopted as a mechanism to achieve all this — attaining this influence and interference by eliminating the authority of the followers of Jesus, upon him be peace, and his disciples — that is a long account, which you can find laid out and detailed in my book *What Is Christianity?*.

At any rate, his claim that the Torah had been abrogated resulted in Christian beliefs and practices being confined to what is mentioned in the four Gospels only. If you let your eyes roam and look closely in them, you will not find in them any ruling relating to political and civil life, except for the saying: "Whoever strikes you on your right cheek, turn to him the other also", and the like, which focuses on moral values such as tolerance, forbearance and patience. As for rulings and laws, it is entirely empty-handed of them!

So it follows from the foregoing detail that if a government is established on the basis of the Christian religion, the four Gospels have nothing to supply it with in any matter of state affairs and government; for they are entirely devoid of it! Here a question arises: what will Christian government adopt as a religious law to follow in managing the helm of government and running its wheel? This was a question the Christians faced for the first time when Christianity became the official religion of Rome following the Roman Emperor Constantine's embrace of it. Their situation in this became worse than that of Judaism, for the Torah carries between its covers six laws of the taʿzīr [discretionary punishment] type, in addition to many criminal laws, while the Bible was devoid even of this slender number of rulings and laws. So, to free themselves from this thorny position and to rescue themselves from this crisis, the Christians resorted to inventing another philosophy which meant delegating legislative authority to [p. 48] the Church.

It should also be known that the Church in Catholic Christianity is not merely a place of worship, like the mosque among the Muslims; rather, it is regarded among them as an independent organization playing a special role. It is also enveloped in a cloud of complexity and intractability, beginning with its being regarded as the deputy of the disciple Peter, whom Christianity regards as the best of the disciples, the highest of them in standing and the most eminent in rank, and claims that he is the one to whom the knowledge of Jesus, upon him be peace, passed. So he had in the souls of the Christians the same standing held by our master Abū Bakr al-Ṣiddīq, may God be pleased with him, among the Muslims (the comparison being in their rank among their respective peoples only, not in every respect) — indeed higher and loftier than that, since he — like the other disciples — holds among them the rank of prophethood. Christianity also says: Peter enjoined the men of religion to continue his work and carry out his task after him. Since establishing the Church and administering it was in the hands of those men of religion and that religious leadership, which represented its role on behalf of Peter, it alone should have authority in legislating rulings and enacting laws.

It should be known that the Church is headed by the Pope, and that Christianity has an organized ranking of the leaders and men of religion, with the powers and duties of each rank defined, beginning with the deacon, followed by the archdeacon, then the bishop, then the archbishop, then the cardinal. When seventy of them agree on a person, he becomes the Pope. As for the word "priest"

(*qassīs*), it is more general than these words absolutely, being applied to the holders of all these ranks; and there may also be a rank other than those mentioned whose holder may properly be called a priest. This system concerned with the ordering of their degrees and positions is called the priestly system (the hierarchy), and the body of those holding these various positions is called the men of religion (the clergy).

The ability to enter the Church's system and the aforementioned ranks did not turn only on the scholarly and practical qualifications and abilities a person had attained; rather, it may [p. 49] have been due to nationalist considerations, and sometimes it took place through election carried out by a special council set up for this purpose (choosing persons to hold these various positions). But their election was not free of the tricks and methods of forgery that usually accompany political elections. Very often it took place under the constraints of racial discrimination: for example, if there was a region inhabited by a group of Christians, white and black, it was possible that the position of bishop would always and absolutely be occupied only by whites, while blacks were not, whatever their degree of knowledge and mastery of learning.

Then, since they believed the Pope to represent the Church, which is the deputy of Peter, they naturally believed him to be infallible, and this became the doctrine of the Roman Catholic Church: that the Pope is infallible and free from error in religious affairs. The English term (infallible) is specifically used for him, meaning: the person who does not err and whose foot does not slip. However, his infallibility among them was confined to legislative matters only; that is, whenever he issued a ruling of the Sharia or enforced one of its laws, he was infallible in that, free from error and mistake. It should also be known that his role among them was not confined to explaining and interpreting the law; rather, he had the authority to legislate and to enact laws as well, and this was the area in which they believed him infallible from error. As for other matters, they did not believe him infallible in them; rather, they saw it as possible for error to proceed from him in them. One never ceases to marvel at this arbitrary philosophy that believes a person not infallible in all his life, but as soon as he assumes the office of Pope he becomes adorned with infallibility!

Hence racial motives and the influence of nationalist partisanships interfered in the election and appointment of the Pope, and removed confidence and assurance that this lofty rank, with unlimited authority, would be entrusted to those worthy of it each time. Because of that, it became possible for this exalted office and lofty position to be occupied by those who did not deserve it and did not come near to it at all, from among those lacking the abilities and the scholarly and practical qualifications. Among the curious things that happened in this regard is that once a severe [p. 50] disagreement occurred among them over the election of the Pope; so they cast lots, and the lot fell on a pirate named John, who became famous as John the Twenty-Third, and all those powers and authorities accrued to him — including infallibility in legislative matters — like any other Pope. Thus most of those who ascended the papal throne were, from the moral point of view, at the lowest level and the very bottom, and so they spared no effort in the illegitimate use of their authority. The matter reached the point that a Pope once announced that whoever wished to enter Paradise should buy a deed of forgiveness from us. People flocked to it, and the Church began issuing indulgences in return for exorbitant sums, until it issued deeds even for the dead who had died long ago and whose bodies had

decomposed and bones crumbled, in response to the demands of their guardians and in satisfaction of the wishes of their relatives!

On the other hand, the kings suffered severe inconvenience and great harm from them, because they were obliged to act according to their interpretation of the rulings of religion, and were unable to undertake anything except after obtaining the agreement and approval of these people. Competition arose between them over this, and whenever a king tried to withdraw from obeying them, the priests hastened to declare him a heretic, and then to issue a fatwa that he deserved to be deposed from power.

Third: to arrest renegades opposing the teachings of the Church, they established a special body for inspection called “the Courts of Inquisition”. It had broad authority to examine the circumstances of every person and his beliefs, and the places of his activities that he hid in secret, the books he read, the people with whom he had connections and ties inside and outside the state, and other purely personal matters. Those courts played the role of snares and traps in which a person fell and found no way to escape! They had eyes and spies in every quarter of the city who spied on people’s circumstances secretly and covertly, then informed on them to the Courts of Inquisition, which tortured them with all barbarity and savagery, such that they left no method of injustice and persecution, nor any art of barbarism or branch of atrocity, without adopting it [p. 51] against them and applying it to them — among them: executing them by burning, flaying their skins, pulling out their nails and so on.

You know and are aware that the Muslims ruled al-Andalus for about seven centuries, and finally stepped down from its government following the surrender of their last king, Abū ʿAbd Allāh, to the Christian army, after the signing of a treaty that guaranteed the Muslims in al-Andalus the exercise of their freedom, their religious rites and acts of worship, the protection of their mosques, and so on. But no sooner had Ferdinand’s armies entered Granada than they violated that treaty in a flagrant, open violation, without honouring a single one of its clauses. They converted the mosques into churches, and burned the books of the Muslims in the streets of Granada in a fire that continued for a month. Then the Courts of Inquisition began their work against any Muslims who uttered so much as a word against Christianity or the Christians; they subjected them to the worst torment and inflicted on them all kinds of persecution, bringing down upon them various calamities and disasters, which compelled the Muslims living in those lands to leave and emigrate from them to Algeria and the Far Maghrib.

It was the known practice of that court that whoever objected to any of the Pope’s rulings as contrary to the requirements of the “Holy Bible” and unsuitable to the spirit of the Christian religion would be declared a heretic — which at that time meant nothing but execution!

Perhaps you will be astonished when I tell you that the translation of the “Holy Bible” remained categorically forbidden among the Christians until the fourteenth — or fifteenth — century CE, and was regarded as a crime that brought nothing on its perpetrator but condemnation, then arrest and… The main aim of that was to narrow the scope of reading and understanding it, so that no one would object to their rulings and fatwas as contrary to the Holy Bible and its rulings — until the priest John Huss translated it covertly and secretly, and suffered for it the punishment of being burned alive!

This, then, was a passing glance of mine at the conduct of Christian theocracy — or say: [p. 52] the papacy — and its methods! It would be no departure from neutrality to say that it was in reality one of the worst kinds of dictatorship and the harshest of its forms, administered by a band of people behind the curtain of divine sovereignty and under the slogan “Rule belongs to God”.

Those who belong to the Protestant denomination, when presenting the picture of this system, soon fall into exaggeration and excess in distorting its face and colouring it in various colours. But even if we turn a blind eye to the exaggeration and distortion accompanying this picture, and grant that some of its eras were free of these objections, the facts I have presented to you are clear, evident facts, as clear as the sun at midday: such as the belief in the Pope’s infallibility, the trade in indulgences, the delegation of full legislative authority to the Pope, the injustice and aggression prevalent in the Courts of Inquisition, and the kings’ vexation and annoyance at the Pope’s unlimited powers. These are facts in which there is no room for denial or objection, and they are what formed the foundations of Christian theocracy!

Now, if we look closely in the light of this conception, it automatically becomes clear to us that Islamic government, or the participation of the scholars of Islam in political activities, has no connection whatsoever with the theocracy prevalent in the Roman governments. Rather, there is a vast gulf and clear differences between them that make them entirely different. Below we summarize those differences for you briefly:

(1) The Gospels are almost devoid of rulings and teachings concerning politics and government; hence they were compelled to delegate the authority to lay down rulings and enact laws to the priests and men of religion. Islamic rulings, by contrast, rest on the Noble Qur’an and the Prophetic Sunna, in which a great deal of the rulings of politics and government is expressly stated. As for issues whose rulings these two sources have not stated, the authority to legislate in them has not been delegated in any way to the individual opinion of a particular person (as was the case in Christian theocracy).

(2) As we stated earlier, the Church among the Christians is not merely a place of worship; rather, it is a special organization that took upon itself the burden of legislating rulings. What it laid down of [p. 53] rulings and enacted of laws was binding on every Christian, without his having the right to oppose it or disagree with it. Islam, by contrast, does not recognize any organization like this that assumes the office of legislation and holds the function of the Lawgiver. Yes, in order to undertake the task of interpreting the Qur’an and Sunna it has — naturally — laid down particular qualities which, if present in a person, qualify him for this task, whoever he may be. Beyond that, there is no organization that approves or rejects it; rather, what counts is its acceptance or rejection by the collective conscience of the Umma. Likewise, if two reliable mujtahids differ on an issue, the ruler may choose for implementation the opinion of either of them, and then everyone must submit to it as law, even if a particular person’s opinion does not agree with it. Perhaps the famous story of Imam Mālik (may God have mercy on him) in this regard has reached your ears: the Caliph Abū Jaʿfar al-Manṣūr said to him: “I have resolved to order these books of yours that you have composed — meaning *al-Muwaṭṭaʾ* — to be copied, then to send a copy to every Muslim city, and to order them to act on what is in it and not go beyond it to anything else, and to leave everything besides this new knowledge…” He answered him, saying: “O Commander of the Faithful, do not do this. For people

have had sayings reach them before, they have heard hadiths and narrated reports, and each people has taken what reached them first and acted on it and made it their religion, from the disagreement of people and others. To turn them away from what they have believed would be hard; so leave the people and what they are upon."[1]

(3) Christianity affirmed the Pope's infallibility from error and slip in legislative matters, while Islam confines the rank of infallibility to the prophets, upon them be peace, only. After the chain of prophethood ended, no one has the right to claim infallibility, and it has never happened throughout Islamic history that any scholar claimed it, however great his knowledge and however eminent he was in it.

Islam has not recognized infallibility for any system or body; it has only established the principle that the Umma as a whole does not agree upon misguidance, so that if its consensus occurs on a matter, that is the truth and the right. Beyond that, it has not restricted the process of interpreting the Qur'an and Sunna to a race, lineage or profession; rather, it has entrusted it to those with abilities and particular scholarly qualifications — whenever they are found in a person he is called [p. 54] a mujtahid, and then he has the right to interpret the two basic sources, the Book and the Sunna. Then the opinions of the mujtahids and their derivations are presented to the other members of the Umma so that they may study them, retaining the right to criticize and discuss them; and thus the collective conscience of the Umma is able to choose one view that is the most correct and sound.

> [1] *Al-Ṭabaqāt al-Kubrā – Mutammim al-Tābiʿīn*, ed. (1/441), biography of Mālik ibn Anas.

Hence, in the light of these differences, it has become entirely clear that applying Christian theocracy to the system of Islamic government and equating them is nothing but plain injustice and excessive unfairness. Accordingly, what has become prevalent today — that the scholars of the Sharia do not raise their voices demanding Islamic government without Western-cultured circles stirring up propaganda against them that they want to take the state back to backwardness and regression and are trying to impose papal theocracy on it — is in reality nothing but the result, first, of misunderstanding the papacy, and second, of misunderstanding the standing of scholars and their role in Islam. Hence one rarely sees a person become entangled in this fallacy once the reality of what the papacy was and the standing that the Islamic Sharia has established for scholars has been revealed to him. Yes, as we stated a little earlier, the Islamic Sharia has laid down qualities and conditions for the competence to interpret the Qur'an and Sunna and to derive rulings from them; if these are present in a person he deserves to assume the office of interpreting and explaining them. But that a commoner from the rabble and riff-raff of people, who has not read the Qur'an or studied hadith throughout his life, should become pompous [and declare] that there is no papacy in Islam and begin to utter his opinion as one deserving to — that is nothing but foolishness and folly on his part. For it is natural that for speaking and giving an opinion in any science or art whatsoever, there are qualities and frameworks that a person may not [exercise] except after being adorned with them and possessing them; as for one who lacks those qualities, he has no right to criticize the opinions of scholars and accuse them of theocracy or papacy.

In sum: theocracy in its original meaning and conception was not deviating from what is right, since it means: rule belongs to God. However, the earlier religions — Judaism, Hinduism and Christianity —

when they tried to apply it, corrupted it, distorted it and falsified it, to the point that it lost its spirit and its true original meanings. Therefore we are confident that if it were applied today [p. 55] under Islamic principles, those abuses would not accompany it and those evils would in no way spread in it, God willing.

The doctrine of redemption and its link with theocracy

Here I would like to draw your attention to an important aspect in the study of the issue of theocracy, namely that many of its supporters have presented the doctrine of redemption prevalent among the Christians as a basis and evidence for proving it, on the grounds that that doctrine establishes every human being as a sinner and a committer of sin, and requires him to submit to the government and surrender to its commands and obey its rulings as a recompense for his sins and a punishment for his transgressions. From this the need arose for us to dwell at length on explaining that doctrine and reviewing it so that we can understand it, and then refute this theory with insight and mastery.

The doctrine of redemption[2]

The doctrine of atonement is one of the most important doctrines on which Christianity is built — and by Christianity here we mean what Paul laid down, not the pure Christianity that our master Jesus, upon him be peace, brought. For no mention of it at all appears in the three Gospels; as for the fourth Gospel, an ambiguous sentence regarding it appears in it, which they took as a basis for this doctrine. In itself it carries great importance among the Christians, to the point that it has become like an indispensable, inseparable part of the Christian conception. It is one of the doctrines on whose belief all the Christian sects have agreed — Roman Catholic, Orthodox, Protestant and so on — despite the extreme ambiguity and convolution surrounding it. Its idea starts from the premise that the first to commit sin was Adam, upon him be peace. For God, when He created him, settled him in Paradise and provided him with every kind of comfort, and did not impose any limit on him except that he was forbidden from eating the wheat. He had endowed him with the power of will in complete freedom, with which he could, if he wished, abide by this prohibition, just as he could oppose it if he wished. But he (God forbid) in submission

> [2] In Arabizing this discussion of redemption and what follows it on the history of Christianity, I have benefited from the translation of Shaykh Nūr ʿĀlam Khalīl al-Amīnī of one of the studies of Shaykh Taqi Usmani, may God preserve him, on Christianity, which has been printed under the title “What Is Christianity?” (Translator)

[p. 56] to the promptings of Satan, ate the grain of wheat. His sin was extremely heinous, since it combined within it a great many sins: it was unbelief, since his committing it amounted to denying God’s command; it also included arrogance, since he chose to live ruled by his own authority rather than living under the shade of divine rule; it was also greed, since he aspired to more than what sufficed him; it was also theft, since the prohibition on eating the wheat indicates that it was outside his ownership and disposal, so his eating it and disposing of it is regarded as theft; and it was also moral adultery, since Satan tempted the woman against him, and that woman seduced him with her

honeyed, misleading words until he followed her whim. (God forbid these misguided beliefs!) A Christian scholar of the third century CE [sic: Augustine lived 354–430], Saint Augustine, says: “In that single sin was a reflection of all the sins that can exist on earth; so it is no departure from neutrality to regard it as the sum of all sins.”

From this, Christian philosophy assigns it the term “original sin”: first, because it was the first sin committed on the face of the earth; second, because it was the head of every evil; and third, because his sin was what created “disobedience”, which had never been conceived before. This, then, is the first premise among the Christians regarding the doctrine of atonement.

The second premise: that Adam, upon him be peace, deserved the punishment of “eternal death” for this sin; for God the Exalted said to him, when He showed him the forbidden tree: “for in the day that you eat of it you shall surely die”, as it appears in the book of “Genesis” of the Torah. They interpret this saying as meaning the punishment of death for the sin of eating from that tree.

The third premise: that Adam was stripped of the freedom of will he had been given. He had been granted the ability to do good and evil by his own will and choice; and since he erred by placing it in the place of sin, it was removed from him, so he became deprived of freedom of will in doing good. As for committing sin, he remained free in that.

Here a question arises: why did God punish him by depriving him of the choice of obedience?

[p. 57] It is answered that the real punishment for sin lay in his being distanced from God’s mercy; so when he became separated from God’s mercy, desires for more sins arose in him, and he became virtually compelled to commit them. As a result, his sins piled up on him and he had to bear them.

The fourth premise: all the children of Adam who existed after him, or will exist in the future until the Day of Resurrection, were born only from his loins, and his blood flows in them; therefore this sin passed to all human beings, to the point that a child, when born from his mother’s womb, is born polluted with this sin. So every human being who is born is born a sinner, because the original sin of their father is intertwined in his nature and kneaded into his clay.

Since all the children of Adam are polluted with the original sin that brought upon their father the punishment of deprivation of freedom of will, these too were deprived of it as their father was deprived of it, and they were polluted with sin until their shoulders were weighed down by bearing other sins that they themselves committed in the wake of committing the original sin.

Then, because of these sins and transgressions referred to (the original sin into which they were born, and the other sins they committed as a result of the removal of their freedom of will in doing good), all the children of Adam deserved death like their father, and no way remained for them to escape the calamity of these sins except that God should have mercy on them and forgive them. But that was no longer possible, because God is “just” and “fair”, and does not depart from His firm, unalterable laws; and He had decreed for the original sin the punishment of death. If He forgave man without imposing on him the punishment of death, that would contradict His justice. Likewise, putting all human beings to death would lead to the end of the world, just as it would contradict the law of nature and the norm of the universe.

So there was a need for an infallible person, free of the “original sin”, to bear all of man’s sins; God would punish him with his death and then resurrect him, and this punishment would suffice for all human beings, and thus mankind would be saved.

[p. 58] For this purpose God chose to send into the world His attribute of speech, embodied in a human body and shaped in the form of Jesus, upon him be peace. He remained in the world for a time, then was crucified, and the crucifixion was carried out upon him as a punishment for the original sin; and thus His saying was fulfilled: “in the day that you eat of it you shall surely die”.

Thus God the Exalted carried out the punishment of the sin of Adam and his children upon Jesus, upon him be peace, alone, and regarded his death as an atonement for all of humanity; that is, God the Exalted, by virtue of this atonement, pardoned the original sin which Adam committed and which deprived him of freedom of will in doing good, and which passed to all his children and flowed in their blood, making them deprived of choice and stripped of will in doing good. When the pardon of those sins was accomplished, man’s punishment for them was lifted — the punishment that had befallen him in the form of the removal of his choice in doing good — so his choice was restored to him. If he uses it in good deeds he will deserve reward and recompense for them, and if he places it in evil deeds he will incur punishment according to the kind of evil deeds he has committed.

But the sacrifice of Jesus Christ is only for those who believe in him and take his teachings; and the sign of this belief is performing the rite of “baptism”. For baptism means that the one performing it (the one baptized) believes in the atonement of the Messiah. It is a kind of washing with water performed on everyone who wishes to enter Christianity, and no one is regarded as a Christian without it. It is what God, glorified and exalted, referred to in His words: **“And who is better than God in [giving] colour (ṣibgha)?”** [al-Baqara, 2:138] — that is, these people dye and colour their bodies with a particular outward colour, whereas the dye of God is in reality the [true] dye; nothing is better than it as a dye.

Now, this is a summarized study of the doctrine of atonement, which a number of supporters and advocates of the theocratic idea tried to use as a basis for theocracy: that man has had that original sin kneaded into his leaven, blended with his clay and spread through his nature, so there was a need for the ruling body to punish him for what he committed and deter him from repeating it another time. So God set the government over them to perform this task; and since government is from God, every one [p. 59] who undertook it — ruler, king or head of state — carries in himself holiness and lofty standing; and being adorned with that holiness, obedience to him is obligatory on all, whether he is tyrannical in rule or just, and no human being has a Sharia right to attempt to depose him from office or remove him from his rank or topple his system of rule. This is the point of view of a group of supporters of theocracy! What a simple picture it gives us of the misguidance and superstitions in whose wilderness man stumbles, wandering astray. Thereby we can appreciate the extent of the gravity and standing of the sending of the Prophet ﷺ, through which God protected us from these errors and lies! Since things are known by their opposites, light can only be truly appreciated after facing pitch darkness, and guidance only reaches its worth and standing after witnessing misguidance; and Islam is appreciated at its true worth only by one who becomes acquainted with these

misguidances. So may our souls be your ransom, O Messenger of God! From how many misguidances you have saved us, and from how many illusions you have protected us!

A brief look at the history of Christianity and Europe

Since we have touched on the discussion of Christian theocracy, it is fitting that we now follow it with an explanation of a quick look at the history of Christianity, presenting a brief picture of it; for in our study of political systems we are compelled to refer and allude to it again and again, given the influence and interference the Christian religion had in every political, economic, social or other system that arose in Europe. Let us begin drawing this picture with the account of the Children of Israel, which I present to you in detail below:

The word “Israel” is the name of our master Jacob — upon him and upon our Prophet be blessings and peace — who had twelve sons, and his children were called “the Children of Israel”. They are also called “the twelve Tribes” (*al-asbāṭ*), and their mention appears in the Qur’an as well; each of them became the father of a tribe. The original homeland of the Children of Israel was the regions of Palestine. (Joseph, upon him be peace, was the one who invited his parents and his brothers to Egypt.) In that period the Amalekites attacked Palestine and seized it by force. On the other hand, the Pharaoh of Egypt, who was [p. 60] ruling it in the days of the migration of the Children of Israel to it, treated them with tact and kindness. But the Pharaohs who came after him enslaved them and subjected them to their authority, and they were compelled to spend a period of time living in the shadow of servitude to the Pharaohs, until God sent among them our master Moses, upon him be peace — who, alongside calling the Egyptians to divine unity, also declared openly that his mission also aimed at rescuing the Children of Israel and delivering them from the clutches of Pharaoh, and saving them from his torment and harm. Moses, upon him be peace, managed to rescue them from Pharaoh’s claws and move them out of Egypt. But they refused to fight against the Amalekites, which brought upon them wandering in the wilderness of Sinai for a long period, until God’s mercy took Moses, upon him be peace, and he died there. His successor Joshua, upon him be peace, together with Caleb, upon him be peace (who was a deputy of Joshua), undertook jihad against the Amalekites, and they managed to free a large area of Palestine, which the Children of Israel settled anew and colonized. But a large part of it remained under the control of the Amalekites. When Joshua and Caleb, upon them both be peace, died, they [the Israelites] became an anarchy with no leader to lead them or ruler to govern them, and they remained like the Bedouins among the Arabs in the days of the Jāhiliyya, their life becoming tribal, far from civil and urban [life], without a state or government gathering their scattered parts. However, they would make the man able to settle their disputes satisfactorily, according to their tribal laws, a leader and chief over them, and they called such a man “judge”, and their period is called “the Period of the Judges”.

Finally, when Samuel, upon him be peace, was sent among them as a prophet, they asked him — having become fed up with this Bedouin life — to call upon God to raise for them a king, under whose leadership they would fight against the Amalekites to free and liberate what remained of the land of Palestine. This is what God mentioned in His words, mighty and exalted:

“When they said to a prophet of theirs: ‘Raise up for us a king, and we will fight in the way of God’” [al-Baqara, 2:246].

So He raised up for them Ṭālūt (Saul) as king. He was the first king of the Children of Israel who did not obtain the rank of prophethood, whereas the kings before him had combined the two ranks of prophethood and kingship side by side. Ṭālūt undertook to resist the Amalekites. Our master David, upon him be peace, was at that time a young man of tender years who had not yet been sent as a prophet, and it so happened that he joined Ṭālūt’s army. A person from the Amalekite army [p. 61] named “Goliath” (Jālūt) demanded a man from the Children of Israel for single combat, and none dared to confront him except David, upon him be peace. So David killed Goliath, which earned him comprehensive love and acceptance that took hold of the hearts of the Children of Israel, to the point that he became their king after Ṭālūt, and God also honoured him with prophethood. Under him the control of the Children of Israel over Palestine was almost completed. He was succeeded by his son Solomon, upon him be peace, under whom the kingdom reached the height of its flourishing, and it was he who built the Temple (Bayt al-Maqdis) by God’s permission. The kingdom was called “Judah” after the name of his ancestor. After his death he was succeeded by his son “Rehoboam”, who assumed the throne of the kingdom; but — because of his lack of fitness — he did not stop at eliminating the religious spirit in the kingdom, but also inflicted grave harm on its political stability. In this period “Jeroboam” rebelled against his rule and founded an independent kingdom by the name of “Israel”. Thus the Children of Israel were divided between two kingdoms: the Jewish kingdom in the south, whose capital was “Jerusalem”, and the kingdom of Israel in the north, whose capital was Samaria (what is today called Nablus). A long series of religious and political clashes and conflicts arose between the two kingdoms, in which pagan tendencies took control from time to time and people’s turning towards them increased; so prophets were sent to them. When they went to excess in blackening the records of their deeds with evil deeds and were extravagant in transgressing God’s limits, God set over them “Nebuchadnezzar”, king of “Babylon”, who attacked Jerusalem with massive campaigns and destroyed everything in his last campaign. He burned all the copies of the Torah, killed most of their men, and exiled their women along with their last king and those men who remained as slaves and servants to “Babylon”, where they lived in that exile once again for a long period a life of humiliation and servitude. In that period our master ʿUzayr (Ezra), upon him be peace, was born. As for what appears in the Qur’an in His words: **“Or [consider] the like of the one who passed by a town that had fallen into ruin upon its roofs”** [al-Baqara, 2:259], many of the commentators held that what is meant by it is Jerusalem following the destruction that took place at the hands of Nebuchadnezzar. This is called “the Period of the Babylonian Captivity”.

Then it happened that they repented of their sins, and their prophets prayed for an improvement of their conditions; so God decreed for them that Cyrus (an Iranian king) attacked “Babylon” and conquered it, and following that he permitted the Jews to return to Jerusalem and rebuild it and rebuild the Temple. So they established the kingdom [p. 62] of Judah alone (the kingdom of Israel had been destroyed at the hands of the Assyrians). No sooner had they enjoyed ease and comfort of life in it than they returned once more to their evil deeds and sins to which they had become accustomed, from frivolity and debauchery and even paganism! So God set over them another king named “Antiochus Epiphanes”, who put the sword among them and burned all the copies of the Torah; and

this is what the Qur'an referred to in His words: **"Then when the final promise came, [We sent your enemies] to sadden your faces and to enter the Temple as they entered it the first time, and to destroy utterly all that they had taken over"** [al-Isrāʾ, 17:7].

As for Nebuchadnezzar's attack, He referred to it in His words: **"So when the first of the two promises came, We sent against you servants of Ours possessed of great might, and they ranged through the homes"** [al-Isrāʾ, 17:5].

At that time Judas Maccabeus rose up among the Children of Israel, formed a group, and was able to recover a large area of Palestine.

If we except this petty state of the Maccabees, the Jews were all at that time scattered and wandering, living an anarchic Bedouin life without any leader or commander. A part of Palestine was ruled by the Romans, and its government was subject to Rome; Jerusalem was one of the provinces of the Roman government, which the Romans called "Judea", and over it was a governor for the Romans.

Such was the state of affairs when our master Jesus, upon him be peace, was born in the days of the first Roman emperor, Augustus, and Herod was king of Judea. Jesus, upon him be peace, presented his call to the Children of Israel, but only a few believed in it; as for the others, they showed him hostility and began to afflict him with persecution and harm. Among those who believed in him were twelve disciples of his, who followed him, supported him and strengthened him to the point of self-sacrifice for that, and a small band of others entered his religion following them. In that period God raised our master Jesus, upon him be peace, to heaven — the one about whom the Christians believe that he was crucified, then brought back to life three days later, then raised to heaven. But the truth is what God has clarified in the Qur'an in His words:

[p. 63] **"…They did not kill him, nor did they crucify him, but it was made to appear so to them. Those who differ over it are in doubt about it; they have no knowledge of it except the following of conjecture. They did not kill him, for certain. Rather, God raised him to Himself…"** [al-Nisāʾ, 4:157–158].

After his raising to heaven, his followers remained overpowered and defeated in the world for three centuries. Christian historians call this age "the Age of Persecution", and truly in that age a severe ordeal and calamity befell them: many kings raided them, scattered them and destroyed them, among them the famous king Nero, of whom the saying became proverbial: "While Rome was burning, Nero was playing the flute."

After three hundred years a fortunate day came upon Christianity, when the Roman emperor Constantine embraced it and adopted it as the official religion of the state, which gave it strength and lasting control. This was the beginning of the Christian kingdom, which lasted over Rome for a long period, in which the king was subject to the Church. Finally this Christian kingdom was divided into two parts: the western part, whose capital was Rome — the present-day capital of Italy — and the eastern part, whose capital was Constantinople, today called Istanbul. Following the division of the kingdom, the Church too was divided into two factions: a western one, with its seat in Rome, and an eastern one, with its seat in Constantinople; and their names also changed and differed. The Roman one was called "the Roman Catholic Church" and its head "the Pope", while the eastern one that split

from it was called “the Holy Orthodox Church”, and its head: the Patriarch. The word “Orthodox” means: firmly rooted in creed; it claimed that it was the one firm and rooted in the Christian creeds. Even when Constantinople was conquered at the hands of Sultan Mehmed, the head of its church used to call himself “the Patriarch of Great Constantinople”. Behind this division lay several prominent factors, both political, religious and racial. At any rate, the conflicts remained raging and wars broke out between these two churches for a long period — what Christian historians call “the Great Schism”.

[p. 64] Then came a period in which this schism multiplied among them, until from each of the two kingdoms other kingdoms split off, and from each of the two churches other churches; the number of popes reached four after there had been only two, and a series of civil wars began that stretched without end. In that period there occurred the incidents of corruption, arbitrariness and aggression that we explained earlier: trading in indulgences, criticism of the Pope’s commands became an unforgivable crime, translation of the Holy Bible was categorically forbidden, and the dissenters who departed from the system were burned in the street openly — among them John Huss and “Jerome”. However, the movement of renaissance and awakening stirred up by John Huss did not subside or calm down despite the injustice, aggression and repression, until “Martin Luther” was born and founded the Protestant sect, with which he managed to eliminate what remained of the spirit of the papacy.

“Protestant” means “the protesters”, being derived from “protest”. This name is applied to it because it arose on protest and objection against the Roman Catholic Church and its papacy. Martin rose up and said to them: “You declare a heretic anyone who raises his voice against you, and punish him with severe, harsh punishments; yet in truth you are more deserving of this name, since you have introduced into Christianity beliefs and rites that have no connection with it at all. We believe only in the pure, unadulterated beliefs mentioned in the Holy Bible; as for what you have invented, we reject it outright as worthless!”

There are differences distinguishing the Protestant denomination from the followers of the Roman Catholic Church, the most important of which is that it denies “the Lord’s Supper”, which forms an important part of the beliefs of the Roman Church. Its origin among the Christians is that Jesus, upon him be peace, ate before the alleged arrest one day with his disciples and followers a meal including bread and some broth, and said after that to his disciples: “Do this in remembrance of me.” The Roman Catholic Church interpreted this saying to mean that it became obligatory on every Christian to perform a special rite of that meal. The manner of celebrating this rite is that the Pope takes bread and touches it to a part of his body, and so [p. 65] that bread is transformed, according to their belief, into the body of the Messiah, and that broth into his blood. The aim of performing this rite is to show faith in the doctrine of atonement. So Luther rose up, denied this rite and rejected faith in this doctrine.

The second difference is that the Protestant denomination does not recognize some books of the Holy Bible. In detail: the Holy Bible among the Christians is the term for the book that brings together all the books and scriptures revealed to Moses and Jesus, upon them both be peace, and to their disciples and others after them. The first five books (Genesis, Exodus, Leviticus, Numbers, Deuteronomy) are

called “the Torah”. Then scriptures continued to be revealed to the prophets of the Children of Israel, upon them be peace, among them: the Psalms of David and the Proverbs of Solomon, upon them both be peace, and the rest of the thirty-eight books revealed before Jesus, upon him be peace; their collection is called “the Old Testament”. After that there are four Gospels about the life of Jesus, upon him be peace — the Gospel of Matthew, the Gospel of Mark, the Gospel of Luke and the Gospel of John — followed by the Acts of the Apostles and the Epistles; their collection is called the New Testament. The collection of these books in both Testaments is called the Holy Bible. There are thirteen books which the Roman Church believes in and which the Protestants do not recognize; rather, they describe them as the Apocrypha, i.e. the spurious books or those whose authenticity is doubted. Hence the Holy Bible differs for the two denominations, since the Romans include in their Holy Bible these thirteen books, while the Holy Bible among the Protestants is devoid of them.

The third difference between them is that the Protestant denomination does not grant the Pope absolute authority and despotic rule, nor does it make the authority to interpret the Holy Bible exclusive to the Pope; rather, it entrusts it to everyone who has acquired knowledge. Nor do they have those ranks for priests and men of religion that existed among the Romans.

Finally, the king of England, “Henry” the Eighth, was influenced by this movement, so he supported and aided it, until by virtue of his support it became a powerful adversary to the Catholic Church, just as Christianity had grown strong in [p. 66] its early days through the Roman emperor Constantine’s embrace of it. Although Catholicism still represents the majority of Christians to this day, the Christians who live in our lands of the Indian subcontinent usually belong to Protestantism.

Thus intellectual freedom began among the Christians. The second reason for that goes back to the Crusades that broke out between the Christians and the Muslims under the leadership of Nūr al-Dīn Zangī and Ṣalāḥ al-Dīn al-Ayyūbī and others, in the wake of which Jerusalem was conquered and the Muslims were able to recover it after the Christians had held it for eighty years. The mingling of Christians with Muslims thus increased on the one hand; and on the other, the catastrophe of the fall of al-Andalus resulted in the transfer of the sciences of the Muslims to Europe and the opportunity for it to benefit from them. Individuals among them took up the continuation of the work of investigation and research following the methods the Muslims had pursued and the paths they had trodden, which was the beginning of Europe’s development and the opening of its flourishing in these sciences. That era is called “the New Renaissance”. For they regarded the ages before it as “Dark Ages”, since the Church had imposed strict restrictions on freedom of thought and expression; those ages, for the new Western world, were the equivalent of the ages of the Jāhiliyya before the dawn of Islam. However, they regarded them as dark ages for the whole of humanity, even though they were the ages in which the banner of Islam extended across the inhabited world, near and far, and in which the Muslims reached the zenith of flourishing and the summit of development in the sciences and the height of splendour in civilization, while Europe floundered in the darkness of ignorance and stumbled in the depths of gloom. So it would have been right for it to regard them — with respect to itself specifically — as the dark ages.

They were followed by the age of “Rationalism”, when the champions of the renaissance and the advocates of revival cried out that every claim of religion must be put to the touchstone of reason, and

that we should cast aside everything our minds do not find acceptable; and they began to launch raids on religious beliefs on the basis of reason. Then the philosophy arose that emphasizes freedom and equality and regards every person as absolutely free in his thought, belief and conduct; it is called liberalism. When their minds were freed, [p. 67] they went in this liberation in every direction, crossed every boundary and exceeded every measure, to the point that there appeared in their midst seeds of doubt and suspicion about the existence of God the Exalted (and refuge is sought with God), and then open denial of the existence of God became general!

This, then, was a simple, brief picture of the history of Christianity and Europe!

The feudal system

We were in the course of explaining the system of aristocracy, among the political systems the world has witnessed in some of its periods, and I had explained its three types: intellectual, racial and religious. In the course of discussing religious aristocracy — and specifically Christian — we digressed into a brief account of the history of Christianity and Europe, because of its role in understanding the political systems arising from it. Now we want to turn our attention to explaining the feudal system as a fourth type of aristocracy. I have seen fit to include it among its types — even though scholars of political science do not list it as one of its types — first for the sake of introducing it, and second because it falls within its broad concept mentioned at the beginning of the discussion: that aristocracy also covers the case in which a class acquires great influence and far-reaching interference in government circles, such that it becomes in fact and reality the ruling party. That too is regarded as aristocracy, even if that particular class does not exercise rule directly. Moreover, I would like to acquaint you with a mass of political notions scattered in the corners of books, and I could not pass over so important a system as feudalism with my eyes closed.

The feudal system is called in English “Feudalism”. There is another aspect that makes us focus on dwelling at length on defining it, namely that its standing is similar to that of theocracy, in that people — and especially those among them enlightened by Western culture — have often tried to distance themselves from it with the justification that it brings to the Umma nothing but evils and woes, by analogy with what they have heard about the distorted Christian theocracy, which is closer to the papacy than to divine government. Likewise they have distorted the reputation of the feudal system and tried to exclude it by presenting the distorted picture that prevailed in [p. 68] Europe; and exaggeration in rejecting it may have led them to condemning the system of land grants (*iqṭāʿ*) that is legitimate in Islam — especially in a period when the star of socialism and communism was rising, when they accused the scholars of supporting, strengthening and championing the feudal system. Hence, in view of these factors, it is necessary to go deeply into studying and understanding the feudal system that prevailed in Europe in times past.

Its story in fact goes back to the centuries of medieval Europe, which passed through centuries in which the mill of war turned, clashes broke out, and conflicts raged: either civil wars between its peoples — like France and England, for example — or with the Muslims, as Islam had begun to grow and rise as a force of great might. As a result of these successive wars, a severe economic crisis befell

it, such that it was no longer able to bear those exorbitant sums that the wars required, which doubled day by day alongside development in the arts of war and its machines and equipment — not to mention the high cost that the commanders of armies and tribal chiefs on the battlefields received, such as the horsemen known as Knights, each of whom was a daring, brave and bold hero, and whom Europe used to employ as mercenaries for raiding the Muslims in the Crusades. Their salaries and demands, in addition to the machines and military equipment of horses and weapons, cost Europe exorbitant sums. So, out of the necessity of resisting this reality and the need to face that situation, a system was brought into being that was later called the feudal system.

As has been customary with humanity — that it first implements a system out of the motive of necessity and the drive of need, then invents a philosophy or idea supporting that system and conferring legitimacy on it — here too it invented a philosophy on the basis of land tenure, namely: that land is what forms a bond linking ruler and ruled and connects them to one another. The one who holds the land is the ruling master, and the one who rents it and uses it in agriculture is the ruled peasant. Since all land belongs to God, He is the first master; and since He enabled the king to dispose of it, the king is ruled by Him and subordinate. When the king granted it to the fief-holders (*muqṭaʿīn*), he became their master and the fief-holders subject to him; then when the fief-holders delegated it to the peasants, they became their heads and the peasants their subordinates. [p. 69] Likewise the peasants among themselves: the greater of them is master of the lesser, and the holder of much is head over the holder of little. Government, rule and being ruled — all these meanings were tied to their connection with land. The king is responsible before the Lord, glorified and exalted, since He granted him the land, with complete power to dispose of it as he wished; so when he gave someone a piece of it, that man to whom it was given became subject to the king in that piece of land, in return for complete power to dispose of it as he wished and willed. Thus an endless, unbroken chain of rule and being ruled was formed on the basis of plots of land. Let us give an example: the king granted Zayd ten thousand hectares of land, for example, so Zayd is regarded as master and ruler of that piece of land, with the choice of disposing of it as he wishes. He then divided it into parts and plots, then gave it to other people such as ʿAmr, Bakr and Khālid. All of these who received land from him are regarded as subordinates of Zayd within the framework of the land they obtained. Then ʿAmr, Bakr and Khālid granted the lands they had received from Zayd to other fief-holders, and they are regarded as the masters and heads over them; then these divided it among the peasants, and so on. The land was not granted to anyone for free, but in return for conditions, obligations and services that had to be fulfilled. The king, when granting it to someone, would stipulate that he undertake to give him such-and-such an amount of financial returns as land tax (*kharāj*), and to provide him from his subjects with such-and-such a number of soldiers and weapons if the king faced a state of war. Thus the relationship between the king and his subjects was confined and restricted to his giving them land and their paying him the land tax and providing military services in war.

The feudal lord was the absolute ruler and despotic master over all the inhabitants of the plot of land that the king had granted him. He imposed crushing taxes on them, extracted exorbitant rents from them, imposed harsh, crippling conditions on them, and disposed of them as a despotic king disposes of his subjects — indeed as a master disposes of his slaves and servants! In return for the land-lease contract and the undertaking to protect them — protection being incumbent on the fief-holding lord

— and to defend them, and to try to obtain privileges and exemptions for them from the king. Then the lesser one dealt with those beneath him likewise, [p. 70] and this chain continued down to the lowest individual among the subjects.

Everyone who owned land and gave it to someone else was called “the feudal lord” or “the grantor” (*al-muqṭiʿ*), and the one directly beneath him was called “the grantee” (*al-muqṭaʿ*), i.e. the vassal, and the land he gave was called “the fief” (*al-iqṭāʿa*).

Among the duties of the ruled subordinate was to provide military services to the chief master, each to the one above him, until it reached the king; and they might take turns in these services by distributing them across the days of the year, some performing them in one period and others in another. Thus they tried to eliminate the problems of wars and cover their costs.

Second, it was stipulated on them to pay the land tax of his lands or their rents to the master (the lord).

Third, the lord would keep a plot of land for himself to be farmed directly; the tenant farmers had to work on his land in farming, and they followed in this too the method of rotation, some people working in it in one period of the year and others in another.

Fourth, when the lord’s son grew up and reached maturity, the tenants had to contribute their share to raising him to the rank of knights, bearing his costs and covering his expenses.

Fifth, they had to provide their financial services whenever the lord wished to marry off his daughter.

Sixth, if the lord fell captive in the hands of an enemy, the tenants were obliged to free him and rescue him by whatever means were possible for them: if by ransom, they had to spend money on it; and if by persons, they had to provide persons to become hostages of the captors in place of the lord. (As when the enemy demanded ten persons in return for releasing the lord: the subjects had to provide them to him so that the lord could be freed.)

Seventh, whenever the lord went on a journey, an outing or hunting, the subjects had to provide him with support and comfort in it, host him, and prepare for him the best and most comfortable place for hunting.

The lord was the one who inherited from the farmer if he died without direct heirs (*kalāla*); and if the farmer [p. 71] opposed one of his rulings or disobeyed one of his commands, the lord had the right to confiscate his land and take it back from him. All of this was among the covenants concluded between the lord and the tenants.

This was a brief review of the harsh, crippling conditions imposed on the tenants by the feudal lords.

Then, when the feudal lords acquired full authority and complete power over the farmers and tenants beneath them, they occupied the positions of government and took up the reins of authority in that region, until their authority gradually turned into a government equivalent to and alongside the king’s government. Thus they acquired control over the whole state. The king gave them free rein to lay down whatever legislation they wished and enact whatever laws they wished, and whatever conditions they found palatable to themselves over their subjects — some of their conditions mentioned in books have been stated above, expressly and explicitly. Moreover, it is not difficult to

appreciate the extent of the severity of the conditions imposed on them in view of the severe harshness and complete power acquired by the feudal lords as a result of the king's submission to them in return for their helping and supporting him in wars. They were in fact the ones who controlled the system in reality, such that they remained able to force the king to implement whatever laws they wished and issue whatever commands they wanted. The alliance of the two factions — the kings and the feudal lords — enabled this system to run on its wheels for a time; then it was followed by bloody wars and ferocious massacres in the wake of the clash of interests and conflict between the two sides. History has preserved for us a great deal of the incidents of their conflict.

This is a simple picture of the feudal system that prevailed in Europe in the Middle Ages. It is not hidden from any intelligent person what massive evils and widespread abuses accompanied it, beginning with the enslavement by the feudal lords of the farmers beneath them and their oppression of them, and ending with their rebellion against the king's system and their actual control over the policy of the state and its affairs, such that it was impossible for any matter to be concluded or any decision to be taken in it without the agreement and approval of these people. It remained in force in Europe for long years, and it groaned under its evils and woes throughout that period.

[p. 72] It was natural that it should become an insult and a disgrace, so that the word does not strike the ear today without the mind rushing to that ugly system and its hideous picture.

Several manifestations of it emerged in the Islamic world, especially in some eras of the Ottoman Caliphate and the Mughal state in India. But nevertheless it was not an exact copy of that unjust European feudal system, nor was it accompanied by that harsh severity that leads to enslaving the farmers and breaking their backs. It was merely similar to it in the stipulation that the feudal lords provide military services with machines and personnel. Among them was one titled "feudal lord of five thousand", meaning that he must provide five thousand soldiers to the king if he needed them in wars; and among them was one titled "feudal lord of ten thousand", and so on. As for the English, by virtue of their being accustomed to that feudal system and fond of it, when they took control of India and assumed the reins of its government, they implemented it in several of its regions almost exactly on the original pattern. Let us give an example of that with the system of chieftaincy in Baluchistan: the authority of the chiefs there in reality goes back to their having received fiefs from the English, so they treated their subjects with the same harshness and severity with which the European feudal lords treated the farmers beneath them.

Now, perhaps you have noticed — in the light of the aforementioned details — the vast gulf and clear difference between the feudal system that prevailed in Europe and what Islam has legislated by way of land grants (*iqṭāʿ*). For the iqṭāʿ legitimate in Islam — by which we mean the sultan's giving a man land and assigning it to him — has no connection whatsoever with European feudalism. Its legitimacy rests on the action of the Prophet ﷺ himself, who granted land to each of Wāʾil ibn Ḥujr, Muʿāwiya, ʿUmar al-Fārūq and Abū Bakr al-Ṣiddīq, may God be pleased with them all, and to many other people.

The difference between the two systems lies, first, in the motivating purpose of its procedures and legitimacy. European feudalism was implemented for the purpose of covering the costs of wars and providing military services, while Islamic iqṭāʿ was for the benefit of the state and its welfare in terms

of its role in reviving dead, barren lands and reclaiming them for agriculture. Hence it was stipulated for [p. 73] the grantees that they undertake to cultivate it within three years; if they did so [well and good], otherwise it was taken back from them because the intended aim had not been fulfilled. It might have been given to needy poor people in order to support them financially and try to raise their economic standard. Thus Islam did not aim, behind granting lands, except that the grantees should revive and farm them — themselves or through their workers — and consequently play their role in increasing the state's produce and its output. These lands entered their ownership after reviving and farming them, and they had the choice of handing them to the peasants for sharecropping (*muzāraʿa*), observing the conditions the Sharia established for it, without departing from it by a hand-span. They could not stipulate on the farmers anything the Sharia does not permit by way of corrupt conditions, let alone harsh, crippling conditions! Among the most prominent of those conditions, and the most important, is that the transaction must not be on the basis of a specific amount from the produce for one of the two parties; rather it must be on the basis of sharing — halves or thirds and so on. Sharecropping is thus no more than a simple contract concluded by the two parties like other contracts such as sale and lease, and it does not make the owner of the land a ruler and chief, nor the farmer a follower and subordinate at all! So much so that he has no right to stipulate on the farmer whatever conditions he wishes and gain through them whatever benefits he wishes, such as financial support in arming the son or marrying the daughter, or that he be the sole heir after his death, or that he demand from him a specific, set amount of money. The upshot is that Islamic iqṭāʿ has no connection, however slight, with European feudalism!

If this is established, we can arrive with all clarity and explicitness at the conclusion that what these modernists utter whenever they hear the word iqṭāʿ — accusing the scholars of supporting and implementing the European feudal system — is chatter that has no share of sound evidence, upright reasoning or reasonable argument!

Second, the other matter distinguishing the two kinds of iqṭāʿ is that the obligations the Sharia imposed on the owner of land lie in one of two matters: the tithe (*ʿushr*) or the land tax (*kharāj*). Both are known and specified in all their forms and details, and neither the grantee, the landowner nor anyone else has any scope to change [p. 74] or dispose of them. Hence, if Islamic iqṭāʿ were applied, there would be no dangers or fears of being accompanied by those abuses that were inseparable parts of European feudalism. This point should be emphasized and given attention because we have seen people use it to mislead others and distort their belief about Islamic iqṭāʿ, by explaining the abuses of the European system first, and then applying it to Islamic iqṭāʿ second.

Fascism

The fifth type of aristocracy is: fascist aristocracy. It is a political system brought into being by the Italian dictator Mussolini. The word is derived from the Greek [sic: Italian *fascio*, from Latin *fasces*] word "fascio", which is taken from the Arabic word *al-faʾs* (the axe), an iron tool used for digging, cutting, splitting wood and the like. It is also applied to a bundle of rods from which the handle of an axe is made. The Italian dictator Mussolini had taken the axe as a traditional symbol of his government, like the sickle in Russia, and like the crescent in the middle of which is a star on the flag

of Pakistan. So the axe adorned the official flag of the government and all its other emblems. From this, the precise rendering of the word “fascism” is: axe-monarchy.

The background of this system is that the First World War had brought Italy to a deteriorating economic situation, despite its siding with the Allies who won the war. The state was on the verge of collapse, and disturbances and pervasive anarchy prevailed in it. Market activity was paralysed, government departments failed, the state lost its prestige, and successive governments were unable to resolve the crisis that had taken hold of it. In those dire circumstances and deteriorating conditions Mussolini began his journey by founding his fascist party, and quickly gained popular support for the promises he made that he would revive the economy, bring prosperity and restore the glory of Italy that it had enjoyed in the era of the Roman Empire. In 1922 the fascists grew strong, and Mussolini marched with his followers on Rome in black shirts, and forced the king of Italy to appoint Mussolini as prime minister, threatening him with seizing and taking over [p. 75] power if he did not. The king submitted to their demands and called on Mussolini to form the government. No sooner had Mussolini ascended the seat of power than he began laying the foundations of dictatorship, and banned all political parties except the fascist party.

The gist of Mussolini’s fascism is that the state — which represents the nation (*al-qawm*) — is above all, and the individual is nothing. This is the same as what Iqbal said in his well-known Urdu verse:

> *Fard qāʾim rabṭ-e millat se hai, tanhā kuchh nahīn Mawj hai daryā men aur bērūn-e daryā kuchh nahīn*

[That is:] The individual is sustained by his bond with his community (*milla*) and nation, while in himself he is nothing. It is like the wave that flows with all its force rushing forward as long as it is in the river; but outside the river it has no force to make it flow — rather it quickly dissipates.

Thus Mussolini presented the idea that the individual has no standing in himself, so he does not refrain from sacrificing him for the sake of the collective. His philosophy focused on reviving the glory of the nation and raising it to the stages of perfection, even if that compelled him to invade other countries and occupy them for the benefit of his nation. It made it obligatory for the government to interfere in — indeed to dominate completely — all activities: education, upbringing, law, economics and so on. This requires it to be strong and firmly rooted, not bound to follow the masses; rather, it must follow every path and pursue every method it deems more fitting and more appropriate for the benefit of the collective and the development of the state, without fear holding it back from undertaking it or a deterrent restraining it from adopting it. This happens only if the whole people is subject and subordinate to the state, without having any right to oppose it or disagree with it in anything.

There is no doubt that Mussolini played a prominent role in developing his nation and raising up his state, and resolved to a great extent the economic crisis that faced Italy in the wake of the First World War, just as he succeeded in reviving the national and nationalist (*qawmiyya*) spirit. He used to say: we do not believe in the principle of non-violence, for it is a path — or say: a way out — for cowards. So we will not refrain from plunging into [p. 76] the battlefield to glorify our nation and establish its

prestige over other nationalities, and the wars will bring our community (*milla*) the glad tidings of new life.

His saying became proverbial: “War is for men as childbirth is for women.” Just as a woman cannot accomplish a creative work or the creation of generations and peoples unless she goes through the process of childbirth, so men cannot achieve a splendid creative work except by plunging into conquest and wars; and wars are what will bring him dominance and sovereignty and restore to him confidence in his nation and his homeland. So he should never refrain from plunging into the field of fighting!

He used to say: we do not believe in democracy at all; for it requires a person to follow the opinion of the majority, whereas it is not necessarily the case that the majority’s opinion is always and absolutely right. The majority may agree on a matter that is in reality more dangerous and more harmful to the interests of the state and the benefit of the nation. Hence the fascist philosophy concentrates all authority in the class of leaders of the fascist party, and subjects the whole people to its rule and opinion.

Third, it does not believe in the principle of personal freedom, since the individual is not respected in himself, but in view of his being an individual of his nation and a part of his homeland. So if the national interests required the enactment of a law or the issuing of rulings imposing a limit on his personal freedom, that is the very essence of right and entirely in accord with wisdom! Indeed, the government must adopt it, whatever its effect on the personal freedom of the individual and his self-interest!

Accordingly, the fascist party did not allow any other party to arise or to oppose its policy. The only way to criticize the system is for a person to join the fascist party and become a member of it, then inform it of the reform he wants in the system! As for confronting the government and its policies with criticism through a press statement or a popular meeting, that was never permitted. Thus personal freedom was completely taken away, and the philosophy of the sovereignty of the collective and the domination of the group prevailed.

Since governments founded on the basis of fascism completely dominate all [p. 77] the activities of life and the branches of humanity, they were called “totalitarian governments”, meaning that no branch of the branches of life continues its activities except under the control of the apparatus of government. When broad powers were delegated to the government and personal freedom was taken away, it was natural that injustice and aggression should result from them — and this is what actually happened in fascism!

Nazi government

After Mussolini, Hitler adopted fascism, and his fascism was an exact copy of Mussolini’s fascism, except that he added racial nationalism (*al-qawmiyya al-ʿunṣuriyya*) to it. His philosophy focused on the idea that rule and sovereignty are deserved only by those who belong to the Aryan [race]; for he saw them as a superior people, while other racial minorities were of a lower degree. Proceeding from this belief, he became a fierce enemy to the Semitic races, and made their extermination a goal

pursued throughout his life, and resolved to continue invading and fighting them until he succeeded in destroying them, suppressing them and cutting off their root. The story of that is that Germany was defeated in the First World War, which led in its wake to the stagnation of its economy; waves of disorder and anarchy prevailed in it, and disturbances and turmoil descended on its arena, which made the people pass through the worst of its conditions and the hardest of its moments. Hence it was looking forward to someone who would rescue it from it and bring it and the state to the shore of safety and the coast of peace, and steer it on the road of progress and the passage of new development. They found him in Hitler, who assumed the office of prime minister [i.e. chancellor] in 1934 [sic: January 1933]; and as soon as he took power he suspended the constitution and began transforming Germany into a fascist state by implementing all of Mussolini's theories in it, adding to them his nationalist and racial partisanship. When all this blended, the Nazi government resulted in Germany, where the Nazis became the most powerful party in the country. He set about implementing his racist plans built on the basis of extremism against the other races that he regarded as "inferior" in contrast to his superior race. In this regard it is said and believed that he launched fierce, savage attacks against the Jews, and scattered them and expelled them from Germany. There is no doubt that some of these stories have a share of truth, just as there is no doubt that the exaggerations and excesses of the Jews have played a large role in presenting stories of it coloured with various kinds of harm [p. 78] and persecution, massacres and furnaces, with an intensity far exceeding external reality. It is known that the operations of their extermination in Germany and their expulsion from it are called the Holocaust, and many studies and books have been written and published about it, to the point that the public libraries in the West devote a large part to writings on the Holocaust. They have described that holocaust in a style that earns them the sympathy of readers and draws their affection and emotions towards them.

All this propaganda is broadcast only for the purpose of using it as a justification that confers legitimacy on them for establishing the state of Israel. For the same purpose they have borne the cost of billions of dollars in producing films that present a distorted picture of the Holocaust so that they can attract the sympathy of viewers and summon their attention to their right and their interests. What saddens us is that those films have continued to be shown publicly in some Islamic countries — as happened to me on a trip to Sudan, when I was staying in one of the hotels of Khartoum, and one day I saw an advertisement posted on the door of my room inviting [guests] to watch the first episode of the Holocaust film scheduled to be shown at nine o'clock that night, and likewise the following episodes on the following nights. Consider then how grave the situation has become: an Arab state that has come to cry out from its throat and shout at the top of its voice against the Jews and their state Israel, in which coordinated advertisements are posted about showing the episodes of the Holocaust film and inviting [people] to watch it publicly and openly?! To God is the complaint, and to God we belong and to Him we return!

At any rate, Hitler — believing himself and his German people to be Aryans — stirred up an outcry of aversion and hatred against the Semites — who belong to Shem son of Noah, upon him be peace, and who include most of the Arabs and the inhabitants of the Middle East, the Jews, the English and others. [Tr.: so in the original.] There is no doubt that Hitler succeeded in improving Germany's situation and rescuing it from the predicament it had fallen into in the wake of the First World War,

and brought it to a peak of strength and entrenchment it had never reached in its history in all activities of economy, science, industry and so on — alongside his reviving and stirring in people nationalist (*qawmiyya*) tendencies to an extent the world [p. 79] had not witnessed before. Splendid scenes of it emerged during the Second World War, when the German people presented against the Allies the finest pictures of defending their homeland and the best stances of self-sacrifice in defending the honour of their country, and the most precious sacrifices to protect their nation, the like of which history had never before recorded.

Hitler became infatuated with the idea of power and sovereignty belonging to his Aryan nation and with suppressing and exterminating the Semites, without refraining from adopting any means or any way to that end. In truth he was like a raging storm: he blew over the world, sweeping away whatever blocked his way and overrunning everything that tried to stand firm before him, until he plunged into the depths of the Soviet Union, where his course was reversed and his star set, and Nazism came to an end following a bitter defeat inflicted on it at the hands of the Allies.

Now, this was a passing look at Hitler's fascism inspired by his political philosophy. As for his group that established the dictatorship, it is called the Nazis, and from this the word Nazism is also applied to his fascism and his group. Thus Mussolini and Hitler emerged in great splendour and overwhelming might, but soon met their dire consequence and wretched end.

The kings of many states tried to follow in their footsteps in imposing the fascist system on the people — such as Japan, Brazil, Argentina and Spain — with the aim of strengthening economic growth and national unity and other gains, under which fascist Italy and Germany had developed greatly. But despite their attempts to imitate and copy Mussolini and Hitler, they were not able to reach the level they had reached.

Then all these fascist movements disappeared following the fall of Nazism in Germany. Thus the fascist philosophy failed and met its demise, and was transformed from a vital system that one day stirred uproar and turmoil in the world into a symbol of the ideology built on racism and violence, so that it is applied to dictators despite their aversion to it and their dislike of it!

With this, the discussion of the fifth type of aristocracy is complete.

Proletarian government

[p. 80] It is in reality another name for the government of the communist state, and is built on the theories and ideas of Karl Marx, foremost among them the theory of "dialectical materialism", which it would be no departure from neutrality to regard as the most important of his theories and ideas.

In summary: that the world, from the beginning of humanity, has continued to be divided into two classes: the class of owners — the wealthy, the rulers and the chiefs — whom he called the "Bourgeois", and the class of labouring workers in the sector of agriculture or industry, whom he called the proletariat. The perpetual struggle between these two classes is the prominent factor and strong element in the wars that broke out among the sons of humanity and the battles whose heat flared among the sons of Adam against one another. The class of owners has continued striving to exert pressure on the class of workers, to suppress their movement, usurp their rights and exploit their

labour for its interests — especially after the Industrial Revolution and the invention of machinery, since the production of manufactures continued to be achieved only by the sweat of the worker's brow and the toil of his forehead, while only a very small percentage of its profits accrues to him. To reinforce this idea he invented another theory called the theory of "surplus value", whose meaning is that all the manufactures produced in factories result from two things: raw materials and labour (for cotton became thread after the worker's labour on it, then turned into woven cloth after that). Since raw materials are a divine gift in whose creation man has no hand, labour remains the only strong factor that transforms raw materials into a good form that leads to an increase in its value and a rise in its standing. There is a clear difference and a vast, tangible gap between the value of cotton and the value of what it is transformed into and becomes: ready-made cloth. This only became possible by virtue of the worker's effort and toil; without it the value of cotton would not have increased nor its price risen. Accordingly, and after it was established that the surplus value in the product arose from the worker's labour, it is natural that the worker should be its original deserving owner and first beneficiary. But capitalism usurps this right of his by handing it over to the wealthy financiers and owners of capital, and thus their wealth swells [p. 81] on the ruins of the wreckage of the workers.

He added: this system will not continue much longer; the time has come for the labouring workers to rebel against this system and rise up in revolt against the usurpation of their rights and the injustice to them that they have faced for a long time. Then they will acquire control and establish a government of their own in the world, and their government will be called "the proletarian government". He called on the workers of the whole world to unite against this system; this is called the Communist Manifesto. Although he did not have the fortune of witnessing the government established on the basis of his theories in his lifetime, Lenin was able to establish the first socialist state in Russia after he toppled the system of its Tsar from power, and called it the proletarian government.

Its philosophy focused on the state's ownership of land, factories and other means of production, and that the proletarian government, made up of the class of workers, is the one that will steer the system of government and undertake to exploit the resources of the nation and use the means of production through the system of the planned economy, i.e. it does not delegate to individuals the authority to choose the work they want, produce the manufactures they wish, and use their lands to plant the grains and fruits they wish; rather, the proletarian government is the one that dominates all economic activities, and its planners are the ones who take the decisions relating to the production of goods, their pricing and distribution, and the determination of wages and allowances.

Likewise, since the government was regarded as exclusive to the proletarian class only, it never allowed any other political group nor opposition to its policies nor criticism of its decisions; for if it allowed that, then whoever undertook it would mean nothing other than supporting the bourgeois class, championing it and raising one's voice for its interests. Likewise, since the proletarian government was working to realize the interests of the whole people, if it charged someone with some work, he had to undertake it without any hesitation, argument or procrastination, and for the wage they specified for him, even if it was very meagre in relation to the effort he expended and the toil he endured.

As is known, such a system based on taking away personal [p. 82] freedom will not succeed in achieving its aims unless its proponent employs acts of violence and arts of injustice and aggression. So the totalitarianism that characterized fascism actually extended to the proletariat as well, but under the curtain of protecting the rights of the labouring workers and under the justification of improving their conditions. To avoid the interference and influence of the agents of the wealthy class, they imposed strict restrictions on the media and the press, such that it was no longer possible for anyone to utter a word against the government. Hence it is no unfairness to say that the government Lenin established and administered was among the ugliest forms of dictatorship and the most dangerous of its scenes — which was increased in atrocity by his successor Stalin, who took up its reins following his death.

Its philosophy never managed to improve the condition of the class of workers; for they continued to be crushed and ground by the mill of the proletarian state — which took the place of the owning class, possessing all the resources and means of the state under a system of government so narrow-chested that it did not allow anyone to open his mouth against its policies and plans. In this the poet Muhammad Iqbal said:

> *Zamām-e kār agar mazdūr ke hāthon men ho phir kyā? Ṭarīq-e kohkan men bhī wohī ḥīle hain parwēzī*

[That is:] Handing the reins of all affairs to the workers results in nothing but transferring the bourgeois [royal] tricks into the hands of the mine-workers.[1]

This system remained prevalent in Russia for seventy-four (74) years; but its economic, social, moral and political evils increased to an extent that brought the state to collapse and ruin, so they cried out with one voice rejecting it and getting rid of it.

> [1] Since the ruling worker follows in the footsteps of the individual kings in plundering, usurping and violating the rights of the subjects and so on, despite his belonging to the class of workers. (Translator) [Tr.: In Iqbal's verse, "Parwēz" is the Sasanian king Khusraw Parvīz and "kohkan" (the mountain-digger) is Farhād of the Persian romance; the point is that the labourer in power uses the same royal tricks.]

Chapter Three: Theoretical Studies in Democracy

Introduction

[p. 83] Since democracy is one of the political systems, it should have been included in the second chapter following the other political systems. However, we have preferred to devote a special chapter to it: on the one hand because of its extreme importance and the lofty standing it has attained among the people of this age, in addition to the first place it has occupied among all its sister [systems], so that it has become the ideal and most developed political system according to the prevailing and claimed belief in political circles in the present age; and on the other hand, one also knows the extent of their esteem for it from the fact that they do not count a person as anything nor reckon with him in the field of politics unless he embraces it, believes in it and accepts its principles; while uttering

anything against it, or mouthing objections to it and refuting its principles, leads its proponent, in the eyes of modern politicians, only to heresy and political misguidance! This is what makes us feel the pressing need to study it and understand it in some detail. Our discussion will cover the following points:

1. What is democracy?
2. A review of its principles and basic ideals.
3. A summary of the history of democracy and its development in the world.
4. The institutions and organizations arising from it.
5. A look at the forms of democratic government prevailing in the world.

Section One: What is democracy?

Democracy is in fact a rendering of the English word “Democracy”, which is taken from Greek and compounded of two words: (Demo), meaning the common people, and “Cracy”, meaning rule; when the word was transferred into Arabic they said: *al-dīmuqrāṭiyya*. At any rate, the basic conception [p. 84] of democracy is: that the right to rule over the people belongs to it alone. From this the meaning of democracy becomes clear to us: that it is a form of government in which the people, or its opinion, is taken as the basis for setting state policies and taking its decisions.

Political scholars have not yet reached agreement on defining it in a way that is comprehensive and consistent; rather their statements on it conflict and their opinions contradict one another, such that you will not find some of them resembling, approaching or coming close to others. But the common measure we can extract from their collective [views] is what we mentioned just now: that it is a system of government built on giving the people the opportunity to interfere in government policies and decisions to some extent.

Democracy in its general concept mentioned above is not the child of the present age or the product of the thought of modern man. Rather, its first forms were carved out with all simplicity and naivety in Greece, coinciding with the operation of the city-state system there, where each city was self-governing and independent. Those cities were not very large; rather, the largest of them was Athens, which the world still knows by its name; yet the number of its inhabitants at the time did not exceed ten thousand souls, let alone the small cities such as Sparta, for example. So the gathering of this number of souls in one place and the taking of decisions in the light of their opinions and views was not at all impossible or difficult. Hence the prevalent form of democracy among them was direct democracy, such that if the king wanted to lay down important policies or take important decisions, he ordered all the citizens to gather in the square, and put the draft decision to them, asking them to give their opinion on it. Naturally people would divide into supporters and opponents, and that might lead to discussion among them, and in the end he obtained approval for it by a show of hands. Thus they had a simple democracy without being governed by a constitution that defined the king’s powers and distinguished the matters in which the people’s approval was necessary from what he could conclude himself without needing to present it to the people. Rather, all that was entrusted to the king and his personal opinion: whatever he saw a need to present to a meeting of the people and obtain

[p. 85] their approval on, he did; and whatever he did not wish to, he did not, and took a decision on it alone. Over time this simple form of direct popular consultation acquired a kind of coordination and arrangement, alongside the laying down of many laws for it; but those laws had no great importance among them nor significant benefit. Rather, direct democracy, which was dominated by the character of simplicity, remained in most cases in that form of its.

But it is also self-evidently clear that such a democracy can be applied only if the state is small with limited population density, so that the king can gather his subjects in one square and then consult them on an issue. If, however, the extent of the state widens and its horizons stretch and its inhabitants multiply, applying it becomes difficult and almost impossible — as actually happened when the Roman Empire arose with its dense population. This led to narrowing the conception of democracy, such that the king came to content himself with establishing a council that performed the task of advising him on state affairs, and he would consult them on them sometimes.

The consequence of that was that the idea of democracy centred on the participation of the people in state policies and plans gradually contracted from actual implementation in external reality, and absolute monarchy and other forms of dictatorship took its place. From this one can rightly say that democracy's star set with the absence of the city-state system in Greece, until the beginning of the eighteenth century CE, when currents set off in the world and tendencies towards democracy prevailed and continued in it, through which its idea was revived and its system was revitalized with a kind of regulation and coordination, which ultimately resulted in the birth of the democracy the world knows today as liberal democracy. This kind of democracy is what is prevalent in the world today. To understand it with insight and mastery and to arrive at its essence and reality, we need to deal briefly with four important topics, which I list before you in logical order, which will make our aim easier for us and achieve our goal in the shortest time and with the least hardship. The four headings are:

[p. 86] (1) The intellectual foundations of democracy (or the philosophy motivating the creation of democracy). (2) A look at the history of its development in the world up to the eighteenth century CE. (3) An introduction to the institutions arising from it. (4) An introduction to the various systems of democratic government that have been implemented in various states of the world.

So here is the discussion of these topics according to the order mentioned above.

1 – The intellectual foundations of democracy

We stated earlier that Europe, in its second renaissance, was pervaded by the spirit of rationalism and individual independence, following its liberation from the strict restrictions that the Church had imposed on it — and which declared a heretic, then executed or at times burned alive, everyone who opposed the Church or contradicted its theories. However, after the catastrophe of the fall of al-Andalus and the transfer of the sciences of the Muslims to them, tendencies towards thinking and reflection arose in them; but since the Church still enjoyed complete political control over them, the advocates of intellectual liberation were soon struck by kinds of persecution and harm. Yet the ember that the liberals had kindled for the purpose of freeing themselves from the yoke of intellectual servitude continued to blaze and increase, and the plant its first planter had sown continued to grow

and rise, despite the raging storms it faced blowing from the direction of the Church. But its steadfastness and firmness in the face of the waves of persecution earned it acceptance and popular currency on the one hand, just as the effects of aversion and disapproval against the Church [grew] on the other. In the wake of that, the hegemony and control of the Church gradually began to wane and decline, which made possible the existence of a considerable number of men of thought in various fields of life, who in turn called for rebellion against the theories of the Church that were unsuited to human nature and not in harmony with the reality of humanity.

Leaving aside the other fields, we shall confine ourselves here to letting our gaze roam over what [p. 87] Europe witnessed of intellectual development in the field of politics, and specifically liberal democracy. We say: the thinkers who drew the picture of liberal democracy and strengthened it, and whom the world today regards as its founders, are three men, whose names are as follows: (1) Voltaire (2) Montesquieu (3) Rousseau.

These three — all from France — spread ideas and published theories that brought democracy into being in the world. As for Voltaire, he was born at the end of the seventeenth century CE and died in the eighteenth. He enriched the human library with his writings in many fields such as philosophy, the natural sciences, the arts and so on, to the extent that their collection has been published in ninety volumes. Among his most important distinguishing features is that he launched a blind assault on all religions, accusing them of distortion and calling for the embrace of a single school he called what he claimed to be the natural religion of man. It is said: he is the one who sowed the seeds of doubt and suspicion about the existence of God, glorified and exalted. Leaving aside the soundness of this attribution, it is established from him that its meaning is that man should embrace only the natural school, i.e. that it should bring him to acknowledge the existence of God and believe in it; as for anything beyond that — the laws, rulings and morals that religions impose on him — let him cast them aside without paying them any attention or regard, let alone following and complying with them.

Second, among his most important theories that found acceptance and currency with an enormous effect in the world is that he regarded religion as a personal matter for the individual, and denied that anyone has the authority to compel a human being or force him to any religion. Rather, he claimed that every individual human being is free to embrace whatever religion he wishes and to follow whatever school he is pleased with; he alone has the right to adopt a heavenly school or submit to paganism and so prostrate to idols and trees; likewise he alone has the choice of following the Jewish or Christian religion, and neither the Church nor the state has any authority to force him to Christianity and impose it on him against his will.

This theory later developed and took shape in what prevailed in the West: a wave of [p. 88] indifference to religion and disregard of religious considerations, which is expressed by saying that religion is nothing but a personal matter by which a person aims at the comfort of his conscience and the tranquillity of his heart, and that judging a religion as true or false turns only on the person himself. So he has the right to embrace whatever gives him tranquillity and spreads comfort in his soul, among religions and schools of whatever kind. Whoever finds his comfort in prayer, that is the truth as far as he is concerned; and whoever finds it in paganism, it is the truth for him; and whoever

is given something of comfort by meditation, he should undertake it regardless of its being true or false. It is not for anyone else — individuals, a state or a church — to interfere in his affair in this; rather they must treat him tactfully and respect his religion. Arguing over religions and discussion to convince one another of some of those religions is nothing but futility of which no benefit is gained. (The encouragement to respect the other's school and religion among these people is not out of respect for religion in itself and reverence for it; it is only because it is a means that someone has chosen for the tranquillity of his soul and the spreading of comfort and calm in his conscience. So its status among them resembles that of the house a person builds to provide comfort for himself and his family; hence others must respect it and not break into its boundaries without his permission and consent. Likewise the religion a person follows is nothing but his personal matter, and others have no right to deny his religion or undertake to negate and refute it.)

When this principle was established among them and they regarded religion as a personal matter of the citizen, it was natural that they should cut its link with the state and government, and declare that the state is not subject to any religion. Proceeding from this — and from the womb of this alleged idea — the theory of secularism was born. Secularism (*al-ʿalmāniyya*) linguistically means: the worldly — that is, everything adopted for the sake of worldly interest and benefit — or that which includes worldly material interest and brings it to a person. So it is a system laid down for securing worldly interests and benefits, and then it concentrates all its efforts and devotes all its activities to attaining and acquiring them, nothing else. Hence its consequence and logical result could only be heresy (*ilḥād*) and the categorical rejection of religion. From this, linking the state to secularism means nothing other than cutting its link with religion entirely, and administering its system according to what achieves its worldly interests and provides its material benefits. This philosophy was built on the basis of the theories presented by Voltaire as a reaction and an attempt to free [themselves] from what the Church had perpetrated under the curtain of theocracy by way of harm and persecution, [p. 89] until it became rooted in the minds of thinkers that religion is what forms an obstacle on the path of progress and development, and that it is not possible to advance in the horizons of material progress unless the yoke of religion is thrown off necks entirely and rejected categorically.

The second person who contributed abundantly to paving the way for present-day democracy was Montesquieu. His book *The Spirit of the Laws* has become widely renowned in political circles; it is printed in about four hundred pages, and producing it so exhausted and wore him out that he used to say: "I want to rest for the rest of my life because of the severe fatigue and exhaustion that afflicted me while writing this book." This book of his in fact revolves around law and philosophy, but in it he presented a theory of democracy built on the basis of the theory of separation of powers. Its summary is that the sole element behind the abuses and evils that despotic governments brought upon humanity is: that all the powers of the state were concentrated in one person or one organization, which led to aggression and injustice and the turning of state affairs to anarchy and turmoil. Hence the administration of government cannot be good unless we separate the powers and delegate them to different bodies. From this he put forward the idea of dividing the powers of the state into three parts: (1) the power to legislate and make laws; (2) the power to execute the laws and manage state affairs in accordance with them; (3) the power of the judiciary (settling disputes and resolving conflicts, interpreting the law and showing what falls within its framework and what does not). These powers

should not be combined in one hand; rather each of them should be separated from the others, while granting each its full power, so that none of them interferes in the affairs and powers of the other.

The body that enjoys the power of making laws is called the legislature, and democracy grants this power to the parliament and the legislative assembly.

As for the authority that carries out the execution of laws in the affairs of government, it is called the executive, which is headed by the head of state in the presidential system and the prime minister [p. 90] in the parliamentary system.

As for the power of interpreting laws and settling disputes, it is called “the judicial power” (the judiciary), which is represented by the courts in the state.

Montesquieu added: these three powers in past despotic governments were concentrated in one hand — either a person or a special body — which was what laid down the laws first, executed them second, and resolved the disputes occurring concerning them third. The result was that if the executive of the state was tyrannical and aggressive, the appeal for help could only be to it itself! This is what the Urdu poet meant when he said:

> *Wohī qātil wohī shāhid wohī munṣif ṭhahre Aqribā mere karen khūn kā daʿwā kis par?*

He killed me, and he was the witness to my killing, and then he became the judge who assumed jurisdiction in my case — so to whom, then, should my relatives bring the suit of my assassination?![1]

This does not mean that we deny the existence of courts in the monarchical system; rather we grant that there were courts, but they were entirely subject to the king: first because the final judgement lay with the king, and second because the authority for appointing and removing judges lay with the king himself. So the judges would hasten to the king’s pleasure and wish in judging, out of fear of his reproach and to secure their continuation in their positions. Thus all powers were combined in one hand, either in reality or through the mediation of subordinate intermediary powers or bodies. So there was nothing equivalent to appealing for help against the ruler or the law he issued except appointing him himself as arbiter in it. Thus the monarchical system increased in nothing but despotism, absolutely.

> [1] Or as al-Mutanabbī said: “In you lies the dispute, and you are the opponent and the judge.” (Translator)

As for the theory of separation of powers, it focuses on separating these three powers among the three bodies while granting each full power and complete independence in exercising its duties. The legislature lays down the laws, the executive implements them, and the judiciary should be [p. 91] entirely free and independent, so that it becomes possible for citizens to plead against the two powers — legislative and executive — if they deviate from the right path. Hence the powers in the state must be divided into these three powers; and this is what is called the theory of separation of powers.

This idea of his was able to impose itself on all democratic systems, just as it became a principal chapter adopted by all states in laying down constitutions for them, such that they have come to give attention in them to explaining the distinction between systems and separating these three powers and defining the powers of each of them, then taking them fully into account — to the point that if the

legislature lays down a law and implements it, it retains no authority to explain and interpret it; rather the authority in it is transferred to the judicial power. How astonishing! The person who composed its wording and whose fingers wrote the text of the law, which the parliament agreed and approved, is deprived of the authority to clarify its meaning; rather this authority passes to the judicial system, to see the text of the law and the words used in it, then clarify its meaning and define its import! Yes, parliament can abolish that law, or replace it with another, or amend and change it; but it has no right to explain and interpret it as long as it is in force in the form of a law!

In this regard it is worth paying attention to the difference and distinction between two similar, close terms: separation of powers and distribution of powers. We have already discussed separation of powers; as for the distribution of powers, it means distributing them between the central government and the local regional governments. Montesquieu's theory was about the separation of powers and their distinction, not about dividing and distributing them.

3 – The third personality who played a prominent role in drawing the picture of democracy was Rousseau, whom we have mentioned before. He is the one who renewed the social contract theory by writing a book on it with the same title (*The Social Contract*).

It is well known that the social contract theory is ancient, dating back to Greek philosophy, and I explained in the earlier discussion of it that it is very ancient; but its explanation and interpretation later resulted in two contradictory results that clash explicitly with each other, and hence in two systems [p. 92] conflicting clearly with each other. The first of them: that the social contract theory leads to absolute despotic government; and the second of them — and Rousseau is its father — is: that the social contract theory requires every government that its laws express the general will of the people, and that the people be free in it, and that the government do nothing but play the role of deputyship and representation of the people; for the people has only relinquished to the government its right to rule in order to protect its freedom and its other interests. From this, belief in the social contract theory requires that the people be given the opportunity to establish governments that act on their behalf and represent them in laying down laws, and then look after their interests and achieve their benefits. Thus Rousseau's philosophy focused on two things: the freedom of the individual, and that the government be in the service of the general will and bound by its decisions (in the sense that the people has the right to install the government and depose it).

The summary of the discussion: these three theories (separation of state from religion, separation of powers, and government expressing the general will in the light of the freedom of the individual) are what contributed in turn as basic building blocks on which the edifice of liberal democracy was built.

The historical factors that led to the rise of democracy

After the brief survey of the theories at work behind the emergence of democracy, we would like to follow it with an explanation of the historical events that consolidated its core and strengthened its pillars. In this regard, a quick review of two historical events is fitting, which actually played their tangible role in consolidating democracy and rooting it in the world, just as they brought about great changes in Western society and left far-reaching effects on it: namely, the independence of America

and the French Revolution. They are contemporaneous, with only 12 years between them; the independence of America preceded the French Revolution. From this we present a brief introduction to it, then follow it with the brief history of the French Revolution.

American independence

Columbus is the one who discovered the continent of America. Its story is that Europe was still searching [p. 93] for the routes by which it could reach India in order to expand the scope of its trade, but it was still failing to find them, since the Suez Canal had not yet been built. As for the sea routes, they involved unbearable difficulties and countless hardships; so it used to send expeditions from time to time to search for it, but all of them ended in disappointment and failure, except two expeditions that attained a share of success. The first of them was the expedition led by Vasco da Gama, which managed to reach India by way of the southern cape of Africa (the Cape of Good Hope), the farthest point of Africa in the south. The second was the expedition led by Columbus, who also set out to find the road to India, but he sailed in the direction exactly opposite to Vasco's. (Modern studies have proved that the guides of both of them were Arab sailors: Columbus's guide was a sailor named Ibn Mujāhid [sic: presumably the navigator Ibn Mājid], and a book of his has also been printed.) At any rate, Vasco da Gama reached India, while Columbus continued travelling westwards until he reached the islands known today as the West Indies, believing them to be part of India — hence these islands were attributed to India, though in reality they were not; they were the islands of the Caribbean Sea. When he continued his journey and advanced well, he found another vast continent, which was the continent of America. Thus America was discovered, which the West and the English regarded as a wide field, a spacious domain and a fertile land for trade and settlement. So they sent colonial missions to it, as others also sent them — the Dutch, the French and the Portuguese as well; but the share of the English in America was more abundant and their portion of it greater. Hence England's control was established over most of it, and it exerted effort to establish its colonies there. If you let your gaze roam today over the map of America you will find in it 52 [sic: 50] states, over most of which, and the largest of them, Britain had established its control and domination, so that its affairs were run and concluded from London for a long period. Since it had resolved, first, to rule its inhabitants, and second, to levy taxes from them, when it once wanted to impose taxes on them they did not leave it to do so, but rose up to resist it, by virtue of some democratic ideas having reached them and found acceptance among them. The result of that was that they refused to pay taxes to the government of England — which was the nucleus of their rebellion against its system. When it developed a little, they resolved to throw off [p. 94] the yoke of subordination to it and to establish states with absolute authority enjoying independent self-government. So wars broke out between them, resulting in the victory of the Americans under the leadership of George Washington, who declared the independence of America, and also declared the establishment of a federal democratic government comprising all the states of America. That declaration of his is called "the Declaration of Independence", in which they gave the inalienable democratic rights of equality, liberty and so on to every human being, and opened the declaration with their words: "All people have been created from the wombs of their mothers free; no one has the right to enslave another human being." (In fact, this sentence approximates what ʿUmar, may God be

pleased with him, said to ʿAmr ibn al-ʿĀṣ, may God be pleased with him: “Since when have you enslaved people, when their mothers bore them free?”[1])

According to what is believed, it is the first liberal democracy established on the face of the earth. However, since Europe was at a vast distance from America, nothing worth mentioning or reckoning with of its democratic effects reached it; rather, the thing that changed the course of European popular thought and its currents was the French Revolution, which occurred twelve years after the event of American independence. Here, then, is a brief, summarized account of it below, leaving aside its detailed history, for which this narrow discussion has no room.

[1] *Kanz al-ʿUmmāl*: 12/661, hadith no. 36010.

A look at the French Revolution

This account goes back to the late eighteenth century CE, when France and other European states were governed by a monarchical system, and the king of France at that time was “Louis XVI”. As was customary with the kings of that time, they had formed councils for themselves for consultation that were hostage to their will and bound by their wish entirely: whenever they wished they convened it, and whenever they did not wish they did not; and on whatever issue they wished to consult on, they did, otherwise not; and they were never bound or committed to consult them. Louis XVI had a consultative council of this kind, which he named the council of the estates of the nation (the Estates General), and he had formed it [p. 95] from the representatives of the three estates: (1) the estate of men of religion from the members of the Church; (2) the estate of the feudal nobles; (3) the estate of the general people. The number of members of the three estates was equal. So if the third estate wanted to issue a decision in the interest of the people from the council, the first two groups would object to it, which caused it to be regarded as automatically void. Moreover, the members of the third group were not elected and given membership in the council on the basis of elections; rather the king appointed certain persons from them and granted them this membership. This added insult to injury, and deprived the people of a prominent, active role in taking decisions and putting them into effect.

Add to this that the king was not bound to consult it at all times; rather — as we mentioned a little earlier — its meeting turned on the king’s wish and inclination. In 1789, 116 years had passed since its last meeting, such that it had not convened any meeting throughout this period. When democratic ideas began to creep into popular circles, the demands for convening the council increased; on the other hand, the king wished to burden the subjects with more taxes to satisfy his instinct of luxury and extravagance, so he wanted to seize the opportunity to issue a decision concerning burdening the people with taxes, since he was confident of the agreement of the two estates of men of religion and nobles to it. When the meeting was requested, many of the people demanded the doubling of the numbers of the representatives of the third estate so that it would be equal with the numbers of the first two estates, justifying [this] by the fact that one third of the council was not enough to represent the whole people, and that it was nothing but unfairness and injustice to the people; so the king agreed to it. Then the people demanded the merging of the three estates into one national council, so that the opinion of their majority would be implemented; but the king was not pleased with it, because he knew precisely and well that the representatives of the people would resist him in what he wanted

in taking decisions for his personal benefit. When he refused to do so, the people rose up and established for themselves an assembly, disregarding the estate of the men of religion and the nobles, and called their assembly the National Assembly (and this was the first use of this word that later became famous in political circles), and demanded its meeting.

[p. 96] When the king saw that matters had become serious and the affair had grown intense, he tried to contain the situation by ordering the army to close the area in which the members of the assembly were to meet. So the assembly moved its meeting to a tennis court, and adopted there a constitution for France laid down on the basis of Montesquieu's theory concerned with the separation of powers and their division into three: legislative, executive and judicial. They also laid down in it a chapter on the basic rights necessary for the freedom of the individual. They did not abolish monarchy in it; rather they acknowledged its existence, but they narrowed the powers of the king and confined them to the executive power only, so that the two powers, legislative and judicial, would be completely independent of it.

This was the first constitution of France, which is regarded as the first state with a liberal democratic character. Coinciding with the session of the National Assembly, a great crowd rushed towards the royal palace and forced the king to attend the session of the assembly; so he attended it against his will to adopt the new constitution that the assembly had prepared, contenting himself with the presidency of the executive after the two bodies of legislation and judiciary had been taken from him.

Reacting to the danger that surrounded the king, and regarding it as a first step towards removing him from office, and fearing deprivation of what remained of his meagre official authority, the king strengthened his connection with his German counterpart so that he could obtain military support from him if he needed to use violence and force to repel the popular currents against him. The German king agreed to that, for fear of the worsening danger spreading to him if it succeeded in the heart of the French system. To implement this plan of theirs, conspiracies were arranged between the two kings on matters. The revolutionaries managed to expose this conspiracy and learned of the alliance that had taken place between the two kings against them. Although the king denied it and regarded it as an accusation and propaganda, the revolutionaries insisted on their position, until they imprisoned King Louis XVI, which led to the suspension of the constitution that the king had adopted, since it had been based on the continuation of the monarchical system. So they convened another conference of the National Assembly, which led to the adoption of a new constitution that delegated the king's authority and powers to a committee called "the National Convention".

[p. 97] This government put Louis XVI on trial for his treason against the state, and the National Convention convicted him of the crime of treason (alliance with Germany to launch an attack on the people of France), and sentenced him to death, which was carried out on him publicly before the eyes of witnesses. With this the monarchical system came to an end.

Since the leaders of the revolutionary current were devoid of experience in running the system — despite the sharpness and zeal they had in abundance — they also lacked the principles for securing coordination and discipline. This led to the winds of disagreement blowing and conflicts exploding among them, which resulted in the outbreak of long civil wars, the prevalence of anarchy and the spread of disturbances and the absence of the rule of law, to the point that the people remembered the

monarchical system, preferring it to that state of tension and wishing for its return to them. In the end they resorted to seeking help from the military forces to intervene in administrative affairs; their commander at that time was Napoleon Bonaparte, so he took up the reins of government, and the people accepted him when they saw the failure and fiasco of the National Convention. So another dictatorial government was established; but the credit due to Napoleon is that he chose to strengthen democratic ideals, even though the people itself had conferred legitimacy on his government and granted him all authorities and powers. He reasoned that it was the zealous, fiery revolutionary current and its ruinous method that had squandered the people's sacrifices, as mentioned earlier. He succeeded at first in eliminating the civil wars, and fought the other states, and defeated the army of Austria until he sailed to Egypt; and on the other hand, to support democratic ideals, he established an assembly from his companions for this purpose.

He achieved victories and won the wars that broke out between him and many states, until he launched an attack on the forces of England at the place "Waterloo", but suffered a bitter defeat in it as a result of the enemy's enormous numerical superiority; after that Napoleon died. However, his companions, who enjoyed the revolutionary idea, established democracy after him — and this is what is called "the Third Democracy" [sic: the Third Republic]. Following the French Revolution that ended with the establishment of the [p. 98] democratic system, revolutions followed one another and changes succeeded each other in other European states. The values and ideals that the French Revolution supported and strengthened are embodied in three principles: (1) freedom of the individual; (2) separation of powers; (3) separation between religion and the state. As a result of it these theories were spread in the other states of Europe, and the liberal democratic system became widespread in the world.

This, then, was a brief sketch of the two revolutions, American and French, which played their part in consolidating liberal democratic ideals in the world.

Organizations and institutions arising from democracy (organizations working to realize democratic principles)

After the passing glance at the history of the development of democracy, we would like to turn the reins of our attention to explaining the institutions and organizations that are established to realize the demands of democracy and attain the goal intended from it. In this regard we single out for mention four of those organizations, namely: (1) political parties; (2) elections; (3) the legislature; (4) the judiciary.

(1) Political parties

Among the most important principles and ideals of democracy is that it guarantees citizens the freedom to establish parties and associations without imposing any restriction on a party or group. Proceeding from this, the organizations established under democracy and in its countries can be classified into three types:

(a) Interest groups

That is, the group that is founded to attain the common interest and achieve the common goal among a particular faction of the people: for example, men from a particular professional sector undertake to establish a group working to look after its rights under mutual cooperation among its members. It does not aspire to possess authority and ascend the seat of government; it only aims at non-political goals. This association [p. 99] is called by political scientists an “interest group” or “association of common interests”.

(b) Pressure groups

This group also does not aspire to government and does not aim with its efforts at attaining authority; its function is only pressure on the government to make it meet its demands, or to integrate its policies into a specific government policy.

(c) Political parties

“A group of citizens who believe in common political and ideological goals and organize themselves with the aim of reaching power and realizing their programme.”

The method of forming a political party in democracy is that people first think about the programme or the economic and social method that they consider most beneficial and most reforming for the state, then they issue a statement containing that programme, aiming to put it into effect if they gain power. This political statement is a working document prepared by a political party, setting out its goals and plans for running the wheel of government if it succeeds in elections and is able to form the government. Then this party calls people to join it and come to an understanding on its political programme, then all of them devote their efforts to reaching power so that they can bring it into the realm of implementation. If it reaches the seat of government, it is then obliged to act according to its programme with which it attracted the attention of voters and enticed them to give their votes to its candidates. The programme is what distinguishes between two political parties: one political party adopts a particular ideology and special visions, while the other adopts others like it. If there were no difference between the policies of two parties and their programmes, there would be no justification for forming the second party while the party possessing the same ideology and seeking the same goal exists. This, then, is democracy’s view of political parties.

[p. 100] The prevailing systems concerning political parties differ among states. Some of them have implemented the one-party system, which is the prevalent system in most communist states, where they impose a legal ban on the establishment of another political party. Meanwhile, many states have had the two-party system prevail, where their law allows the establishment of political parties alongside these two parties; but the results of elections have proved more than once the failure and fiasco of the small parties, which in its wake leads either to the vanishing of those parties or their becoming of little importance, such that it becomes clear in fact that the state is governed only by the two parties — which alternate in power — nothing else. It is the prevalent system in the United Kingdom and America.

In some states the system of “party pluralism” has prevailed, in which there are many political parties, small and large, striving to reach power, and it is difficult to predict in advance which party will win the largest number of seats in the legislature.

Although the formation of political parties is not a necessary part of the democratic system, it has become established that it actually exists everywhere democracy has prevailed. Although many experts in political science see political parties as negatively affecting the demands of democracy and as not beneficial to its interests, it has become impossible to find in the external world a democratic state free of a political party!

(2) Elections

Elections in the democratic system are regarded as one of the most important political practices as a peaceful means of assuming authority and taking up the reins of government. First, elections are held to choose candidates for membership of the legislative bodies; then the parliamentary system permits the party that has won the largest number of seats in them to form the government. Elections in the democratic system are usually conducted by one of the following two methods:

(1) Direct elections: meaning that every adult citizen is granted the right to vote [p. 101] and cast a ballot — male or female, young or old, educated or ignorant — so that he may elect, and then the candidate who obtains the largest number of votes succeeds.

(2) As for indirect elections, they mean that the people elect people who in turn undertake the election of members of the legislature. In detail: the people undertake to choose persons qualified to elect members of parliament, to carry out the task of choosing them. This was the prevalent method in Pakistan in the era of President Ayub Khan, who implemented the electoral college system, meaning that society would choose the central council, and this council would choose whoever was to hold membership in parliament. The prevalent method in the world today is the method of direct elections.

Qualifications of the voter

The systems of states also differ in determining the conditions that must be present in persons so that they have the right to vote. Switzerland can be taken as an example of that: women did not have the right to vote until five or four years ago. When voices were raised about their right to vote, the women themselves at first rejected it, arguing that granting them this right would only lead to family disputes on the basis of differing political orientations between spouses, since the husband might give his vote to someone while the wife casts her vote for another person. But that argument of theirs was not accepted, and they were finally granted the right to vote and cast ballots.

Today, however, the system of voting for every adult citizen has become widespread in the world.

Single-member election in one round

It is the method prevailing in the world for elections today, and it is based on the basis of one winner from each electoral district, represented by the one who obtains the highest number of votes in that district, whatever the percentage of his election — and he may not represent the opinion of the majority in that district. For if we suppose there are many candidates for one seat, and one of them obtains 15% of the total [p. 102] votes in that district while no one else reaches this percentage, he wins, even though he represents only a very small percentage of the inhabitants of his electoral district.

Single-member election in two rounds (Second Ballot)

For this reason many states have chosen other electoral methods that guarantee them protection from that harm. France implemented the system of single-member election in two rounds, which means: any candidate who obtains 50% + 1 of the votes of his candidacy district is regarded as the winner. If no candidate obtains 50% + 1, elections are held in it again, and it is stipulated for candidacy that one obtained 12% in the previous elections; and the winner is regarded as whoever obtains the highest number of votes in it.

Proportional representation

The forms of applying proportional representation differ in the states that follow it. Among them: that the ballot paper is empty of the names of candidates; rather it carries the names of political parties and their symbols, and the voters are charged with marking on the ballot paper the party they choose. When the elections end, the percentage of votes each party won is looked at, and it is granted a number of seats in the legislature in the same percentage. If a party, for example, won 30% of the votes, it obtains 30% of the number of seats in the legislature. Then that party is asked for a list of candidates to fill those seats.

However, some states follow in this regard the system of preferential voting, whose summary is: every political party presents a list of its candidates for membership in the legislature, to be acted upon according to the ascending order that that party set. For example, if a political party presented a list of fifty candidates and won 50% of the votes, all its candidates are elected for membership of the legislature; but if it obtained a smaller percentage of votes than that, and consequently its seats in the legislature were fewer than fifty seats, it chooses from that

[p. 103] list according to the sequence the party set, from the highest to the lowest: the first candidates are elected and the rest are left. But it is clear that this method can be followed only if the elections are on party bases, i.e. the names of the candidates appear with an indication of their party affiliations.

Sometimes the single transferable vote system is followed; in summary: “The voters give the candidates listed on the ballot paper numbers according to the order of their choice. After counting the total number of ballot papers, those responsible for the elections set — by a mathematical method — the electoral quota, or the minimum number of votes for winning. The candidate who obtains the quota that qualifies him from the first choices is declared the winner. Then all the votes this candidate obtained in excess of the quota are distributed to the candidates whom the voters chose in second place, after excluding the candidate who obtained the lowest number of the votes that this candidate obtained among the candidates listed in second place. If the second-rank candidate has been elected, the vote is transferred to the third rank, and so on. This process continues until a sufficient number of candidates obtains the electoral quota to fill all the seats.”

At any rate, this was a sketch of the alternative methods that several states have followed in order to overcome the problem of winning by a minority vote, to which the simple-majority system leads. However, the systems mentioned above have also not been successful in finding a fully convincing solution to that problem, since there are still possibilities for a candidate to win by a minority vote relative to the total votes in that electoral district. In addition, these systems are equally extremely

complex, which has led to increased possibilities of fraud in elections and a negative effect on their integrity, alongside what they cost the state in exorbitant sums, and the continuation of a state of ambiguity and instability for a long period. Despite all this, it cannot be decided that they guarantee the election of members on the basis of serious, accurate representation of the various components of society.

(3) The legislature

[p. 104] The third democratic organization, which in itself holds great importance that makes us give it attention through research and study, is the legislature. It is a deliberative body that has the authority to enact and make laws in democratic government, and is called parliament and the national assembly as well. As for parliament, it means: a place in which people gather for discussion and negotiation over some issue; and “assembly” refers to gathering and the place of gathering. The function of this organization is to lay down the laws and approve them for the state. Its method of legislating laws is that a draft law is presented to it, its members take it up by discussion and negotiation, and if it obtains the agreement and ratification of their majority, they adopt it and order it implemented in the state. In addition, it also discusses government policies. It is the highest official authority in the democratic system, and specifically the parliamentary one.

There are two systems followed in democratic states regarding the legislature:

(1) Unicameral legislature

It is the simplest form of law-making bodies, and its meaning: that there is in the state one chamber to exercise legislative authority. It in turn undertakes the task of making laws, and every law it approves is implemented in the state without the need for another chamber to ratify it.

(2) Bicameral legislature

In this system the legislative authority is divided into two separate groups called chambers; one of them:

The lower chamber: like the National Assembly in Pakistan, the House of Commons in Britain, the “House of Representatives” in the United States, and the “Lok Sabha” in India.

The second: the upper chamber, like the “Senate” in both America [p. 105] and Pakistan, the “House of Lords” in Britain and the “Rajya Sabha” in India.

As for the rationale for the multiplicity of legislative chambers, they say: the members of the lower chamber are elected by the vote of every adult citizen, usually on the basis of party affiliations, not qualifications and scholarly and practical abilities. Hence enthusiasm for their parties and submission to their policies take complete hold of them, so it is not unlikely that these will issue a law that harms the state and its interests. Therefore there was a pressing need for an upper chamber whose mechanism of formation differs from that of the lower chamber, to review the decisions of the lower chamber, discuss them and ratify them after ascertaining their seriousness and positivity and that they are in the interest of the state and the people. So the conception motivating the multiplicity of the legislative chamber is in reality that parliament, as long as it lacks specialists in the subject of the

decision proposed for discussion in it, feels the pressing need for another chamber that includes a number of experts in various fields of life, so that they can study all dimensions of the laws from a professional point of view, then propose amendment to it if that seems right to them, or ratify it and adopt it for issuance and implementation. This rationale is accompanied by reasonableness, and is therefore worthy of acceptance — provided that the members of the upper chamber are elected in view of their professional qualifications and scholarly abilities. If that is not the case — as is common today, where they are not elected on the basis of the aforementioned criterion but by other varied and differing methods — then there is no need for it, nor does any fruit appear from it, nor does it bring any benefit or use to the state.

They have sometimes said, in explaining the need for the upper chamber, that the federal state that includes many provinces and states that differ among themselves in culture, civilization, language and traditions — some of its provinces may have a greater population density than others, like Punjab for example relative to Baluchistan and Sindh among the provinces of Pakistan; and since the seats of the lower chamber are distributed on the basis of population ratio, it has become possible for the representatives of one province in the lower chamber to be more numerous than the representatives of another province, and hence fears have increased that the representatives of the large province [p. 106] will agree to a decision leading to harm to the interests of the small provinces. Hence there should be above the lower chamber another chamber in which the number of representatives from each province is equal, regardless of the number of its inhabitants, so that this guarantees achieving balance and equilibrium among the interests of all the provinces of the united federal state, and prevents the representatives of the large province from turning the paths of general government decisions in the direction of the interests of their province only. This is the point that has led to the multiplicity of the legislative chamber in most states with two legislative chambers.

But on the other hand, one never ceases to marvel that the powers granted to the upper chamber will never be sufficient to achieve the aim intended from its formation — I mean protecting the rights of the small provinces in the united federal government. For it is an upper chamber in name only; in external reality the powers of the lower chamber are greater and stronger than its powers, as is the case in most states, where the law approved by the lower chamber is presented to the upper chamber: if it agrees with it [well and good]; otherwise, the most it can do is send it back to the lower chamber to reconsider it with more deliberation and thought about it. But even so, if the lower chamber persists in its position of adopting that law, the law is implemented, and the upper chamber does not represent any obstacle to its implementation.

As for our state, Pakistan, the situation there differs from other states, since the upper chamber there is regarded as the stronger and greater in authority and powers, especially after the Eighth Constitutional Amendment, which provided for expanding its powers. The Senate in Pakistan aspires to both of the aforementioned aims: equality of the number of representatives of all provinces, and the allocation of many seats to skilled specialists who are elected on the basis of their scholarly qualifications. In addition, it has been granted the authority to initiate the process of enacting laws as well, so that a draft law can be presented to it first and independently, exactly as it can be presented to the lower chamber — in contrast to what obtains in other states, where the draft law is presented to

the lower chamber only, and after its approval is presented to the upper chamber for consultation [p. 107] and the offering of advice only.

The other thing that distinguishes the Pakistani parliamentary system is that the law, after its approval by the National Assembly, is presented to the Senate. If it approves it as it is, it is implemented; and if it proposes amendments to it, it is sent a second time to the National Assembly to know its position on those amendments and obtain its agreement on them; otherwise a joint meeting comprising the members of both chambers is held, in which the draft law is presented so that its members vote on it, and that law is implemented if a majority of the members' votes support it. At any rate, it follows from this that our Senate in Pakistan enjoys greater powers than it does in any other state.

Most parliamentary states today follow the system of a bicameral legislature, and many researchers in the field of political science are not convinced of the usefulness of this system and its suitability for achieving the interests of the state and looking after it; but at the same time they acknowledge its continuation and persistence, as they cannot reject it categorically by virtue of its prevalence and spread in most states of the world.

As mentioned earlier, the democratic system regards the legislature as the highest official body, and confers on it infallibility from error; but the two systems of Britain and America differ in that. The British system, by virtue of its belief that the legislature is infallible from error, does not allow any organization or authority to review any law issued by parliament or any action it takes; whereas the American system, despite believing parliament to be an independent body, subjects all laws to judicial review, so it allows every citizen to challenge a law and bring it before the court if he considers it contrary to the constitution or in conflict with fundamental rights. If the court agrees with him on that and regards the law as a violation of the constitution, it orders its cancellation and nullification. This is what is called the system of judicial review.

It is the system in force among us in Pakistan, where it allows objection to a law that parliament has approved if it is contrary to a clause of the constitution or to fundamental human rights, and the judicial system enjoys the right to cancel it if it sees fit; and after its cancellation by the court it is regarded [p. 108] as abrogated and void.

The Pakistani constitution also provides for permitting a challenge to a law approved by parliament if it is contrary to the Qur'an and Sunna, in the "Federal Shariat Court", which is the court established specifically for this purpose, to cancel, in its capacity, a law it regards as contrary to the Qur'an and Sunna. The ruling of this court can be appealed before the "Shariat Appellate Bench", which is a branch of the Supreme Court, to undertake in its turn the study of the decision of the Federal Shariat Court in the light of the Qur'an and Sunna; if it agrees with its decisions and sees that the law parliament approved is contrary to the rulings of the Qur'an and Sunna, it orders its cancellation within a specified period. When the late General Muhammad Zia-ul-Haq undertook the establishment of this court specific to reviewing the laws of parliament in the light of the rulings of the Qur'an and Sunna, many secularists expressed their anxiety about it on the grounds that it amounts to subjecting parliament — which is the highest official authority — to these two courts (the Federal Shariat Court and the Shariat Appellate Bench of the Supreme Court), and that granting them a right of veto results only in eliminating the sovereignty and authority of parliament.

The truth is that it is an objection that has no share of sound reasoning, nor even of seriousness. For just as many states — Pakistan among them — have followed the system of judicial review, which means subjecting parliament and its laws to the constitution and fundamental human rights, what harm then is there in subjecting it to the divine constitution and His rulings revealed in the Qur'an and Sunna?! If the subjection of parliament to the constitution is tolerated and is not regarded as in any way compromising its sovereignty and authority, why then is that not tolerated if its subjection is to the divine constitution?

(4) The constitution

The constitution is the prominent element that draws a dividing line between the democratic system and the absolute monarchical system.

People usually do not distinguish between the constitution and law, despite there being a great difference between them. The constitution is the name of a document that brings together the systems and laws upon which the state proceeds; [p. 109] it is the supreme law by which the government is run. It covers the competences of the three powers: the legislative power, the judicial power and the executive power, alongside its covering the competences of each of the head of state and the prime minister, and the form of the legislative power — whether with one legislative chamber or two legislative chambers — and how the state's expenditures are directed, the method of forming the judicial system and its competences. All these matters and others — the relations among the powers and the limits of each power and its functions — are matters the constitution deals with. From this it can be said that the constitution is a law the government is obliged to follow, while "the law" is what the people must follow (i.e. what the government has imposed on it).

The constitution is then divided into two types:

(1) The unitary constitution

It means: that the state, with its parts and political units, has one unified legislative chamber, and its units — provinces, states and regions — do not have a special legislative chamber; rather, the unified central government runs all the affairs of the state, represented in unified judicial, legislative and executive powers. As for the political units, their affairs are run by employees of the central government and in subordination to it, such as the governor of the city (commissioner: *qūmisīr*), for example, or his deputy. Although he undertakes the administration of the city's system, he cannot properly be called a ruler; he is only an employee of the central government. Likewise, if the state is divided into regions and states, the central government appoints persons who play their role in steering the helm of their system as employees of the government, not as independent rulers, since those regions do not have for themselves legislative bodies and councils, nor regional assemblies, nor councils of ministers.

This is a quick review of the system of the unitary constitution. It is usually followed by states not divided into many states and provinces, or states whose people all embrace the unified point of view. For since everyone in them believes that there is no conflict of interests among the members of the people, they prefer the system of the unitary constitution.

[p. 110] We can give an example of this with Britain, which is divided into many provinces that differ in their cultures, dialects, ways of life and so on; yet they nevertheless follow the system of the unitary constitution, on the argument that its whole people believes in a unified intellectual system and adopts the unified point of view.

(2) The federal constitution

This system is followed only by states divided into many local units. The idea behind establishing this system was that each local unit first enjoyed its own authority and independent government, such that it could properly be regarded as an independent state. Then those governments came together, and they created covenants and an alliance among themselves — what was later called the union (federation); and their central government was called the federal government, while each region had its special branch government. They divided governmental powers between these two bodies (the central government and the local government).

Sometimes this idea is not what is behind the establishment of the federal system: namely when the state from the beginning was governed by a large, unified government, but was divided into local political units of regions and states. So the federal system was preferred in order to convince each state and region that it would have its own authority, and its voice would be heard and its identity tangible. In this system, political authority is divided between the central (national) government and what each region has of local government. Pakistan is regarded as an example of this: here there is a central government that controls all the regions subordinate to it, while each region enjoys its local government as well. Punjab has its own government, and Sindh, Baluchistan and Sarhad [the Frontier] their own governments, and these governments have their defined powers, and possess legislative assemblies and councils of ministers, all of which is administered by its executive power.

As for the task of defining the competences and powers of both governments — central and local — the constitution of the state undertakes it, which contains a full explanation of the matters in which the authority [p. 111] to legislate belongs to the central government, and those matters in which the regional government undertakes the enactment of laws as its right. To meet this purpose, the constitution sometimes includes many lists: a list including the matters on which the central government legislates, and another for those in which the task of legislation belongs to the regional government. Such is the constitution of Pakistan, which contains two lists: a list of the matters in which the central government alone has the right to legislate, and another for the matters and issues in which both governments share the right to legislate. As for what lies outside them — the matters that do not come within one of the two lists — the authority to legislate in them belongs to the local government specifically. In view of this detail, the regions that demand regional autonomy in fact mean by their call that that list of shared matters be struck from the constitution, and that the authority to legislate in them also be delegated to the local governments alone, without the central [government].[1]

So this was a brief discussion of the two types of constitution: the unitary and the federal.

> [1] Their demands were answered, as that list of shared matters was struck out following the Eighteenth Constitutional Amendment.

The basic components of a constitution

A constitution does not have a particular prescribed form that states must follow when laying down their own constitution; rather, each state has been given free rein to lay it down in whatever arrangement and codification it sees most fitting to its circumstances and most successful for its interests. Nevertheless, there are several basic components of which a constitution is composed, and rarely is a state's constitution devoid of them. Below we summarize the explanation of those components that play the role of the common measure in the forms of states' constitutions.

The preamble of the constitution

It is the first thing with which the constitution of every state opens, and the English term "Preamble" is specifically applied to it, meaning: the introduction to a legal document. From this it becomes clear that this word is not applied to the introduction of a book or otherwise; it is specific to the introduction of a legal document. Since the constitution [p. 112] is also a type of law — as we stated earlier, it is a law the government follows — it is correct to apply the term "preamble" to its introduction. If you happen to read a law, you would find it begins with their saying: "Whereas such-and-such…, the General Assembly issues this law." This opening phrase is the preamble of the constitution.

The prevailing general principle regarding this preamble is that it is not regarded as part of the core and text of the law; it is only an introduction preceding it to explain the reasons that called for the making and implementation of the law. So, from the law's point of view, it is equivalent to wisdom and interest (*ḥikma* and *maṣlaḥa*) among the scholars of uṣūl [legal theory]: just as the ruling does not turn, among them, on the interest, likewise one cannot object to a government measure on the grounds that it contradicts the preamble of such-and-such law. Yes, it is permissible to draw on it in interpreting the text of that law and clarifying what is general in it and explaining what is ambiguous; for the preamble aims at explaining the purposes for which the law was laid down. Hence, if a law admits two interpretations, it is natural that the interpretation that suits those purposes and harmonizes with those aims be preferred. Let me clarify it for you with an example:

The Pakistani parliament approved a law on the Sharia ḥudūd [prescribed punishments], in which it defined the zinā [unlawful sexual intercourse] that requires the ḥadd by saying: "that a man and woman engage in sex without any valid marriage between them." We faced in the Supreme Court the problem of interpreting the valid marriage mentioned in the text of the law. In such cases recourse is usually had to the other laws in force in the country, since it is established among them that the marriage those laws permit is regarded as valid marriage, and what they do not regard as such is not permissible. Since the law in force among us in this regard is "the Family Laws Ordinance", which includes several non-Sharia clauses, among them: that the husband, if he divorces his wife, is not regarded as having divorced her legally as long as the husband has not given notice of it to the chairman of the local council (Union Council); if he did so his divorce is regarded as legal, otherwise not. The consequence of that was that if the husband divorced his wife and did not send notice of it to the chairman of the local council, and the woman relied on the written document of divorce signed by the husband and married another husband, [p. 113] this marriage of hers is valid and permissible

according to the Sharia, while it is not permissible in the view of the law, since she is still a wife of the first husband, because his divorce is not regarded [as valid] given that he did not give notice of it to the local council. So when her marriage became impermissible in the view of the law, it was natural that she be punished with the punishment for zinā according to the Ḥudūd law; and such cases actually occurred, and some courts sentenced the woman in such a case to the punishment for zinā, which caused women to fall into many problems and to be exposed to grave abuses.

When a petition in this regard was presented to us in the Supreme Court, and the case was delegated to me, I ruled in it that the preamble of the Ḥudūd law states that it was implemented only to make the law of zinā entirely in accordance with the rulings of the Sharia, as it contained what means: "Whereas it is in the interest to make the laws relating to zinā in accordance with the Sharia… this law is laid down that…"

Since what is intended by laying down this law, on the one hand, is the application of the rulings of the Sharia, and, on the other hand, there is a text in the law itself that it shall have supremacy and dominance over other laws conflicting with it, what counts in interpreting the words in it is the Sharia and its rulings, not the other laws in force in the state. Since this woman's marriage is permissible according to the Sharia, it is not correct to judge her guilty of zinā nor to punish her for it.

Thus the preamble of a law can be drawn on in explaining the law, interpreting what is general in it and clarifying what is ambiguous in it, but it is not part of the text of the law, and hence it is not treated as law.

Usually, the preamble of a constitution alludes to the goals and purposes to which the state aspires, as well as the aims it seeks to achieve through laying down the constitution. Perhaps you have often heard of the "Objectives Resolution" in the constitution of Pakistan. That resolution was in reality a preamble to the constitution, adopted by the Constituent Assembly in 1948 [sic; 1949] after attempts and mighty efforts undertaken by Shaykh ʿAllāma Shabbīr Aḥmad ʿUthmānī (may God have mercy on him) and his companions. In detail: the resolve of the official bodies to undertake the process of laying down a constitution for the state had stirred debate over the type of constitution, and the secular circles began exerting every effort to turn its course towards secularism [p. 114] and irreligion. So Shaykh Shabbīr Aḥmad (may God have mercy on him) and his companions fought them with mighty efforts and serious attempts in a decisive battle that ultimately resulted in parliament's ratification of the "Objectives Resolution" after the then Prime Minister Liaquat Ali Khan presented it. This brief resolution defined the direction of the state in general and showed its condition and purposes. Here below is the text of this resolution:

Translation of the text of the Objectives Resolution, 1949

[Tr.: What follows is an English rendering of the Arabic version as given in the book. The official English text of the Objectives Resolution (1949) differs in wording; researchers quoting it should use the official text.]

"Whereas God alone — without any partner or rival — is the true, absolute Sovereign over the whole of this universe, the authority and power that He has granted to the people of Pakistan as a sacred

trust are rightly to be exercised only within the framework of the limits laid down by God, glorified and exalted.

The legislative assembly representing the State of Pakistan has resolved to frame a constitution for it as a self-governing, independent state, with full observance of the democratic principles of freedom, equality and social justice as interpreted in Islam, so as to enable Muslims to order their individual and collective lives in accordance with the Islamic rulings and requirements as set out in detail in the Qur'an and Sunna.

Which shall guarantee to minorities full freedom to profess their beliefs, practise their religious rites and develop their cultures.

Which affirms the formation of a federal system comprising all the provinces and territories that have joined or will join Pakistan in future, and grants the units autonomous, independent self-government within the limits of the powers that the constitution will define.

Which shall guarantee the protection of fundamental human rights, including equality, equality of opportunity in holding office, the regarding of all citizens as equal before the law, social, economic and political justice, and freedom of expression, conscience, religion, worship and association — all within the framework of legal and moral limits.

The constitution also affirms the protection of the legitimate rights of minorities and the various classes.

[p. 115] It provides that the judicial system in the state shall be fully independent, and guarantees to the units of the state and its regions freedom, protection and the exercise of its right in its land, sea and air spheres.

All this so that the people of the state may attain progress and development, and win among the nations of the world their lofty, legitimate place, and strive diligently for the development and well-being of humanity."

This, then, is the translation of the text of the "Objectives Resolution" which the national parliament approved, and which became, and still is, a preamble to the constitution of the state through the passing of ages and the succession of constitutions. Hence it is not part of the text of the law, and is not treated as such; it is only drawn on in interpreting and explaining the law, as the courts have declared in many cases. As a logical consequence of this, a law contrary to this resolution is not regarded as cancelled and void on the basis of being a violation of the constitution.

After the courts issued decisions to this effect, the religious bodies in the state expressed their anxiety about the standing of this important resolution, and demanded that the government take the necessary measures to regard it as part of the basic law and not a preamble to it. The late President Muhammad Zia-ul-Haq responded to them, as he undertook the Eighth Constitutional Amendment by adding to it clause 2-A, which provides that the "Objectives Resolution" is part of the core of the law and is treated as the other parts of the law, not as a preamble and introduction. Because of this amendment it became possible to object to government policies if they deviated from the principles mentioned in the "Objectives Resolution". But regrettably, the Supreme Court made clear in one of its decisions

that although this resolution is part of the law, it has no supremacy over the other parts of the law; rather it and the other parts of the law are all of one rank. This ruling once again introduced ambiguity regarding the standing and rank of this resolution, and it is likely that the court will again clarify the actual effects that follow from regarding it as a necessary part of the law. I also find myself confident that if the court reconsidered the matter and gave it careful thought, it would inevitably arrive — God willing — a mechanism justifying objection to [p. 116] a law on the grounds of its contradicting this resolution.

Fundamental human rights

The second part of the constitution usually consists of the declaration of the protection of fundamental human rights (Fundamental Rights). Democratic constitutions take great pride in guaranteeing to all humanity the protection of these fundamental rights, especially in comparison with the individual despotic governments in which no conception of these rights was possible. Hence every constitution laid down in a state with a democratic character must provide for these fundamental rights guaranteed to the people, their protection and provision. Among those rights: the state's guarantee that the sanctity of a person's life, property and honour will not be violated; and its being provided in the constitution means that the government may not lay down a law or take an administrative measure that touches these rights by violation. Among those rights also: freedom of expression, meaning that every citizen can express his opinion with full freedom and without finding an obstacle hindering him from it. Among them also: freedom of religion, so every citizen is free to profess whatever religion he wishes and embrace whatever school he is pleased with. Among them likewise: freedom to form associations, so every citizen has the right to establish whatever association or union he wishes. Among them: the protection of property, so no one may violate its sanctity. Among them: freedom to elect representatives and rulers by using his right to vote with full freedom.

As for the development of the idea of fundamental rights, it is believed that the king of England "John the Second" [sic: King John] was the first to ratify a legal document in which he pledged to protect human rights, in the thirteenth century CE. That document is called "the Great Charter" (Magna Carta). It has attained such fame and acceptance in political circles that it has become the original source to which the discussion of civil fundamental rights is always attributed, and England regards it as a source of pride, claiming that it was the first to lay the first brick in the edifice of the call to fundamental rights. But on the other hand, if we examine the text of this document, we find it devoid of focus on civil rights, except for what appears in it [p. 117] in the clause providing that no citizen shall be detained except in the cases defined by law, and no one shall be convicted until a regular judicial body establishes his conviction. This brief sentence is what relates to civil rights among the clauses of the document called the Magna Carta, which clearly shows the worsening situation regarding human rights before the signing of that document, as it was common to arrest and detain a person without there being a pressing need for a legal justification that would allow and permit it! As for the remaining clauses, some of them concern the independence of the Church, and some aim at explaining the government's entitlement to impose taxes on the people and so on. So although there is nothing in it — apart from that single clause — relating to civil fundamental human rights, they have raised an uproar claiming to have preceded all humanity in protecting and safeguarding human rights.

By contrast, the fundamental rights the Prophet ﷺ declared in the Farewell Sermon are marked by a comprehensiveness and clarity that the Magna Carta cannot match or even come near — let alone surpass or rival!

On the other hand, the Noble Qur'an too has declared the civil fundamental rights of man since the first dawning of Islam, and its teachings began to fill the universe with light and brilliance; but they close their eyes to it, trying to conceal it out of what has taken hold of them of tendencies of feigned blindness and feigned ignorance born of blind religious partisanship.

I am seized with astonishment when I see their false propaganda about attributing the credit for protecting civil rights to the Magna Carta, while it is a document that does not exceed 42 pages and does not provide for any of the fundamental rights except the limitation of detaining a person and convicting him without legal justification; whereas the American Declaration of Independence opened its statement of the other rights it contains with the sentence: (Every human being is born from his mother's womb free, so no one may enslave him) — and it conveys the same meaning that our master ʿUmar al-Fārūq, may God be pleased with him, made clear long centuries before the independence of America, when addressing ʿAmr ibn al-ʿĀṣ, may God be pleased with him: "Since when have you enslaved people, when their mothers bore them free?"[1]

[1] *Kanz al-ʿUmmāl*: (12/660), hadith no. 36010, Ibn ʿAbd al-Ḥakam.

[p. 118] Likewise what Ribʿī ibn ʿĀmir, may God be pleased with him, said when Rustam asked him what he had come to them with; he said: "God has sent us to bring out whom He wills from the worship of servants to the worship of God."[1]

These clear historical facts, as clear as the sun at midday, establish with all explicitness and decisiveness that these [Muslims] have the credit of preceding all humanity in attending to fundamental human rights and emphasizing their protection and actually providing them to every human being. Therefore Western propaganda and its claims, and its granting the Magna Carta the credit for acquainting humanity with human rights, are nothing but fabrications by which it is intended to obliterate established facts and distort the image of pure Islam by accusing it of violating and contradicting these rights!

Add to that that the liberal democratic states still cry out at the top of their voices and raise their throats in declaring these rights and calling to them, while you will not find a state in which the people exercises its freedoms in expression and otherwise with full freedom and independence. Rather, every state has imposed restrictions on its freedoms and laid down conditions on them; no state has ever allowed its citizens to violate the sanctity of a person's life, property and honour on the basis of the freedoms that the civil rights have granted them. So it is known that these freedoms are not absolute and fully independent; rather there must be restrictions imposed on them that prevent a person's exercise of his freedom from leading to causing harm and injury to others. So the question that arises here is: what are the restrictions that can be imposed on man in exercising those freedoms? Is there a sound criterion for them that we take as a standard for specifying those restrictions and defining those conditions? Who is it that restricts these freedoms and specifies which restrictions it is correct to impose and which not? Which freedoms admit of restriction and which do not? The truth is

that these irreligious secular bodies will never succeed in presenting a satisfying, convincing answer to these questions that arise in the mind of the researcher who looks at man's right to exercise these freedoms on the one hand, and feels the pressing need to restrict them to guarantee the protection of the rights of individuals on the other. Since they have no straight balance to take as a regulated criterion for restricting these freedoms, they have been compelled to delegate the authority in it sometimes to the law of the state, and sometimes to

[1] *Al-Bidāya wa-l-Nihāya*, Iḥyāʾ al-Turāth ed. (7/46).

[p. 119] the general policies of the state, and at other times to moral ideals and virtuous principles. But it is self-evident that however much they try, the outcome among them ultimately reverts to man, his making and his thought: for the law is legislated among them only by man, the policies of the state are adopted among them only according to the will of the people, and moral values are defined among them only by human societies. Hence the question posed still stands as a formidable challenge to them. It is thus established that subjecting man's freedoms to these things means nothing but a trick to strip them from him, and enabling those in authority to use the umbrella of the subordination of rights to the rule of law — which reverts to them in laying it down and implementing it — as an instrument for depriving man of them whenever they wish.

Hence we must acknowledge this established fact: that the world has no philosophy forming a decisive, definitive criterion for imposing restrictions and laying down conditions on human freedoms. So no means remains for it other than for man to submit to that Power capable of granting him his creation and endowing him with the power of opinion and depositing in him the faculty of thought; and consequently he must resort to Him concerning the restriction of the freedom of his opinion and his thought and the narrowing of its scope. It is thus established from all this that the freedoms granted to man by the documents of civil rights must be restricted in the light of the divine rulings and in subordination to His revealed law. Whatever agrees with His law and rulings, there is no harm in expressing; and what does not agree with them is the true site of restriction by which the opinion ought to be bound.

As for human philosophy and human law, they will never succeed in establishing a decisive, definitive criterion that can be followed always and absolutely.

At any rate, this has been a brief introduction to civil / fundamental rights, which are regarded as among the most important components of democratic constitutions in our age.

After the preamble and the statement of rights, the third part of the constitution usually sets out the three powers of government (legislative, executive and judicial), the competences of each of them, the methods of their formation and so on.

As for the legislature, we have spoken about it before in detail, so we refrain from [p. 120] mentioning it again, turning to cast a passing glance at the two powers, the executive and the judicial, and the constitution's position on them.

The executive

The executive is divided into two types:

1. The political executive: meaning the executives who ascend the seat of government through elections and obtaining voters' votes, and who undertake to steer the wheel of government affairs throughout a specified electoral cycle — such as the prime minister, and likewise the ministers themselves.
2. The non-political executive: it comprises government employees, such as secretaries of ministries and directors of government departments. They are not employed on the basis of elections, and hence not limited by an electoral cycle; they are government employees who manage its affairs before the elections and after them as well, without revolving with the governments and the parties forming them.

The constitution provides the principles and rules for both types of executives, such as the formation of the government and the definition of its authorities and powers, the employment of administrative officials and the definition of the conditions of their employment, and other necessary matters.

The constitution usually guarantees administrative officials that they will not be removed from their positions except for a reasonable cause justifying that for the government. Accordingly we see them remaining in their posts while the government is overturned and passes from one person to another and from one party to another; and sometimes they acquire complete control over the government such that they influence government policies and commands. This is what is called bureaucracy (in English: Bureaucracy).

The judicial system of the state

Among the essential characteristics of democratic government is the existence of an independent judicial body. From this, the constitution in the democratic system gives it attention by specifying its activities in the manner of selecting judges, and mechanisms that greatly strengthen its independence, so that it is able [p. 121] to exercise its tasks with complete freedom and without being affected by any pressure from any direction. From this, democratic systems focus a great deal on freeing the task of appointing judges and installing them — and specifically for judges of the higher courts — from any political or governmental element. Take America, for example: it stipulated for the appointment of judges the ratification and approval of the Senate, while many states do not stipulate this condition; rather, they allow the head of state or the head of government to appoint a judge on their own authority without needing to obtain the approval of the legislature. This is regarding the appointment of judges and installing them in judicial positions. As for their removal from judicial positions, it has become firmly established in all states that the ruling body has no authority at all to remove them and depose them from their positions — so that the judge does not deviate from ruling in cases out of fear that the government will remove him and depose him from his position if it needs to rule against the government and its policies. Accordingly, the constitution usually includes lawful procedures to remove the judge and dismiss him from his position if need calls for that. America has delegated the authority to remove them to the Senate, and Pakistan has formed for this purpose a special council named "the Supreme Judicial Council", which undertakes investigation into the case of judges if accusations are brought to it against them; if it ascertains the soundness of the accusation, it can remove the accused judge and dismiss him from his position. These are attempts that democracy

makes in order to preserve the integrity of the judicial system and protect it from veering right and left under political pressures or interferences of the executive.

The constitution also provides the principles and rules relating to the affairs of the military forces, and the state’s expenditures and budget.

Chapter Four: Examples of Democratic Systems of Government

Introduction

[p. 123] Having finished introducing the constitution and its contents in a brief glance, we follow it with a look at the forms that democracy has assumed in its actual application in various states of the world. We single out among them four states that have played a tangible role in drawing the picture of democracy and strengthening its principles and supporting its ideals, so that their systems are regarded as the most solid and well-established systems of democracy, namely: Britain, America, France and Switzerland.

The parliamentary system in Britain

Since we, the sons of the Indian subcontinent, spent a period of time under the control of British colonialism and in the shadow of subjection and servitude to it, British principles became rooted in our minds, and hence we began trying to follow its method, imitate its model and follow in its footsteps. Proceeding from this, and as an imitation of the British system of democracy (called the parliamentary system: Parliamentary System), the parliamentary system has also become widespread among us, and our constitution was laid down along the lines of the constitution followed in the parliamentary system.

By the parliamentary system is meant: the system of government that regards parliament as the sole supreme power in whose hands lies actual rule of the country. [Such that the two powers, executive and legislative, are intertwined in such a system: the head of government is, by the nature of the case, both the executive head and the chief of the parliamentarians alike.]

The researcher never ceases to wonder when he sees, on the one hand, that the theory of “separation of powers” — which requires separation between the two powers, legislative and executive — is one of the most important principles of democracy, and sees, on the other hand, their fusion in a state that has a leading position in democracy and in founding its structure and strengthening its principles, Britain! For parliament, which represents the legislative power, in reality performs the task of enacting laws, just as it is what forms the executive power [p. 124] and possesses actual rule in the state, through its forming the government and appointing the council of ministers and its head first, and its holding the authority to remove him from the presidency of the government and dismiss his ministers whenever it wishes and wants second. So, from the point of view of the unity of the source of these two powers, it can rightly be said that they have intertwined and actually united — which

amounts — despite the separation of the judicial power from them — to demolishing and undermining the democratic principle concerned with the separation of powers.

The parliamentary system is built on the theory of separation between the head of government and the head of state. In Britain the head of state is a king or queen, and the government is headed by the prime minister. The element at work behind this theory separating the two heads is: that the head of government is usually from the political party with the majority in parliament; so he represents his own party and implements its particular policies and programmes; whereas the head of state does not belong to a political party, so he does not represent a particular faction nor a defined party nor take its side; rather he represents the whole people, and hence he undertakes to supervise the government and urge it to implement the plans and policies aimed at taking account of the whole people impartially, away from political affiliation, and offers it advice and counsel if he sees a need for it. If the ruling party's government falls, he directs the invitation to form the government to the party that follows it in terms of seats in parliament. To this the functions of the head of state are limited.

Although the system of government existing in the United Kingdom is the constitutional monarchy headed by the king or queen, it possesses no actual authority except offering advice and counsel to the government that the policies it wants to implement are not, for example, in the interest of the people and the state. The saying of Queen Victoria became famous in this regard, addressing the prime minister: "Go ahead with what seems right to you; I will sign it even against my will — except that I want to alert you that this decision is not right."

The system of this monarchy in Britain is based on inheritance, not election. Some may have criticized this system on the grounds that it is unnecessary after authority has been transferred entirely to parliament. But [p. 125] it is the habit of the English not to touch the existence of their organizations and their ancient circles as long as they do not form an obstacle in the way of their progress. (From this we see Europe almost devoid of towering buildings in the manner of the American style.) So just as they left the "Big Ben" clock as it was, since it does not stand in the way of their progress, likewise they left the queen and the monarchy as they were; for it has never happened within three centuries that the queen refused to sign one of the decisions of parliament, in keeping with the prevailing custom among them — otherwise there is no clause in their constitution obliging the queen to it and compelling her to it. So since they were safe from the queen's opposition and her lack of interference in their affairs, they regarded it as not harmful and kept its system as it was. Hence the monarchical system does not harm them in anything except the meagre percentage (1%) of the budget the queen costs them; but they do not regard it as anything in comparison with the opportunities to benefit from the wisdom and counsel that the queen offers them, by virtue of her experience and her being adorned with the experiences she has acquired after long occupation of her office and exercise of its functions. From this they revere the queen and regard her as their elder who strokes their heads with the hand of affection and tenderness.

It is curious to mention that the monarchy, although deprived of any authority in rule and the system, yet all the matters concluded in the kingdom and the decisions taken in it are taken only in the name of the queen and on behalf of her government. So every law that is legislated and implemented in the kingdom must be legislated and implemented in the name of "the British Crown" (which is a name

for the aforementioned monarchical system). The queen used in the past to undertake herself the signing of the law so that it became law; but now she has appointed a representative for herself to undertake the task of signing on her behalf, and at the end of every law he signs is written: “This law has been issued by order of the Crown of Britain [the British royal throne].”

This organization enjoys great sanctity among them, to the point that it has become a current proverb that “the king of Britain does not die” — meaning by the king here: the aforementioned monarchical system — just as their saying in this regard has become famous: “The king is dead, long live the king.” The first means the departed king, and the second refers to the monarchical system.

[p. 126] This organization (the British Crown) enjoys many ceremonial entitlements, such as presiding over celebrations and occasions, corresponding with the heads of the states subordinate to the kingdom, and other symbolic, ceremonial matters that have no connection with authority and actual rule.

The British Parliament

The representative authority in Britain consists of two chambers, one called “the House of Commons” (House of Commons) and the other “the House of Lords” (House of Lords). As for the House of Commons, it resembles our National Assembly in Pakistan, whose members are elected on the basis of voting by every citizen who has reached the age of 18 years, and which undertakes to elect the executive head of the kingdom from among its members. Its method is that the queen asks the head of the party with the majority in the representative chamber to undertake the formation of the government; if he obtains the confidence of the majority of the House of Commons he becomes prime minister. Then he appoints for himself ministers of both types: the ordinary minister and the minister who is also a member of the council of ministers. So he appoints 70 ministers, and the council of ministers is formed from 20 or 25 of them. The council of ministers is what determines government policy in general and takes most government decisions, and its members are like the right arm of the prime minister in running the wheel of government and managing its affairs, in addition to the administration of the government departments whose ministries have been entrusted to them. From this each of them has the right to give his opinion on any matter of government affairs, whether inside the framework of his ministry or outside it.

As for the other ministers, they have no share in government decisions; rather their functions and responsibilities are confined to what has been entrusted to them of government departments, and from this they are not allowed to attend the meetings of the council of ministers (unless one of them is sent a special invitation). (This category of ministers is called among us the federal minister.)

When the Speaker of the House of Commons has been elected, he is the one who presides over meetings in the British representative chamber, where the members of the ruling party sit on his right and on his left [p. 127] the members of the opposition. (From this arose the naming of political parties as right and left [the right wing and the left wing]. It happened at the beginning that the parties calling for capitalism were in government, and so they filled the seats on the right of the Speaker of the chamber, while the parties calling for communism were in opposition, and so they sat on his left. So

capitalist parties were named “right-wing parties” even if they were in opposition, and communist parties “left-wing parties” even if they became the government. The term has developed today, so that the name “right-wing party” is applied to the party that calls for the old governmental order, while “left-wing” is applied to the party that opposes the old order and supports change in the prevailing order.)

Legislation in the British system

The House of Commons occupies a high position in legislation and law-making. The order of that is that the government presents a draft law in it, which then passes through three readings:

1. The first reading: in this round the text of the law is read out before the members of the chamber so that they may become acquainted with it, and also so that they may express their general opinions on it.
2. The second reading: after initial approval of the draft is obtained, in the second stage it is referred to committees, which study it professionally, show its aspects of correctness and weakness, and propose the amendments necessary to reform it. Among these committees: the standing committee and the select committee. These committees prepare reports on the draft and present them to the chamber, whose members study it to propose amendment to it in the light of those reports; whatever a member proposes is presented in the chamber for voting, and thus the draft of the bill is ratified — amended or unamended — according to the opinion of the majority of the chamber.
3. The third reading: in this round only the correction of verbal errors in the draft is allowed, and no other amendment is allowed besides that; then the bill is finally decided in this [p. 128] stage (the stage of the third reading). (It should be known that the law, as long as it is under discussion in the representative chamber, is called a bill, and after being decided by the chamber it becomes: the law (Act).)

At any rate, after the bill has passed through those three stages in the House of Commons, it is referred to the House of Lords.

The House of Lords

It is one of the two chambers entrusted with the task of enacting laws in the parliament of Britain, and its system and powers are among the things that arouse wonder and astonishment in the mind of the researcher. For a large number of its members are chosen by inheritance: if a person is made a member of it, this membership extends in his family for long centuries, the successor in it becoming a member in place of the predecessor, and so on generation after generation, like the monarchy established among them on the basis of inheritance. The one who obtains it in the family of the deceased member is the one who deserves his inheritance from the Christian point of view; and since the woman does not inherit anything among the Christians, she cannot obtain this membership on the basis of inheritance.

Part of this chamber consists of nobles whom the queen chooses for this membership, and they are called “Peer” (meaning: the nobles), since the queen among them enjoys the authority to choose members of this chamber whatever their number. Usually those who enjoy this right are men who have distinguished efforts in the fields of business, civil service and the like, and the word (Technocrat) is applied to them. They also especially attract men who are specialists in the field of law, because of the pressing need for them, since this chamber is regarded as equivalent to the final court of appeal as well. These two types of members remain members for life, and proceeding from this concept it is said: “This chamber has an entrance and no exit” — that is, there are ways to enter it, but there is no way to get out of it!

Its original function was to review the laws approved by the House of Commons: if it approved them they were implemented; otherwise they were returned to the House of Commons a second time to review and reconsider them, and it was not possible to implement a law as long as it had not been approved by the House of Lords. In this regard [p. 129] a curious story occurred, namely that the queen sometimes used her powers in choosing the members of this chamber as a weapon to pressure them: if the House of Lords postponed approving a law that she wanted to hasten in implementing, she would threaten them by adding other members equal to them in number, since there was no numerical restriction on her regarding the choice of members. She would say: “If you do not approve this law I will add to the chamber other people equal in number to you, who will undertake to approve this law.”

Accordingly, this is regarded as a strange organization with no parallel in the world, and it is said that a number of the nobles have never attended the meetings of the chamber. It had at first broad powers almost equal to the powers of the House of Commons, but they began to be stripped from it one after another, until the matter came to the shrinking of its powers, which made it a symbolic, ceremonial chamber. At first it was able to postpone a law approved by the House of Commons; but today it has been deprived of that — rather the law is regarded as automatically in force one year after it is put before the House of Lords.

Usually what is criticized about this chamber is that it has become a burden on the state without having any usefulness or benefit, so it ought to be ended and its system dissolved. But the British people still keep it for the sake of benefiting from the experiences of its members and the studies they present in its meetings. For these people find opportunities available for study and reading, then they present the result of their wide reading and the essence of their deep study in the discussions that take place in the meetings of the chamber about some subject. There is no doubt that the studies of this chamber usually distinguish themselves with an excellent scholarly and literary standing.

What is striking in the political system of Britain is that it has no written constitution; rather it follows a set of customs, habits and beliefs. Let us give an example of that with the queen’s signing of a law approved by the House of Commons: there is no clause in the constitution obliging her to it; but the traditions and customs have proceeded thus, so the queen is committed to signing every law approved by the House of Commons. Likewise there is no text in the constitution obliging the queen to ask for the formation of the government [p. 130] from the head of the majority party in the representative chamber; but she commits to that according to the customs and traditions that have proceeded,

continued and been followed in practice. These customs and traditions have taken on a constitutional character, and their standing in the kingdom does not fall short of the standing of any constitution in any state; they are the matters on the basis of which the courts decide.

In sum: Britain has no written constitution like other states, apart from some constitutional laws approved by parliament, such as the Bill of Rights. Since it has no constitution, and on the other hand parliament enjoys extremely wide powers, no law approved by parliament or measure taken by parliament can be challenged. Accordingly, if parliament approved a law that allows the prime minister to detain someone and arrest him without needing to explain its justification, it is not possible to object to this law in court on the argument that it contradicts fundamental rights; rather the judge himself is compelled to rule by it, by virtue of the subjection of the judiciary among them to the laws of parliament. This is entirely the opposite of what is in America, since it allows every citizen to challenge any law he regards as contrary to human rights. But despite that, it has never happened that the British parliament implemented a law the people regarded as a violation of civil rights, and therefore demanded its cancellation on that basis[1] — whereas America has encountered that more than once, as parliament issued a law the people opposed in the Supreme Court on the basis of its contradicting civil rights, and so the court proceeded to cancel and nullify it.

> [1] But this is a story of the past. Today, and specifically after the incident of 11 September 2001, the parliament of Britain issued several laws that allowed the government to arrest and detain a person on the basis of an accusation directed at him concerning terrorism.

The British representative chamber has continued to be dominated by two parties (the Conservative Party and the Labour Party), one of which forms the government while the other forms the main opposition. The opposition between them has continued for a long period: if the Labour Party is in government, the Conservative Party must occupy the seats of the opposition, and conversely, if the Liberal Party [sic: presumably the Conservative Party] were [in government], it would in turn undertake its opposition. But all this [takes place] in the shadow of observing the established traditions and continuing customs [p. 131] and the principles of respect for others and tolerance, such that neither of the two sides touches them with violation however severe the opposition becomes and however many the conflicts. From this, Britain has the right to be regarded as the pioneer of the parliamentary system and the leader of the world in it.

Many states have taken to following the parliamentary system, and it is the system preferred by the political parties among us in Pakistan, which seek to imitate Britain in it — despite its being surrounded by a series of contradictions and inconsistencies. Among them is that it grants the opportunity to form the government to the political party that has obtained the confidence of the majority of members in parliament; and this confidence can be obtained only in one of these two ways: that the party wins the majority of seats in parliament, i.e. a percentage of 51% and above. In such a form this party must form that government. This is the case in which the two powers, legislative and executive, are intertwined, since parliament legislates with this party’s members forming its majority, while the executive power too is made up of some of those same members. When these two powers have intertwined and merged in this way, the result is that parliament endorses the government’s policies and programmes, whatever they may be. For it is parliament that

has the right to hold the ruling party to account and review its policies; but since the ruling party has become the voice that is heard and the word that prevails in parliament by virtue of holding the majority of its seats, it is only natural that parliament should endorse the policies its own party is implementing, and not obstruct it or stand as a barrier in the way of achieving them. Thus there remains no path that can be followed to change government policies and its programmes.

The second form: that none of the political parties obtains the majority of votes or seats that would enable it to form the government, such that no party has been able to obtain 51% of the seats. Then the coalition government is formed, meaning that the dominant party in parliament unites with other political parties or independent members who do not belong to any political party. The attempts at union to form the coalition government sometimes result in astonishing situations, where [p. 132] two parties unite that differ vastly in policies, programmes, visions and orientations, after their failure to obtain the majority of seats; so they have no choice but to unite to form the government. How can they accompany each other when one of them faces east while the other has headed west?! Even if they make peace on mutual support and solidarity between them, this too does not result in great benefit and cannot be sustained for a long period, by virtue of the difference of the policies, programmes and plans they follow. So no sufficient solution can be found in such a case except in one of two forms: either that one of them gives up its policies for the interests of the other, or that it proceeds on the principle of “take some and leave some”, such that each of them gives up some of its demands. Thus, usually, the wheel of the coalition government cannot be run except by sacrificing some principles and giving up some policies and programmes. Proceeding from this, forming the coalition government takes a long time, and after the process of formation it still remains on the verge of falling and dissolving, as a series of conspiracies begins in its wake to dismantle this government and seek to create a gap between the two parties. Take Italy, for example: 300 governments were formed in it in the period between 1954 and our day [sic], and the reason for that is the change in the state of confidence in parliament over the days and limited periods, alongside the failure of political parties to win the majority of seats. Conditions with them deteriorated to the point that a government had hardly been formed before the movement of withdrawal of confidence began to confront it — which is regarded as sufficient to eliminate the prime minister’s government even if it is not based on a serious and acceptable accusation. All it amounted to was that the members’ preference had shifted to another person, so they tabled a motion of no confidence in the prime minister, which ultimately brought down his administration and toppled his government.

But Britain has been able to continue the parliamentary system with all precision and solidity, owing to the factor of awareness and political insight which the British people possessed, which we can appreciate through the fact that Britain has no written constitution; its affairs are run only according to customs and habits, yet there is no conception there of violating those customs and contradicting them!

The presidential system in America

In contrast to the parliamentary system in Britain, America follows the presidential system, which differs in [p. 133] its form, its characteristics and its features greatly from the parliamentary system.

The first difference between the systems of the two states lies in the fact that while the constitution of America is federal, Britain has a unitary one. Second, Britain does not give the principle of separation of powers — which is regarded as one of the most important characteristics of democracy — its due, as we discussed in detail a little earlier: that the two powers, legislative and executive, are intertwined in it to some extent; while America still clings to it tenaciously, since it classified the powers into three powers, each power regarded as entirely independent of the other two powers. The three powers are: the executive power, headed by the head of state; the legislative power, represented by Congress, which consists of two chambers: (1) the House of Representatives and (2) the Senate; and the third power: the judicial power, entirely independent of the first two powers.

The head of state is the head of the executive apparatus, and the legislature or parliament does not elect him; rather he is elected by a system surrounded by much ambiguity and complexity. First, people in each state elect several members forming a body known as the electoral body (Electoral College), which is made up of representatives of each state; the number of members of the electoral body for each state is equal to the number of that state's representatives in Congress. (America is regarded as a federal state comprising fifty-two [sic: fifty] states, so there must be representation of each state in the election of its president, this being one thing; and because the American president actually enjoys extremely important powers, which naturally requires that his election not be by the opinion of every Tom, Dick and Harry from the rabble and riff-raff of the people, but that he be elected by men with qualifications and virtuous competences from each state — from this source the idea of indirect election in appointing the president of America emerged.)

It is stipulated for whoever stands for the office of the American presidency that he be an American citizen, aged 35 years, who has lived in America for at least 14 years. When [p. 134] such a man is elected as head of state, all executive responsibilities fall on his shoulders by virtue of his being head of the executive apparatus, and hence he enjoys wide powers. He appoints the council of ministers — in contrast to what passed in the British system, that the party winning the majority of seats forms the government and appoints the prime minister, who appoints the council of ministers from among the members of parliament. The presidential system does not require that a member of the council of ministers be a member of Congress as well; rather the president appoints for his council of ministers whom he wishes, whether a member of Congress or not. That person then becomes director of the government department whose ministry has been entrusted to him. These are not called ministers among them; they only call them secretaries: among them the secretary of the interior, another of foreign affairs, another of the treasury and transport and others. The secretaries of these government departments in America are equivalent to ministers in other states, and the collection of these is called "the council of ministers" [the Cabinet], without its having those powers it enjoys in the parliamentary system, as the ruling body that runs most government policies and implements its laws by consultation among its members. Rather its standing in the presidential system does not go beyond being equivalent to a consultative council for the president, while the president has the right to exercise the right of veto (Veto power) over its decisions, and to take the decision by his opinion alone — meaning that the council of ministers, if it unanimously agreed on an executive matter contrary to the opinion of the president, the president may reject their opinion and rule by his opinion alone. It is thus established that the president has the supreme authority in the executive affairs of the

state, and he is the one who appoints the leaders and senior officials in the civil and military fields; but in enacting laws and policies he needs to present them to Congress and obtain its ratification of them.

The American president is regarded as head of both the state and the executive apparatus, in contrast to the parliamentary system concerned with distinguishing between the presidency of the state — which is occupied by the head of state — and the presidency of the government — which is occupied by the prime minister.

The manner of removing the president and the prime minister also differs in the two systems, parliamentary and presidential. [p. 135] In the parliamentary system the prime minister is removed if the parliament agrees by majority on a decision of withdrawal of confidence from him. Indeed Britain has gone further: if the prime minister proposes a bill to the representative chamber and did not succeed in obtaining its agreement to it, but the majority of the chamber rejected it, his failure is equivalent among them to the withdrawal of the members' confidence in him. Hence it is incumbent on him from the moral point of view to resign from his office; if he does, [well and good]; otherwise he and his council of ministers are regarded following that as removed and stripped of the presidency, even if there was no coordinated movement for withdrawal of confidence from him. So it is not necessary for removing him from his office that he have committed a crime or engaged in treason or done anything else; rather merely the majority of members' showing withdrawal of confidence from him, explicitly or implicitly, suffices to topple his system and depose him from the seat of government. The presidential system, by contrast, never rules the president removed merely by Congress deciding to withdraw confidence from him. (For his election did not take place on the basis of the opinion of Congress, but by the direct vote of the people, according to the detail just given.) Rather, the removal of the president among them has a special method, namely that if the president becomes exposed to accusation of negligence, treason or violation of the constitution and the like, then in such a case the constitution allows a movement of impeachment (impeachment) to be undertaken against him. In detail: the majority of the votes of Congress, if they issue a decision that his trial be conducted by the Senate, the Senate undertakes it in its capacity as the supreme court (and in the presence of the Chief Justice of the Supreme Court of the United States as its president). The president is informed of the charges directed at him, and given the opportunity to explain his position on them; and after hearing his position and the testimonies against him, the Senate decides the case: if two thirds of the members of the Senate vote for his conviction, it rules that he be removed from his office; otherwise it declares that the charges directed at him are not correct, and he remains president of the state. One case of impeachment of the president has occurred throughout America's history, and it too did not result in the removal of the president, on the grounds that the charges against him were not correct. [Tr.: In fact two presidents had been impeached and acquitted by the time of writing: Andrew Johnson (1868) and Bill Clinton (1999).] There are decisions to which the Senate agreed against the vice-president [sic: no vice-president has been removed by impeachment] and judges, so they were removed following that from their positions; as for the head of state, it has never happened that he was removed from his office as a result of charges directed at him. Nixon almost faced this ugly fate had he not submitted his resignation himself.

[p. 136] The upshot of what we have presented is that the administration of the government, the management of foreign policies, and the declaration of war — all these responsibilities are entrusted to the American president, and from this he is regarded as possessing extreme power and might; yet in all his policies and laws he is responsible before Congress, in the sense that he needs, in their implementation, their adoption by Congress.

The legislative power in America (called Congress) is divided into two chambers:

(1) The lower chamber: it is called the House of Representatives, which consists of 435 members, and the representation of these members is subject to the number of inhabitants in each state; they are elected for a period of two years only, and it has the same powers that the lower representative chamber usually has, of imposing taxes and fees and enacting the laws relating to them.

(2) The upper chamber: it is the Senate, which consists of one hundred members. Each state has two members representing it regardless of the size of the state and the number of its inhabitants. The period of service of each member is six years, and they are elected on the basis of voting by every adult citizen. The American system differs greatly from the British system regarding the upper chamber, since the British House of Lords has come to be an organization that no longer has a large role in government or state policies; rather it has become “a discussion forum”, to the extent of what some have said about it. The American Senate, by contrast, enjoys wide powers not matched by any other senate in all the states of the world. Usually its members are elected on the basis of their qualifications and abilities, and the general public gives this aspect in electing them more attention than in electing the members of the House of Representatives. In enacting laws it has powers equal to the powers of the lower chamber, except legislation in imposing taxes and arranging the budget, as in other states of the world, where it is established among them that this power is exclusive to the House of Representatives, not the Senate. Many states see no need for presenting the budget to the upper chamber and obtaining its adoption. On the other hand, it is the only body that ratifies the appointment of the ministers and heads of departments whom the head of state recommends for occupying federal leadership positions, civil or military; and [p. 137] no one is officially appointed except after the ratification of the Senate. It is also the only body that approves or rejects all treaties concluded by the United States of America.

There is another important aspect in the American system, namely that while Britain regards parliament as the highest official authority — in the sense that the decisions parliament has agreed to are not subject to any other authority, and no court can review, cancel or nullify that law whatever it may be — in America the courts are regarded as the body that has the authority to consider any legislative works and executive orders and declare their conformity or contradiction with the constitution. This is what is called judicial review; it is an additional right granted to every citizen to undertake objection to any law issued by Congress in the Supreme Court.

There is another feature by which the American system is distinguished from its British counterpart, and this feature concerns political parties. As you have noticed, political parties have a large role and effective activities in the administration of government in Britain, since the head of the majority party undertakes the formation of the government; whereas in America the president is elected directly, and political parties have no interference in forming the government. So political parties do not have a

large role; rather their task is confined to registering candidates and carrying out mass propaganda campaigns for elections. It is not necessary that the helm of government be steered by the party with the majority in Congress; rather it is possible — and has actually happened — that the president belongs to one political party while the majority of members in Congress are from another party. The president is also not a member of Congress, nor is he obliged to attend its meetings; consultations between them take place by correspondence. But nevertheless, in such a critical situation the divisions and conflicts between the president belonging to a political party other than the party that has obtained the majority in Congress do not rage to a degree that obstructs the course of government or stands as a barrier before its activities.

The reason for that is that the method of the members of Congress and their manner differ entirely from the members of parliament in the parliamentary system. For the member of parliament in the parliamentary system is completely compelled [p. 138] to submit to the policies of his party and its programmes, without deviating from it a hand-span, whether in expressing opinion or casting his vote; whereas the member in Congress can express what is in his conscience and express his opinion even if it departs from the party to which he belongs and its policies. Rather, the representatives link their connection with their electoral districts more than with their political parties; from this they take account of the interests of their districts more than the interests of their parties, and are concerned with the policies they see as in the interest of the state in general, whoever their proposer and presenter may be. From this it is no longer necessary that if the president is not from the party dominant in Congress he will face problems and obstacles, just as there is no conception of opposition like what is prevalent in the parliamentary system.

The parliamentary system in France

The third system that I would like to undertake a passing look at to introduce is the parliamentary system of France. It has passed before us that the credit for strengthening democratic principles and consolidating its pillars in Europe goes only to France and its revolution arising from the source of the ideas of its three famous philosophers, which first produced the birth of the idea of liberal democracy, and second its consolidation and influence in the other European states. But despite its role, France continued to suffer constitutional conflict for a long period, which resulted in the laying down of many constitutions over short periods. The reason for that was that at first they disputed over the type of constitution — whether it should be parliamentary or presidential — until their choice settled on the parliamentary constitution like that in force in Britain. This account goes back to before 1958 CE: all executive authority was in the hands of the prime minister, while the head of state's presidency was only symbolic and ceremonial, like the queen in Britain, and lacked authority and powers to the extent that he no longer could use his powers in which he was regarded as independent without obtaining the attesting signature of the prime minister or one of the ministers. From this it became famous in describing him that he needed attestation in everything except the request for his resignation — meaning that he could not execute anything without [p. 139] its being attested by the signature of the prime minister or one of the ministers, except his resignation: it took effect merely by the executive head's acceptance of it, even if not accompanied by an attesting signature.[1] Just as

another anecdote became famous: that the queen in Britain, even if she had no authority, at least enjoys royalty; and the president of America enjoys power without royalty; while the president of France is deprived of both: he neither enjoys wide authority like his American counterpart nor enjoys the privileges of monarchy as the queen in Britain has.

> [1] It is the system that Zulfiqar Ali Bhutto followed in Pakistan following his assumption of the reins of power there in 1973; the president at the time was Chaudhry Fazal Elahi.

At any rate, this parliamentary system prevailed in France for a long period. But it is known that the parliamentary system is built on the distinction between the presidency of the state and the presidency of the government; from this it can be applied in a good manner only if the powers and authorities of both presidents are balanced. If one of them possesses the authorities and uses the powers on a wide scale while the other is deprived of them except for a minimum, that results only in bitter rivalries and continuing rifts between the two offices. The situation in France was like that, until de Gaulle took up the reins of the presidency of the state, and saw that the source of anarchy and constitutional collapse in the state was nothing but the lack of balance between the powers of the two presidents, since the presidency of the state had remained a merely ceremonial post, and the president had only to see what the prime minister implemented of policies without criticizing or opposing them. So the idea of laying down a new constitution was born in his mind, and he actually undertook it in 1958, striving with his effort to create balance between the two powers. Instead of presenting his project in the National Assembly, he put it before the people for a general referendum, and the results showed that it enjoyed wide popular support. It has remained the constitution in force in the state from 1958 until this day of ours, and is called the constitution of balance and equilibrium (“checks and balances”).

He included in it something of the merits of both systems, presidential and parliamentary: in its origin and spirit it is a parliamentary constitution, emphasizing that the government is formed by the political party with the majority in [p. 140] parliament; but it did not leave the president neglected and abandoned either; rather it granted him something of powers and authorities too. First, it established concerning him that he is regarded as head of the state and of the states subordinate to it (which are the African states that France occupied, and Algeria and many territories were of this type; France later withdrew from them, but some of them are still under its control and occupation, and hence they are subject to its system and its constitution), and the president of the Republic is elected by the members of parliament. [Tr.: Under the 1958 text the president was chosen by an electoral college of parliamentarians and local councillors; since 1962 he has been elected by direct popular vote.] Among the powers the new constitution granted him is that he presides over the meetings of the council of ministers. From all this he came to have interference and influence in running the executive apparatus as well.

On the other hand, if he saw in a law issued by parliament a defect or deficiency, and then felt the need to amend it, he can send it again to parliament for review, just as he can present it to the Constitutional Council to undertake examining the law and declare the extent of its conformity or non-conformity with the spirit of the constitution.

The president has also been delegated authority in appointing the commanders of the military forces and some heads of civil government departments, without his needing in that the counsel of the

executive head; and he was also granted the right to dissolve the National Assembly if he saw it deviating from the constitution — and if he consulted the executive head in that, that is his right, but such consultation is not obligatory for him. He was also granted other supreme powers: if the Republic is struck by a state of emergency and exposed to danger to its security and stability, he may take whatever steps to resist that situation he sees as appropriate and sufficient to guarantee the peace of the Republic.

These, then, are the differences between the systems of Britain and France, and between the French presidential system and its counterpart in other states, embodied in delegating many executive matters to the president of the Republic. As for other matters relating to politics and government, the system of France in them resembles the systems of other states: the legislature consists of two chambers, and between the two chambers are the same ties and connections as between them in other states.

The Swiss system of government

[p. 141] The fourth state whose system of government I wanted to acquaint you with is Switzerland, whose system of government differs from the systems of all states of the world entirely. Researchers and authors in political science have declared that democracy in all its meanings and import is in force only in Switzerland. It is a state small in area, perhaps not exceeding the area of the province of Sindh in Pakistan, and its inhabitants number no more than five to six million souls. This small state is divided administratively into 22 [Tr.: 26 today] units, each called a canton, and each canton enjoys self-government, with its own local assembly and special council of ministers.

The inhabitants of this small state belong to three nations (*aqwām*): German (71%), French (21%) and Italian (6%). As for religion, 57% belong to the Roman Catholic Church, 41% to the Protestant Church, and 0.5% are Jews. From this its inhabitants differ from one another in every way in terms of ethnicities, religions and languages; but they did not divide the cantons on the basis of language, ethnicity or religion; rather they divided the state into 22 administrative parts, and from their collection they formed a federal republic in which political authorities are divided between the central government and the governments of the cantons (the states). It is also built on the basis of clear distinction among the three powers: legislative, executive and judicial. As for the executive power, it is run by a federal council of ministers consisting of seven members whom the legislature elects for a period of four years. They are a substitute for the head of the single executive body, and this council elects from among its members a president for one year only, to preside over its meetings throughout the year; but beyond that his authority is equal to the authority of the other members. Usually in electing them an attempt is made, as far as possible, that they be from the various cantons and belong to the different ethnicities and religions. These seven are the ones who run the wheel of the executive apparatus for the whole Republic; but since it is divided into 22 states, each of which enjoys broad self-government, [p. 142] federal affairs are few among them and the burdens on the federal council are light. To observe the principle of separation of powers, no sooner are these seven elected as members of the federal council than they are deprived of their seats in the National Assembly; but they are compelled to obtain the assembly’s ratification of their policies and plans, so they attend its meetings without having in them the right to vote.

Women too were granted the right to vote in elections some years ago; before that, women did not enjoy this right.

Among the most important features of the Swiss system: the popular referendum on issuing many laws and ratifying government policies and programmes. Accordingly referendums are numerous among them, and there are matters on which the government must undertake a popular referendum before concluding them, such as amending the constitution for example, while in some matters it is optional and not obligatory.

Likewise, if one hundred thousand persons propose holding a referendum on the constitution, the government must then undertake it.

This is the situation that the constitution of the Republic imposes; as for external reality, the people often does not know its president, since he is elected for one year and followed in the next year by another; and whoever has tasted the sweetness of this presidency usually does not wish to ascend its seat another time, because of the grave responsibilities it involves, alongside the paltry financial and material benefits he receives in return for this service.

Usually this president does not enjoy the pomp and might that the presidents and members of government in other states have, to the extent that the minister is not allowed to put the flag of his political party on his house or his car, nor do ceremonial rites accompany his reception. One of the citizens told me this during a visit I made to it a few months ago: that they have no conception that the minister is accompanied by his servants, his entourage of guards and others; he lives only as one of the subjects. From this people were seized with astonishment and bewilderment when they saw Yasser Arafat and with him

[p. 143] a company of the army!

In truth, this is among the teachings of Islam and its guidance to the ruler: that he should mingle with the subjects and live as one of them, so that his might and pomp do not cause harm, injury and discomfort to the subjects. This is what these people have followed while they are unbelievers, whereas Muslim rulers have cast it behind their backs!

Democracy weighed in the balance

We have presented earlier a brief introduction to the various political schools and many of the political systems prevailing in this age of ours. You noticed, at the end of the discussion of democracy, its basic ideas, its philosophy, the institutions arising from it, and the kinds of governments that appeared and took shape as a result of activating it and putting it into effect.

Here we single out — from among those systems — secular democracy for commentary only, since it has become — after the other political systems failed in practical reality and no longer remain in force — the ideal modern political point of view and the best system of government and authority, or so it is said and held in the world today — to the point that it has been said: “It is impossible for there to occur any system of government better than it.” A book has recently been issued by a senior official of the American State Department entitled “The End of the History and the Last Man” [Tr.: Francis Fukuyama, *The End of History and the Last Man*], whose summary is that history — having passed

through the stages of development and progress — has reached its end; and that after the discovery of secular democracy first, and the production of liberal democracy second, no better system than them can exist or be born.

This is nothing but like Karl Marx's prophecy of the eternity of socialism and that it is the final developed system for the world, which would not be followed by a better or more ideal system.

The same expression has come to be used for democracy and capitalism today, as they — especially after the fall of the Soviet Union in Russia — have begun to claim that democracy and capitalism in the fields of politics and economics have actually achieved a brilliant victory, such that it has become impossible for [p. 144] any other system to rival them.

So let us study this system with precision and close attention, to discover whether there is anything of solidity and reasonableness in it, or whether it is merely a false illusion and a counterfeit reality?

There is no doubt that democracy has contributed considerably to spreading and activating many principles that strengthened the freedom of the individual and his independence to some extent; it has also contributed not a little to rescuing humanity from the persecutions and afflictions it suffered at the hands of individual governments and despotic authorities that prevailed before it in the world. We also grant here that it gave the individual human being freedom of opinion and thought, after dictators had stripped him of it, and brought him out of the state of stagnation and constriction he had lived in under those tyrannical, despotic authorities.

But despite all that — if we examine closely its intellectual structure and its theoretical foundations, we find that they are not built on serious, sober theories; rather, they are nothing but the product of a reaction to the man-made systems that ruled humanity unjustly, relying on what they had invented of erroneous ideas and values.

It is known that the West was ruled by dictatorial governments in most of its past ages, as was explained in detail. Whatever of them was formed in the name of religion or on religious bases was subject to theocracy, with all the evils that beset it, which I explained earlier. As an example of that, take Roman theocracy: it was bare of any spiritual and religious foundation; rather, nothing was implemented in it except the personal opinions of the Pope as religious rulings, since they believed him immune from error and free of mistakes — which naturally caused the destruction of the rights of the people and unfairness to them. So the reaction to that was that the advocates of democracy threw the yoke of religion off their necks entirely, and founded it on the principle of delegating absolute sovereignty and supreme authority to the people. This becomes clear from the fact that democracy is a translation of the English word (Democracy), meaning "rule of the people". From here the principle of the authority of the people emerged. Then, when they granted sovereignty to the people and believed that there was no [p. 145] authority above its authority, it was natural that they should regard it as free in its affairs and matters, not subject to any heavenly law. Hence they resorted to tying and linking this principle to secularism, so democracy and secularism became inseparable, such that liberal democracy cannot be applied without secularism. In sum, the meaning of democracy is that religion has no connection with the affairs of the state; rather it is a personal matter of the individual

relating to his individual life, while the affairs of authority are to be conducted without submission to religion and its teachings.

The first thing taken against this idea is that rule, for it to be conceived, needs both its ends: the ruler and the ruled together. When it regarded the whole people as ruler, and it is granted that the ruler requires the existence of a ruled under him, here a question arises in the mind of every rational person: what then remains to play the role of the ruled and occupy its function? The land of the state and its buildings, its inanimate things and the plants that grow in it?! Delegating rule to the whole people results in nothing but the pervasive anarchy and absence of government with which running the state's system becomes impossible; for the existence of two rulers in one region leads to corruption and ruin — so how if the whole people were rulers?!

The saying has become famous in defining democracy: "Government of the people by the people for the people", i.e. it is the rule of the people by the people and for the people. This indicates that the people itself is ruler and ruled at the same time — which is nothing but a sophistry that cannot be valid on any standard; for it is self-evidently impossible for the one person to be ruler and ruled and an instrument of delegating rule at one and the same time. So with this detail the whole foundation of democracy — I mean the principle of rule for the people — has been undermined.

The democrats have answered it that the people is ruler in the sense that at the time of voting it voluntarily elects for itself a representative from among the candidates; the representatives collectively become rulers, while the rest of the people remains ruled by them.

But we say: first, it is not a true representation, as we shall clarify shortly, God willing. Second, if we look at it precisely we find it to be the rule of a small group of the people, not its whole nor its majority; for the choice of the people and its sovereignty are confined to the period [p. 146] of elections only; then sovereignty and authority all pass to the representatives and members of parliament, and the majority of the people becomes in their hands entirely stripped of choice. So it is not correct, then, to regard it as the sovereignty of the majority of the people.

Further, sovereignty according to the scholars of politics is that a person should have absolute authority and power, disposing by it in the affairs of the state and in determining right and obligation as he wishes, such that he is not subject to anyone besides him and there is no other authority above it. In view of their definition of it, then, how can the sovereignty of the people be straight, while the authority of the representatives and the members of the legislature is above it?!

Second, after delegating complete authority to the people, another question arises in the mind of the researcher himself: what is democratic government aiming at, or what is the hoped-for purpose behind establishing democratic government? The scholars of politics are bewildered in answering this question, and more than one of them has tried his hand at defining and specifying the aim of democracy; but all of them were unable to find a satisfying, convincing answer to this question. Rather, they offered nothing that satisfies. One said: "Government itself is the aim sought from democracy." This is merely an opinion and pure theory, which we do not see as worthy of comment. Another said: "The ambition of democracy is to satisfy the majority of the people, and to provide

comfort and spread ease in it; for the people does not issue a ruling except if it sees it as harmonious and consistent with what it desires."

But we say: satisfaction and comfort are entirely relative matters. What satisfies some people may be considered, in relation to others, disliked and not preferred; and among things are those that ease some people and gladden them while at the same time causing the disturbance and anxiety of others. So what rule, then, is applied in preferring the satisfaction of some and giving precedence to their comfort over the satisfaction and comfort of others?

The democrats have no convincing answer to this question except to resort to making the rule of the majority the arbiter, saying that its satisfaction is given precedence over the satisfaction of others.

But we say: it contradicts the requirement of democracy itself, since the whole people has not obtained what it desires; and second, it entails that a vice be included among the aims [p. 147] of democracy if the majority of the people is pleased with it. That alone is enough to show its blindness and the ugliness of its error.

The last idea in this regard — and it is the most accepted in modern democratic circles — is that it aims at protecting the rights of the people.

This idea is refuted and falsified by the fact that there is no regulating criterion defining the rights of the people that they aim to protect under democracy. Nor do they have any refuge in that either except the principle of regarding the rule of the majority of the people — to which they have often resorted, yet it did not avail them and benefited them in nothing, little or much. So they said: "What that majority sees as among the rights of the people, democracy sets itself to protect; and what it does not, it does not."

We say here too what we said about the previous ideas: that delegating the definition of rights to the majority of the people results only in their becoming a target with which the whims of that majority play, without there being a complete definition and full conception of the rights that democracy sets itself to protect. Often the people today sees something as a right, so it strives to obtain it or defend it; then when tomorrow comes, that same majority soon rejects it and refuses to count it among the rights worth striving for.

At any rate, you will not find among its alleged aims and declared goals any effort to spread good and deter evil, and spread virtues and remove vices from human circles; likewise you will not find among them a sound criterion nor a balanced measure for estimating good and evil. Rather, they now assert — in a way that exceeds all bounds — that good and evil are relative matters, so it is possible — in view of this theory — for the goodness and evil of things to differ with the difference of time, place and environment. So a matter that was once all evil has become, by virtue of this arbitrary philosophy, possible to regard today as all good, and likewise conversely.

Proceeding from this, we see the West sliding into the torrents of indecency and sexual perversion, a pervasive slide the like of which it did not witness under the individual governments and Christian theocracy. The situation has deteriorated to the point that there remains no vice of the most evil, nor [p. 148] act of the most hideous, but it has been granted a certificate of legitimacy to be practised under democracy, or at least voices have been raised demanding it be permitted legislatively. All of

that because democracy has thrown the yoke of religion off its neck entirely, and rejected following moral values categorically, and the whim of the people has become the prominent factor and the sole element among them in legislation and law-making.

The most hideous example of that is what the British House of Commons issued as a decision permitting sexual perversion [homosexuality] legislatively under thunderous applause, which was followed by some Western states recognizing same-sex marriage as legitimate and lawful.

The issuing of the aforementioned decision by the British House of Commons has an astonishing and bewildering story, whose summary is that at the beginning a disagreement occurred among the members of parliament concerning this decision, since not all of them were in agreement with this barbaric decision. To settle the disagreement between the two parties, a committee was formed named the "Wolfendern Committee" [sic: Wolfenden Committee], whose task was to learn the direction of public opinion, and especially of the thinkers and experts among them, and then to present to the House a report on the basis of which a proposal would be adopted by the House in this regard. The committee prepared a report containing clear lessons for these people deluded by democracy; the gist of what came in it: "Although sexual perversion is an evil and a vice among vices, we find ourselves in agreement with issuing this decision, since we have not founded our system on moral principles and values; rather we have granted the people all freedom in what it adopts for itself by way of legislation and law-making. So the framework of both legislation and morality and their domains have become entirely different, since morality is a personal matter, while legislation is a social phenomenon that goes along with public opinion regardless of moral values. So long as no attempt is made to equate sin with crime, our hands are tied in the face of legislation that follows public opinion, whatever it may be."

In the light of this committee's report, the House of Commons of Britain took a decision of the legitimacy of sexual perversion; then the United States followed in its footsteps. Following that, associations were formed [p. 149] dedicated to calling for this hideous vice and spreading this idea among the masses openly before the eyes of witnesses. The men among them are called (Gay), meaning fun and recklessness, i.e. that they are cheerful in this hobby of theirs; and the women among them are called (Lesbian), meaning: a woman engaged in sapphism.

There is another association by the name of "Swap Union", meaning linguistically: exchange, by which is meant wife-swapping; it has special clubs. It raises its voice against the law that prohibits wives from having a sexual relationship with a man other than her husband, since it was legislatively forbidden because it causes the destruction of the husband's right.

As a result of all this, most of the inhabitants of Europe and the United States — or at least a large number of them — have become of unknown lineage, as is clear from statistics published by several states, while other states have not published their statistics. A few days ago the famous newspaper "Time" published an article in which the writer expressed his anxiety about this outrageous phenomenon — but not from a moral or religious perspective, but from the perspective that it causes economic problems, in that children of unknown lineage do not find anyone to provide for them and bear their expenses.

Likewise women have begun to raise their voices against the law prohibiting abortion, and have begun demanding its legitimacy. It has actually been permitted in some states, and in others these calls find a suitable and paved atmosphere from which it is known that it will soon be permitted legally.

Previously indecency was forbidden by law; today it has smashed all restrictions and has become prevalent and widespread such that there is no barrier preventing the raging torrent of films and obscene images that are broadcast throughout the world, including the Islamic states within it. How could that be forbidden legislatively, when by it the goal of democracy, which lies in pleasing the people and feeding its whims, is achieved?!

In sum: there is no evil among evils but democracy has moved to legitimize it under the sovereignty and dominion of the people, which has led to the destruction of the family system and the uprooting of the seeds of family ties of marriage and childbirth entirely.

[p. 150] Among what makes one appreciate how far the situation has worsened in their overstepping of human limits: when they were afflicted with the torment of AIDS — whose main cause is regarded as illegitimate sexual contact, of sodomy and fornication, according to what specialist doctors are agreed on — they refused to take heed and desist from their errors and follow the path of chastity. Rather they persisted in remaining on their conduct, and began practising sexual relations under more caution and prevention, and undertook preparing educational courses for practising sex and offering its practical education through television and through curricula in all universities. To prevent infection with AIDS, they placed in the universities and colleges populated by unmarried people of both sexes vending machines that dispense condoms to whoever of them wishes to practise sex. While I speak to you of this I find a motive of modesty and distaste holding me back from it; but despite that I have related it before you to remove the veil from the face of the truth. So thus they tried to treat the disease from the point where they were afflicted, and strove to prevent it by directly engaging in the causes of infection with it — how far, how far is that for them!

What astonishes and bewilders us is that America still suffers from the occurrence of cases of rape of women in numbers exceeding all other states, despite opportunities to practise sex with the woman’s consent being available with all freedom and without any obstacle confronting it in the way of achieving it; and prostitution is prevalent to the point that it has become a commercial profession with its own companies and special clubs. Yet nevertheless the rise in the rate of cases of forced fornication in this state and this permissive society is an astonishing matter for which unaided human reason can find no explanation.

Add to that that polygamy has become among them a legal crime whose perpetrator is thrown in prison, while the practice of illegitimate sexual contact is permissible without limit or count.

All that we have mentioned, of which the brow of humanity sweats with shame, has prevailed among its children only by virtue of this democracy built on the basis of the principle of rule for the people. Enough is this as a commentary on democracy and a critique of its principles, and a portrayal of what it has inflicted — and still inflicts — on humanity through [p. 151] the slogans of the falsified freedom of the individual and the claims of its counterfeit independence.

This is one aspect of the face of democracy from which we have removed the veil before you. There is another aspect we would like to clarify here to complete the discussion, namely that the claims of the sovereignty of the people and its authority are nothing but a deception and a falsehood by which it is intended to convince the people that absolute authority in its affairs belongs to it alone. The truth is far from that by much; for the people's participation in managing the affairs of authority is nothing but a falsified illusion and a camouflaged fancy. As for reality, the poor people in many countries remains ignorant entirely of what the government does, let alone having a share in it!

That is because the advocates of democracy and its supporters have agreed that the democratic system bears fruit and is productive only in a country the majority of whose people are adorned with learning and culture on the one hand, and bear awareness and political insight on the other, which qualify them to elect the best representatives and choose the ideal system at the time of voting and casting ballots. As for the people that lacks these qualifications, its condition does not go beyond the condition of a leaf in the desert, with which its political leaders play with their falsified slogans to carry them off to whatever direction they wish. Proceeding from this, it has become established that the democratic system in states with a high rate of learning and culture is much stronger and more secure than in states with a low rate in both. Consider Pakistan as an example of this: the prevailing system here is the parliamentary system, whose spirit and import is that political parties first be formed on the basis of their policies and programmes, then the people undertakes to elect a party whose policies it sees as most helpful to its requirements and needs, so that the right to authority and government passes to the hands of the group with the majority in balloting and voting. This is the true picture of the parliamentary system. Since the rate of learning in Pakistan does not rise above 22 per cent, and most of its population lives in the countryside and villages far from learning and civilization, charging these ignorant villagers with studying the policies of both the Muslim League and the Pakistan Peoples Party, then comparing between them and choosing the better, is nothing but stupidity and foolishness. Hence the claims of the sovereignty of the people in such a case are nothing but an illusion and a mirage.

[p. 152] I draw your attention to another important point on the subject, namely that a person does not arrive at sound choices in the democratic system unless he has a political taste with which he knows which of the parties will be more useful and of more benefit than others. Usually no one is adorned with taste and political insight except a small band of people only. As far as this small band is concerned, we may grant that they exercise their right to vote with full insight and with due regard for all the requirements and demands of the people and the state. As for the rest of the people, either it has no desire to engage in political activities, including using its right to vote and ballot, or it is bare of the political insight that would enable it to choose the most useful and most beneficial party for it. This becomes clear from the fact that if we take the rate of voters casting ballots in any state, we would find that more than 45% of the people do not use their right to vote. I relate before you the example of America, the state whose rate of learning and civilization almost reaches 100%, yet the situation in it does not differ much from others, as is clear from a book arranged with the participation of four American authors and printed in the state of "New Jersey" by the name of "Introduction to Political Science", in which they spoke in the light of statistics about the rate of the people's desire for political activities and social works; its summary:

- Percentage of voters in presidential elections: 72% (which is the most active field)
- Percentage of voters in elections for local government bodies: 47%
- Percentage of those participating in social institutions, whatever they may be — political, or pressure groups and interest groups: 32%
- Percentage of those participating in social works such as serving people, for example: 30%
- Percentage of those who campaigned in elections: 26%
- Percentage of those who contacted government departments concerning a social issue, such as street repair or the water-drainage network, for example: 20%
- Percentage of those who took part in any political meeting at least once in three years: 19%

[p. 153] - Percentage of those who spent their money on elections, whatever they may be: 13% - Percentage of those with organized membership in the political parties in the state: 8%

(*Introduction to Political Science*: John K. Gwmbe etc. [sic], New Jersey, 1987, p. 102)

From this we can know the extent of the people's desire for political activities in a cultured state like America — which supports the position we put forward earlier towards democracy: that it does not represent the government of the people or of its majority, and that the claim of delegating authority to the people is nothing but an imaginary claim contradicted by the observed external reality and the clear, established facts whose explanation we summarized in what has passed.

Nationalism

Among the various political theories that have found currency in the present age is nationalism (*al-qawmiyya*), which means: that a union and solidarity arise on the basis of sharing in race, nationality and language. As for the solidarity that the religious bond works to create, they do not regard it as nationalism at all; rather they call it reaction and backwardness, and do not grant it any connection with the theories of the new age and the requirements of the present era.

The fact is that nationalism and patriotism (*al-qawmiyya wa-l-waṭaniyya*) will never be fit to become a criterion for solidarity and unity. For if we regarded them as the two criteria of union and division, that would lead to the tearing apart of humanity and its splintering along the lines of every city — indeed of every neighbourhood as well. Let us take as an example of that the state of Pakistan. If we said that belonging to Pakistan is the point of union and solidarity that makes one nation (*qawman wāḥidan*), which has the right to establish an independent state on the basis of this unity, then the question that poses itself in the mind of the researcher is: the Sindhis are united by the bond of belonging to Sindh — and it is a province of Pakistan — and likewise the people of the Punjab — the most populous of the provinces of Pakistan — and the Pashtuns are united and joined together by the bond of belonging to their provinces. So do they have the right to form a nationalism and patriotism on the basis of this belonging, and then to demand the establishment of [p. 154] independent states along the lines of these units?! Perhaps two cities of one province — like Karachi and Hyderabad in Sindh, for example — differ in culture and social life; so what limit in the definition of nationalism

prevents regarding the people of Karachi as one nation united by the bond of belonging to this city and joined together by the agreement of culture and traditions?! Then, what is it that prevents them from demanding the establishment of an independent state on the basis of this patriotism and along the lines of that nationalism?! Likewise the people of Hyderabad. Indeed, cultures, languages, traditions and the principles of social life may differ between neighbourhoods and the lanes of one city. So why then are the inhabitants of this neighbourhood not regarded as an independent nation, and the dwellers of that one as another nation, on the basis of belonging to neighbourhoods and the difference that exists in their dialects, their cultures and the principles of their social life — and why is the right of independence and of establishing an independent state not reserved for both parties?!

Hence we would not be departing from the truth if we said that the calls to nationalism and patriotism are what have played a prominent role in tearing apart the unity of humanity, dividing its children, and sowing the seeds of rancour and enmity in their midst along the lines of these false foundations.

It is a wonder that the advocates of nationalism — before the independence of Pakistan — used to raise their slogans that all the people of India — with their different languages and their various colours — form a single nation (*qawmiyya wāḥida*) united by the bond of belonging to the homeland (*al-waṭan*). [Tr.: The reference is presumably to the Indian National Congress and its allies, who before Partition advocated a single Indian nation — the "composite nationalism" (*muttaḥida qawmiyyat*) of the pre-1947 debate.] When Pakistan was built as an independent Islamic state, they refused to regard its people as one nation; rather they made them four nationalities on the basis of the difference of their languages, cultures and colours — a matter that has developed today so that they have become five, by regarding the Muhājirūn [the Urdu-speaking migrants from India] as a separate nationality united by the bond of migration from India after independence. So we do not know whether to call it blindness or partisanship: that the people of a large state with high population density like India, inhabited by dozens of nationalities, were one nation, while a state far smaller is divided into five units, each regarded as a separate nationality in its own right?! This followed only because, when the unity of colour, language and people was accepted as a measure for regional and political union, the chain extended with them and did not stop at the limit we have just explained.

It should be known that the word "*al-qawm*" (the people, the nation) may properly be applied linguistically to a group of people united by [p. 155] the bond of sharing in homeland, race or language. Evidence for this is what the Qur'an relates of the prophets — upon them and upon our Prophet be blessings and peace — that they called their nations, which were unbelieving, with their words: "O my people (*yā qawmī*)". Here, then, *al-qawm* is applied to a nation formed on the basis of union and solidarity in language and lineage regardless of creed and religion; and so it included everyone who belonged to that nation, Muslim or unbeliever, monotheist or polytheist.

This is according to the meaning of the term in language. As for whether, in view of the principles of Islam, it is valid to regard that kind of nationhood as a measure and criterion for political unity — we arrive at the answer to this question in the light of the following verse: **"It is He who created you; and among you is the unbeliever, and among you is the believer"** [al-Taghābun, 64:2]. For it divided all mankind on the basis of faith in God and unbelief in Him into two groups: a believer in Him, glorified and exalted, and an unbeliever in Him.

Likewise with the verse in which God commanded the Muslims to take as an example our master Abraham — upon him and upon our Prophet be blessings and peace — when he disowned his people, as He says (mighty is the Speaker): **“There has already been for you an excellent example in Abraham and those with him, when they said to their people: ‘Indeed, we are disassociated from you and from whatever you worship other than God. We have denied you, and there has appeared between us and you animosity and hatred forever until you believe in God alone’”** [al-Mumtaḥana, 60:4].

The noble verse has shed light, in an eloquent style, on both matters together: its referring to Abraham’s community as “his people” (*qawmihi*) indicates that the word *al-qawm* applies to those whom the bond of lineage and language unites even if the differences of creed and religion separate them; and Abraham’s disowning of his people indicates that the Muslims cannot be bound with the unbelievers by a political unity, even if they are of one people (*qawm wāḥid*); and that is because of the vast distance between the two parties and the clear difference in the aims and purposes of life.

What should be noted in this regard is that a person’s feeling of love for those who share with him in homeland, lineage or language, and his heartfelt bond with them or his affinity to them, are among natural matters. Hence Islam has not forbidden taking account of them, nor prevented fulfilling their requirements, provided that they be within their correct frameworks and within [p. 156] their limits established for them by the Sharia.

Likewise, the meaning of “hatred and animosity” towards the unbelievers is not that establishing relations with them is regarded as categorically forbidden and not permitted in any situation. Nor does the verse indicate a prohibition of goodwill (*muwāsāt*) and kindness towards non-Muslims on the basis of humanity. For God, after mentioning Abraham’s disowning of his unbelieving people in the context of praise, brought shortly after that — and in the same sura — the other verse in which He made clear to the Muslims the method of dealing with non-Muslims, saying, glorified and exalted: **“God does not forbid you from those who do not fight you because of religion and do not expel you from your homes — from being righteous toward them and acting justly toward them. Indeed, God loves those who act justly”** [al-Mumtaḥana, 60:8].

Just as it is permissible to conclude with them, when there is need, agreements of peaceful coexistence (*ittifāqiyyāt al-taʿāyush al-silmī*), on condition that they do not conflict with the interest of the Muslims, in view of what He, glorified and exalted, said: **“And if they incline to peace, then incline to it [also] and rely upon God”** [al-Anfāl, 8:61]. It was on this basis that the Prophet ﷺ concluded the truce and peace treaty with the polytheists of Mecca at al-Ḥudaybiya; and when the Banū Bakr broke it, he came to the aid of the Banū Khuzāʿa against them — in the wake of which the conquest of Mecca (may God ennoble it) took place. Likewise he made a treaty with the Jews of Medina concerning internal security, what we know today as “the Charter of Medina” (*Mīthāq al-Madīna*). He remained on that until the Jews broke it openly, and in its wake the Prophet ﷺ marched against them.

The upshot is that establishing security relations and concluding peace charters with non-Muslims, and bringing about goodwill and kindness towards the non-hostile among them, is permissible in the

Sharia; and Islamic history is full of the like of these relations and agreements, and we refrain from exhausting them here.

But since there is a clear difference between the two parties in the aims of life, whenever the Muslims wish to establish a state by their choice and capability, they found it on the religion of Islam and the creed of divine unity (*tawḥīd*), not on nationalism and patriotism. The meaning of that is that if the Muslims had before them two choices concerning the founding of the state — the choice of religion and creed, and the choice of nationalism and patriotism — it would be obligatory on them in the Sharia to give precedence to the first choice, and so found their state on the basis of the religion of Islam and the creed of divine unity.

[p. 157] The summary of what has preceded is that, even though *al-qawm* is applied linguistically to those sharing in homeland, lineage and descent, Islam has categorically rejected regarding this kind of nationhood as a basis for political unity, and the Prophet ﷺ forbade it with the most severe prohibition — as appears in the hadith which the two Shaykhs [al-Bukhārī and Muslim] narrated from Jābir ibn ʿAbd Allāh, may God be pleased with him, whose text is: "From Jābir ibn ʿAbd Allāh, may God be pleased with them both, he said: We were on a military expedition — Sufyān said: once in an army — and a man of the Muhājirūn struck a man of the Anṣār on the backside. The Anṣārī said: O Anṣār! The Muhājirī said: O Muhājirūn! The Messenger of God ﷺ heard that and said: 'What is this call of the Jāhiliyya?' They said: O Messenger of God, a man of the Muhājirūn struck a man of the Anṣār on the backside. He said: 'Leave it, for it is foul (*muntina*).'"[1]

So the Prophet ﷺ regarded mutual support and backing on the basis of emigration or helping (*al-hijra aw al-nuṣra*) — that a Muhājir should support a Muhājir merely because he is of the Muhājirūn, regardless of whether he is in the right or in the wrong; and likewise the Anṣārī concerning the other Anṣār — as a call of the Jāhiliyya, and described it as foul; and he taught that a person's support should go with the truth wherever it goes, even if it is against a person of his own people (*qawmihi*).

The idea of "nationalism" is nothing but the offspring of secular democracy, which threw off its neck the yoke of religion; so it became empty-handed of what it could regard as a basis for political unity. So it resorted to nationalism and patriotism and took them as a criterion for political union — though they are far removed from being any such thing.

Nationalism has brought upon the Islamic Umma evils and woes, it is an idol that some among the Muslims have taken as a god, and it has been used to tear apart their unity, scatter their gathering and divide their word. Hence we would not be wrong to say that no defeat has befallen the Muslims over the passage of ages and the succession of eras but this foul call of the Jāhiliyya was the prominent factor behind it. The closest example of that is the elimination of the Ottoman Caliphate, which — with its flaws — was uniting the Muslims and gathering them on one platform. The English were able to eliminate it by weaving cunning conspiracies aimed at division among the Muslims on the basis of nationalism, beginning with stirring up the Arabs against the Turks

[1] *Ṣaḥīḥ al-Bukhārī* (6/154), Book of Qur'anic Exegesis, chapter on His words: {It is the same for them whether you ask forgiveness for them or do not ask forgiveness for them} [al-Munāfiqūn, 63:6], hadith no. 4905; *Ṣaḥīḥ Muslim* (4/1998), Book of Righteousness, Kinship and Manners, chapter on helping one's brother whether he is wrongdoer or wronged, hadith no. 63 – (2584).

[p. 158] and urging them to found Arab nationalism on one side, and inciting Mustafa Kemal [Tr.: the Arabic has “Muṣṭafā Kāmil”; Atatürk is meant] and his supporters to defend Turkish nationalism on the other. Thus it cast the seeds of division among the Muslims, which resulted in the dismantling of their unity and the elimination of the last fortress protecting them and their states from division and fragmentation.

Its story: that the Allies in the First World War stirred up the Arabs to rise against the Turks and expel them from their lands, promising that the allied states would support them in that, and deceiving them with the promise that they would in the end obtain free, independent states of their own. So the Arabs were deceived by that and rose against the government of the Turks, and the Allies helped them in that until victory was completed for them and they were able to expel the Turks. But no sooner had the Allies obtained their aim from them than they turned against them from being an ally and helper to an enemy and occupier: for — following the withdrawal of the Turks — the forces of Britain and France set about raiding Baghdad and seizing it and the other Arab regions besides it, in a flagrant violation of everything they had covenanted in written agreements and charters concerning the future of the Arab states after victory over Turkey. Then, when the Arabs awoke from their slumber and realized that, by bringing English colonialism upon themselves in place of the Muslim Turks, they had gained nothing from all their efforts and sacrifices, they rose up against the occupying forces — which in the end resulted in the independence of their lands.

The outcome of the discussion is that nationalism has brought upon the Islamic Umma nothing but woes and evils, and this is what the poet Muhammad Iqbal lamented, saying:

> *In tāza khudāʾon men baṛā sab se waṭan hai Jo pairahan is kā hai woh mazhab kā kafan hai*

[That is:] Nationalism is the greatest of the new idols that have been taken as gods to be worshipped, and its shirt is nothing but a shroud for the Umma. [Tr.: In Iqbal’s Urdu, the word is literally *waṭan* (“homeland”), i.e. territorial patriotism, and the shroud is that of *mazhab* (“religion”); the Arabic translation renders these as “nationalism” and “the Umma”.]

There are two other modern schools that besides Islam, have rejected nationalism, holding that [political unity] rests not on sharing in people or homeland but on sharing in creed and thought; namely: communism and Zionism. From this we see the communist states having been founded [p. 159] on communist thought, and Zionism on the basis of the Zionist creed.

Here, then, a brief introduction to various schools and political systems has been completed before you, gentlemen. Now we turn our attention to delving into the core of the main subject of our book, I mean: the study of the guidance and directives of Islam in the field of politics, and the attempt at its contemporary application by presenting a political system that agrees with that guidance and those directives on the one hand, and whose implementation and activation in the contemporary external reality is possible on the other.

PART TWO: The Islamic Principles of Politics

Introduction

[p. 159] Having finished studying the various political ideas and systems, the time has come for us, in this part of the book, to acquaint ourselves with the guidance and teachings of Islam in the field of politics. It will include several discussions related to the subject, arranged in six chapters whose headings are as follows:

Chapter One: Politics in Islam. In it we shall first clarify the position of Islam on politics and its activities in the light of the Qur'an and Sunna, and follow it by defining the nature of the rulings of Islam in the field of politics and their manner — whether it contented itself with laying down general rules, or mentioned their partial details as well.

Chapter Two: Government and its functions in Islam. **Chapter Three:** Clarifying the teachings of Islam concerning the formation of government. **Chapter Four:** Explaining its teachings concerning the administration of government. **Chapter Five:** Detailing the rulings of Islam in the two fields of international relations and defence. **Chapter Six:** A study of the questions of overthrowing the government and removing the ruler.

Chapter One: Politics in Islam

In it we shall discuss two important topics that are essential before proceeding further:

1 – Islam's position on politics

[p. 160] Two extreme ideas have spread in this regard, whose adherents have overstepped the path of justice towards the two extremes of excess and neglect. One of them: the separation between religion and politics — which is the secular idea that confines the role of Islam — like other religions — to the personal life of man and his individual affairs, and does not grant it any connection with political questions or the affairs of the state. What drove them to rid political affairs of the interference of religion was only what they had seen and suffered at the hands of Christian theocracy — the government founded on the basis of the Christian religion — of evils and afflictions, as you know from what we mentioned earlier.

Secular democracy gave this idea currency and dominance in the world alongside itself, since the idea had emerged from it; indeed it has become an inseparable part of some of democracy's concepts. It was also reinforced by the conduct of some religious circles, which actually narrowed their activities to the fields of creed and worship and gave most of their attention to refining and purifying morals only. Indeed, in addition to that, they undertook to direct criticism and blame at every one of the men of religion who delved into politics and contributed to its works and activities — as though they believed religion and politics to be two contradictories that can never meet in one thing.

This erroneous idea had no basis or source other than that they drew an analogy between Islam and other religions whose teachings were confined to a few fields of creed, worship and morals, not extending to the other branches of life. It is a definitely false analogy; for Islam is not like other religions whose framework is limited to what we have mentioned of fields. Rather, God has distinguished it from among them with many features, among which is that it is marked by comprehensiveness and adorned with generality. It is a general and comprehensive religion that grants its followers valuable teachings and sound directives in all the fields of life and its branches, including economics and politics as well (and we shall mention some of its rulings in the field of politics in what follows, God willing). Hence denying its rulings in the field of politics is nothing but a denial of the belief that it is a religion God has endowed with perfection and comprehensiveness; for it is impossible that a religion be described as perfect [p. 161] while it has left its followers neglected in a great branch of human life such as politics.

The second idea: it is the idea of excess regarding the standing of politics in Islam. That is because some went so far in refuting the aforementioned secular idea that they came to regard politics as the ultimate goal sought from religion, and all other rulings as an instrument for achieving this goal and hence subject to it. This idea is embodied in their oft-repeated saying that Islam did not come into the world except for the purpose of granting it a just political system and establishing one in it. Accordingly, the ideal successful Muslim according to the adherents of this idea is the one who exerts his efforts for the sake of raising high the word of religion through the path of politics only. As for those working in various religious fields and occupied with other religious services, they are in their eyes reactionaries and laggards who are striving in the wrong field, distracted from what their religion demands of them.

Both of these ideas deviate from the path of what is right towards the side of excess and neglect. Their source is error in understanding the correct, middle and balanced position of Islam on politics, which consists in believing that Islam is not like other religions in neglecting the side of politics and not attending to its rulings at all; rather it has granted its followers sound rulings and right directives concerning politics as well. But — despite that — regarding politics as an original aim and goal sought from Islam, and consequently subjecting all other rulings to it, is also an error.

An example of that: trade. Islam has attended to it with every attention, since it guided to its rulings and teachings with elaboration and detail, as a branch of life that the Muslim engages in to meet his human needs — not as being the whole of religion. Likewise marriage: the Islamic Sharia has detailed all its questions and explained all its rulings; yet despite that it would not be correct to say that marriage is the whole of religion or its original aim. Politics is like these two: we grant that Islam, as a complete and comprehensive religion, has attended to politics as one branch of life, guiding its followers to its general rules and basic principles. But it does not follow from this alone that politics is the whole of religion or its original aim.

[p. 162] Going deep into the details of the subject, we say: the noble verse **“And I did not create the jinn and mankind except to worship Me”** [al-Dhāriyāt, 51:56] tells explicitly of the purpose for which man was created, namely to perform the worship of God, glorified and exalted. Worship means submission and obedience; so it includes all the legitimate ways of showing submission — that is, the

utmost self-abasement — on the one hand, and performing obedience to God and following His teachings in all the fields of life on the other.

To clarify that: human beings are all servants of God, glorified and exalted; but there is a difference between servitude to creation and servitude to the Creator. The owned slave of a human being has as his function to perform obedience to his master in all that he commands him and forbids him only, without its being required of him to worship him and abase himself before him. As for the servants of God, glorified and exalted, they are charged with both matters: showing the utmost self-abasement to Him and complying with His commands in all the fields of life. Hence the performance of this function of theirs is called "worship" (*ʿibāda*), whereas the obedience of an owned slave to his human master is not called "worship".

Then let it be known that worship is of two kinds:

(1) Worship for its own sake and without intermediary: it is that which has been laid down as pure worship for its own sake, such that there is no purpose in performing it other than devotion and self-abasement to God, glorified and exalted — like prayer, fasting, pilgrimage, zakat, the sacrifice and so on.

(2) Worship for the sake of something else: it is that which is not, in terms of its original intended purpose, of the side of devotion; rather its doer performs it to fulfil a worldly need or desire, but he observes in it the limits of the Sharia, follows in it the Sunna of the Messenger ﷺ and intends by it to please the Lord, glorified and exalted. It is then regarded, in his case, as a worship for which God will reward him. Such is trade, for example: man engages in it only to fulfil by it the needs of himself and his dependants; but if he complies in it with all the rulings of the Sharia related to it, seeking God's pleasure, trade turns in his case from a profession that brings him his provision into a worship for which he is rewarded and recompensed with God, glorified and exalted. However, it is a worship of the second kind, not the first; for it was not a worship in itself; rather it became a worship in the case of its doer by his performing it observing all the teachings of the Sharia and seeking by it the pleasure of God, glorified and exalted. Politics and government are likewise; [p. 163] they become a worship for which a person is rewarded if he is occupied with them and performs their activities according to the rulings of the Sharia and seeking the pleasure of God, glorified and exalted. Like trade, they are not worships in themselves; they were only counted among worships for the sake of observing the rulings of the Sharia in them and making the intention sincere in performing them.

So the purpose for which man was created is the worship of God, glorified and exalted, in both of the kinds mentioned above — worship for its own sake and worship for the sake of something else — and it is not correct to confine it to one of these two kinds nor to some of one of them or both of them. It is self-evident that the first kind is better and higher than the second, and that the second kind is not manifested in politics only; rather it has many individual instances and numerous forms. These two kinds, with their individual instances and forms, together constitute the meaning of worship which was the purpose behind the creation of man. How, then, can it be right to narrow the meaning of worship and confine it to politics, which is one of these kinds?!

However, there is an important point to which we must draw your attention, namely that the kinds of worship of the second type differ among themselves in standing and importance from the point of view of the Sharia: whichever of them is more general in effect and wider in scope is regarded as among the most important in standing and greatest in gravity. Politics is likewise; for Islamic government — founded on straight lines through the application of a political system that agrees with the requirements of the Sharia — does not play its role only in enabling the Muslims to improve the performance of worships of both kinds and to perform them in a better way; rather it also provides them — alongside that — with opportunities to spread them and to widen the horizons of acting on them to the extent of the reach of that authority's influence. So its superiority over others among the individual instances of the second kind of worships is not denied. From this angle it is correct to emphasize it and draw attention to it. As for regarding it alone as an original aim of religion, that leads only to anarchy and the inversion of priorities and tasks in religion; for rooting this idea in someone's mind leads to entanglement in many Sharia evils, some of whose explanation we summarize for you below:

The first: that it causes disparagement of the works that are regarded as original worships in themselves; for raising the rank of politics to become an aim sought from religion entails lowering the ranks of [p. 164] these worships so that they become subject to it, and intended by religion as subordinate and in the second degree. It is an error contradicted by what is known from the Noble Qur'an: that worships in themselves are what are intended originally, while empowerment (*tamkīn*) and politics are like means. God the Exalted said: **"[They are] those who, if We establish them in the land, establish prayer and give zakat and enjoin what is right and forbid what is wrong"** [al-Ḥajj, 22:41]. For it clearly indicates that establishing prayer and giving zakat and other things mentioned in the verse in the context of the apodosis [of the conditional] are the aims and the intended matters, and that empowerment is nothing but a means to achieve this goal and attain this aim.

Some have argued for empowerment being the original intended aim from a verse of Sūrat al-Nūr in which God, glorified and exalted, said: **"God has promised those who have believed among you and done righteous deeds that He will surely grant them succession [to authority] upon the earth just as He granted it to those before them, and that He will surely establish for them their religion which He has preferred for them, and that He will surely substitute for them, after their fear, security; [for] they worship Me, not associating anything with Me"** [al-Nūr, 24:55].

The Sage of the Umma, His Eminence Shaykh Mawlānā Ashraf ʿAlī al-Thānawī (may God have mercy on him), has spared us plunging into answering this argument, since he came in this regard with a satisfying, convincing answer and clear, sincere words that cure the sick and quench the thirsty. We present to you below the translation of its Urdu text:

He (may God have mercy on him) said: "The noble verse: **'[They are] those who, if We establish them in the land, establish prayer and give zakat and enjoin what is right and forbid what is wrong; and to God belongs the outcome of [all] matters'** [al-Ḥajj, 22:41] — it becomes clear from it that the original intent is the religious matters [i.e. the matters of worship which are performed as religion and devotion to God, glorified and exalted], not the political matters [i.e. the Sharia rulings

related to politics], nor jihad; rather these two play the role of means that enable these worships to be performed. Accordingly we see that the prophets, upon them be peace, all had the rulings of worships legislated for them, while jihad and politics were not legislated except when need called for them or interest required them [because they are two means]; and means are like that: they are not resorted to except when there is need.

[p. 165] Perhaps some are seized by a doubt that there is another verse that contradicts this position and indicates the opposite of this matter — that worships are a means and empowerment and politics an aim — namely His words: **‘God has promised those who have believed among you and done righteous deeds that He will surely grant them succession upon the earth just as He granted it to those before them, and that He will surely establish for them their religion which He has preferred for them’** [al-Nūr, 24:55]; for it mentioned faith and righteous deeds as a condition upon which empowerment in the land follows, which indicates that empowerment is the original intent.

Its answer is that in it there is a promise of empowerment and power [as a reward] for faith and righteous deeds, and it states that power follows upon religion as its natural consequence. So politics and power are two matters that were promised on account of faith and righteous deeds; and that a thing is promised does not entail that it is also the aim — otherwise it would follow that abundance of provision is an original aim of religion, since it was promised for the establishment of the Torah, the Gospel and the Qur’an, i.e. acting upon them: **‘And if only they upheld [the law of] the Torah, the Gospel, and what has been revealed to them from their Lord, they would have consumed [provision] from above them and from beneath their feet’** [al-Māʾida, 5:66]. Does anyone say this?! No — rather it is a promise that God made to the religious among them, that they would not remain hungry and naked. [So know that] what is promised need not be intended. What we are concerned with is likewise: politics and power are two matters that were promised to follow as a natural consequence of faith and righteous deeds, not because they are an original aim of it.

At any rate, know that the original intent of religion is worships, and politics and empowerment are a means to them. But let it be noted that the purpose of our speech is nothing but to explain the ranks of these two matters in Islam: that religious matters are what are intended originally, while politics is nothing but a means to them. We do not mean by that that politics is not sought in religion at all, nor in any degree.”[1]

> [1] *Ashraf al-Sawāniḥ*, section “Khātimat al-Sawāniḥ”, vol. 4, pp. 28–29, Multan printing.

The upshot is that whoever is dominated by this idea will hardly fail to take on a political character, and so he looks at worships with a political view, trying to dye them with a political colour and to interpret the purpose of [p. 166] their legislation so that it becomes a means of attaining “the highest goal” embodied in power and empowerment. That actually happened to them, when they said: the original purpose of the legislation of prayer lies in creating collective thought concerning the attainment of political aims, accustoming the Muslims to observing order and coordination, and strengthening ties and paving ways of cooperation and mutual support among them, so that their efforts unite and their word agrees to work towards achieving this sought aim. That zakat aims by its legislation at reviving and stirring up the sentiment of spending; and fasting aims by its legislation at training to bear want and suffer poverty, so that the Muslim is in full readiness from it if it befalls him

on the way to attaining power: the aim sought from religion. As for the pilgrimage, behind its obligation it aspires to play the role of a world Islamic conference, and hence to bring about a coalition and agreement among the Muslims who represent their countries from various parts of the world.

This is what they said concerning the main worships in Islam, focusing their ambitions on their worldly interests which we do not doubt are attained and obtained from them. But we say: they are benefits that follow from them as a subordinate matter; they are not the purposes behind their legislation originally. As for the spirit of these worships and the original intent of them, it is the strengthening of the bond of the creature with the Creator by way of turning in repentance and humbling oneself before Him, and hence giving precedence to obeying Him and choosing it in every matter, even at the cost of harming one's material interests. Regarding them as means to attain political aims and hence subjecting them to them leads only to extinguishing this spirit and killing these sentiments. That suffices as ugliness and disgrace!

Second: If these worships were regarded as an instrument and means to attain that sought aim, it would be natural to permit sacrificing the worships when the political aims required it, and to put the interests of the latter before those of the former whenever the two conflicted. From this there would be no harm in abandoning congregational prayer and attendance at the mosque if it were for the sake of political movements and meetings. Indeed, they might even permit missing the prayer for this purpose; and likewise they permitted committing some Sharia disapproved acts (*makrūhāt*) if a person found no alternative to them for the sake of attaining this aim!

[p. 167] **Third:** Disparagement of these worships has led them to believe that those who perform them abundantly and call others to them out of desire for their merits are inattentive to the original intent of the Sharia; indeed they may deal with them with contempt and mockery merely because they have abandoned the field of politics and occupied themselves with these worships. From this they do not reckon with the books of the merits of deeds nor give them weight, nor do they see any need to read them, let alone act on them. Indeed their attitude towards these books suggests that they count them among the obstacles that turn the Muslims away from "their original aim", and hence they see no need for their existence among the Muslims. Add to that that they have described efforts at purifying the soul [*tazkiya*] as "opium". The matter has even gone so far that they have not spared the practising scholars devoted to the Sharia sciences, or the students who study under them; rather they have accused them of reaction and backwardness and judged them to be labouring in vain and striving in the wrong field, and that they are still deprived of the correct conception of religion and its principles!

Fourth: This idea entails believing that most of the prophets sent, upon them be peace, were unsuccessful in their mission that was entrusted to them from God, glorified and exalted. For none of them was able to found a government and acquire authority except a few — among them, in addition to our master Muhammad ﷺ: our masters Joseph, Moses, Samuel, David and Solomon, God's blessings and peace upon them all. It is not established of others besides them that they founded a state or attained a government. To speak of these prophets as having failed in their duty or fallen short of completing their mission is the height of audacity — God forbid! As for those who have turned

their faces towards politics as the only goal sought from religion, they do not shy away from saying so!

In sum, the foregoing detail [shows] that politics has its standing in religion, but regarding it as an original aim of religion leads to a serious disruption in the order of its priorities and tasks. On the other hand, confining religion to prayer and fasting and neglecting its teachings in the other branches of life is also a gross error.

The truth of the matter is what we have stated more than once: that religion has branches and fields among which [p. 168] is politics too; so removing it from religion and rejecting its connection with it absolutely is error and misguidance.

Then, it is obligatory to take religion and its teachings with regard and compliance in all fields of life, and it is not permissible to confine it to some of them to the exclusion of others. As for confining efforts and activities to one field of it, that is of the kind of the principle of distributing works and sharing them among the members of the Umma, such that some occupy themselves with one branch to which they give their attention and expend in its way their efforts and struggle, and spare nothing, however precious, in its service, and others with another likewise. Choosing a branch of religion to this extent only is no harm in the Sharia; rather coordination among all sides will help the affairs of religion to run on its wheels with all precision and mastery. The problem occurs when each group begins to tread the path of exaggeration in what it has chosen of the branches of religion and raising its standing to the point that it believes it is the whole of religion, and lowering the value of the other branches to the point that it strips them and excludes them from religion.

So there is no harm, then, in someone choosing — in view of his circumstances and qualifications — to undertake the service of religion in the field of politics and by way of it, then practising its activities according to the rulings of the Sharia. There is no doubt that he contributes his share in serving a branch of religion; but he has no right to say that politics alone is religion and that he alone is the one undertaking the service of religion. Rather, he must acknowledge with broad-mindedness the services of others besides him who are occupied in other fields and religious domains.

2 – The nature of the rulings of Islam concerning politics

The second matter we would like to clarify in this regard is that the teachings and rulings of Islam concerning politics are limited to principles and general rules only. As for the implementation of those rules and their application in practice in external reality, Islam has not defined for it a special form; rather it has entrusted it to the scholars of the Sharia and those expert in it in every age, to choose for it a form that agrees with the rulings of the Sharia on one hand and harmonizes with the requirements of that age on the other. For further clarification we say: the principles and general rules that God has legislated concerning politics are fixed, not changing with the passage of ages and the succession of eras; but if the people of insight among the Muslims and those of [p. 169] complete knowledge among them of the Sharia were to undertake — by consultation among themselves — the formation of a formula and system to act on in the light of those principles and observing them fully, it would be acceptable in the Sharia.

As an example of that let us take the noble verse: **“And prepare against them whatever you are able of power”** [al-Anfāl, 8:60]. God commanded the Muslims in it to prepare what was within their capacity of equipment to resist the unbelievers and fight them. Although He mentioned in the same verse one or two kinds of power, that was not by way of confining power and defining its kinds; rather He entrusted that to those of understanding among the Muslims to undertake — in the light of their experiences — preparing what they see as suitable in view of their circumstances and needs, the requirements of their age and the capabilities of their enemy.

Politics is likewise: Islam has contented itself with legislating its general rules. As for its particulars — the number of government departments and ministries, the distribution of administrative authorities, the specification of its type between unitary and federal, and the definition of the legislative chamber whether one or two, and the system of consultation in it — Islam has not defined anything of that; rather these are permissible matters (*mubāḥāt*) which the Sharia has entrusted to people of insight among the Muslims to choose from them what is most suitable to their circumstances and most fitting for their age. It is then futile to look, behind the discussion of the principles of Islam in politics, for explicit statement of the details of these particulars in the words of the jurists and mujtahids, since they did not undertake to explain them, because the Sharia did not define particular forms for them — as is its usual practice with other permissible matters: being satisfied that human reason and its capacities suffice in them, it usually does not legislate particular rulings concerning them; rather it entrusts them to human reason to choose among them what is most beneficial and most fitting for it. The Sharia only comes with decisive legislation obliging to take it, without there being any alternative to abandoning or changing it, in the matters that are likely sites for the slip and error of human reason, which falls short of perceiving its dimensions if it were left free to judge on them. So in these the Sharia guides it to what is good for it, lest it wander lost and stumbling in their wilderness.

From this we can say that the rulings of the Sharia related to politics are distinguished by both of these two features: fixity in its basic principles and general rules, which God took upon Himself to lay down [p. 170] and legislate on the one hand, and flexibility in applying them through choosing the formula for acting on them, such that one may choose for every time and place — within the framework of those principles — what is most in harmony with its requirements and most useful for its interests on the other.

The point is that when we speak of Islamic politics we do not mean by it a particular formula for the administration of government whose every detail has been specified with all precision and firmness, without there being in it any room for change. Rather we only mean by it its basic principles and its general rules that were legislated in the Book of God and the Sunna of His Messenger ﷺ — which we shall try to clarify in the coming pages, God the Exalted willing.

Chapter Two: Government and Its Functions in Islam

Preface

We cannot have a correct, serious understanding of the rulings and principles of Islam concerning politics as long as Islam's vision of government and its correct conception of it are not clear to us, and as long as we remain ignorant of its functions and the aims intended by its establishment. We undertook in the first part of this book to review the many points of view that a group of philosophers presented about the beginning of government and the aims sought from it, conjecturing in them various kinds of conjectures and wandering in them in the valleys of empty analogies and flimsy guesses. As for the Islamic point of view in this regard, it differs from them entirely, as we shall clarify in what follows, God willing. There is no escape for us from knowing it with precision and mastery so that it becomes easy for us, through it, to root the political principles of Islam.

Belief in "the Supreme Sovereignty of God": the basis of the Islamic conception of government

Among the most important principles of Islamic thought concerning government, and which we can regard as the foundation of foundations in the field of Islamic politics, is the belief and acceptance of supreme sovereignty (*al-ḥākimiyya al-ʿulyā*) and [p. 171] absolute dominion (*al-siyāda al-muṭlaqa*) for God, glorified and exalted, in the sense that He, mighty and exalted, is the true Ruler, and human beings only rule over their fellow human beings in subordination to that sovereignty.

It is the basic foundation in which there is no scope for disagreement and no room for ijtihad; it cannot be ignored, nor can any compromise or agreement to the contrary be made at any stage. It is the first clause with which the constitution of Islamic politics opens. The Qur'an has explained it with all clarity and explicitness in various styles and different words; so it said once: **"Judgement belongs to God alone"** [al-Anʿām, 6:57].

It said another time: **"Unquestionably, His is the judgement"** [al-Anʿām, 6:62]. It expressed it in one place with His words: **"Unquestionably, His is the creation and the command"** [al-Aʿrāf, 7:54]. In another with His words: **"And to God belongs the dominion of the heavens and the earth"** [Āl ʿImrān, 3:189]. With: **"Say: O God, Owner of dominion, You give dominion to whom You will"** [Āl ʿImrān, 3:26].

These verses all indicate explicitly that sovereignty (*al-ḥākimiyya*) and dominion (*al-siyāda*) in this universe belong to God, glorified and exalted, alone. We mean by dominion and sovereignty: "that absolute authority uniquely entitled to determine right and to make it binding, and which alone has the supreme word, without partner, in the affairs of society and the state; such that there exists no other authority that equals it or approaches it, let alone rises above it."

This is the original principle on which Islamic politics stands, while democracy was established on the basis of contradicting this principle, since it handed over absolute authority to the people. Islam regards accepting it in the aforementioned sense for other than God, glorified and exalted, as associating partners (*ishrāk*) with Him, glorified and exalted, in this attribute of His — may God protect us from it.

The word "theocracy" (Theocracy) means in its linguistic origin that rule belongs to God; but in the earlier religions — Christianity, Judaism and paganism — only its name remained; as for its reality,

the followers of these religions inflicted on it, by way of corruption and destruction, what reversed its concept for which it was coined entirely. So it became an expression for the rule of the spiritual leaders — the priests, rabbis, monks and the priesthood — instead of God, glorified and exalted. Accordingly we see the word [p. 172] even in our age: no mind ever rushes from hearing it to the idea that rule belongs to God; rather the mind rushes from it to the rule of those leaders, as has been explained in Urdu political sources and books.

As for Islam, it regarded that distorted picture of it as among the ugliest kinds of polytheism and the most hideous of them, since God, glorified and exalted, said: **"They have taken their scholars and monks as lords besides God"** [al-Tawba, 9:31]. So when we speak of the principle "rule belongs to God" as the foundation of foundations in Islamic politics, we do not acknowledge any connection with the leadership of the men of religion that took shape in the earlier religions under the curtain of the word "theocracy", and which ultimately resulted in distorting its concept in one respect, and straying into the wilderness of associating partners with God in another.

In contrast to the earlier religions, Islam took the principle of rule belonging to God in its true concept and its correct meaning, embodied in the fact that what God has revealed of rulings — by recited revelation (*al-waḥy al-matluww*) or otherwise — is the basic constitution and the primary sources of Islamic government, from which it cannot deviate — even a hand-span — to lay down legislation or take a measure that contradicts these rulings or opposes them in anything.

The acceptance of this principle is the essential difference that distinguishes Islamic politics from democracy. For the legislative chamber in secular democracy enjoys the absolute authority that grants it the power to legislate and enact as it wishes, without finding in its way any obstacle that limits its power or narrows its influence — even in the case where there is in the constitution of the country some restriction on its authority and a prohibition of its legislation in some matters, it can lift it by amending the constitution! As for Islamic government, the situation differs entirely in it, since its fixed, unchanging constitution is the Book of God and the Sunna of His Messenger ﷺ, such that whoever assumes the authority of legislation in it may not deviate from them a hand-span, or take a decision that clashes with a ruling of these two basic sources.

It is the habit of Western scholars that, in researching the history of various theories and schools on some subject, they ignore the thoughts and services of the Muslims in it, by virtue of the blind religious partisanship [p. 173] which they can hardly rid themselves of even in their scholarly research. As has actually happened in their research on politics: they mention its schools and doctrines beginning with the Greek philosophers such as Plato and Aristotle, passing through the Christians in the era of the flourishing of Christianity, and ending with Voltaire, Montesquieu and Rousseau — skipping over by that a long stage of history in which the Muslims were the leaders of the world and the guides of humanity, who took up the reins of government and became the captains of the ship of humanity, steering it with a politics entirely different from what the world had known before: a just, balanced politics built on the basis of its original principle — acceptance of rule and sovereignty for God — not merely as an abstract idea and pure theory, but with its practical application which was manifested in its truest forms and most splendid scenes, like the Rightly-Guided Caliphate and the Islamic governments after it. It is a contradiction of the principles of history

and a violation of scholarly trustworthiness that they did not mention it even as a pure theory among past political theories — to the point that in speaking of the principle that rule belongs to God, you see them speaking of the superstitions that the Jewish, Christian and pagan theocracies brought about, wholly ignoring the Islamic vision of this principle and the Islamic governments that were established on its basis.

At any rate, belief in rule belonging to God is the basis of Islamic government. Mere faith in this principle removes the veil from many political problems in whose solution the scholars of politics have stumbled, and uproots the foundations of many political theories that were born of nothing but the flimsy conjecture over which the political mind, bare of faith in this principle, laboured — like the social contract theory, for example. For it is regarded as the best point of view concerning the origin of government, although it has no basis other than conjecture and following supposition, and no one knows with precision and accuracy when this took place and who witnessed it and concluded it. Rather they are bewildered questions in which the Western scholars of politics wander aimlessly, and so their condition became the best illustration of the words of God, glorified and exalted: **"They have no knowledge of that; they are only guessing"** [al-Zukhruf, 43:20].

Whereas the believer in the principle of rule belonging to God is protected by his faith from wandering in the valleys of these illusions and [p. 174] false analogies. Rather he knows that God, when He created the first human being, announced with him clearly his appointment as vicegerent (*istikhlāf*) by His words: **"Indeed, I will make upon the earth a vicegerent (khalīfa)"** [al-Baqara, 2:30] — which indicates that Adam, being the first human being to set foot on the earth, did not descend to the earth except as the vicegerent of God in it, in the sense that God, glorified and exalted, appointed him as vicegerent to undertake the implementation of His rulings and His commands on His behalf and in subordination to His true rule. Thus the first government on earth arose with the descent of the first human being in it: Adam was a ruler and the rest of humanity ruled by him. The basis of his government also was the same principle that rule belongs to God, and that no government is ever administered except by what pleases God, and that the government of human beings, whatever it may be, is subordinate to the absolute sovereignty of God and a deputy of His supreme sovereignty. Accordingly came the application of "the Caliphate" (*al-khilāfa*) to this government, and "the Caliph" (*al-khalīfa*) to the Commander of the Faithful who administers it.

The meaning of khilāfa in Islam

The word "*al-khilāfa*" or "*al-khalīfa*" occurs in many places in the Noble Qur'an, and the commentators have mentioned two meanings for it:

The first of them: following the rulings of God, mighty and exalted, committing to obeying Him, and taking on His character traits in the individual life of human beings; in the sense that everyone who believes in God is commanded to obey Him and to take on His character traits in all the moments of his life. In view of this meaning of it, it makes every believer in God His vicegerent on the earth, charged with obeying Him and taking on His character traits. It is the meaning that most commentators chose in explaining the words of God, glorified and exalted: **"Indeed, I will make upon the earth a vicegerent"** [al-Baqara, 2:30].

The second: vicegerency from God in His attribute of sovereignty, in the sense that a human being obtains government over others, so he undertakes the implementation of his authority on behalf of the government of God and as a deputyship from Him. It is the meaning that is necessarily taken in what God mentioned of David, upon him be peace, saying: **"O David, indeed We have made you a vicegerent upon the earth"** [Ṣād, 38:26]. It is what we mean in speaking of the political principles of Islam, and it is what grants us a basic conception of government in Islam: that it is not obtained by human beings independently and in their own right, but rather by deputyship from God and vicegerency from Him. If it is a deputyship from the government of God, it must be subordinate to His rulings and complying with His commands, in fulfilment of [p. 175] the requirements of deputyship and in implementation of vicegerency in its true spirit and meaning. It is the dividing line that distinguishes Islamic government from others; for the irreligious secular governments do not see above their authority any authority, whatever it may be, such that they would submit to its rulings and commit to obeying it.

It is worth mentioning here that the Prophet ﷺ was a vicegerent of God directly and without intermediary; as for the Rightly-Guided Caliphs, their vicegerency was not direct, but through the intermediary of the Prophet ﷺ. Accordingly they chose for themselves the title "Successor of the Messenger of God" (*khalīfat rasūl Allāh*) rather than "Vicegerent of God" (*khalīfat Allāh*), as it is reported that a person said to Abū Bakr, may God be pleased with him: "O Vicegerent of God!" He said: "I am not the vicegerent of God; but I am the successor of the Messenger of God [God bless him and give him peace]."[1]

How excellent is ʿAllāma Ibn Khaldūn, who deposited in his *Muqaddima* discussions at the summit of splendour and lucidity; and although it does not exceed one volume, he did not leave a branch of life without taking it up in research, treating it with originality, excellence and benefit. It is natural that he took up the subject of the imamate and caliphate in research too; he mentioned that government has three kinds:

1. Natural kingship (*al-mulk al-ṭabīʿī*): it is bringing everyone [to act] according to the requirement of purpose and desire. [Dictatorial authorities enter into it.]
2. Political kingship (*al-mulk al-siyāsī*): it is bringing everyone [to act] according to the requirement of rational consideration in obtaining worldly interests and repelling harms. [And democracy is of this kind, since it has taken reason as a criterion for estimating interests.]
3. The Caliphate: it is bringing everyone [to act] according to the requirement of the Sharia in their otherworldly interests and the worldly ones that revert to them.[2]

How excellent are his words — how comprehensive they are of the kinds of government! You will not find a government over the course of history but it falls within one of these forms. It is reported that ʿUmar ibn al-Khaṭṭāb once said: By God, I do not know

> [1] *Taḥrīr al-Aḥkām fī Tadbīr Ahl al-Islām* (1/57). [2] *Muqaddimat Ibn Khaldūn*, Book Three, chapter twenty-five, p. 189.

[p. 176] whether I am a caliph or a king. If I am a king, then this is a grave matter. Someone said: O Commander of the Faithful, between the two there is a difference. He said: What is it?

He said: The caliph does not take except by right, nor place it except in right; and you, praise be to God, are like that. The king oppresses people, taking from this one and giving to that one. ʿUmar fell silent.[1]

[1] *Al-Ṭabaqāt al-Kubrā*, al-ʿIlmiyya ed. (3/233), mention of the appointment of ʿUmar as successor.

The functions and duties of government and its intended aims in Islam

The prevailing governments today have focused their views and devoted their efforts to attaining the goal of pleasing the people, spreading joy and comfort in it, protecting its rights, and other matters that nourish and satisfy its material wants only. You will not find in the constitution of a government among governments that it aims at the spiritual education of the people, spreading good in it and deterring it from evil by commanding what is right and forbidding what is wrong. That is because they do not possess a balanced criterion with which to estimate good and evil and distinguish between them; rather the thought of modern philosophers in this field has developed to a degree that led them to regard good and evil as two relative matters (relative term), by entrusting the authority for specifying them to society and the people. From this, if one of the most hideous evils prevailed in a society such that people approved it, it would soon leave the category of evils and enter the category of good things. Just as it is not necessary among them that a ruling on a thing being evil be general and comprehensive for all ages and cities; rather the same thing may be counted as good if it finds currency and acceptance among the people of another state! If they have no complete, absolute conception of good and evil, it is natural that they should reject that spreading this and deterring from that be among the aims that governments and authorities target.

Islam, since it has a balanced criterion that distinguishes good from evil, embodied in entrusting the ruling on things as good and evil to their Creator — so whatever He regarded as good is good absolutely in all ages, cities and creatures, and whatever He decreed as evil is evil absolutely and permanently — therefore among the most important functions and duties of Islamic government was that it should devote [p. 177] its efforts to commanding what is right and forbidding what is wrong.

The Noble Qur’an has spared us the trouble, since it explained the functions of government and the aims sought from it, saying: **“[They are] those who, if We establish them in the land, establish prayer and give zakat and enjoin what is right and forbid what is wrong. To God belongs the outcome of [all] matters”** [al-Ḥajj, 22:41].

So the Qur’an did not make spreading joy and happiness among the people one of the functions of government; for happiness is a general term whose instances differ with the difference of people, time and place, to the point that the criminal is gladdened by his crime and the thief is gladdened by his theft. So it is an ambiguous matter, and it is feared that it would be taken as a cover behind which every evil is committed. God forbid that the Qur’an should make such an ambiguous matter one of the functions of government.

If we let our gaze roam over what the Qur’an mentioned in enumerating the functions and duties of righteous government, we would find that they are the matters that achieve the goal sought from government. Below we undertake their quick review from this angle.

1 – Establishing the prayer

It is the first thing the Qur'an mentioned among the functions and aims of Islamic government. Perhaps the secular mentality, with its pure rationalism, does not arrive at the connection between prayer and government; but the truth — even from the perspective of secular principles — is what the Noble Qur'an mentioned. For the goal of spreading joy and happiness among people will never be achieved except if there is over them a ruling body that steers them to coordination and order; otherwise, if each of them were given free rein to attain his joy and comfort however he could, that would result in the spread of anarchy and the disruption of order.

Then it is self-evident that mere regulation by the stick of law does not suffice to attain that goal; rather there must for that be a conscious religious education which itself plays the role of motivator, carrying people to observe order even if there is no stick of administrative authorities over them. The meaning of that education is that a person should come to feel that he will stand one day before the Lord, glorified and exalted, and He will hold him to account for his deeds. This feeling, if it were rooted in his mind and became always before his eyes, would be the great barrier for him [p. 178] against committing any crime.

There is nothing more important in role and greater in effect for rooting this feeling and reviving it at every moment of life than the prayer. From this God the Exalted gave it precedence in His mention of it among the explanation of the functions of righteous government and its aims; and the Prophet ﷺ stressed its importance to the point of calling it the pillar of the religion; he gave it the greatest attention and emphasis in educating and training the Companions, and always led the people in it as far as he was able; and he showed the utmost joy when he saw — while in his illness in which he died — his Companions praying in congregation behind Abū Bakr al-Ṣiddīq, may God be pleased with him. He brought up his Companions to attend to it according to its worth; so it was among the most important of matters in standing and most preoccupying of mind, and the highest in standing and loftiest in rank in the era of the Rightly-Guided Caliphate, which is the splendid model of Islamic government, to the point that the caliphs in it were rulers and imams of the prayers at one and the same time.

Because of the strong connection among them between rulership and leading the prayer, the word "imam" became an expression for their commander, and "the lesser imamate" for leading them in their prayers. Such was their insistence to the governors and officials of government on establishing it that they regarded it as among the most important of their duties and greatest of their tasks. That becomes clear from what Mālik narrated in his *Muwaṭṭaʾ*, saying: "From Nāfiʿ, the client of ʿAbd Allāh ibn ʿUmar, that ʿUmar ibn al-Khaṭṭāb wrote to his governors: The most important of your affairs to me is the prayer; whoever preserves it and guards it has preserved his religion, and whoever neglects it is more neglectful of what is besides it."[1]

He followed this statement of his by explaining the prayer times in detail and elaboration, which also indicates the utmost of his attention to it. This letter of his was not a letter he sent to a relative or friend; rather it was a royal decree which he issued in his capacity as Commander of the Faithful and then sent to all the governors of his kingdom.

Likewise were our master ʿUthmān and our master ʿAlī, may God be pleased with them both, as they used to turn their attention towards teaching people the manner of ablution while they were caliphs, as Imam Abū Dāwūd narrated in his *Sunan* many stories of this kind.[2]

[1] *Muwaṭṭaʾ Mālik*, ed. al-Aʿẓamī (2/9), Times of Prayer, hadith no. 9. [2] *Al-Sunan* of Abū Dāwūd, chapter on the description of the Prophet ﷺ's ablution, hadith nos. 106–111.

[p. 179] Perhaps those infatuated with modern political theories, whose sight does not go beyond the glitter of matter, are astonished at the connection of prayer and ablution with politics and government. But those expert in the Sharia and acquainted with its method know very well that Islam tries to keep pace between the firm bond with God and spiritual awareness, and between politics, economics and other fields of life, side by side; and from this starting point its teachings in those fields cannot be separated from the aspects of spiritual awareness latent in them.

The Muslim, when he stands five times daily before his Creator in the prayer with the utmost humility and abasement, keeping present his standing before his Lord on the Day of Resurrection — this very state continues into what is after the prayer too, and pervades all the moments of his life. So he rises in the morning and enters the evening carrying within him an abiding sense of his responsibility for everything his hands earn and his feet lead him to. So do not ask about the extent of the role of this state in forming his personality and coordinating his life and organizing his deeds and his times. From this God the Exalted said: **“Indeed, prayer prohibits immorality and wrongdoing, and the remembrance of God is greater. God knows that which you do”** [al-ʿAnkabūt, 29:45].

So prayer prohibits wrongdoing by virtue of its reminding a person of God, glorified and exalted, and the feeling is awakened in him that God knows what he does and none of his deeds is hidden from Him. So a person does not dare to commit wrongdoing while he keeps present the existence of God with him and that He sees him and knows his doing and his deed?! No!

As for the secularists who do not acknowledge the prayer and its aforementioned role in principle, they deny this effect of it, relying on some exceptional cases of a few individuals, saying: the prayer of so-and-so did not prohibit him from immorality and wrongdoing; rather he was one who prays and commits such-and-such of the major sins at the same time.

We say to them: if we turned a blind eye to the exaggeration that usually accompanies the mention of these examples, and granted that their prayer does not prohibit them from immorality and wrongdoing, we would say that the ruling on a thing is not made by looking at one or two of its individuals; rather the few and the many in it must be taken into account. So if we were today to compare between those who are regular in establishing the prayer and others besides them, we would find [p. 180] the first group the most adorned of them with virtuous qualities of truthfulness, justice, trustworthiness and other virtues, and the furthest of them from indecencies, wrongs, lying, treachery, betrayal and other vices. This in an age in which there is no coordinated system for the spiritual awareness of those who pray and their religious education — so how would it be under the shade of an Islamic government that officially provides them with the possibilities of religious learning and culture, and makes available to them the opportunities for purifying the soul and refining character,

which are among its functions as a government that strives to fulfil the needs of the people and its religious requirements?

At any rate, because of the aforementioned standing of the prayer and its effect on reforming society, the Qur'an gave precedence to mentioning it among the purposes and aims of Islamic government.

2 – Paying the zakat

The second function the Noble Qur'an mentioned for Islamic government is that it see to the payment of zakat. That is so that it becomes clearly evident that it does not aim at the luxury and ease of the life of rulers and princes and at piling up wealth in their treasuries and accounts; rather it strives — in compliance with the ruling of God — to improve the condition of the poor economically and help them in providing the necessary needs for them. Second, because zakat plays its role in uprooting the motives of selfishness and love of the world — which is the head of every sin — from the one who pays it on one side, and creating sentiments of altruism in him on the other. Third, because zakat is a purification of man's wealth and an attempt to straighten his conduct in the world of wealth, just as prayer purifies his very self and is a way to straighten his manner of life.

3 & 4 – Commanding right and forbidding wrong

The third and fourth functions of Islamic government: that it undertake commanding what is right (*al-maʿrūf*) and forbidding what is wrong (*al-munkar*). Let it be known that the Qur'an made the undertaking of these two matters the function of every Muslim and his duty in general, saying: **"You are the best nation produced for mankind: you enjoin what is right and forbid what is wrong and believe in God"** [Āl ʿImrān, 3:110].

But it is in different degrees and many ranks, which the Prophet ﷺ explained by his saying: "Whoever of [p. 181] you sees a wrong, let him change it with his hand; if he is unable, then with his tongue; if he is unable, then with his heart — and that is the weakest of faith."[1]

The jurists have detailed these ranks with elaboration and explanation, whose upshot is: that the attempt to change the wrong with the tongue is the function of every Muslim, on condition that he not fear that there will befall him — in its wake — a harm he cannot bear or endure. As appears in another hadith, which al-Haythamī mentioned attributing it to al-Bazzār and al-Ṭabarānī, that Ibn ʿUmar said: "I heard al-Ḥajjāj give a sermon, and he mentioned words which I disapproved of, and I wanted to change [it]; then I remembered the saying of the Messenger of God ﷺ: 'It is not fitting for the believer to humiliate himself.' He said: I said: O Messenger of God, how does he humiliate himself? He said: He exposes himself to affliction for what he cannot bear."[2]

As for disapproving with the heart, it is obligatory on every Muslim as well; and it is the weakest rank of faith.

Some of the scholars held that disapproving with the heart is not a rank among the ranks of changing; rather its outcome is changing with the tongue itself, and the meaning is that he disapproves of it in the heart with an intense disapproval that brings about anxiety and distress in it, which urges him and

carries him to try to change it with the tongue by continuous attempts until he eliminates that wrong and annihilates it.

As for changing it with the hand, it is the function of the commanders (*al-umarāʾ*), as appears in *al-Fatāwā al-Hindiyya*: "And it is said: commanding right with the hand is for the commanders, and with the tongue for the scholars, and with the heart for the common people; and it is the choice of al-Zandawaysatī; thus in *al-Ẓahīriyya*."[3]

What is meant by "the commanders" here is everyone who has obtained some authority and influence, to the point that the head of the family, if he saw a wrong in it, must use that authority of his to put an end to that wrong. Whoever has influence in an institution must undertake changing the wrongs that occur in it, using that authority of his. But the greatest responsibility in it falls on the shoulders of the head of state, because of what he has

> [1] *Ṣaḥīḥ Muslim* (1/69), Faith, chapter on forbidding wrong being part of faith, hadith no. 78 – (49). [2] *Majmaʿ al-Zawāʾid wa-Manbaʿ al-Fawāʾid* (7/274), [chapter on one who fears harm to others and to himself], hadith no. 12169. [3] *Al-Fatāwā al-Hindiyya* (5/353), Book of Disapproved Matters, chapter seventeen.

[p. 182] of complete authority, absolute sovereignty and full influence. So it is not permissible for him to content himself with admonition and advice only; rather he must put an end to the wrong by using all his authorities and his apparatuses.

Since the government is the one charged with changing by the hand, which is the highest of the ranks of commanding right and forbidding wrong, the Qur'an mentioned them among the purposes of government, its aims and its duties. Accordingly, they form a great basis for legislation and the administration of authorities in Islamic government.

As I mentioned more than once, secular democracy is empty-handed and devoid of the absolute fixed criterion that estimates right and wrong for it and distinguishes good from evil for it. So no value of life remains among them that enjoys being good and right absolutely, fixed forever. Rather its standing is subject in every age and city to the opinion of the majority of people in it: whatever they approve is right whatever it may be, and whatever not, not! Even if it were granted that they too have some fixed principles and values that do not accept change — like non-violence as a principle, respect for the human being, and equality between man and woman, and others — we say: they are ambiguous terms that have not yet been defined with a consistent definition, and their explanations and interpretations differ from time to time. So nothing remains among them, then, that could be regarded as good absolutely and permanently.

As for right and wrong from the Islamic point of view, they are of two kinds: a kind that divine revelation — recited or otherwise — has specified and defined and expressly stated; this remains in its character through the passage of ages and the succession of eras without there being any possibility in it of change with the change of time or place or people or anything else. The second: what revelation has not expressly stated; rather its matter was entrusted to the social conscience of the Muslims — and it is that in which the current saying came: "Whatever the Muslims see as good is good with God, and whatever they see as bad is bad with God."[1] And although the hadith scholars

regarded it as mawqūf [i.e. a saying of a Companion, not of the Prophet] on Ibn Masʿūd, may God be pleased with him, and said: the chain by which Ibn al-Jawzī narrated it in *al-ʿIlal al-Mutanāhiya* has in it a fabricating narrator, so it carries no weight — the jurists and the scholars of uṣūl nevertheless usually mention it as a saying of the Prophet ﷺ, perhaps because it is not something attainable by analogy, since it is unlikely that

> [1] Narrated by Aḥmad and others from ʿAbd Allāh ibn Masʿūd, may God be pleased with him, as mawqūf, no. 3600 (*Musnad Aḥmad*, al-Risāla ed., 6/84); and Aḥmad said in the chapter on the night prayer of the month of Ramaḍān of his *Muwaṭṭaʾ* [sic: presumably Muḥammad al-Shaybānī, in his recension of the *Muwaṭṭaʾ*]: narrated from the Prophet ﷺ.

[p. 183] the Companion said it merely by his own opinion; rather he must have heard it from the Prophet ﷺ. The scholars of the Umma have agreed on accepting it as an accepted principle, whose scope of operation is: the matters not expressly stated in the Book and the Sunna. As for the matter on which these two basic sources, or one of them, have stated expressly that it is right or wrong, the Muslims all together will not be able to change its condition and move it from one category into the other.

So it has become clear from that that Islam has divided matters in terms of their being good and evil into two parts:

The first: what of them is absolute good (Absolute virtue) or absolute evil; they are the matters concerning which a text has come in the Qur'an or the Sunna. So they remain forever in the character which the Qur'an or the Sunna specified for them, of being good or evil, right or wrong; there is no room for human reason to legislate concerning changing their position. That is like the obligation of prayer and the prohibition of wine, pork, usury and so on.

The second: the permissible matters concerning which no text has come from the Book or the Sunna; rather the Sharia has entrusted that to the Umma all together, to undertake in every age, through consultation among its children, to choose what is most beneficial for it and most fitting for its condition. Whatever they approve of these matters is good, and whatever they do not approve is not. That is like the ways of construction and building, agriculture and irrigation, traffic rules and the instruments and equipment of war, and other matters in which preference may differ, and the specification of what is most appropriate among them, according to the difference of the situations of a time and the requirements of a place and the psychology of human generations. In this category fall the matters in ruling on which the Sharia has taken human customs and traditions into account.

This makes clear the difference between Islam and democracy: democracy has entrusted the ruling on all things to human reason, to choose in every age by its majority what it sees as appropriate for it and achieving its interests; whereas Islam — as is its way — has put matters in their proper places: it enacted explicit legislation in the matters that are beyond the grasp of human reason, and which would be likely sites of slip and error for it if it were left to itself in ruling on them — this on one hand. On the other, it did not bind it with explicit rulings in the matters that fall within the scope of its experience; rather it gave it free rein [p. 184] in them to choose by consultation what it sees as appropriate to it and to its circumstances and interests.

5. Establishing justice and fairness

The fifth function of Islamic government in the light of the teachings of the Qur'an is: establishing justice and fairness. God the Exalted said to David, upon him be peace: **"O David, indeed We have made you a vicegerent upon the earth, so judge between the people in truth and do not follow [your own] desire, as it will lead you astray from the way of God"** [Ṣād, 38:26].

So He commanded David, upon him be peace, in his capacity as a vicegerent, to judge among people in truth — which indicates that judging among the subjects in truth and establishing justice and fairness among them is among the duties of Islamic government and the aims sought from it. Judging in truth covers observing justice and fairness both in judicial rulings and administrative matters together.

It is necessary to draw attention here to what we have presented more than once: that justice and fairness are two terms which each person can explain according to what he desires. But the truth is that justice in the terminology of the Qur'an is nothing but what God and His Messenger regarded as justice. As for the interpretations of justice other than that which clash with the rulings of the Sharia, they are not justice; rather injustice, aggression and the following of desire only. From this God the Exalted mentioned — in the same verse — the following of desire in the context of contrast with judging in truth, and drew attention to its leading astray from the way of God.

So the judicial ruling, if it clashes with a ruling of God's rulings and contradicts it, is not justice; rather it is injustice and tyranny, as God, glorified and exalted, said: **"And whoever does not judge by what God has revealed — then it is those who are the wrongdoers"** [al-Māʾida, 5:45].

He commanded the Prophet ﷺ to judge with equity (*al-qisṭ*), saying: **"And if you judge, judge between them with equity. Indeed, God loves those who act equitably"** [al-Māʾida, 5:42]. After that He commanded him to judge by what God revealed, saying: **"So judge between them by what God has revealed and do not follow their inclinations"** [al-Māʾida, 5:48] — which indicated that judging with equity is nothing but judging by [what] God [revealed], and whatever is other than that is only the following of desire.

The gist of the discussion: you do not see a government among governments but it openly claims [p. 185] to establish justice and equity and fulfil their requirements according to its own invented notions of them. The truth is that justice and judging in truth and equity and fairness — all these words convey one meaning, namely: that the ruling be in accordance with the rulings of God the Exalted which He revealed Himself in the Qur'an, or the Prophet ﷺ taught them, so they reached us by way of his hadiths.

As an example of that let us take democracy: it does not cease claiming that it strives to establish justice and fairness, and that all are equal before it in the implementation of the law on them without difference between one and another. But it is a claim contradicted publicly by the observed external reality: at the same time there are many democratic societies that still grant the head of state, by an exception in the constitution, that he not be tried nor be a litigant at all in any court. So what justice is

this, then?! But they still defend this position, which contradicts all the requirements of justice, and do not regard it as anything of injustice!

It also clearly and explicitly contradicts the concept of justice from the Islamic point of view; for Islam does not reserve for anyone — head of state or other — the right to exception from the law, as the Prophet ﷺ said: “Those before you were destroyed only because when a noble among them stole, they would leave him, and when a weak one among them stole, they would apply the ḥadd to him. By God, if Fāṭima the daughter of Muhammad stole, I would cut off her hand.”[1]

The radiant Islamic history is full of many cases in which the head of state was taken to court and the judge ruled against him without fear or regret. Among that is what is reported of ʿAlī, may God be pleased with him, that the judge Shurayḥ ruled against him — while he was Commander of the Faithful — in favour of a Jewish dhimmī. So let us leave history to relate to us this splendid story with its astonishing details. Wakīʿ narrated in *Akhbār al-Quḍāt* with his chain from Shurayḥ; he said: “When ʿAlī, may God be pleased with him, set out to fight Muʿāwiya, he missed a coat of mail of his. When he returned, he found it in the hand of a Jew who was selling it in the market of Kufa. He said: O Jew, the coat of mail is my coat of mail; I did not give it away nor sell it. The Jew said: It is my coat of mail, and it is in my hand. He said: Between me and you is the judge.

[1] *Ṣaḥīḥ al-Bukhārī* (4/175), before the Book of Merits, hadith no. 3475; *Ṣaḥīḥ Muslim*, Ḥudūd, hadith no. 4378; *Jāmiʿ al-Uṣūl*, hadith no. 1879.

[p. 186] He said: So they came to me. ʿAlī sat beside me and the Jew in front of me. He said: Were it not that my opponent is a dhimmī, I would have sat level with him in the session; but I heard the Messenger of God ﷺ say: ‘Belittle them as God has belittled them.’ [Tr.: so in the source.] Then he said: This coat of mail is my coat of mail; I did not sell it nor give it away. So he said to the Jew: What do you say? He said: It is my coat of mail, and it is in my hand. Shurayḥ said: O Commander of the Faithful, do you have evidence? He said: Yes — al-Ḥasan my son and Qanbar testify that the coat of mail is my coat of mail. Shurayḥ said: O Commander of the Faithful, the testimony of the son for the father is not permissible. ʿAlī said: Glory be to God! A man of the people of Paradise — his testimony is not permissible? I heard the Messenger of God ﷺ say: al-Ḥasan and al-Ḥusayn are the two lords of the youth of the people of Paradise. The Jew said: The Commander of the Faithful brought me before his judge, and his judge rules against him! I bear witness that this religion is in the right, and I bear witness that there is no god but God and that Muhammad is His servant and His messenger, and that the coat of mail is your coat of mail, O Commander of the Faithful. It fell from you at night. He set out with ʿAlī fighting with him at al-Nahrawān, and was killed.”[1]

The presentation of this splendid model of observing the requirements of justice, and of trying the commander and the judiciary ruling against him, was not confined to the era of the Rightly-Guided Caliphate; rather it continued and followed in the Islamic governments after it too. Among that is what al-Kindī narrated in *Kitāb al-Wulāt wa-Kitāb al-Quḍāt* with his chain from ʿUbayd Allāh; he said: my father told me, he said: “When the black-clad ones [the Abbasids] came, they returned Khayr ibn Nuʿaym to the judgeship. ʿAbd al-Malik ibn Marwān came to him in a dispute with a cousin of his, and sat on his [the judge’s] carpet. He said: Get up [and sit] with your cousin.”[2]

Likewise the Caliph al-Manṣūr's wife sued him before the judge Ghawth ibn Sulaymān, and she appointed an agent for herself; when the time of the ruling came, the judge asked the Caliph to sit level with the wife's agent in the session, and the Caliph's answer was nothing but submission, as is reported in history: he came down from his carpet and sat with the opponent.[3]

Add to that that in most modern democratic empires the head of state has been granted the right of pardon for criminals and of reducing their punishments whatever their crime,

> [1] *Akhbār al-Quḍāt* (2/200), what was narrated from Shurayḥ the judge from the Musnad. [2] *Kitāb al-Wulāt wa-Kitāb al-Quḍāt* of al-Kindī (1/257). [3] *Kitāb al-Wulāt wa-Kitāb al-Quḍāt* of al-Kindī (1/271).

[p. 187] to the point that he is not constitutionally obliged to disclose its justification. We can estimate the extent of the suitability of this situation to the question of justice and fairness if the court sentenced a murderer to execution by hanging, for example, after examining the necessary testimony, taking the required measures and observing the established judicial rules, and the higher courts — the court of appeal and others — upheld it, consuming many years and the skills and time of government officials, and exorbitant judicial fees and expenses were spent in the way of arriving at it. When the matter reached its end and the criminal was about to receive his punishment, the head of state surprised [everyone] by using his authority to pardon the criminal and cancel his punishment — disappointing the hopes of the victim's family and nullifying the labours of judges and lawyers. By God, tell me: what justice is this and what fairness is that?!

Islam never acknowledges this principle, as is clear from the hadith which we mentioned part of earlier; and here it is for you in its text with Imam al-Bukhārī as follows: "From ʿĀʾisha, may God be pleased with her, that Quraysh were concerned about the matter of the Makhzūmī woman who had stolen. They said: Who will speak about her to the Messenger of God ﷺ? They said: Who dares [to do so] except Usāma ibn Zayd, the beloved of the Messenger of God ﷺ? So Usāma spoke to him. The Messenger of God ﷺ said: 'Do you intercede concerning one of the ḥudūd of God?' Then he stood and gave a sermon, then said: 'Those before you were destroyed only because when a noble among them stole, they would leave him, and when a weak one among them stole, they would apply the ḥadd to him. By God, if Fāṭima the daughter of Muhammad stole, I would cut off her hand.'"[1]

Add also that most of the states belonging to secular democracy implement on all citizens, in disputes and family matters, unified laws without taking into account the schools (*madhāhib*) they follow and the religions they profess. So a great number of those who inhabit those states — including the Muslims — are compelled to act by what does not agree with their school and law in the individual affairs of marriage, divorce, inheritance, bequest and so on. That is nothing but a disgrace and stigma on the brow of secularism, which loudly proclaims that every individual is permitted to follow whatever schools and religions he chooses! How then does the poor man act according to his school while he is fettered in the restrictions of following the man-made family laws of the state absolutely, even if they are contrary to the teachings of

> [1] *Ṣaḥīḥ al-Bukhārī* (4/175).

[p. 188] his school?! What justice is this — or is it injustice and aggression?

Whereas Islamic government is obliged to permit every citizen to act, in these individual affairs, by the schools he believes in and the religions he follows; so the following principle was established among them: “Leave them and what they profess.”[1]

The upshot of this question is that non-Muslim citizens in the Islamic state are obliged to follow its general laws only. As for the individual affairs and private matters related to a person’s religion and his creed, they are not obliged in them to follow the laws of the state; rather they are entirely free in them to follow the laws of their schools to which they belong. This is the true justice that Islam presents, unlike what secular democracy merely claims!

[1] *Al-Taqrīr wa-l-Taḥbīr ʿalā Taḥrīr al-Kamāl ibn al-Humām* (2/310), question of specifying the Sunna by the Sunna.

Authority is a responsibility, not a right!

Authority (*al-imāra*) in the light of the teachings of the Qur’an and Sunna is a responsibility that weighs heavy on the shoulders of whoever undertakes its burdens, and not a right worth striving and expending effort to obtain. The Prophet ﷺ said: “The imam is a shepherd and is responsible for his flock.”[2]

Hence naturally a person should deal with it as with other responsibilities: to be wary of it and to try to escape from it as far as he can. But if it comes to that and he is compelled to accept it and undertake its burdens, let him devote his effort to performing it and carrying out its functions as a heavy trust and a great responsibility, not as a source of pride, distinction and honour.

Among what came in the hadith is that Abū Dharr, may God be pleased with him, showed his desire for authority before the Prophet ﷺ; so the Prophet ﷺ said to him: “O Abū Dharr, you are weak, and it is a trust, and it is on the Day of Resurrection a disgrace and regret — except for one who takes it by its right and fulfils what is upon him in it.”[3]

[2] *Ṣaḥīḥ al-Bukhārī* (2/5), chapter on the Friday prayer in villages, hadith no. 893. [3] *Ṣaḥīḥ Muslim* (3/1457), chapter on the dislike of authority without necessity, hadith no. 4683.

[p. 189] In a version narrated by Imam Abū Dāwūd, the Prophet ﷺ said to him: “O Abū Dharr, I see you are weak, and I love for you what I love for myself; so do not take command over two, and do not take charge of the property of an orphan.”[1]

Abū Hurayra, may God be pleased with him, narrated from the Prophet ﷺ that he said: “You will be eager for authority, and it will be regret on the Day of Resurrection; how excellent is the wet-nurse and how evil is the weaning one.”[2]

The meaning is that authority at first pleases a person and delights him; but when a person is held to account for it in this world or the Hereafter, he discovers the gravity of its position and the weight of its responsibility. From this the Prophet ﷺ said to al-Miqdām ibn Maʿdīkarib, may God be pleased with him: “You have succeeded, O Qudaym, if you die and have not been a commander, nor a scribe, nor a chief (*ʿarīf*).”[3]

So look at the great difference between what the Qur'an and the Prophet ﷺ say — that authority is an enormous, grave responsibility, not a bed of roses but a bed of thorns and briars — and between what people today are disposed to regarding it: that whoever obtains it has been granted a great happiness that brings him its benefits and realizes his interests for him; and so deserves the warmest congratulations and the brightest words of blessing, while the one denied this great good fortune is the one to be pitied. How far apart are the two ideas!

The Rightly-Guided Caliphs, aware of the gravity of the position, trembled with fear of falling short in performing the duties of this responsibility, as is reported of ʿUmar, may God be pleased with him, that he said:

"If a camel died lost on the bank of the Euphrates, I would fear that God would ask me about it."[4]

Shortly before his death, when people began to praise him, he said: I wish that I came out of it even, neither against me nor for me.[5]

> [1] *Sunan Abī Dāwūd* (3/114), chapter on what came about entering into wills, hadith no. 2868; *Jāmiʿ al-Uṣūl* (4/56), hadith no. 2036. [2] *Ṣaḥīḥ al-Bukhārī* (9/63), Book of Judgements, chapter on what is disliked of eagerness for authority, hadith no. 7148; *Sunan al-Nasāʾī*, Book of the Pledge, what is disliked of eagerness for authority, hadith no. 4216. [3] *Sunan Abī Dāwūd* (3/131). [4] *Al-Ṭabaqāt al-Kubrā*, Dār Ṣādir ed. (3/305), mention of the appointment of ʿUmar as successor. [5] *Ṣaḥīḥ al-Bukhārī* (5/16), Book of Merits, chapter on the story of the pledge, 3700.

[p. 190] Indeed, al-Ṭabarī narrated in his history that a man proposed to him at that time that he appoint his son ʿAbd Allāh as successor. He was angry with him and said to him:

"Woe to you! How could I appoint as successor a man who was unable to divorce his wife [properly]!"[1]

He continued, saying:

"It is enough for the family of ʿUmar that one man of them be held to account and asked about the affair of the Umma of Muhammad. As for me, I have exerted myself and deprived my family; and if I escape even, neither burden nor reward, I am indeed fortunate."[2]

> [1] An allusion to what happened with ʿAbd Allāh ibn ʿUmar once, that he divorced his wife while she was menstruating. [2] *Tārīkh al-Ṭabarī = Tārīkh al-Rusul wa-l-Mulūk*, and *Ṣilat Tārīkh al-Ṭabarī* (4/228), the story of the Shūrā.

Chapter Three: A Study of the Issues of Forming a Government from an Islamic Perspective

Introduction

In this chapter we would like to set out the basic principles that Islam has granted concerning the formation of the government that will aim at its goals and perform its functions mentioned a little

earlier. We shall study in it many of the issues that relate to the aforementioned heading from an Islamic perspective.

1 – Islam's position on seeking authority

Since it has become clear from what we mentioned at the end of Chapter Two that Islam sees authority as a grave responsibility and not a right, it does not permit a person to seek authority and ask for it and exert his efforts and spend his attempts in attaining it. As is indicated by the prohibition in a hadith which Imam al-Bukhārī included in his *Ṣaḥīḥ* from Samura ibn Jundab, may God be pleased with him, that the Messenger of God, God bless him and give him peace, said to him: "Do not ask for authority; for if you are given it as a result of asking, you will be left to it [alone]; and if you are given it without asking, you will be helped in it."[3]

[3] *Ṣaḥīḥ al-Bukhārī* (8/127), Book of Oaths, 6622.

[p. 191] A hadith has also come concerning seeking the judgeship, which is like an explanation and clarification of this hadith mentioned above, namely what al-Tirmidhī included from Anas, may God be pleased with him, as marfūʿ [attributed to the Prophet]: "Whoever seeks the judgeship and asks for intercessors in it is left to himself; and whoever is compelled to it, God sends down upon him an angel who guides him aright."[1]

So this hadith indicated that the meaning of "he is left to himself" is that whoever obtains these posts and reaches these ranks by seeking and attempts on his part through seeking intercession for them and other things, God does not help him nor support him in performing the tasks of his post in anything; rather He entrusts his affair to himself, so that it takes him to whatever watering place it wills and leads him astray in whatever valley it wills! May God protect us from it. It is a severe threat, the full severity of which — and hence the seriousness of this man's predicament — can hardly be grasped except by one who believes in God, glorified and exalted, and believes that a person does not conclude a matter nor accomplish a work except if success accompanies him in it and help from Him, mighty and exalted, goes with him in it.

It is narrated in another hadith from Abū Mūsā al-Ashʿarī, may God be pleased with him, that he said: "I entered upon the Prophet ﷺ, I and two men of my people. One of the two men said: Make us commanders, O Messenger of God; and the other said the like of it. He said: 'We do not appoint over this one who asks for it, nor one who is eager for it.'"[2]

Here is another hadith which al-Bukhārī included from ʿAbd Allāh ibn ʿAmr, may God be pleased with him, that the Messenger of God ﷺ said: "And you will find among the best of people the most intensely averse of them to this matter until he falls into it."[3]

So these hadiths indicated clearly and explicitly that asking for authority and seeking office are not permissible, and that it makes whoever asks for it and aspires to it a person unfit for it.

[1] *Sunan al-Tirmidhī*, ed. Shākir (3/606), Book of Judgements, hadith no. 1324; *al-Sunan* of Abū Dāwūd, Book of Judgements, hadith no. 3578; *Musnad al-Imām Aḥmad*, hadith no. 12184. [2] *Ṣaḥīḥ al-Bukhārī* (9/64), chapter on what is disliked of eagerness for authority, hadith no. 7149. [3] *Ṣaḥīḥ al-Bukhārī* (4/196), Book of Merits, hadith no. 3588.

[p. 192] While some held the permissibility of asking for authority and seeking office, arguing by what the Noble Qur'an mentioned of Joseph, upon him be peace — that he sought it from the king of Egypt, saying: **"Appoint me over the storehouses of the land. Indeed, I will be a knowing guardian"** [Yūsuf, 12:55].

The matter went further with some, in that they argued by it — in view of Joseph, upon him be peace, having sought it and expressed his competence and fitness for it by explaining his qualities and qualifications — that it is permissible for a person today to stand as a candidate in elections and disclose before people what he has of qualities, virtues and qualifications, so as to draw them to cast their votes for him at the time of balloting and voting.

The answer to this argument is from two aspects:

The first of them: that Joseph, upon him be peace, came to know of the king's resolve to appoint him — on the king's own initiative, not at Joseph's request — to one of the posts of government; he knew this from the king's words which God mentioned just before this verse: **"And the king said: 'Bring him to me; I will appoint him exclusively for myself.' And when he spoke to him, he said: 'Indeed, you are today established [in position] and trusted with us'"** [Yūsuf, 12:54]. So when he knew that the king was determined on accomplishing that resolve of his, the question remained about specifying the post which he would entrust to him. So at this stage he asked him to make him over the storehouses of the land. So it is not correct, then, to say that he asked for office or post in the meaning that the Sharia has forbidden; for he did not send the king a request from prison asking to be appointed to a post, nor did he spend money for it or seek intercession for it. So how then is it correct to argue by it for the permissibility of what goes on today in political circles at the time of elections?!

Second: what we presented of the prohibition of asking for authority and seeking office is the original ruling of the Sharia, while the Sharia itself permitted seeking it in some special exceptional cases, as we shall clarify shortly, God willing. So it is possible to interpret the action of Joseph, upon him be peace, as having been in that exceptional case in which seeking office is permitted.

There is a hadith by which some may argue for the permissibility of seeking office, namely what Abū Dāwūd narrated in his *Sunan* from Abū Hurayra, may God be pleased with him, from the Prophet ﷺ: he said: "Whoever seeks

[p. 193] the judgeship of the Muslims until he obtains it, then his justice prevails over his injustice, for him is Paradise."[1]

But we say: leaving aside what is in its chain from the words of the hadith scholars, it can also be interpreted as that exceptional case in which the Sharia permits seeking office.

The detail of that is that the hadiths have conflicted in this issue: some of them show that asking for authority is not permissible — and it is what we presented earlier; and among them is what indicates its permissibility — and it is the hadith we mentioned just now. The scholars of the Sharia have put both these kinds into effect by reconciling them: that the principle is the prohibition of asking for authority and the prohibition of seeking office. But perhaps there arises a case in which a person feels with certainty that if he did not seek office, those who are not competent in it would take charge of it, which would result in usurping the rights of the Muslims and wronging them. So in such a case it is

permissible for him to ask for it, on condition that he have a desire in it for establishing the truth, and fear that someone undeserving will take it on, and that his intention not be status and display. This is the position which al-Qāḍī Abū Yaʿlā al-Ḥanbalī (may God have mercy on him) held in *al-Aḥkām al-Sulṭāniyya*, and a group of the later scholars supported it, among them ʿAllāma Ẓafar Aḥmad al-ʿUthmānī (may God have mercy on him) in his valuable book *Iʿlāʾ al-Sunan*.

The upshot of what we presented is that in the general run of cases it is not permissible to seek authority; and excepted from it is when it has become incumbent on a person to seek it, namely if he fears that if he did not seek it, it would go to one who does not deserve it nor is qualified for it, which would lead to corruption and the loss of the rights of the Muslims. So in this exceptional case it is permissible for him to seek it with the aim of reform and establishing the truth, not of obtaining status and rank.

The alternative form to candidacy in elections

The foregoing detail has raised in turn a question in the mind of every reader: that since it is established that seeking authority is a matter not permissible in the Sharia in the general run of cases, what then will fill the place of candidacy for parliamentary membership, on which the electoral structure in this age of ours stands? For if there is no candidate, then in favour of whom will the voting be, and how?

> [1] *Sunan Abī Dāwūd* (3/299), chapter on the judge who errs and is correct, hadith no. 3575.

[p. 194] Before going deep into answering this question, it is fitting for us to draw our attention to an important point which may remove the veil from our eyes in many issues that have a connection and similarity with this issue of ours, namely that whenever a system or method has prevailed on the international scope and found currency and acceptance in all or most of the world, it becomes rooted in people's minds such that they do not look to other than it — what could be made an alternative that substitutes for it and takes its place in its work; rather they see it as not worthy of thinking about and not capable of implementation at all. Whereas if they freed themselves in thinking about it from the influence of the environment in which they live, they would find it as capable of implementation as its original, with all ease and simplicity.

Candidacy for elections is likewise. First, it is not universal throughout the world; rather there are several other formulas which — even in this age of ours — flourishing states have adopted for elections with ease and success: in one state there is the system of proportional representation; in another two-round voting (Second ballot); and in another: the transferable vote. So it is not correct, then, to regard the prevailing method as a necessity whose place nothing else can fill at all. Rather, if it were rooted in the mind once that seeking authority — besides its being impermissible in the Sharia — is an evil that has brought down our political system, then offering an alternative to it would no longer seem as difficult as people imagine.

We propose here an alternative to the system of contemporary candidacy, which can be adopted with ease on one hand, and which will eliminate the social and economic evils that human society faces as a result of it on the other. Its detail: that the inhabitants of every electoral district be asked to nominate

in their turn, to represent them in the membership of parliament, persons possessing specified qualifications for membership: scholarly attainments, social service, practical experience, moral conduct and so on. Let the elections committee undertake to specify a special number — of 500 or 1,000 or other — so that if the number of nominators from the inhabitants of an electoral district in favour of one of the candidates reaches that specified number, let the committee review whether this nomination is genuine or falsified, through examining and discovering several matters: do the nominators

[p. 195] actually inhabit that electoral district or not? Did they truly reach the specified required number or not? Is the person whom they nominated qualified to stand in the elections, having the required qualifications, or not? After ascertaining these matters, let the committee accept his candidacy papers for membership. So if those for whom the nomination reached the specified number were more than one, then for choosing one of them let it call people to vote and ballot in favour of one of these.

Instead of the candidate himself undertaking to call people to cast their votes — which usually drags him into self-praise, false promises about his future after success, disparaging the competitors among the other candidates, and spending exorbitant sums in that, as is prevalent today — let the elections committee itself undertake the task of publicizing them and introducing them to the voters using the media of all kinds, and let it arrange interviews and meetings for them if it feels a need for them. Thus people will become acquainted from close by with the candidates in their electoral districts with a true acquaintance not mixed with praises and claims; and their scholarly qualifications, and their conduct in their past, and the extent of their understanding of the matters of their present and the issues of their people, and their being adorned with the noble qualities of truthfulness, trustworthiness and so on.

As for today, the candidate does not content himself with deceiving people and raising their hopes with false promises only; rather he spends on publicizing himself and introducing himself to the voters exorbitant sums and vast amounts of money. So its consequence was that it no longer remained possible for anyone to stand as a candidate except one who has surplus of these exorbitant sums beyond his needs on one side; and on another side, the one who spends it usually sees it as a profitable investment that yields him, after winning, more than what he spent, by fraud and embezzlement of state funds.

In view of this, in our prevailing political environment and system it has become almost impossible for truthful, trustworthy men of sound thought and sincere intention to ascend the thrones of government through elections.

From this I am confident that if this proposed alternative to the system of contemporary candidacy were accepted, and publicity were carried out by the elections committee alone, without allowing anyone

[p. 196] to use its prevailing widespread means, it would go a long way towards eliminating the evils we have just mentioned.

On the day of balloting, let it likewise be entrusted to it — not to the candidates — to run the camps outside the polling stations from which voters collect their papers, so that the last door is closed through which public opinion could be negatively influenced by the mechanisms of pressure on voters, encouragement and inducement.

The system (CONVINCING) [sic: canvassing] has actually been abandoned in some states; rather they have come to content themselves, after registering the names of the candidates, with conducting interviews and dialogues with them and broadcasting them on the visual and audio media only, without conducting election campaigns and meetings, nor blackening the walls of the public and distorting them with advertisements and banners full of praise and false promises.

It will also serve, as a successful alternative system, to enable the people to exercise their right to vote with full freedom and independence — a right the feudal lords had taken from them, so they became subject to them and to their wills, such that no role remained for them in voting except using their fingers like a machine programmed to put the ballot paper in the special ballot box only, without that being by consent from them and voluntarily!

What adds insult to injury is what has prevailed in our country of the single-member system, in the sense that from an electoral district — regional or national — only one candidate is elected, represented by whoever obtains the largest number of votes even if they are very few relative to all the voters in that district. An example of that: if the candidates from an electoral district were ten persons, and nine of them obtained a thousand each, while one of them obtained two thousand votes, he is regarded as the winner, even though the opinion of most voters in that district goes to the opposite of it. By contrast, if wide electoral districts were taken, and the system of multi-member representation were chosen — that from a large district four members are elected according to their ranks in obtaining votes, whether by the transferable votes or otherwise — that would go a long way towards ending this evil.

[p. 197] We repeat here what we presented earlier: that Islam in the field of politics contented itself with legislating basic principles only, and entrusted the forms of their application and the formulas of their practical implementation to the scholars of the Sharia and those expert in it in every age and city. So the principles of Islam in the field of forming the government are embodied in these two principles: the prohibition of seeking authority, and founding it on consultation (*shūrā*). But it gave them flexibility that makes them fit to keep pace and go along with every age and every time. So there is scope for the scholars of the Sharia and the people of insight among the Muslims to elaborate on the alternative we have just proposed and to work out more of its details and particulars in the light of their seasoned experiences and their expertise in the conditions of contemporary politics.

At any rate, it is clearly not impossible to present a practical alternative capable of implementation for the system of candidacy in contemporary elections, which agrees with the principles of the Sharia on one side and is free of the evils that are born of the prevailing system on another side.

The conditions and qualities that qualify a ruler for authority

Modern democratic systems usually do not specify special descriptions and conditions that must be present in the head of the country or the members of the legislature; rather they usually content themselves in that with what has been written in the constitutions: that he be a citizen of the country, holding its nationality, registered by name in the list of voters with their conditions, including that he has reached a certain age. They do not concern themselves with other conditions and qualities such as scholarly qualifications, practical experiences, moral conduct or anything else. Rather obtaining the largest number of votes is the only element among them that qualifies a person for the presidency of the country. From this we have often seen an ignorant person of bad character and conduct who ascended the throne of the presidency merely by his obtaining the majority of the voters' votes; so he becomes head of state even though his immersion in immoral activities is no secret; indeed, stories of it continue to circulate openly long after he has left office. Take for that, for example, John Kennedy, the first American president who made Russia surrender to his policies: the stories of his interest in sex and his immersion in its activities are still printed and prevalent to this day.

[p. 198] Whereas Islam is distinguished among those systems in that from the very beginning it attends to specifying conditions and descriptions that must be present in a person who intends the presidency of the country, and does not permit anyone to take charge of the presidency of the country and the authority over the Muslims as long as those conditions are not present in him and he has not obtained those descriptions. The scholars have in this subject extensive studies and long discussions; we spare you their trouble by presenting a brief summary of them in what follows, God willing.

The first condition

That he be of sound mind, adult, with sound senses.

The second condition

That he be a Muslim. That is because God regarded polytheism as a great wrong, saying: **"Indeed, association [with God] is great injustice"** [Luqmān, 31:13]; and He mentioned in another verse that the wrongdoer does not attain God's covenant latent in the authority over the Muslims and the government of their country, saying: **"My covenant does not include the wrongdoers"** [al-Baqara, 2:124]. The upshot of this is that the polytheist does not attain the covenant of God, glorified and exalted, at all; so it is not correct to make him Commander of the Faithful and ruler of their country.

It is self-evident that the Islamic state must have a Muslim head; because government from an Islamic perspective has its special functions and duties, and the aims which Islam seeks from establishing it — and these are matters and works which it would be futile to expect an unbeliever to perform and carry out properly.

Despite its being a self-evident matter, those who have wrapped themselves in the cloak of democracy and have come to look at all matters with a democratic view only have raised doubts and objections about it too, as was witnessed at the time of laying down the constitution for Pakistan. For the clause that means stipulating Islam for the office of the presidency of the country was among the clauses that stirred up discontent and poured out anger in democratic circles, as being an injustice to the non-

Muslim citizens. These doubts are nothing but the offspring of the democratic and nationalist ideas (*al-afkār al-dīmuqrāṭiyya wa-l-qawmiyya*) which were discussed

[p. 199] in detail earlier. But the matter at which the researcher's wonder never ceases is that many states — and they are among the first generation of the pioneers of democracy and the vanguard of its champions — have actually stipulated for the head [of state] the embrace of a particular school and belonging to a particular religion. Take Britain, for example: it has provided in its constitution that its headship is held only by one who belongs to the Protestant sect of Christianity. How astonishing! A state that has taken the slogans and garments of democracy, like Britain, provides in its constitution for a clause that contradicts the principles of democracy in an explicit contradiction and clashes with them in a clear clash! For democracy calls — and its principles require — that it allow the headship of the country to be held by any person whatever his religion. Britain contradicts it by restricting it with restrictions: that he be a Christian, and specifically of the Protestant sect, and in particular one who has a connection with the Church of England!

There are many other states — like Argentina, Colombia, Costa Rica and Malta — which claim to follow secular democracy while they have actually stipulated for their head that he be among the followers of the Roman Catholic Church. Denmark, Norway, Iceland and Sweden stipulate that he belong to the Lutheran Church. As for Greece, it did not lag behind others in this; rather it undertook and stipulated for its head that he be of the school of the Orthodox Church (Orthodox Churches). Likewise Israel committed itself to stipulating Judaism for its head, and the Kingdom of Nepal to stipulating Hinduism.

So if we presented these examples to the democrats, they would disown them by justifying that these states are not purely secular; rather they are states built on religious foundations.

So we say to them: just as these states mentioned above have not stipulated any religion for the post of head of the administration represented by the prime minister — rather they have allowed everyone to hold it regardless of his religion and school — reasoning that stipulating a particular religion for the prime minister means injustice to the citizens not belonging to that religion; this same reasoning can be used to argue for the prohibition of stipulating a particular religion for the head of state as well. For if it is granted that stipulating a particular religion

[p. 200] for the prime minister is an injustice, then by what is it taken out of the realm of injustice for the head of state?!

Further: if it is permitted among them for a state built on religious foundations to stipulate for its headship a particular religion, how much more so Islam, which declares with all clarity that the state is Islamic and its government an Islamic government built on religious foundations and principles — that it should naturally stipulate that its head belong to the religion of Islam and embrace its teachings! From this it was provided in the constitution of Pakistan — after fierce discussions in the days of laying down the constitution — in its capacity as an Islamic state, that Islam is stipulated for both the head of the country and the prime minister. So praise and thanks be to God for that.

The third condition: being male

The third condition for the head of the country is that he be male, not a woman. The evidence for that is the saying of the Prophet ﷺ: "A people who make a woman their ruler will never prosper."[1] He ﷺ said it when it reached him that the people of Persia had made the daughter of Chosroes queen over them.

It is narrated in another hadith which al-Tirmidhī included from Abū Hurayra; he said: the Messenger of God ﷺ said: "If your commanders are the best of you, and your rich are the generous of you, and your affairs are [decided by] consultation among you, then the surface of the earth is better for you than its belly. If your commanders are the worst of you, and your rich are the stingy of you, and your affairs are [handed] to your women, then the belly of the earth is better for you than its surface."[2]

In addition to that, the Sharia regards authority as an imamate, as was detailed earlier. The imamate is divided into two kinds: the greater, which is this, and the lesser, which is the imamate in the prayers. The scholars are agreed that the woman is not fit for the lesser imamate (i.e. to become an imam for men in the prayer); so how could it be said that she is fit for the greater imamate, with what it has of gravity and standing?!

It is a question on which the opinions of the scholars of the Umma have agreed, such that I do not know of any person

> [1] *Ṣaḥīḥ al-Bukhārī* (6/8), chapter on the letter of the Prophet ﷺ to Chosroes and Caesar, hadith no. 4425. [2] *Sunan al-Tirmidhī*, ed. Shākir (4/529), chapter 78, hadith no. 2266; and he said: This is a gharīb hadith.

[p. 201] among them who disagreed. But some attribute the saying of its permissibility to the Sage of the Umma, Shaykh Ashraf ʿAlī al-Thānawī (may God have mercy on him), relying on a fatwa of his within his collection of fatwas called *Imdād al-Fatāwā*. But it does not in fact go beyond being a fallacy in which these people have become entangled by error in their understanding of his fatwa. The detail of that is that His Eminence Shaykh al-Thānawī (may God have mercy on him) agreed in it with the majority of the Umma that the woman is not fit for the imamate of the Muslims; but he permitted her being prime minister, with the reasoning that the prime minister in the prevailing democratic system is not the head of the country and the holder of its affair in reality; rather he is part of the legislative council around which authority revolves in the democratic system. So since he denied that this post is regarded as the headship of the country and the obtaining of complete authority, he therefore permitted a woman to hold it.

The upshot is that his disagreement was not in an agreed Sharia matter; rather in a matter related to external reality. So in it there is room for talk and latitude for disagreeing with him; for the prime minister, even if he is not the head of the country, is nevertheless the head of administrative affairs and the executive authorities. My respected brother, His Eminence Shaykh Mufti Muhammad Rafi Usmani, may God preserve him, has an extended article in which he has investigated this question thoroughly, which is printed and in circulation.

They have called today to the philosophy of equality between man and woman with force and intensity, and have given it currency and acceptance in contemporary human society, such that anyone who opposes it simply makes himself a target for the well-aimed arrows of those who imitate

secularism blindly and sympathize with it foolishly. So when we speak of the woman's unfitness for authority, we know precisely that those deluded by the propaganda of renewal will attack us and stir up doubts and suspicions about this question. But instead of plunging with them into a fruitless debate, we would like to content ourselves here with relating a story that happened to me: a woman journalist representing the famous American magazine *Time* visited me, without prior notice, to interview me. She asked me to answer her questions on the question of the woman's headship and her fitness for that. So I said to her: it is futile for me to reply to your questions on this subject while you do not possess a sound idea nor a correct conception of government and its gravity

[p. 202] and of the woman and her standing in Islam. She was astonished at that and perplexed, and refused to go away until she heard from me the detail of this statement of mine. So I said to her: as for your conception of government, it is wrong; because you look at it as a privilege on which a person's happiness and prosperity turn; so the happy one among you is whoever obtains it, and the deprived is whoever is denied it. Hence if it were granted concerning someone that he will never obtain it, you would have the right to regard him as a person whose right has been usurped and whose benefit has been seized. As for Islam, it does not look at it as a privilege and an interest, but as a grave responsibility, such that whoever is burdened with it deserves compassion and sympathy. As becomes clear from what the Prophet ﷺ said to al-Miqdād [sic] ibn al-Aswad: "You have succeeded, O Qudaym, if you die and have not been a commander, nor a scribe, nor a chief"[1] — since he tied success to keeping far from this responsibility, not to obtaining it and bearing it!

Then I related to her the story of ʿUmar ibn al-Khaṭṭāb, may God be pleased with him, when it was suggested to him — while in the illness of his death — that he appoint as successor his son ʿAbd Allāh; he said: "It is enough for the family of ʿUmar that one man of them be held to account and asked about the affair of the Umma of Muhammad. As for me, I have exerted myself and deprived my family; and if I escape even, neither burden nor reward, I am indeed fortunate."[2]

So if it were granted that it is not a bridal bed of roses but a bed of thorns and briars — not a necklace with which one is adorned but a collar with which one is strangled — then by God tell me: which of the two kinds is more fitting to be regarded as happy: the one who risks being strangled by this noose, or the one who is safe from falling into this net?! Indeed, in view of the responsibility and gravity of government in Islam, we may rightly say that Islam has done women a great favour by keeping them safe from becoming entangled in this responsibility.

As for your idea of the woman's equality with the man, which drives you and your like to strive to achieve it, it is also wrong; because you look at the woman with the same view with which you look at the man, and you do not see any difference between their functions and the purposes of their life; while merely reflecting on the creation of the woman and her constitution will reveal the matter clearly before you, that God created her for the purpose

> [1] *Sunan Abī Dāwūd* (3/131). [2] *Tārīkh al-Ṭabarī = Tārīkh al-Rusul wa-l-Mulūk*, and *Ṣilat Tārīkh al-Ṭabarī* (4/228), the story of the Shūrā.

[p. 203] other than that for which He created the man. As for Islam, it sees her as a basis for civil life, beginning with her role in forming a secure, calm family from which many family bonds are born,

which multiply so that from them clans, tribes and peoples are formed. Undermining this foundation by removing the woman from her original functions for which God created her results only in the scattering of these bonds and the destruction of the family system — a destruction the West faces today and can find no way to repair, despite the anxiety it causes.

No sooner had she heard the words than astonishment took hold of her entirely. Since I had made clear to her before that I would not allow her to publish this dialogue of mine except in full, and that if it were cut I would reserve the right to sue her, it seems she has not published it in the magazine she represented to this day. At any rate, the West has stumbled in defining the functions of the woman and the purposes of her life, as some of the men of thought from the West have also acknowledged, among them Gorbachev, the last president of the Soviet Union; for he said in his book *Perestroika* that although the West, by taking women out of the home, gained some economic benefits, this has utterly destroyed its family system. The question of how to bring them back home has become widespread in its circles, in search of a convincing answer — for which perhaps no way remains!

The fourth condition: being from Quraysh

The evidence for that is what ʿAbd Allāh ibn ʿUmar, may God be pleased with them both, narrated from the Prophet ﷺ; he said: “This matter will remain in Quraysh as long as two of them remain.”[1]

What Muʿāwiya, may God be pleased with him, narrated from the Messenger of God ﷺ that he said: “This matter is in Quraysh; no one shows enmity to them but God throws him on his face, as long as they establish the religion.”[2]

Likewise Abū Hurayra, may God be pleased with him, narrated that the Prophet ﷺ said: “People follow Quraysh in this matter: their Muslim follows their Muslim and their unbeliever follows their unbeliever. People are [like] mines;

> [1] *Ṣaḥīḥ al-Bukhārī* (4/179), chapter on the merits of Quraysh, hadith no. 3501. [2] *Ṣaḥīḥ al-Bukhārī* (4/179), chapter on the merits of Quraysh, 3500.

[p. 204] the best of them in the Jāhiliyya are the best of them in Islam, if they gain understanding.”[1]

What al-Tirmidhī narrated, that a man of Bakr ibn Wāʾil said in the presence of ʿAmr ibn al-ʿĀṣ, may God be pleased with him: Quraysh had better desist, or God will place this matter in a multitude of Arabs other than them. ʿAmr ibn al-ʿĀṣ said: You have lied; I heard the Messenger of God ﷺ say: “Quraysh are the rulers of people in good and evil until the Day of Resurrection.”[2]

Jābir ibn ʿAbd Allāh, may God be pleased with them both, narrated from the Prophet ﷺ; he said: “People follow Quraysh in good and evil.”[3]

By these hadiths it has been argued that the commander and caliph is required to be from Quraysh, as becomes clear from the prevailing style in the books of jurisprudence and creeds in research on the subject of the imamate, where they mention it as a condition for the validity of the imamate. Al-Qāḍī ʿIyāḍ (may God have mercy on him) said: “Stipulating that the imam be from Quraysh is the school of all the scholars, and they have counted it among the questions of consensus, and no disagreement in it has been transmitted from any of the predecessors, and likewise from those after them in all the

cities. He said: And no account is taken of the saying of the Khawārij and those of the Muʿtazila who agreed with them, because of what is in it of opposing the Muslims."

Al-Ḥāfiẓ Ibn Ḥajar, however, discussed it in *Fatḥ al-Bārī*, the commentary on *Ṣaḥīḥ al-Bukhārī*; and al-Māwardī mentioned it in *al-Aḥkām al-Sulṭāniyya* in the context of the conditions concerning which the imams differed; and ʿAllāma Anwar Shāh al-Kashmīrī (may God have mercy on him) transmitted in *Fayḍ al-Bārī*[4], attributing it to *Mawāhib al-Raḥmān*, a report from Imam Abū Ḥanīfa (may God have mercy on him) that it is not a condition. ʿAllāma al-Rāfiʿī (may God have mercy on him) also transmitted that in *al-Taḥrīr al-Mukhtār*.[5]

What appears to me is that this means: if a non-Qurashī took power such that he acquired influence

> [1] *Ṣaḥīḥ al-Bukhārī* (4/178), Book of Merits, hadith no. 3495, 3496. [2] *Sunan al-Tirmidhī*, ed. Shākir (4/503), chapter on what came [to the effect] that the caliphs are from Quraysh until the Hour comes, hadith no. 2227; *Jāmiʿ al-Uṣūl*, hadith no. 2020. [3] *Ṣaḥīḥ Muslim* (3/1451), Book of Leadership, hadith no. 4667. [4] (4/498). [5] (1/681), Book of Prayer, chapter on the imamate.

[p. 205] and obtained control and dominance, his imamate would be validly concluded, exactly as it is concluded by seizure. It does not mean that the bodies that appoint the imam and choose the leadership are not obliged to observe this condition in whomever they choose for the imamate.

Some contemporary scholars attributed to ʿAllāma Ibn Taymiyya (may God have mercy on him) the saying that it is not stipulated[1]; but I did not find it in any of his books. Rather I found in them texts contradicting it, in which he mentioned what means that Islam did not base rulings on lineage except in several places, in consideration of what is generally the case; and he mentioned among their examples stipulating Qurashī descent for the imam.

As for the Imam of the Two Holy Sanctuaries [al-Juwaynī], he counted it among the points of disagreement and matters for consideration in his book *al-Irshād fī Uṣūl al-Iʿtiqād*, while he spoke about it in *Ghiyāth al-Umam fī Iltiyāth al-Ẓulam* (and it is called: *al-Ghiyāthī*), which he composed at the request of Niẓām al-Mulk al-Ṭūsī and deposited in it splendid discussions on the subject of Islamic politics not found in other books on the subject; and he wrote in a way which indicates that he does not see it as one of the qualities and conditions necessary for the imamate, but requires it only because of the continuous, uninterrupted practice of the Umma.[2] And likewise ʿAllāma Ibn Khaldūn attributed to al-Qāḍī al-Bāqillānī the saying that it is not stipulated; but al-Qāḍī al-Bāqillānī (may God have mercy on him) himself supported the position of stipulating it in his book *Tamhīd al-Awāʾil* (see pp. 174–373).

Al-Ḥāfiẓ Ibn Ḥajar (may God have mercy on him) spoke at length about it in *al-Fatḥ*, and showed in it the possibility that ʿUmar, may God be pleased with him, did not see it as a condition for the imamate, in view of what Aḥmad included from him with a chain of trustworthy men that he said: If my appointed time comes while Abū ʿUbayda is alive, I will appoint him successor — and he mentioned the hadith, and in it: If my appointed time comes and Abū ʿUbayda has died, I will appoint Muʿādh ibn Jabal as successor — the hadith. Muʿādh ibn Jabal was an Anṣārī who had no lineage in Quraysh.

Similar to that is what al-Ṭabarī narrated in his history from ʿUmar, may God be pleased with him; he said: If Sālim

> [1] See the commentary of Dr. ʿAbd al-ʿAẓīm al-Dīb on *al-Ghiyāthī*, p. 82. [2] As he said (*Ghiyāth al-Umam fī Iltiyāth al-Ẓulam* 1/80): "The aspect in proving what we are attempting in that is that those who have passed continued to be convinced that this office is specific to Quraysh, and no one other than Quraysh ever aspired to the imamate…"

[p. 206] the client of Abū Ḥudhayfa were alive, I would appoint him successor; and if my Lord asked me, I would say: I heard Your Prophet say: "Sālim is intense in love for God."[1] And Sālim the client of Abū Ḥudhayfa was not from Quraysh — unless the kinship-bond (*al-ʿaṣabiyya*) is considered for him through clientship (*al-walāʾ*).

Al-Ḥāfiẓ (may God have mercy on him) also did not accept that the practice of the Umma was uniform on this, saying: "Some who were not of Quraysh took the title of caliph, like the Banū ʿAbbād and others in al-Andalus, like ʿAbd al-Muʾmin and his descendants in the lands of the Maghrib — all of these resembled the Khawārij in this, and did not hold their sayings nor follow their opinions; rather they were of the people of the Sunna, calling to it."[2]

As for those who deny stipulating Qurashī descent, they relied in that on the apparent meanings of hadiths, like what al-Bukhārī included from Anas ibn Mālik, may God be pleased with him; he said: the Messenger of God ﷺ said: "Hear and obey, even if an Abyssinian slave whose head is like a raisin is appointed over you."[3]

But it does not stand as an argument in the matter; because taking charge of leadership is one thing, and appointing the imam and investing him is another thing. For whoever seizes control of the affair, or takes charge of it at a time when Quraysh lack anyone in whom the necessary qualities are combined — his imamate would be concluded in these two forms by consensus. So it is possible that the hadith refers to one of these forms, [or that it came out as a parable, with the aim of exaggeration in making hearing and obedience obligatory]. At any rate, arguing by it that the Muslims may appoint a non-Qurashī by capability and choice on their part is far-fetched and weak. Admittedly, what we mentioned earlier from ʿUmar, may God be pleased with him, does constitute an argument on the subject; for if he had seen it as a condition he would never have shown his desire to appoint non-Qurashīs.

These deniers answer the hadiths in which came the saying of the Prophet ﷺ: "The imams are from Quraysh" — that it came out as a report (*khabar*), not as a command (*inshāʾ*), in the sense that the Prophet ﷺ did not command taking commanders

> [1] *Tārīkh al-Ṭabarī = Tārīkh al-Rusul wa-l-Mulūk* (4/227). [2] *Fatḥ al-Bārī* of Ibn Ḥajar (13/119), Book of Judgements. [3] *Ṣaḥīḥ al-Bukhārī* (9/62), Book of Prayer, chapter on the imamate of the slave, hadith no. 1693; and also chapter on hearing and obedience, hadith no. 7142.

[p. 207] from Quraysh; he only told that they would be from Quraysh. This is as came in another hadith that the Prophet ﷺ said: "The religion will remain upright until the Hour comes, or twelve caliphs are over you, all of them from Quraysh."[1]

ʿAllāma Ibn Khaldūn spoke at length on the subject in the *Muqaddima*, and presented there another point of view; we transmit it to you in its text as follows. He said: “The Sharia rulings all must have purposes and wisdoms which they contain and for which they are legislated. We, if we search for the wisdom in stipulating Qurashī lineage and the purpose of the Lawgiver in it, [find that] it is not confined to blessing by connection with the Prophet ﷺ as is well-known — even though that connection exists and blessing by it is obtained; but blessing is not among the Sharia purposes, as you know. So there must then be an interest in stipulating lineage, and it is what is intended by its legitimacy. If we probe and divide, we do not find it except in the consideration of group feeling (*al-ʿaṣabiyya*), by which protection and claim occur, and disagreement and division are removed by its existence for the holder of the office; so the community (*al-milla*) and its people are at ease with him, and the bond of harmony in it is ordered. That is because Quraysh were the group feeling of Muḍar and their root and the people of dominance among them, and they had over the rest of Muḍar might through numbers, group feeling and nobility. So the rest of the Arabs acknowledged that for them and submitted to their dominance. So if the matter were put among others than them, the splitting of the word would be expected through their opposition and their non-submission, and no one else of the tribes of Muḍar would be able to turn them back from disagreement nor bring them against their will; so the community would be divided and the word would differ.

The Lawgiver warns against that, eager for their agreement and the removal of dispute and dispersion among them, so that cohesion and group feeling are obtained and protection is improved — unlike if the matter is in Quraysh, because they are able to drive people with the stick of dominance to what is wanted of them; so no disagreement against them is feared from anyone, nor division, because they are guarantors then of repelling it and preventing people from it. So He stipulated their Qurashī lineage in this office, and they are the people of strong group feeling, so that it be more effective in the ordering of the community and the agreement of the word. If their word was ordered, by its ordering the word of Muḍar was ordered altogether, so the rest of the Arabs submitted to them, and the nations other than them yielded to the rulings of the community, and their armies trod the furthest of lands.”[2]

> [1] *Ṣaḥīḥ Muslim* (3/1453), Book of Leadership, chapter on people following Quraysh, hadith no. 4669. [2] *Tārīkh Ibn Khaldūn* (1/244), the *Muqaddima*, chapter twenty-six on the disagreement of the Umma on the ruling of this office and its conditions.

[p. 208] Let it be noted that he used here the word “*al-ʿaṣabiyya*” (group feeling), from which the mind may rush to the nationalist and tribal partisanship (*al-ʿaṣabiyya al-qawmiyya wa-l-qabaliyya*) which the Sharia forbade with the most severe prohibition. But a careful reading of the passage above makes clear that this is not what he intends; by group feeling he means only the authority and influence a group comes to have in people’s hearts, so that it carries them to submit to it and to obey it voluntarily from them and with consent.

Some supported this point of view of his by what is narrated from Abū Bakr al-Ṣiddīq, may God be pleased with him, that he said on the day of the Saqīfa of Banū Sāʿida: “And this matter will not be recognized except for this clan of Quraysh; they are the most central of the Arabs in lineage and

abode”[1] — since he did not mention the imamate of Quraysh as a Sharia ruling, but as an interest he saw: that the Arabs will not submit and yield to others than them.

Those who affirm this condition answered that Abū Bakr al-Ṣiddīq, may God be pleased with him, did not content himself that day with this statement; rather he brought along with it the text “The imams are from Quraysh” also as evidence for their imamate, as al-Ḥāfiẓ mentioned from Aḥmad (may God have mercy on him) in the explanation of the aforementioned hadith.[2]

The upshot is that the views of the scholars on this question conflict; and we have known from what preceded that the majority of the jurists and theologians chose the saying of stipulating it. [So it appears that it is the preponderant one.] But there are points that must be borne in mind in studying this subject, and they are:

The first: this is stipulated only if there is found in Quraysh one who is qualified for the imamate by combining the rest of the conditions and qualities necessary for it. But if there is not among them one qualified for it, then it is permissible to appoint a non-Qurashī by consensus. What indicates that is what al-Bazzār narrated from Anas, that the Prophet ﷺ said: “The imams are from Quraysh, as long as they act by three: if they are asked for mercy, they show mercy; and if they make a covenant, they fulfil; and if they rule, they are just.”[3] So it is known from it that they are not qualified for the imamate if the mentioned qualities are not present in them.

> [1] *Ṣaḥīḥ al-Bukhārī* (8/170), Book of Ḥudūd, chapter on stoning the one pregnant from fornication, hadith no. 6830. [2] *Fatḥ al-Bārī* of Ibn Ḥajar (12/152). [3] *Kashf al-Astār ʿan Zawāʾid al-Bazzār* (2/228).

[p. 209] **The second:** it appears to me that this also covers the case where lineages have become mixed or lost, such that a Qurashī is not known from another — as the jurists mentioned of the non-Arabs that they lost their lineages and did not preserve them. So it is fitting to choose the saying of the permissibility of appointing a non-Qurashī in such a form by consensus.

The third: stipulating Qurashī descent is — among those who hold it — for the imam and caliph, not for others such as provincial governors and other government officials. So if the imam wished to invest someone of non-Qurashīs and appoint him over a town of the lands of the Muslims, or put him in command in war, that is also permissible by consensus. That becomes clear from al-Ḥāfiẓ Ibn Ḥajar’s (may God have mercy on him) restricting the imamate for which Qurashī descent is stipulated with “the greatest” among the kinds of imamates and commands.[1]

The fifth condition: knowledge

The scholars of politics have agreed on stipulating knowledge for the imam, and no disagreement on this has been reported from anyone; the disagreement is only over how much knowledge suffices for the imam. Some — among them al-Māwardī and al-Juwaynī — held that it is stipulated that the imam be a mujtahid who has reached the level of the mujtahids; while the later ones among them denied stipulating his reaching the rank of ijtihad, and rather contented themselves in that with the amount that enables the sultan to administer his government according to the rulings of the Sharia only.

The sixth condition: probity (al-ʿadāla)

What is meant by it is that he be upright in conduct, following the rulings of Islam, avoiding the deeds and states that necessitate transgression (*fisq*) and dissoluteness. al-Qāḍī Abū Yaʿlā al-Farrāʾ (may God have mercy on him) said: "That he be of the description of one who is fit to be a judge, of freedom, adulthood, sanity, knowledge and probity."[2]

For the judge, too, it was originally stipulated that he have reached the level of ijtihad, being of probity

[1] See *Fatḥ al-Bārī* of Ibn Ḥajar (13/119). [2] *Al-Aḥkām al-Sulṭāniyya* of Abū Yaʿlā al-Farrāʾ (1/20).

[p. 210] with its comprehensive conditions. Indeed, Imam Ibn Taymiyya (may God have mercy on him) has stated at the opening of his book *al-Siyāsa al-Sharʿiyya fī Iṣlāḥ al-Rāʿī wa-l-Raʿiyya* that it is obligatory to appoint the fittest of those he is able [to find] among the Muslims, arguing by what al-Ḥākim narrated from Ibn ʿAbbās, may God be pleased with him; he said: the Messenger of God ﷺ said: "Whoever appoints a man over a group, while he finds in that group one more pleasing to God than him, has betrayed God and His Messenger and betrayed the believers."[1]

Imam Abū Ḥanīfa (may God have mercy on him) used to content himself in probity with the outward state of the witnesses among the Muslims if they were not openly transgressing; while the two imams Abū Yūsuf and Muḥammad (may God have mercy on them both) held that that does not suffice; rather their vetting (*tazkiya*) is necessary secretly and openly. It is the saying which the later Ḥanafīs preferred and gave fatwa by.

Then, with the passage of time and the decline of the state of the Muslims in attending to religious matters, this condition was relaxed, so the definition of probity among them became as follows: "Whoever's good deeds prevail over his bad deeds."[2]

The relaxation continued until they said: it is impossible to find a person in whom all the conditions of probity are combined; so it should be limited to what pertains to the office he holds, and the criterion in his case would be as follows: "Justice in the case of the judge is judging by the truth, and in the case of the governor is fairness without treachery."[3]

But by close examination of the subject and the details of it that have passed, it becomes clear that it is necessary here to distinguish between two matters: the duty of the bodies that appoint the imam and confer leadership, and the ruling on one who was invested or took on the governorship or judgeship with a defect in these conditions. As for the first, it remains the duty of these to undertake appointing the fittest and most just of those they are able [to find], and not to prefer other than

[1] *Al-Siyāsa al-Sharʿiyya fī Iṣlāḥ al-Rāʿī wa-l-Raʿiyya* (1/7); *al-Mustadrak ʿalā al-Ṣaḥīḥayn* of al-Ḥākim (4/104), and he said: sound in chain; and al-Dhahabī did not mention it in the *Talkhīṣ*. [2] *Durar al-Ḥukkām fī Sharḥ Majallat al-Aḥkām* (4/406), article 1705. [3] *Durar al-Ḥukkām fī Sharḥ Majallat al-Aḥkām* (4/580), article 1792.

[p. 211] the fittest over the fittest, in view of the hadith which we mentioned just now and which al-Ḥākim narrated in it from Ibn ʿAbbās, may God be pleased with them both; he said: the Messenger of God ﷺ said: "Whoever employs a man from a group while in that group there is one more pleasing to God than him has betrayed God and betrayed His Messenger and betrayed the believers."

But if there is not found among the Muslims one who combines these conditions and qualities, or someone took on the governorship or judgeship by seizure and domination, his caliphate is concluded in these exceptional cases of necessity. This is as ʿAllāma Ibn al-Humām transmitted from Imam al-Ghazālī that he said: “The combining of these conditions — of probity, ijtihad and other than them — is impossible in our age, because of the age’s being empty of the mujtahid and the just. So the aspect [to take] is the implementation of the judgeship of everyone whom a sultan with power appoints, even if he is ignorant and transgressing; and it is the apparent [position] of the school with us. So if the ignorant transgressor were appointed, it is valid and he rules by the fatwa of others; but he should not be appointed.”[1]

[1] *Fatḥ al-Qadīr* of al-Kamāl ibn al-Humām (7/253).

3 – Appointing the imam and investing him

Then Islam commands its followers to undertake — by consultation among them — handing over the office of the imamate over them to one of them in whom these qualities are combined and these conditions are present. This principle comprises two matters: the obligation of appointing the imam over the Muslims, and that it be from consultation among them.

As for the detail of the first, let it be known that appointing the imam is obligatory on the Muslims by the consensus of those of the Muslims on whom the sun has risen and set, and the agreement of the schools of all the scholars. The meaning of that is that it is imposed on the Muslims as a communal obligation (*ʿalā al-kifāya*) that they make one of them commander and appoint over them one of them in whom those conditions are combined and those qualities are present.

But let it be noted that this ruling is directed to the Muslims only when they have no imam and no commander, and they have come to live without a ruler in anarchy, with no one to gather them on the truth, and no restrainer restrains them, and no deterrent deters them from following the footsteps of Satan. Then it is obligatory on them

[p. 212] to appoint one of them as an imam who performs his functions through establishing the ḥudūd, defending the sanctity of Islam and so on. As for if they have an imam — even if he took on the imamate by seizure and taking control, and against their will — and even if he does not combine the qualities required for the imam, as is the case in most Islamic states today: what then should the Muslims do in this form? It is a question related to the subject of deposing the imam, whose details we leave to its place in Chapter Six, God willing.

As for the second part of this principle, it is that the appointment of the imam must be by way of consultation among the people who loosen and bind (*ahl al-ḥall wa-l-ʿaqd*) among the Muslims. It is not permissible for a person to seize the affair and so take it over without consultation, or upon the consultation of some of those not counted among the people who loosen and bind. The evidence for that is the saying of God, glorified and exalted: **“And whose affair is [determined by] consultation among themselves”** [al-Shūrā, 42:38].

The greatest evidence for that is that the Prophet ﷺ left this world and did not appoint anyone as successor in it; rather he entrusted his affair to the generality of the Muslims to choose from among

them for this matter whoever of them is the fittest and most just. That suffices as evidence that the authority in this matter rests with the generality of the Muslims, not others; otherwise he would have spared them the trouble of appointment by appointing one of them as successor.

More explicit than that is what al-Bukhārī narrated from ʿĀʾisha, may God be pleased with her, that the Messenger of God ﷺ said to her while he was in the illness in which he died: "I was about — or I wanted — to send to Abū Bakr and his son and make a covenant [of succession], lest speakers say — or wishers wish —; then I said: God refuses [otherwise] and the believers repel [otherwise]."[1]

So this hadith indicated with all clarity and explicitness that the Prophet ﷺ left the matter of appointing his successor to the Muslims; and since he was confident that they would not be pleased except with Abū Bakr al-Ṣiddīq, may God be pleased with him, he therefore did not see any need for appointing him personally.

There is another hadith which al-Bukhārī included too with its details, from which the standing of consultation in the appointment of the caliph and the designation of the imam becomes clear; and its summary: that ʿAbd al-Raḥmān ibn ʿAwf heard, in the last days of the pilgrimage which ʿUmar ibn al-Khaṭṭāb, may God be pleased with him, performed, [a man] saying: "If ʿUmar had died I would have pledged allegiance to

[1] *Ṣaḥīḥ al-Bukhārī* (7/119), Book of the Sick, hadith 5666.

[p. 213] so-and-so; for by God the pledge of allegiance to Abū Bakr was nothing but a sudden thing (*falta*) and it was completed." So ʿUmar became angry at that and said: "I will, God willing, stand this evening among the people and warn them against these who want to usurp their affairs from them." ʿAbd al-Raḥmān said: "So I said: O Commander of the Faithful, do not do it; for the season gathers the riff-raff of people and their rabble, and they will be the ones crowding closest to you when you stand among the people. I fear that you will stand and say something that will be carried off and spread in every direction, that they will not understand it, and that they will not put it in its proper place. So wait until you come to Medina, for it is the abode of emigration and the Sunna, and you will be alone with the people of understanding and the nobles of the people, and you will say what you said with ease; and the people of knowledge will understand your statement and put it in its proper place." ʿUmar said: "By God — God willing — I will certainly do so on the first occasion I stand up in Medina." Ibn ʿAbbās said: So we came to Medina at the end of Dhū al-Ḥijja; and when it was Friday I hurried to go when the sun declined, until I found Saʿīd ibn Zayd ibn ʿAmr ibn Nufayl sitting at the corner of the pulpit; so I sat beside him, my knee touching his knee. I did not wait long before ʿUmar ibn al-Khaṭṭāb came out; and when I saw him coming I said to Saʿīd ibn Zayd ibn ʿAmr ibn Nufayl: he will say this evening a statement he has not said since he was appointed successor. He disapproved of that from me and said: What do you expect him to say that he has not said before? So ʿUmar sat on the pulpit; and when the muezzins fell silent he stood, and praised God with what He is worthy of, then said: "To proceed: I am going to say to you a statement which has been decreed for me to say; I do not know; perhaps it comes shortly before my death. So whoever understands it and retains it, let him relate it wherever his mount ends with him; and whoever fears that he will not understand it, I do not permit anyone to lie about me… Then it has reached me that a speaker among you says: By God, if ʿUmar had died I would have pledged allegiance to so-and-so. So let no man be

deceived into saying: the pledge of allegiance to Abū Bakr was only a sudden thing and it was completed. Indeed it was so; but God protected [us] from its evil; and there is no one among you to whom necks are stretched like Abū Bakr. Whoever pledges allegiance to a man without consultation of the Muslims, he is not to be followed, nor the one who pledged allegiance to him, lest both be killed. It was part of what happened to us when God took His Prophet ﷺ…"

He continued, telling them the story of the pledge of allegiance to Abū Bakr al-Ṣiddīq, may God be pleased with him: "The Anṣār opposed us and gathered all of them in the Saqīfa of Banū Sāʿida, and ʿAlī and al-Zubayr and those with them opposed us, and the Muhājirūn gathered to Abū Bakr. So I said to Abū Bakr: O Abū Bakr, take us to

[p. 214] these brothers of ours of the Anṣār. So we set out wanting them … until we came to them in the Saqīfa of Banū Sāʿida… When we sat a little, their speaker gave witness [of faith] … Then Abū Bakr spoke and said: As for what you have mentioned of good among you, you are worthy of it; and this matter will not be recognized except for this clan of Quraysh; they are the most central of the Arabs in lineage and abode. I have chosen for you one of these two men, so pledge allegiance to whichever of them you wish. He took my hand and the hand of Abū ʿUbayda ibn al-Jarrāḥ, while he was sitting between us… So the clamour increased, and the voices rose, until I feared disagreement; so I said: Stretch out your hand, O Abū Bakr. So he stretched out his hand and I pledged allegiance to him, and the Muhājirūn pledged allegiance to him, then the Anṣār pledged allegiance to him. We set upon Saʿd ibn ʿUbāda; and a speaker among them said: You have killed Saʿd ibn ʿUbāda. So I said: May God kill Saʿd ibn ʿUbāda. ʿUmar said: And by God, we did not find, in what we attended of matters, anything stronger than the pledge of allegiance to Abū Bakr. We feared that if we left the people and there was no pledge, they would pledge allegiance to a man of them after us; so either we would pledge allegiance to them on what we are not pleased with, or we would oppose them and there would be corruption. So whoever pledges allegiance to a man without consultation of the Muslims, he is not to be followed, nor the one who pledged allegiance to him, lest both be killed."

It is narrated in a report with Ibn Abī Shayba in the *Muṣannaf* from Abū Hurayra that ʿUmar, may God be pleased with them both, said: Whoever pledges allegiance to a commander of the Muslims without consultation, there is no pledge for him.[1]

So these proofs all suffice to stand as an argument for what we claimed: that the appointment of the imam and the investing of the caliph must be from consultation of the Muslims. So after this is established, this question poses itself in the mind of the researcher: how does this consultation among the Muslims take place? Is it by voting on the basis of the ballot of every adult, or by election by the members of a specific, defined body or circle, or in another way besides that? We say: it is among the secondary matters for which Islam did not specify a special formula to act by; rather it entrusted its matter to the majority of the Muslims to choose for it a form that agrees with the principles of the Sharia on one side and harmonizes with their external reality on another. But the matter on which the opinion of the scholars has settled is that what is meant is not the consultation of every sane, adult Muslim, whatever his qualifications and his insight and the extent of his understanding of the realities of the Muslims; rather what is meant by it is the consultation of the people who loosen and bind. The

evidence for that is that it was the prevailing method in the era of the Rightly-Guided Caliphate, where the governorship

[1] *Muṣannaf Ibn Abī Shayba* (6/454), what they said about obligations and the codification of the registers.

[p. 215] and the pledge of allegiance for anyone in it took place from consultation of the people who loosen and bind, not every Tom, Dick and Harry of the Muslims. So the pledge of allegiance to Abū Bakr al-Ṣiddīq, may God be pleased with him, was not as a result of the voting of every one of the Muslims in his favour, but from the consultation of a group of the Muhājirūn and Anṣār, people of opinion and insight only. Likewise ʿUmar, may God be pleased with him, entrusted the matter of the caliph to a committee consisting of six of the notables of the Muhājirūn and Anṣār, who chose our master ʿUthmān, may God be pleased with him. When ʿUthmān, may God be pleased with him, was martyred, a group of people came to our master ʿAlī, may God be pleased with him, and asked him to stretch out his hand to them so that they might pledge allegiance to him. He said to them: "That is not for you; it is only for the people of the Shūrā and the people of Badr. Whoever the people of the Shūrā are pleased with is the caliph; so we will gather and look into this matter."[1]

For the story of his pledge of allegiance there is a detail which al-Ṭabarī mentioned in his history from Muḥammad ibn al-Ḥanafiyya; he said: I was with my father when ʿUthmān, may God be pleased with him, was killed; so he stood and entered his house. The Companions of the Messenger of God ﷺ came to him and said: This man has been killed, and the people must have an imam, and we do not find today anyone more deserving of this matter than you, nor of older precedence, nor closer to the Messenger of God ﷺ. [He said: Do not do it; it is better that I be a minister [i.e. counsellor] than a commander. They said: No, by God, we will not do [it] until we pledge allegiance to you. He said: Then in the mosque; for my pledge of allegiance will not be hidden, and it will not be except by the consent of the Muslims.] Sālim ibn Abī al-Jaʿd said: ʿAbd Allāh ibn ʿAbbās said: I disliked that he should come to the mosque, for fear that there would be rioting against him; and he refused except the mosque. When he entered, the Muhājirūn and Anṣār entered and pledged allegiance to him, then the people pledged allegiance to him.[2]

So these texts indicated that he did not content himself in his taking up the imamate with the opinion of the generality of people; rather he said: "It is only for the people of the Shūrā and the people of Badr." So the scholars of Islamic political jurisprudence argued by it that the decisive voice and authority in choosing the caliph belong to the people who loosen and bind among the Muslims.

What is meant by the people who loosen and bind: the leaders who have opinion and standing in the Umma, to whom people turn in their needs and interests, and whose opinions are therefore accepted in the Umma.

[1] *Al-Imāma wa-l-Siyāsa* of Ibn Qutayba 1/43. [2] *Tārīkh al-Ṭabarī = Tārīkh al-Rusul wa-l-Mulūk*, and *Ṣilat Tārīkh al-Ṭabarī* (4/427).

[p. 216] In the era of the Rightly-Guided Caliphate the term was understood to mean the notables of the tribes, the scholars of Islam, the jurists of the Sharia and the other leaders. People knew well who they were — the ones who represented them in their affairs and administered their matters. So the

term was not so vague that identifying who it covered would lead to dispute; and hence there was no need to designate them by name.

The choosing of the caliph took place by the pledge of allegiance of the people who loosen and bind among the Muslims to him; and usually they used to say at the pledge: “We pledge allegiance to you, pleased, on establishing justice and undertaking the obligations of the imamate according to the Book of God and the Sunna of His Messenger [God bless him and give him peace].”[1] And it does not require clasping hands; rather the statement suffices in it.

But with the progress of time the situation changed from what it had been entirely; so the people who loosen and bind no longer remained accepted in all circles without dispute. So the Umma came to feel the pressing need to specify them and define their descriptions, to protect it from being encroached upon and toyed with in the affairs of the Muslims by every Tom, Dick and Harry. So it is reasonable that you pose to me the question of how to choose them today. The answer to that is that the consultative council (*majlis al-shūrā*) whose mention will come in what follows, God willing — or both of the councils of legislation, regional and national together — their members can be regarded as embodying “the people who loosen and bind” and as the body with authority to elect the caliph today. As for choosing the members of these councils, it can be by casting votes from every adult citizen, as its detail will come shortly in the discussion of consultation, God willing. It also appears to be permitted in the Sharia that the caliph be elected by a direct election by the Umma on the basis of voting by every sane, adult Muslim citizen; for there is no text contrary to it in anything.

What has passed was a detail of the straight method fulfilling the conditions for appointing the imam and choosing the caliph, while there are two other methods which the Sharia has considered for the validity of the imamate and the conclusion of the caliphate, namely: designation of a successor (*al-istikhlāf*), and seizure or taking control (*al-taghallub aw al-istīlāʾ*). For

> [1] *Taḥrīr al-Aḥkām fī Tadbīr Ahl al-Islām* of Ibn Jamāʿa (1/57).

[p. 217] the completeness of the research, we see it necessary to cast a glance at them here, even if passing and quick.

4 – Appointment by designation of a successor (istikhlāf) and covenant

Its meaning: that the rightful imam who combines all the conditions of the imamate appoint someone as successor in his lifetime to be the imam of the Muslims after his death. The term “covenant” (*al-ʿahd*) in royal circles is synonymous with the word. The Sharia also considers it, with its conditions, as a method for the conclusion of the imamate. They argued for that by Abū Bakr’s appointing ʿUmar, may God be pleased with them both, as successor, and by what ʿUmar, may God be pleased with him, said shortly before his death: “If my appointed time comes while Abū ʿUbayda is alive, I will appoint him successor.” So it indicated that designation of a successor is permissible in the Sharia. But three points must be noted here with precision and care:

The first: it is not permissible for the imam to appoint one of his children or relatives as successor merely for his kinship and blood relations with him, regarding the caliphate as an inheritance as property and goods are inherited. The evidence for that is that Abraham, upon him be peace, when he

asked for the office of the imamate for his descendants, God, glorified and exalted, answered him, saying: **“My covenant does not include the wrongdoers”** [al-Baqara, 2:124].

And when Abū Bakr, may God be pleased with him, appointed ʿUmar, may God be pleased with him, as successor, he spoke the words history has preserved from him, which became a bright lamp lighting the way for whoever seeks to follow it: “For by God I have spared no effort in forming my judgement, and I have not appointed a relative.”

It is a matter on which the Umma has agreed. ʿAllāma Ibn Ḥazm (may God have mercy on him) said: “And there is no disagreement among anyone of the people of Islam that inheritance is not permissible in it.”

The second: the imam who wants to designate a successor or covenant to someone must in the Sharia choose the fittest of those he is able [to find] among those in whom the qualities of the imamate are combined and the conditions of the caliphate are present; and that his election of him be from consultation of the people who loosen and bind and of knowledge, as Abū Bakr al-Ṣiddīq, may God be pleased with him, did in his appointing al-Fārūq, may God be pleased with him, as successor.[1]

In such a form, if he appointed someone of his kin as successor on the basis of his qualification for the imamate

> [1] See: *Tārīkh al-Ṭabarī = Tārīkh al-Rusul wa-l-Mulūk*, and *Ṣilat Tārīkh al-Ṭabarī* (3/428).

[p. 218] by combining its conditions, then even if it is permitted in the Sharia, it is better to avoid it also, guarding against a position of suspicion — as it was the followed Sunna in the era of the Rightly-Guided Caliphate. Here is Abū Bakr, may God be pleased with him, declaring with all explicitness that he did not appoint a relative. Here is ʿUmar, may God be pleased with him, flaring up in anger when it was suggested to him that he appoint his son ʿAbd Allāh as successor; rather it came in a report that he said to the one who suggested it: “May God fight you! By God, I did not want God by this.”[1] As for ʿUthmān, may God be pleased with him, he was martyred before he found an opportunity to think about the designation of anyone as successor. Here is ʿAlī, may God be pleased with him, being asked about pledging allegiance to al-Ḥasan after his death; he answered them, saying: “I neither command you nor forbid you; you are more discerning.”[2] And it came in a report that he said: “But I leave you to what the Messenger of God ﷺ left you.”[3]

Thus the Rightly-Guided Caliphs left this world without appointing in it as successor anyone with kinship or blood relation. The first to follow this way was our master Muʿāwiya, may God be pleased with him, when he appointed his son Yazīd as successor — seeking thereby, in his own view, nothing but the truth, sincere counsel and the interest of the Umma, as ʿAllāma Ibn Khaldūn said: “And likewise Muʿāwiya’s covenant to Yazīd, for fear of the splitting of the word, given that the Banū Umayya would not be pleased to hand over the matter to anyone other than them. So if he had covenanted to someone other than him, they would have disagreed with him, even though their opinion of him was that he was righteous, and no one doubts that in that; and Muʿāwiya is not suspected of other than this. So he would not have covenanted to him while believing what he was upon of transgression — God forbid that of Muʿāwiya.”[4]

What supports that is what is narrated from Muʿāwiya, may God be pleased with him, that he said one day in his sermon: “O God, if You know that I only appointed him because, as I see it, he is worthy of that, then complete for him what I have appointed him to; and if I appointed him because I love him, then do not complete for him what I have appointed him to.”[5]

Al-Dhahabī and al-Suyūṭī transmitted it from ʿAṭiyya ibn Qays in the following words: “O God, if I

[1] *Al-Ṭabaqāt al-Kubrā*, al-ʿIlmiyya ed. (3/261). [2] *Majmaʿ al-Zawāʾid wa-Manbaʿ al-Fawāʾid* (9/142). [3] *Musnad Aḥmad* 2, hadith no. 1078; *Majmaʿ al-Zawāʾid wa-Manbaʿ al-Fawāʾid* (9/137), and he said: narrated by Aḥmad and Abū Yaʿlā, and its men are men of the Ṣaḥīḥ except ʿAbd Allāh ibn Subayʿ, and he is trustworthy. And al-Bazzār narrated it with a good chain. [4] *Muqaddimat Ibn Khaldūn*, Book One, chapter three, section 28, p. 258. [5] *Al-Bidāya wa-l-Nihāya*, Dār al-Fikr ed. (8/80).

[p. 219] covenanted to Yazīd only because of what I saw of his merit, then bring him to what I hoped for and help him; and if it was only love of a father for his child that carried me, and he is not worthy, then take him before he reaches that.”[1]

The truth is that this action of his had dire consequences that brought woes upon the Umma; for his action became a followed precedent in the Umma, which those who followed him of the imams of tyranny and the caliphs of seizure and greed held fast to, and the caliphate came to be inherited like property and goods. The Umma was deprived of that blessed Sunna adopted for choosing the imam in the days of the Rightly-Guided Caliphate, except in very rare exceptional cases. I have spoken at length on this discussion in my Urdu book *Ḥaḍrat Muʿāwiya aur Tārīkhī Ḥaqāʾiq* (Our Master Muʿāwiya in the Light of Historical Constants).

The third point: the scholars of Islamic political jurisprudence differed concerning the status of this covenant and designation of a successor: is it binding on the Muslims after the death of the imam, or does it depend on the approval of the people who loosen and bind? Some held that the covenant by which the rightful imam who combines the conditions of the imamate covenanted is regarded after him as binding on the Muslims, with the reasoning that it is among the totality of the rulings which he issued in his lifetime in the period of his imamate; so obedience to him in it is obligatory like his other rulings. While others held that his covenant is nothing but a proposal and counsel, and its implementation depends on the approval of the people who loosen and bind for it: if they approve it, it is in force; otherwise not. It is what ʿAllāma Abū Yaʿlā al-Farrāʾ (may God have mercy on him) chose in his book *al-Aḥkām al-Sulṭāniyya*, saying: “That the imamate of the one covenanted to is concluded after his death by the choice of the people of the time.”[2]

ʿAllāma Ibn Taymiyya (may God have mercy on him) clarified it, saying: “And likewise ʿUmar, when Abū Bakr covenanted to him, only became imam when they pledged allegiance to him and obeyed him; and had it been supposed that they did not implement the covenant of Abū Bakr and did not pledge allegiance to him, he would not have become imam.”[3]

What Abū Bakr, may God be pleased with him, did also supports it: when he wanted to conclude the caliphate for ʿUmar, may God be pleased with him,

[1] *Tārīkh al-Islām*, ed. Tadmurī (4/169); *Tārīkh al-Khulafāʾ* of al-Suyūṭī, p. 157. [2] *Al-Aḥkām al-Sulṭāniyya* of Abū Yaʿlā al-Farrāʾ (1/26). [3] *Minhāj al-Sunna al-Nabawiyya* (1/530).

[p. 220] after him, he called first ʿAbd al-Raḥmān ibn ʿAwf and second ʿUthmān ibn ʿAffān, may God be pleased with them both, and consulted them in the matter. When they advised him to [do] it, he looked out upon the people from his balcony and said to them in what he said: “And I have appointed ʿUmar ibn al-Khaṭṭāb as successor, so hear him and obey.” They said: “We hear and we obey.”[1]

Thus Abū Bakr, may God be pleased with him, did not act by his opinion alone in the designation of a successor; rather he covenanted to ʿUmar, may God be pleased with him, after consultation on it and the consent of the people who loosen and bind with it, seeking in it justice, truth and the interest. And even if we granted that his designation alone was binding on the Muslims, does anyone today reach his level in the soundness of opinion, the correctness of judgement and the sincerity of intention? No!

So what is correct is that designation of a successor does not go beyond being a proposal from the imam and counsel from him to the Muslims that they appoint the one he appointed as successor as imam over them after his death, and the reference in implementing it or not is to the people who loosen and bind among the Muslims; and they, concerning this proposal, have the two choices: if it seems right to them to implement it, they implement it; otherwise they reject it and choose someone else as imam.

The answer to what the people of the first position said — that the designation of a successor must be implemented as being a ruling of the rightful imam — is: that what is most correct is that the caliphate of the imam and his imamate end with his death; so if he died and his caliphate ended by it, his commands no longer have to be obeyed. ʿAllāma Ibn ʿĀbidīn (may God have mercy on him) devoted an independent heading to this discussion in *Radd al-Muḥtār*, and among what came in it: “It is inferred from the words of *Sharḥ al-Munya*, ‘it was in their time…’, that the command of the caliph does not survive his death or his removal, as was stated explicitly in *al-Fatāwā al-Khayriyya*; and built on it is that if he forbade hearing a claim after fifteen years, his prohibition does not remain after his death.”[2]

5 – Seizing power by force (taghallub)

The third form for the conclusion of the imamate is: that a person seize power and authority and prevail over it against people’s will by using force.

> [1] See: *Tārīkh al-Ṭabarī = Tārīkh al-Rusul wa-l-Mulūk*, and *Ṣilat Tārīkh al-Ṭabarī* (3/428). [2] *Al-Durr al-Mukhtār* and the gloss of Ibn ʿĀbidīn (*Radd al-Muḥtār*) (2/172).

[p. 221] Its ruling: that whoever seizes the affair by rebelling against the rightful imam and fighting him is a sinner, and a rebel (*bāghī*) also, as long as power has not been obtained for him and authority has not come under his control. It is obligatory on the Muslims to resist and oppose him as far as they are able, acting by the words of God the Exalted: **“But if one of them oppresses the other, then fight against the one that oppresses until it returns to the ordinance of God”** [al-Ḥujurāt, 49:9].

But if his authority is established and his control is consolidated and his power stands firm, then he — even if he committed a great, heinous sin like rebellion and insurgency against the rightful imam, concerning which severe threats have come, like what the Prophet ﷺ said: “Six I have cursed, and

God curses them, and every prophet [whose prayer] is answered… and the one who seizes power by tyranny to exalt thereby whom God has humbled and humble whom God has exalted”[1] —

nevertheless the jurists regarded this imamate of his as concluded and that leadership as standing; so his commands take on the character of commands issued from the caliph in terms of the necessity of obeying them and the obligation of complying with them, with their established conditions. The upshot is that his affair fluctuates between two aspects: as for one aspect, the Muslims should try to remove him and turn him away from the imamate on condition that there not be in it the stirring of a strife (*fitna*) that cannot be borne; and from another, they regarded his rulings as in force on condition that they not clash with the Sharia nor contradict it. The evidence for this second matter is the saying of the Prophet ﷺ: “Hear and obey, even if an Abyssinian whose head is like a raisin is appointed.”[2]

The wisdom in that is that if we did not recognize those of his commands which do not contradict the Sharia, that would lead to sweeping anarchy among the Muslims. This is as is established in the world today, that rulers are of two kinds:

The legitimate constitutional ruler (De Jure): he is the one to whose authority the constitution of the country has given legitimacy, so he has become a legitimate ruler of it.

The actual ruler in reality (De Facto): i.e. the ruler who has actually taken up the reins of rule,

> [1] *Sunan al-Tirmidhī*, ed. Shākir (4/457), hadith no. 2154. [2] *Ṣaḥīḥ al-Bukhārī* (1/140), Book of Prayer, chapter on the imamate of the slave, hadith no. 693; and also chapter on hearing and obedience, hadith no. 7142.

[p. 222] even if his rule has no legitimacy.

The meaning of that: that if a person took up rule and took charge of command over the state by rebellion against the legitimate ruler, or seizure, or other than that of unconstitutional ways, then the commands which he issued during his rule and the days of his command are granted legal validity, to protect the state from being swept away in the torrent of disturbance and sweeping anarchy which floods a state only to sweep it away and destroy it utterly. For rejecting his commands entirely and denying them totally entails that there be no weight for the judges whom he appointed and the governors who took charge from him of rule — from which follows the cancellation of their rulings by which they judged in the disputes of the subjects and their trials. So the consequence of all this would not be other than toying with the state and throwing it into the mill of anarchy, disturbance and disorder.

So to protect the Muslims from disturbance and anarchic life, the scholars of Islam held that the imamate is concluded in the case of seizure and domination, and consequently that his commands are valid and to be implemented as long as he is in control of authority — even though his audacity in this is among the major sins, and removing him by peaceful means is a duty incumbent on the Muslims.

6 – On the unity and multiplicity of the caliph

The majority of the scholars have agreed that the imam should be one for all the Muslims, and that there not be for every region of the regions of the Islamic state and every territory of its territories an independent imam. Al-Māwardī (may God have mercy on him) said: “And if the imamate is concluded for two imams in two lands, their imamate is not concluded; because it is not permissible for the Umma to have two imams at one time — even if a people deviated and permitted it.”[1]

They also argued — besides other proofs — by his ﷺ saying: “And there will be caliphs, and they will be many.” They said: What do you command us? He said: “Fulfil the pledge of allegiance to the first, then the first.”[2]

But Islamic government, if the areas of its influence widened and the extent of its authority stretched such that it became impossible for one imam to manage its affair, then in such a form it is permissible to distribute

[1] *Al-Aḥkām al-Sulṭāniyya* of al-Māwardī (1/29). [2] *Ṣaḥīḥ al-Bukhārī* (4/169), Book of the Prophets, chapter on what was mentioned about the Children of Israel, hadith no. 3455.

[p. 223] the Islamic Umma into different units and states, and hence the conclusion of the imamate for one of the people of each state. ʿAllāma ʿAbd al-Qāhir [Ar.: ʿAbd al-Qādir] al-Baghdādī (may God have mercy on him) stated this explicitly, saying: “It is not permissible for there to be at one time two imams whose obedience is obligatory… unless there is between the two lands a sea preventing the arrival of the help of the people of each of them to the other; then it is permissible for the people of each of them to conclude the imamate for one of the people of his region.”[1]

ʿAllāma al-Māwardī (may God have mercy on him) said: “As for in scattered lands and distant cities, a deviant group has held the permissibility of that; because the imam is appointed for interests. If there were two in two lands or two regions, each of them would better manage what is in his charge and better control what lies near him. And because, since it was permissible to send two prophets in one era without that nullifying prophethood, this is all the more so for the imamate, and it does not nullify the imamate.”[2]

It is what the Imam of the Two Holy Sanctuaries, ʿAllāma al-Juwaynī (may God have mercy on him), showed his inclination to, saying: “My own view is that concluding the imamate for two persons in one district with narrow boundaries is not permissible, and consensus has occurred on it. But if the distance is far and a vast remoteness lies between the two imams, then there is room for [the other] possibility, and the matter falls outside the definitive questions.”[3]

Just as ʿAllāma al-Qurṭubī (may God have mercy on him) supported it in his commentary, and transmitted the aforementioned statement of al-Juwaynī word for word[4]; and Shaykh al-Farhārwī (may God have mercy on him) preferred it in his commentary on *Sharḥ al-ʿAqāʾid*.[5]

Despite these sayings and what they contain of proofs, the majority of the scholars still hold their position that the imam of the Muslims in all parts of the world at one time can only be one.

[1] *Uṣūl al-Dīn*, p. 274. [2] *Adab al-Dunyā wa-l-Dīn* (1/136), what the condition of the world is set right by. [3] *Al-Irshād ilā Qawāṭiʿ al-Adilla*, the last chapter, p. 358. [4] *Tafsīr al-Qurṭubī*, Sūrat al-Baqara, verse 30, vol. 1, p. 273. [5] *Al-Nibrās ʿalā Sharḥ al-ʿAqāʾid*, p. 513.

[p. 224] What appears to me after looking into the subject and deliberating in it is: that Islam, as being a universal call that strives to unify its children from the furthest parts of the inhabited world and its nearest, and to unite them in a single rank, requires that the position of the majority be the preponderant one, such that the saying of the unity of the imam for the whole Islamic world is chosen however far their abodes are apart and however distant they are and however wide the distances between them. The clearest example of that is what was of the unity of the imam in the era of the Rightly-Guided Caliphate, when Islam and its followers had reached one third of the inhabited world or half of it, at a time when communications and means of transport had not reached the zenith of development, flourishing and capability. How much more so today, when these have developed so astonishingly that the whole world has become like one village! So let a model Islamic state strive and devote its efforts to gathering the Muslims from all parts of the world on one imam. This is the original Sharia ruling on the question. But the Islamic world has today been divided — regrettably — into more than fifty independent states which have their own kings and rulers; so it has become impossible to gather them on one imam except by one of two matters: that all of them gather on the imamate of one person and his leadership — and how far, how far that is! — or that they fight each other and strike one another until some are able to take control of others by force. That is nothing but like one who tried to build a palace and demolished a city, or like one who fled from the rain and settled under the gutter. So there remains for us then no alternative to acknowledging these states and their governments as Islamic states and governments, to protect the Muslims from anarchy and disorder and the dividing of their word and the dismantling of their unity. Nor is this an innovation of ours or a new view we have invented; rather the scholars of the Umma preceded us to that in its past when the imams multiplied with the multiplicity of governments, so they acknowledged them and regarded the commands of every government as in force among its people. So for the necessity of implementing commands and protecting the Muslims from anarchy, the second saying (the saying of the permissibility of the multiplicity of imams) is chosen — to this extent only.

Chapter Four: Islamic Rules for the Administration of Government

Introduction

[p. 225] Islam has wise teachings and right directives which are like the bright lamp, lighting the way for the government that has been formed on the basis of the principles we explained earlier. The Muslims must take them with regard and compliance in administering the helm of government, so that it is of an Islamic character and is dyed with a religious dye — not tyrannical and despotic, nor wrongful and oppressive. We would like to devote this chapter to explaining those principles and foundations which the imam follows in administering administrative affairs and social questions.

1 – Submission to the rulings of the Qur’an and Sunna

The basic principle for the imam of the Muslims is that he be, in all his commands, his affairs and his measures, subject to the rulings of the Book of God and the Sunna of His Messenger ﷺ and following what the Umma agreed upon and its practice continued upon. He has no scope whatever to lay down a law or take a measure that contradicts the clear rulings established by the Book and the Sunna; and that is because — proceeding from the principle of faith in rule belonging to God, glorified and exalted, alone — he is a vicegerent of God in His rule over His servants, so he is subordinate to what He revealed and legislated for him in His firm Book and the purified Sunna of His Messenger. The vicegerent may not oppose the one who appointed him as vicegerent, and the branch is not permitted to contradict its root. Hence it was natural that the first constitution and original source for the imam — while he is in the course of administering his command over the Muslims and performing his functions — be these two primary sources of Islam: the Book of God and the Sunna of His Messenger ﷺ. Hence any command he issues or legislation he enacts that contradicts the Sharia or its fundamentals carries no weight; rather it is the right of the Muslims to try to cancel that by way of the court or other safe constitutional ways.

2 – Consultation with the people who loosen and bind

The role of shūrā (consultation) is not confined to its being a means for appointing the imam and designating the caliph only;

[p. 226] rather Islam emphasizes it as an obligation on whoever takes the office of the imamate: that he administer its affairs and perform its obligations on the basis of consultation with the people who loosen and bind — to the extent that the jurists regarded the imam as deserving removal if he did not attend to consultation in the affairs of government. Its standing and importance become clear from God's commanding the Prophet ﷺ with it, saying: **"And consult them in the matter. When you have decided, then rely upon God"** [Āl ʿImrān, 3:159] — despite his being infallible from error, guided by revelation directly. So it indicated that it is obligatory, all the more so, on others than him among the commanders of the Muslims and their rulers.

The Prophet ﷺ kept this matter constantly in view in public affairs and the tasks of government, attending to it carefully, as Abū Hurayra, may God be pleased with him, said: "I never saw anyone who consulted his companions more than the Messenger of God ﷺ[1]".

ʿAllāma Ibn Kathīr said in the commentary on the aforementioned verse: "And for that reason the Messenger of God ﷺ used to consult his companions in a matter when it occurred, to please their hearts, so that they would be more energetic in what they did."

He listed for that several examples of the Prophet ﷺ's consulting them on the day of Badr about going to the caravan, and fighting the polytheists of Mecca and ransoming their captives in it; and he consulted them at Uḥud about whether to stay in Medina or go out to the enemy; and he consulted them in the Battle of the Confederates about digging the trench; and he said in the story of the Slander: Advise me, O assembly of the Muslims.

He transmitted, attributing it to Aḥmad, from ʿAbd al-Raḥmān ibn Ghanm that the Messenger of God ﷺ said to Abū Bakr and ʿUmar: "If you two agreed in counsel, I would not oppose you."[2]

ʿAllāma al-Haythamī commented on its chain, saying: “Narrated by Aḥmad, and its men are trustworthy, except that Ibn Ghanm did not hear from the Prophet ﷺ.”

But that does not impugn it in anything; for it does not go beyond being mursal [with a missing link], and ʿAbd al-Raḥmān ibn Ghanm is a Companion[3], and the mursal of a Companion is an argument by consensus.

> [1] *Musnad Aḥmad*, al-Risāla ed. (31/244), Musnad of the Kufans, hadith of al-Miswar ibn Makhrama and Marwān ibn al-Ḥakam, 18928. [2] *Tafsīr Ibn Kathīr*, ed. Salāma (2/150). [3] *Al-Iṣāba* 4/350, biography no. 5185.

[p. 227] Here too the Sharia has not specified, for the manner of consultation, its people, and whom the imam consults, and what its basic structure will be, a special method that must be taken always and absolutely in every age and city. Rather it entrusted its details also to the people of insight among the Muslims in every age, to choose to act by it a formula that agrees with the requirements of their age and harmonizes with their reality. So it is not necessary that there be a special committee or a council made up of specific, limited members whom the imam is charged with consulting in every matter; rather anything that fulfils its purpose and meets the need is permitted in the Sharia, whatever its form. So a special council for shūrā may be adopted in one age, just as the imam may be left free to choose for it people of insight and opinion in his time without forming a special council. It is also permitted that he consult some at one time and others at another; just as it is permitted that his consultants differ with the difference of the matters on which he consults them: in one matter he consults expert specialists in it, and in another other people who have connection, expertise and skill in it.

In the era of prophethood and the Rightly-Guided Caliphate it was practised with complete simplicity, without there being a parliament or a legislative body as prevails in this age of ours. Rather the caliph used to consult the notables of the people and the eminent among the Muslims in the matters of the Umma and the affairs of government, and would proceed with a matter which they advised him [upon] after his ascertaining and assurance that it represents the social conscience of the Umma. But nevertheless, the founding of a special council for shūrā also falls within its general meaning and its comprehensive Sharia concept.

It is in truth a feature by which the rulings of Islam in the field of politics are distinguished: where it contented itself in it with legislating many principles without specifying their details and particulars; rather it entrusted that to those of opinion and insight among them in every age and city. The wisdom at work behind that is: that Islam is a general and comprehensive religion which all humanity, in all places and times until the Hour comes, has been called to embrace; its teachings must be implemented and its laws are binding on everyone at every time, without confining them to one people to the exclusion of another, nor narrowing their scope to one place to the exclusion of another —

[p. 228] this on one side. On another, it is tangibly witnessed that needs and requirements differ and change with the change of places, times and temperaments. So if the Sharia had legislated concerning it a special method and a specified manner, it would not have been far-fetched that its adoption and acting by it would be, in relation to a society, impossible or nearly so, or contrary to the interests of

the Umma in view of the nature of that society and its circumstances and so on; while another Islamic society would be in the most pressing need to be obligated with this specified formula, because of what is feared of it, that leaving it entirely to its own devices in the matter of shūrā would result only in harming its purposes and the interests of the Umma.

The upshot is that the Sharia, has left this door wide open for everyone to enter according to the requirements of his circumstances and the nature of his age, we are nevertheless confident that if the ruler today were entrusted with its matter wholly such that the choice would be his, and the reference to his will in whom he consults in matters and to what extent, that would make us fear that it would drag woes and evils upon the Umma and dangers and many evils concerning its interests. So it appears that it is necessary today that a special council for shūrā be formed whom the imam is charged with consulting. It has details that will come shortly, God willing.

3 – The powers and competences of the shūrā

The second important issue in this discussion revolves around the extent of the competences of the shūrā and its powers, and the ruling of what they advised the imam with: is it binding on him to follow it at all times, or is it permissible for him to disagree with it? In the form of disagreement, by which of the two matters does he judge: by the counsel of the people who loosen and bind, or by his own opinion opposing them? The issue is of considerable importance in the discussion of Islamic politics; we summarize for you its explanation in what follows.

The position which the generality of the jurists chose, and especially those of them who attend to political jurisprudence, is that obeying the shūrā is not obligatory on the imam; for its import and meaning are nothing but that all the aspects of the issue be uncovered before the imam, and all its dimensions become clear such that no hidden aspect of it is concealed from him nor does a far corner of it remain, so that he becomes acquainted with all

[p. 229] the possible courses he could take in undertaking a matter, with their proofs and details, from the mouths of their proponents, and so arrive at the soundest and most correct decision — a decision in which he is independent, not necessarily bound by the shūrā nor obliged to submit to what they said.

This is what the majority of the jurists held: that the imam has the choice in choosing whatever saying or opinion he wishes if he saw it as the strongest of them in argument and the clearest of them in proof, even if it is an opinion which the minority of them saw, or a saying which none of them held. They have in that the following arguments:

First, the saying of God, glorified and exalted: **“And consult them in the matter. When you have decided, then rely upon God”** [Āl ʿImrān, 3:159] — since He did not restrict in it the decision on the matter in which consultation has taken place to its being in accordance with the shūrā and its agreement entirely.

Second, the practice of the Prophet ﷺ and his Rightly-Guided Caliphs: that they were not committed to the matter of the shūrā in every case; rather it is established from them that they decided by a matter contrary to what the majority of those consulted [advised]. Thus the Prophet ﷺ consulted his

companions concerning the captives of Badr: ʿUmar advised him to kill them, and Ibn Rawāḥa to kill and burn them, and Abū Bakr to spare them; and the people divided in that into two groups: people said: he will take the saying of Abū Bakr, may God be pleased with him, and people said: he will take the saying of ʿUmar, may God be pleased with him.[1]

So the Messenger of God ﷺ decided by the opinion of Abū Bakr al-Ṣiddīq, may God be pleased with him, and ordered taking the ransom from them, even though it was not — as it appears — the opinion of two thirds of his companions. Even if the Qur'an reproached [him] for that, its reproach was not for rejecting the opinion of the majority, but because God was not pleased with releasing them at that time.

Likewise Abū Bakr al-Ṣiddīq's dispatching of the army of Usāma was, it appears, contrary to the opinion of the majority at that time. The story of that is as al-Ṭabarī narrated it in his history from al-Ḥasan al-Baṣrī; he said: "The Messenger of God ﷺ raised, before his death, an expedition from the people of Medina and those around them,

[1] *Al-Durr al-Manthūr fī al-Tafsīr bi-l-Maʾthūr* (4/105).

[p. 230] among them ʿUmar ibn al-Khaṭṭāb, and appointed over them Usāma ibn Zayd. The last of them had not passed the trench when the Messenger of God ﷺ was taken. So Usāma stopped the people, then said to ʿUmar: Go back to the successor of the Messenger of God and ask his permission; let him permit me to return with the people; for with me are the leading men of the people, all of them, and I do not feel safe for the successor of the Messenger of God, the household of the Messenger of God and the families of the Muslims, lest the polytheists snatch them away. The Anṣār said: If he refuses except that we proceed, then convey [this] from us, and ask him to put over our affair a man older than Usāma.

So ʿUmar went out by the order of Usāma, and came to Abū Bakr and told him what Usāma said. Abū Bakr said: If dogs and wolves snatched me, I would not reverse a decree which the Messenger of God ﷺ decreed! He said: The Anṣār ordered me to convey to you that they ask of you that you put over their affair a man older than Usāma. So Abū Bakr jumped up — and he had been sitting — and took ʿUmar's beard and said to him: May your mother be bereaved of you and lose you, O son of al-Khaṭṭāb! The Messenger of God appointed him and you order me to remove him! So ʿUmar went out to the people, and they said to him: What did you do? He said: Go! May your mothers be bereaved of you! What I met on your account from the successor of the Messenger of God! Then Abū Bakr went out until he came to them, and saw them off and walked with them, walking while Usāma rode… until when he finished he said: If you see fit to help me with ʿUmar, then do! So he gave him permission."

So the army set out and returned with overwhelming success; it was not long before it cast terror, awe and astonishment into the hearts of the people, to the point that it came in what al-Dhahabī narrated in his history that news of the death of the Messenger of God ﷺ and of Usāma's raid on a region of his land reached Heraclius together, and the Romans said: What is the matter with these? Their master dies and then they raid our land![1]

Just as many of the Companions — at their forefront ʿUmar al-Fārūq, may God be pleased with them — did not agree with him on fighting those who refused zakat and warring against them; yet he faced the position with all strength, firmness, resolve and courage, and swore to fight them, rejecting their counsel to make truce with the apostates and conciliate them. In his position on that he said to ʿUmar, may God be pleased with him: Mighty in the Jāhiliyya, weak in Islam? ʿUmar, may God be pleased with him, after that used to mention it among the merits of al-Ṣiddīq, may God be pleased with him; for history narrates

[1] *Tārīkh al-Islām*, ed. Tadmurī (3/20).

[p. 231] to us that he used to say: By God, a night of Abū Bakr and a day are better than ʿUmar's [whole life] — the night of his going out with the Messenger of God ﷺ from Mecca on the resolve of emigration to Medina; and as for his day, when the Arabs apostatized I said: O successor of the Messenger of God, conciliate people and be gentle with them; so he said: Mighty in the Jāhiliyya…[1]

These, then, are the arguments of those who hold that the imam is not bound to choosing the saying of the people of the shūrā in every case; rather he is charged with sifting the opinions and probabilities and following the strength of the argument and the proof.

While the others relied on [the fact] that consultation is only completed, and its benefit only obtained, if we obligated the imam to choose the saying on which the people of the shūrā agreed definitively, without there being for him room for deviating from it. It is also supported by a hadith which ʿAllāma Ibn Kathīr mentioned in the commentary on this verse, attributing it to Ibn Mardawayh from ʿAlī, may God be pleased with him, that he said: the Messenger of God ﷺ was asked about the decision (*al-ʿazm*); he said: "Consulting the people of opinion, then following them."[2]

So this hadith — after granting its soundness and its freedom from what impugns it — indicates that the meaning which the people of the first position mentioned for the decision in His words (*then when you have decided*) — that in his ruling the imam follows only the strength of the argument and the proof, not the saying of the people of the shūrā — is not definite and decisive; rather it also admits that its meaning be: that the imam decide on a matter on which the people of the shūrā have agreed, and not turn away from what they unanimously agreed upon. Indeed, if the chain of this hadith were sound, this would be its definite meaning, not merely a possibility.

Al-Ḥāfiẓ Ibn Kathīr here also brought from Imam Aḥmad what we mentioned earlier, that the Prophet ﷺ said to Abū Bakr and ʿUmar, may God be pleased with them both: "If you two agreed in counsel, I would not oppose you."

In addition to that, the Prophet ﷺ himself left his opinion in many places for the opinion of the majority of the Companions, may God be pleased with them, teaching the Umma to take consultation with regard; for if the Prophet ﷺ, though guided by revelation, set aside his opinion and acted on the shūrā, then the other rulers and commanders of the Muslims are all the more obliged to do so.

[1] *Tārīkh al-Islām*, ed. Tadmurī (1/321). [2] *Tafsīr Ibn Kathīr*, ed. Salāma (2/150).

[p. 232] An example of that is what happened in the Battle of Uḥud: that the Prophet ﷺ consulted his companions whether to go out to Quraysh or stay in Medina and fight them in the streets; and his

opinion was that they not go out of Medina (and the text of Ibn Hishām: “And the Messenger of God ﷺ disliked going out”).[1]

But many of the Companions, and especially the young among them, insisted on going out; so he resolved on going out, leaving his opinion for their opinion.

Al-Dārimī narrated in his *Sunan* a hadith in which Maymūn ibn Mihrān spoke at length about the conduct of Abū Bakr, may God be pleased with him, in what came to him of disputes; and among what came in it: “So if it was too difficult for him to find in it a Sunna from the Messenger of God ﷺ, he gathered the heads of the people and their best and consulted them; and if their opinion agreed on a matter, he decided by it”[2] — which clearly indicates that he used to decide by a matter on which the opinion of the people of the shūrā agreed.

It does not contradict what we presented of his dispatching the expedition of Usāma despite the opposition of most of the Companions to him; for their disagreement was in the stage of consultation only. As for after they saw his steadfastness in his position and his firmness in his opinion with all resolve and strength, it was not long before they were all convinced by it; and it was not long before their opinion turned to his opinion, as is narrated from ʿUmar, may God be pleased with him, that he said in the issue of fighting those who refused zakat — and he had at first seen in it an opinion other than the opinion of Abū Bakr: “By God, it was nothing but that God had opened the breast of Abū Bakr, may God be pleased with him, and I knew that it was the truth.”[3]

So what Abū Bakr carried out was not his opinion alone; rather it became in the end the opinion of all after their being convinced by it when they saw his steadfastness and firmness upon it. So it is not correct to argue by it that he was despotic in his opinion against the opinion of the Companions, and especially the opinion of the people of the shūrā among them.

Here we have finished the brief explanation of the two positions and their proofs in this issue; we follow it with explaining what is preponderant of them, so we say: what appears to us is that the principle is what the people of the position

> [1] *Sīrat Ibn Hishām*, ed. al-Saqqā (2/63). [2] *Sunan al-Dārimī* (1/262), the Introduction, chapter on giving fatwa and the severity in it, no. 163. [3] *Ṣaḥīḥ al-Bukhārī* (2/106), Book of Zakat, hadith no. 1400.

[p. 233] first said: that the imam is not obligated to choose the saying of the people of the shūrā absolutely and in every case. For the word “*al-shūrā*” itself indicates that the saying of the adviser is not necessarily binding on the one consulted; and it is so self-evident that even a slave-woman of the Muslims, Barīra, may God be pleased with her, grasped the difference between it and a command: when the Prophet ﷺ asked her to go back to Mughīth — after she had left him by exercising the option she gained on her emancipation — she asked him: “Are you commanding me?” The Prophet ﷺ said to her: “(I am only interceding).” So she refused to accept his intercession, saying: “I have no need of him.”[1] And the Prophet ﷺ did not reproach her; which established it as a Sharia rule that intercession does not have to be accepted by the one to whom intercession is made.

The gist of the words: that God commanded the commander with consultation by the text of the Noble Qur’an, and it was established from this hadith that counsel by its nature requires that it not be binding such that he must accept it; rather its role lies in enabling the imam to know all the

dimensions of the issue and its aspects and its probabilities, so that he undertakes, consequently, sifting them and choosing what he sees as soundest and most correct in view of the strength of its argument and the firmness of its proof — even if it was the opinion of the minority, or was not the opinion of any of them definitively and at all. Here too it is necessary to note several points:

The first: what we mentioned of not regarding the saying of the shūrā as binding is only in relation to the imam of the Muslims and their commander who was chosen by the people who loosen and bind among them on the basis of his qualification for the office of the imamate by combining its qualities and the presence of its conditions; and not for a democratic ruler bare of those qualities and conditions, whom obtaining the majority of votes enabled to ascend the throne of authority with defects and deficiency in his character and his conduct. Such a ruler is outside the scope of our discussion here, which concerns permitting the imam to carry out matters by his opinion alone, even at the cost of opposing a matter on which the opinion of the people of the shūrā has agreed.

Second: the imam of the Muslims and their caliph is not an absolute ruler, despotic in his opinion and independent

> [1] *Ṣaḥīḥ al-Bukhārī* (7/48). This point was explained by the Shaykh, the Sage of the Umma, ʿAllāma Ashraf ʿAlī al-Thānawī (may God have mercy on him).

[p. 234] in his command like kings and emperors; rather he is a believer in the principle of rule belonging to God, so he is subject to His fixed rulings and His revealed laws, restricted necessarily to following His Book and the Sunna of His Messenger ﷺ and the way of the believers. All this forms an impregnable barrier for him that blocks him from deciding by a matter that contradicts these original sources of reference or opposes them in anything.

Since undertaking justice and judging among people with equity is among the totality of the rulings which those sources have strongly emphasized, if the imam transgressed it and ruled with tyranny, that would not be accepted from him; because it is disobedience to the Creator in which obedience to a creature, whoever he may be, is not obligatory. Then it is possible to cancel and nullify it by way of the judiciary and the court. If the imam persisted in his errors without desisting from what he does, he would be a transgressor (*fāsiq*) deserving his removal from this grave office. So, then, not obligating him to choose the saying of the people of the shūrā does not mean that he has become an absolute ruler and despotic in his opinion; rather he is restricted by following the rulings of the Book and the Sunna. In the form of his not fulfilling this commitment and his opposing them or one of them in anything, his subjects may sue him, and then remove him and turn him from this office of his.

The upshot is that what we said of not obligating him with the saying of the shūrā — its scope is limited only to his consultation of the people who loosen and bind in the permissible matters in which Islam has not decided by a ruling. So in these alone he is permitted to depart from the opinion of the people of the shūrā in favour of what his own opinion settles upon as a result of the strength of its argument and its proof. This is what distinguishes him from kings and emperors, since they are so independent and despotic that they do not see anything else — not even divine revelation and heavenly law — above them in sovereignty and authority!

Third: since among the most important things that are obligatory on the imam is consultation in the general matters of the Umma, and especially in its political affairs — and the shūrā is only completed if the imam attended it and listened to what is presented and discussed in it of opinions and their proofs, not biased towards one side or a special opinion — it is therefore not correct what has prevailed today: that the shūrā takes place in the absence of the imam, and what was decided in it of opinion is only presented to him; and he cancels it with a single stroke of the pen, without looking closely at what

[p. 235] went on in it and without deliberation in what was presented to him.

In sum: the principle is permitting the imam who combines the conditions of the imamate and its qualities to disagree with the people of the shūrā by his special opinion and to decide by other than what their opinion agreed on — on condition that it be within the scope of these three points and with their observance.

On another side, it is permitted also that the imam and caliph be restricted — in special exceptional cases and circumstances — to taking the opinion of the shūrā within the limits of a special scope. The reason for that is that rarely is there found among the Muslims one who combines in completeness and perfection those conditions and qualities necessary for the imamate in the Sharia, because of the weakness of the religious motive in them and the decline of their state in attending to religious matters — which compelled the scholars to lighten the conditions of probity until its concept among them was confined to a person's good deeds being predominant over his bad deeds only! For witnesses, strict and severe conditions were originally stipulated; then when Imam Abū Yūsuf took the judgeship and found that a witness meeting those conditions had become all but impossible to find, he relaxed them, to the point of accepting the testimony of the transgressor if he had manly virtue (*murūʾa*) that deters him from lying. Likewise among the conditions of the imamate first was that he had reached in knowledge the level of ijtihad; then when attaining this became far harder than before, the condition was relaxed, and it ceased to be a condition for the imamate. So it became possible for someone who is not a mujtahid scholar to take up the reins of the imamate. It is entirely unreasonable that such an imam — not a mujtahid, and not meeting the other conditions of the imamate — be given the powers and authority that the Rightly-Guided Caliphs had — among them independence of opinion and rejection of the saying of the people of the shūrā.

So in such a case there does not appear any harm in choosing the second saying and not permitting the imam to reject the saying of the people of the shūrā definitively and decisively; rather, given the lack of confidence in his expertise and trustworthiness, he should be bound to adopt the view on which the shūrā council has agreed, without there being for him room for opposing it or deviating from it.

There is a formula which can be chosen to define the scope of restricting him in this regard, namely that

[p. 236] rulings and commands are of two kinds: among them what is like legislation and law-making, whose nature is that as soon as they are issued they take the character of law; and among them what are commands related to administrative and executive affairs. As for the first part, it has

been established concerning it definitively that the imam is never allowed to legislate what contradicts the Sharia or opposes it in anything. As for permissible matters (*mubāḥāt*), in which the Sharia has left the door of legislation open to the imam, he can be bound in these to follow the opinion of the people of the shūrā.

As for executive and administrative commands, if we charged him in all of them with following the opinion of the shūrā council, that would threaten to obstruct the administration of the helm of government entirely; so here the original principle applies: the imam may follow his own opinion, without being bound at all to follow the opinion of the people of the shūrā.

An example of that is "the emergency tax" (*al-ḍarība al-nāʾiba*): the jurists permitted the government to impose a tax on the subjects if the public treasury fell short of the expenditures necessary for the state, or if a calamity befell the Muslims. The method of that is that the imam put the draft decision concerning it before the shūrā council; so if it did not agree with him on it and did not see a pressing need justifying burdening the subjects with taxes, then the imam may never impose the tax as long as he has not obtained the agreement of the people of the shūrā on it. The task of specifying the matters in which he is bound by the opinion of the shūrā council, and those in which he is not, can be entrusted to the constitution of the Islamic state today.

4 – Taking decisions by majority opinion

Among what is worth mentioning here is the discussion of the standing of the majority of opinions and its status in Islam: in the sense that taking [the outcome of] consultation — does it depend on the people of the shūrā being unanimous, or is it possible to take the decision in it by the majority of opinions also?

It has passed before you gentlemen earlier that democracy regards the majority of opinions as its only basis for judging things and distinguishing what is true from what is false. How excellent is the great poet Muhammad Iqbal, saying:

[p. 237]

> *Jamhūriyyat ik ṭarz-e ḥukūmat hai ke jis men Bandon ko gina karte hain, tolā nahīn karte*

Democracy is a kind of government in which people are merely counted and not weighed. (What counts in it is mere number, without distinguishing among the voters between the dull and the able, the foolish and the sound of judgement, etc.)

While a passing look at the rulings of the Qur'an and Sunna clearly shows us that Islam has never regarded the majority as a criterion that judges things to be lawful or unlawful, defines truth and falsehood, and distinguishes good from evil. For the Qur'an has rejected that categorically, saying: **"And if you obey most of those upon the earth, they will mislead you from the way of God. They follow nothing but conjecture, and they are only guessing"** [al-Anʿām, 6:116].

So it has no weight at all, then, in the matters on which the Islamic Sharia has decided with a ruling. Of such, the poet Muhammad Iqbal also said:

> *Ke az maghz-e do ṣad khar fikr-e insānī namī āyad*

The thought of a single human being does not come out of the brains of two hundred donkeys.

As for what is besides that, Islam has not rejected it outright; rather it can be considered as a Sharia criterion in two matters of religion:

The first: in the permissible matters in which there are before the imam many options, and the people of the shūrā differ over them; so the majority can be considered in them as a factor giving preponderance to one of those forms and options, all of which are permissible. The evidence for that from the side of transmission is the action of ʿUmar, may God be pleased with him: shortly before his death he formed, for choosing the caliph after him, a committee consisting of six of the senior Companions — ʿUthmān, ʿAlī, ʿAbd al-Raḥmān ibn ʿAwf, Ṭalḥa, al-Zubayr ibn al-ʿAwwām and Saʿd ibn Abī Waqqāṣ, may God be pleased with them all — and he directed them to the plan of action which they would take in their affair, saying: "Consult [one another] in your affair; and if it is two and two, then go back in

[p. 238] consultation; and if it is four and two, then take the side of the majority."[1]

This makes clear that al-Fārūq, may God be pleased with him, considered the majority of opinion in this issue — which can be used as evidence for considering it in others among the permissible matters.

The second: in the issues open to ijtihad (*al-masāʾil al-mujtahad fīhā*), which are the matters concerning which no decisive ruling has come from the Lawgiver, and the opinions of the mujtahids have differed in their ruling on the basis of differences in their understanding in explaining what is general in the Qur'an and the Sunna and clarifying what is ambiguous of them, and so on. So the majority of opinion can be considered in them as a factor giving preponderance to one of those probabilities and concepts, in the sense that the saying held by most of the imams be chosen. Some jurists have expressed this position by saying: the majority of opinion is not in itself evidence; rather we can take it as an indication, in the sense that probability prevails that the evidences of the position which most of the imams chose are preponderant; for if it were not preponderant, those eminent imams and great scholars would not have held it.

This does not mean that whenever the majority of the imams is on one side, that is the preponderant one necessarily and definitively; for there are many issues in which Imam Abū Ḥanīfa differed from the rest of the imams, standing alone on one side, with all the other imams and mujtahid jurists on the other. But I heard my father, His Eminence Shaykh Mufti Muhammad Shafiʿ (may God have mercy on him), relate from Shaykh Maḥmūd al-Ḥasan al-Deobandī (may God have mercy on him) that he said: I strongly suspect in such issues that the position of the Imam and his argument are of the utmost strength; for if it were not so, he would not have dared to oppose all the imams definitively.

The upshot is that although majority opinion is not in itself a conclusive argument or a decisive proof, there is no harm in taking it as a factor of preponderance for one of the positions when Sharia evidences conflict concerning it. From this it is correct that the constitution of the shūrā council provide that, in case of disagreement over matters permissible in the Sharia, decisions are taken by majority vote.

What deserves attention in this field is that many councils and bodies have provided

[1] *Al-Ṭabaqāt al-Kubrā*, al-ʿIlmiyya ed. (3/45).

[p. 239] in their constitution that if the opinions of the two positions are equal, preponderance belongs to the side in which the president is; and sometimes this is expressed by saying that the president gives a casting vote. It too has a basis in the action of ʿUmar, may God be pleased with him, since he said in the plan of action which he instructed the people of the shūrā to proceed by in the field of choosing the caliph after him: "And if the opinion of three and three agreed, then follow the side of ʿAbd al-Raḥmān ibn ʿAwf."[1]

Likewise it has become prevalent in the world today that they sometimes allow persons to attend the shūrā council and give opinion in it without their having a vote; and this is what is called in contemporary terminology the non-voting member (Non-Voting members). It is also permissible in the Sharia, relying on what ʿUmar, may God be pleased with him, did: that he allowed his son ʿAbd Allāh to witness the council of the people of the shūrā as a mere witness, without his opinion having weight in disagreement among them; and among what came in the plan of action which we briefly described earlier is that he said: "ʿAbd Allāh ibn ʿUmar will witness you, and he has nothing of the matter."[2]

5 – Qualities of the members of the shūrā

The third discussion in the matter of the shūrā is: are there conditions that must be present in the members of the shūrā who advise the imam in the affairs of the state, or not? We say in that: the shūrā council consists of the people who loosen and bind among the Muslims, a brief introduction to whom and to their important functions has passed before us earlier, among them the choosing of the imam and the appointment of the caliph for the Muslims. From this it becomes clear that the shūrā council does not consist of every Tom, Dick and Harry of the riff-raff of people and their rabble; rather they must have qualities, some of which are self-evident, like truthfulness and trustworthiness, alongside knowledge and insight in the affairs of the state and the tasks of government. While the Sharia has not specified any of their other qualities; rather it left that to the Muslims to choose in every age what agrees

[1] *Al-Ṭabaqāt al-Kubrā*, al-ʿIlmiyya ed. (3/45). [2] *Ṣaḥīḥ al-Bukhārī* (5/17), Book of Merits, chapter on the story of the pledge and the agreement on ʿUthmān, hadith no. 3699.

[p. 240] with its requirements and meets its needs.

But the amount we can define, even from the word itself, is that they should be people whom the Umma trusts to some degree as to their truthfulness, their trustworthiness and their insight into the interests of the Umma and its political issues.

In tribal life there was no need for electing them; rather the leaders of the tribes and the notables of the people were almost designated for this purpose. As for today, the situation has not remained as it was; so a coordinated election of them has become necessary. The Sharia has also not specified for it a special method among the methods of election prevailing today, whether by way of the electoral body (Electoral college), or on the basis of the right to vote for every adult citizen. What is preponderant with me is that if the rate of learning and political insight were high in the state, they

should be elected by way of voting from every adult citizen; just as there does not appear any harm from the Sharia point of view in the elections being in stages and according to ranks, if that is what is appropriate to the condition of the people and the interest of the Umma.

6 – Membership of women in the consultative council

The opinions of the scholars of Islamic political jurisprudence have conflicted on whether a woman may according to the Sharia be a member of the shūrā council or not. Some hold it permissible, arguing by what came from the Prophet ﷺ: that he often consulted the women even in the general matters of the Muslims, as was so in the Treaty of al-Ḥudaybiya when the Prophet ﷺ ordered his companions to slaughter [their sacrificial animals] and shave [their heads]; and although he repeated this command three times, none of them did it. So astonishment took him when he saw this slowness in complying with his command, from those who had been eager to comply with his commands, and he had never known that from them before. So he entered upon Umm Salama and mentioned to her what he had met from the people. Umm Salama said: “O Prophet of God, would you like [them to do] that? Go out, then do not speak to any of them a word until you slaughter your sacrificial animals and call your shaver and he shaves you.” So he went out and did not speak to any of them until he did that: he slaughtered his sacrificial animals and called his shaver and he shaved him. When they saw that, they stood up and slaughtered, and some of them began to shave

[p. 241] others.”[1]

Commenting on this argument we say: the hadith, even if it indicated his consulting the woman, at the same time is not fit by itself — and merely by his consulting a woman on some issue — to be used as evidence for permitting the woman to be a member of the shūrā council, as is obvious.

The second evidence for this position is what was of the action of ʿAbd al-Raḥmān ibn ʿAwf, may God be pleased with him, as a member of that committee which ʿUmar, may God be pleased with him, formed for choosing the caliph after his death: when he withdrew and gave up his own claim, he set about striving to find the best of the Muslims to appoint. So it is mentioned that he asked whoever it was possible for him to ask of the people of the shūrā and others, and that continued three [days]; and among what history narrates to us about him is that: “Then ʿAbd al-Raḥmān ibn ʿAwf, may God be pleased with him, rose up consulting people about them [the candidates], gathering the opinion of the Muslims with the opinion of the heads of the people and their leaders, all together and scattered, in twos and singly, and gathered, secretly and openly, until he reached the secluded women in their seclusion.”[2]

These scholars cite his going as far as the secluded women, consulting them about the caliphate, as evidence that there is no harm in the woman becoming a member of the shūrā council of the Muslims.

But I say: “This argument is weak; for in the same story it is reported after that that he even asked the children in the schools”; so just as it is not correct to argue by this sentence to make the children of the schools members of the shūrā — as is judged self-evident — likewise it is not correct to argue by it for the right of women to membership of the shūrā council either.

As for the people of the first position — the prohibition of granting them the right to membership in the shūrā council — they argued for it by what al-Tirmidhī narrated of the saying of the Prophet ﷺ: "And your affairs are [handed] to your women, then the belly of the earth is better for you than its surface."[3]

> [1] *Ṣaḥīḥ al-Bukhārī* (3/196). [2] *Al-Bidāya wa-l-Nihāya*, Dār al-Fikr ed. (7/146). [3] *Sunan al-Tirmidhī*, ed. Shākir (4/529), Chapters on Trials, chapter 87, hadith no. 2266; and he said: this is a gharīb hadith.

[p. 242] But arguing by this hadith for their position is open to question; for the meaning of the hadith — and it is in the context of blame — is that authority be entrusted to them in all matters such that their word in it is the [final] word and their opinion in it is the [final] opinion, and the man becomes merely a follower of her in all affairs and issues. That does not entail that consulting them be categorically forbidden to men!

Finally, I have presented before you gentlemen these two positions and their proofs in detail with brief comments on them. Since there is no text decisively prohibiting their participation in the shūrā council of the Muslims, [membership is not ruled out]; but no two would disagree that, if they were granted membership of the shūrā, they must observe the rulings of the ḥijāb in all the details laid down by the Sharia.

7 – Membership of a non-Muslim in the consultative council

The fourth discussion in this regard is granting the unbeliever membership in the shūrā council of the Islamic state. Some held that it is not permissible, arguing by the following verse: **"O you who have believed, do not take as intimates those other than yourselves, for they will not spare you [any] ruin. They wish you would have hardship. Hatred has already appeared from their mouths, and what their breasts conceal is greater"** [Āl ʿImrān, 3:118].

Commenting on it we say: "This argument is not clear; for the verse aims at explaining the ruling of the unbelievers hostile to Islam, by forbidding the Muslims from taking them as intimates in their special affairs; and its restriction to the hostile among them is indicated by the events which ʿAllāma al-Ālūsī (may God have mercy on him) mentioned as the occasion of revelation of this verse, saying: From Ibn ʿAbbās, he said: Men of the Muslims used to keep connections with men of the Jews because of what was between them of neighbourliness and alliance in the Jāhiliyya; so God the Exalted revealed this verse concerning them, forbidding them to take them as intimates for fear of their being led astray. ʿAbd ibn Ḥumayd included that it was revealed concerning the hypocrites of the people of Medina: the believers were forbidden to take them as friends."[1]

> [1] *Tafsīr al-Ālūsī = Rūḥ al-Maʿānī* (2/253).

[p. 243] It is a clear matter in which there is no doubt: that the Muslims are forbidden from making the hostile among the unbelievers their intimates and the keepers of their secret, and from granting them membership in their shūrā council or bringing them into it. As for the non-hostile among them, who inhabit the Islamic state in non-hostility to it and live in it a safe, peaceful life, the jurists allowed them to attend the shūrā council, relying on the action of ʿUmar, may God be pleased with him: that many of the dhimmīs once attended a shūrā council of his, as ʿAllāma al-Sarakhsī mentioned in *al-*

Mabsūṭ; and he said in one place in the wake of the story of a shūrā of ʿUmar, may God be pleased with him, which a Christian attended: "And in it is evidence that there is no harm in bringing some of the People of the Book into the shūrā council; for the Christian who said what he said had attended the council of ʿUmar — may God be pleased with him — for the shūrā, and this was not objected to."[1]

Perhaps that was only in relation to some matters that related to the dhimmīs specifically, so he consulted some of them in it; which indicates that there is no weight for their opinion and their counsel in the public affairs of the Muslims and their social issues. As for matters related to the dhimmīs specifically, or what is of the kind of permissible matters, there is no harm in bringing them into the shūrā for it and seeking opinion from them about it.

8 – Legislation and law-making

Parliament or the house of representatives is what performs the task of legislation in contemporary political systems; and from this the term "legislative council" or "legislative body" is applied to it also. It enjoys in the democratic system absolute authority and complete power concerning legislation, without being committed in it to a matter or restricted by anything or confined to a limit — except for the restrictions which a constitution may impose on it in some state; but they too do not remain restrictions in the end; for parliament itself is able to lift them by amending the constitution by the majority of the opinions of the representatives and members. So it is correct, then, to say that democracy grants it complete freedom and absolute independence to legislate whatever it wishes and make law as it wants.

> [1] *Al-Mabsūṭ* of al-Sarakhsī (24/7).

[p. 244] While Islam looks at the Qur'an and the Prophetic Sunna as a basic constitution and a fixed principal source — not capable of replacement and change — for the Islamic state; and from this it subjects to them both all that it undertakes of legislation and law-making. Having established this rule and principle, we can divide legislation in Islamic government into three kinds:

The first: that Islamic government undertake the implementation of the clear, decisive Islamic rulings from the Book and the Sunna, on which there is no room for disagreement and no place for ijtihad in explaining them, as a law for it. This can take one of two forms: that those rulings be in the form of written law (codified law) and the courts be obligated to judge by what is in it. The second: that the courts be obligated to judge in all disputes and cases by the rulings of the Qur'an and Sunna without those rulings being handed to them in the form of a written law or a codified constitutional document. So it would be among the functions of the courts then, and the duties of their judges, to refer to them in every case to learn its Sharia ruling. So that they can arrive at that, it is necessary in this form that the judges of the courts be knowledgeable about this kind of rulings of the Qur'an and the Prophetic Sunna, so that they are able to judge by them.

The second kind: cases whose rulings these two sources do not state; so they need, in arriving at their ruling, the faculty of ijtihad and the qualification for derivation from them; or what is general and ambiguous among them, in explaining and clarifying which two may differ. So the Islamic state

undertakes their implementation in the form of law; and since they are a place for ijtihad and a scope for derivation, they therefore need a rule for preferring one of the positions and opinions when disagreement occurs in them. It is possible to solve them also by one of these two forms: that those rulings be codified, so they are implemented as a written law of the country (statute law); or the government issue a brief law requiring the courts either to choose among these positions themselves, or to follow a particular school of Islamic jurisprudence — for example, requiring those courts to judge in all disputes and pleadings according to Ḥanafī jurisprudence. To learn the Ḥanafī position on a given case, the court will need

[p. 245] to refer to its sources. It is clear that it will not actually be applied and will not be implemented in practice except if the judges of the courts are specialists versed in the Islamic sciences; otherwise that would lead to gross errors and heavy losses, as is not hidden!

In the early period of Islam the first method prevailed, by virtue of the deep learning of the judges in the Islamic sciences and their qualification for ijtihad from the Qur'an and the Prophetic Sunna directly. Later, when the judges' mastery of the Islamic sciences had declined, the government would assign them a number of muftis whom they were required to consult before deciding anything.

The most appropriate, in view of our circumstances and our contemporary situations, is that the law be implemented after codifying its texts and its articles in writing; and not leave the rulings for them as an unwritten law, in which the fears of fraud, cheating and forgery increase more — and especially in our time, in which these blameworthy traits have spread and prevailed even in judicial circles! But it is known that this enormous work needs a group of eminent jurists of the Sharia and experts, who undertake by consultation among them codifying those rulings and writing them in the form of law, as was so in the last eras of the Ottoman Caliphate, where "the Majalla of Judicial Rulings" was arranged and codified, which became a law for it and was considered a source for judicial rulings in Islamic lands for a not short period. As for today, until the codification of rulings — which needs time and the efforts of a large body of the Umma — it is possible temporarily and for a transitional period to act by the first form of the two forms mentioned just now.

There has continued to be a proposal put forward in political circles with intensity and force, namely that legislation concerning both these kinds of rulings be entrusted to parliament alone, so that it performs, by all of its members, the role of ijtihad and derivation in clarifying these rulings from the Qur'an and Sunna and defining their concepts and so on.

Our reply is that this proposal could have been accepted if the election of members of parliament among you took place on the basis of their knowledge and familiarity and their connection with the sciences of the Qur'an

[p. 246] and the Prophetic Sunna — which is impossible today; for they have become such that most of them have no connection with them, let alone having qualifications for understanding them and insight into them and ijtihad and derivation from them. So if the situation is as bad as this, then how are they to be trusted in understanding their meanings and clarifying what is general in them and specifying what is ambiguous in them?!

The third kind: legislation concerning the permissible matters on which the Sharia has not decided anything. Legislation in parliament today is usually about these permissible matters: so a law about the employees of the government and their privileges, and another about the municipal council and its departments, or the organization of armies and their arrangement. To guarantee its freedom from what contradicts the Sharia, it should be presented first — and before it takes on the character of law and is put into implementation — to experts of the Sharia and the scholars, so that they review it with a precise scholarly review, so that there is not found in it anything — even a clause — that contradicts its rulings.

The prevailing method today is that legislation and law-making about something usually take place in parliament and the house of representatives; then, after parliament has adopted and approved it, it is presented to the head of state or the king to approve it by signing it if he sees fit. But if he disagrees with it, the most he can do is send it to parliament to undertake sifting it another time; then if parliament held firm on its adoption after reviewing it at the direction of the president, it is presented to him another time so that he signs it, approving it whether he likes it or not!

As we have just seen, the first two kinds of legislation in the Islamic state are only completed by mastering the Islamic sciences and specializing in them, which the members of parliament today lack, as is tangibly witnessed. So they are not to be trusted in this field; rather there must be a body formed of the scholars of the Sharia who have mastered its sciences and are specialists in it, to undertake clarifying the rulings of the Sharia and interpreting them in the light of its fixed principles and its established rules. There is no harm in there being with them experts from various fields of life and specialists from its various branches, to inform them and help them understand the realities on the ground (*fiqh al-wāqiʿ*), so that they form a correct picture of them, which makes it easier for them to rule on them. Their role will be confined to informing the scholars about these realities

[p. 247] only, without their having any hand in specifying the rulings of the Sharia and interpreting them; rather the reference in it, first and last, is to those scholars and jurists only, who possess complete skill and full mastery and precise view of the principles of derivation from the four sources: the Qur’an, the Prophetic Sunna, consensus and analogy.

So this body itself undertakes the task of legislation and law-making concerning the first two matters, either directly and without need of anyone, or it performs the function of specifying rulings only, and so presents it as a proposal to the shūrā council or parliament to undertake implementing it officially if it agreed with it. But if parliament disagrees, it sends it back to the body with a clarification of what it found problematic and an explanation of the justifications for its rejection, so that it reconsiders it and reviews it with more precision and mastery, taking note of parliament’s objections to it and its justifications for rejecting it. After all that, either it undertakes amendment in the draft law according to parliament’s direction, or it answers its observations with a satisfying, convincing answer, so that parliament then undertakes implementing it officially and finally.

A doubt has been raised today around this proposal: that it means nothing but subjecting parliament to this body of scholars — which is a form of theocracy and papacy. I answered it earlier, specifically in the discussion of theocracy, in detail sufficient to remove this doubt and uproot it from its roots, just as I spoke at length on it in my Urdu book *Nifāẕ-e Sharīʿat aur us kā ṭarīqa-e kār* (Implementing the

Sharia and its method), in which I clarified prominent essential differences that distinguish between what we are concerned with — the body of scholars — and what theocracy was upon. In brief, it is self-evident that what counts in every art is its men who are specialists in it; so if our discussion is about insight into the sciences of the Qur'an and the Sunna and explaining and interpreting it and deriving rulings from it, why then not rely on the scholars in it, when they have spent their lives in the way of acquiring its sciences, sparing nothing, however precious, until they mastered them and grasped of them the amount with which sufficiency is achieved in leading the Umma and steering its wheel according to the rulings of the pure, tolerant Sharia, without distortion, forgery, flattery or fawning? For more detail on the difference between the role of the scholars of Islam

[p. 248] in government — and especially in the field of legislation — and what Christian theocracy was upon in the field of authority and rule, the reader may refer to what we presented in the discussion of theocracy in the first part of this book.

What has prevailed today in the patterns of contemporary government — that the head of state or the king is entirely subject to the house of representatives such that they are compelled to sign the decision which parliament issued even against their will and their non-agreement to it — contradicts the principle of respect for the freedom of conscience altogether, and makes the president merely a symbolic head. So he ought to be allowed to reject it and not sign it if he did not agree with it in principle; and in this form, let the decision be taken and the legislation completed by the signature of the speaker of parliament and the legislative council — avoiding the occurrence of the situation which Queen Victoria faced when a law was presented to her with which she did not agree, yet she approved it, saying: "I sign it while I believe it to be wrong."

On another side, the law is not completed in its final form except after its passing through many stages in which some deficiencies may creep into it from the Sharia point of view. So it appears necessary that every citizen be allowed to challenge a law on the basis of its contradicting the Sharia and its clashing with it, in the supreme constitutional court which includes the specialists in the Sharia sciences with experience and insight in the rulings of the Qur'an and Sunna, so that they undertake to hear the position of both parties: the complainant and the representative of the government bodies, and to rule on the soundness of the complaint or not in the light of its proofs. So if the complaint was sound and it was established to the court that the law or a clause of it contradicts the Sharia and clashes with its principles, let it order the government to cancel it or amend it so that it agrees with the requirements of the Sharia. The court's competence to rule in such a case will resemble what is established in America: that the court is distinguished by the authority which permits it to cancel a law which parliament adopted and approved.

Pakistan has established the two constitutional institutions "the Federal Shariat Court" and "the Shariat Appellate Bench of the Supreme Court" for this purpose; and we would

[p. 249] have found them sufficient in this field were it not for many evils and deficiencies that exist in their administrative structure — among them the shortage of the number of men of knowledge and experts in the Sharia in them; and second, that the power to appoint the scholars to them and remove them rests entirely with the head of state. So the executive can obtain rulings to its liking by removing members who will not endorse a government law that they regard as contrary to the Sharia — as has

actually happened in the past. If these two defects were removed, these two institutions would play a major role in giving laws a religious form and casting them in an Islamic mould.

9 – The scope and limits of obedience to the ruler

The Islamic Sharia makes it obligatory on the subjects to obey the imam who was chosen and designated as imam of the Muslims and their caliph on the basis of the details which we mentioned earlier with elaboration and clear explanation — provided [his command] is within the framework of the rulings of the Qur'an and the Prophetic Sunna, not contrary to them in anything. The evidence for that is what God, glorified and exalted, said: **"O you who have believed, obey God and obey the Messenger and those in authority among you"** [al-Nisāʾ, 4:59]. So God commanded in this verse obedience to those in authority (the caliphs and their officials) alongside obedience to God and obedience to His Messenger ﷺ. So it became clear from it that whatever was of the commands of God, glorified and exalted, or the commands of His Messenger ﷺ is obligatory on all the Muslims, including the imam and the holders of authority and others. As for the ruling of obedience to the commander, it is directed to the Muslims in two cases:

The first: if the imam issues a specific order to do something permissible in the Sharia, it is obligatory on the Muslims to do it because the imam has ordered it. That is as if the imam commanded his subjects to fast a day, for example: it is obligatory on them to fast that day in performance of the obligation of obeying the imam — as ʿAllāma Ibn ʿĀbidīn al-Shāmī (may God have mercy on him) said, attributing it to more than one of the jurists: "That obedience to the imam in what is not disobedience is obligatory; so if he ordered fasting, it became obligatory."[1]

[1] *Al-Durr al-Mukhtār* and the gloss of Ibn ʿĀbidīn (*Radd al-Muḥtār*) (5/422).

[p. 250] Likewise if the imam forbade a permissible matter: it is obligatory on the subjects to desist from it merely by the imam's prohibition concerning it.

The meaning of that is not that the state of that Sharia-permissible thing has changed; rather it still remains, from the Sharia point of view, in its character, I mean permissibility; but its ruling [for the subjects] has changed after the imam's command or prohibition, solely because of the obligation to obey the imam.

Proceeding from this it is obligatory on the subjects to comply with the traffic rules issued by the governmental bodies and administrative authorities, as being commands of the imam or his officials in permissible matters.

But alongside that, the jurists have also established this principle with all explicitness and clarity: that "the disposal of the imam over the subjects is tied to the interest (*maṣlaḥa*)"[1] — in the sense that obedience to him is only obligatory in the commands which he issued out of regard for the interest of the subjects and concern for them. As for orders issued unjustly and tyrannically against the subjects, or for the purpose of exhausting them and constraining them, obedience to them is not obligatory in anything. Its basis is what God commanded David, upon him be peace, saying: **"O David, indeed We have made you a vicegerent upon the earth, so judge between the people in truth"** [Ṣād, 38:26]; and what is narrated that the Prophet ﷺ sent an expedition and put over them a man of the Anṣār, and

ordered them to obey him. He became angry with them and said: Did not the Prophet ﷺ order you to obey me? They said: Yes. He said: I resolve upon you that you gather firewood and kindle a fire, then enter it. So they gathered firewood and kindled a fire; and when they were about to enter, they stood looking at one another. Some of them said: We only followed the Prophet ﷺ fleeing from the fire; shall we enter it? While they were like that, the fire died down and his anger subsided; and it was mentioned to the Prophet ﷺ, and he said: "Had they entered it they would never have come out of it; obedience is only in what is right (*al-maʿrūf*)."[2]

The second case: that the imam, if he commanded something in the issues open to ijtihad in which the opinions of the jurists have differed and diverged, then it becomes incumbent on all to comply with what the imam commanded, even if it is

> [1] *Al-Ashbāh wa-l-Naẓāʾir* of Ibn Nujaym (1/104). [2] *Ṣaḥīḥ al-Bukhārī* (9/63), Book of Judgements, hadith no. 7145; and Book of Military Expeditions, chapter on the expedition of ʿAbd Allāh ibn Ḥudhāfa, hadith no. 4340.

[p. 251] contrary to his opinion and his school. This is what the jurists expressed by saying: "The ruling of the ruler removes disagreement" (*ḥukm al-ḥākim rāfiʿ li-l-khilāf*). To explain: if an issue is disputed among the jurists, with divergent opinions and conflicting positions, and the Sharia permits the followers of each jurist to follow him in it, and then the imam issues a specific decree choosing one of those positions — his ruling is implemented on the subjects in their entirety, such that it becomes incumbent on all to act by it regardless of what is preponderant with him and with his imam whom he follows and imitates in the partial issues. As an example of that we present the issue of the number of additional takbīrs in the ʿĪd prayer: it is narrated from Ibn Masʿūd, may God be pleased with him, that they are three in every rakʿa — and it is the position which Imam Abū Ḥanīfa (may God have mercy on him) chose — while it is narrated from Ibn ʿAbbās, may God be pleased with him, that they are seven in the first rakʿa and five in the second — and it is the position which Imam al-Shāfiʿī (may God have mercy on him) chose. Despite that, it is authentically established from the two eminent imams, pillars of Ḥanafī jurisprudence, Abū Yūsuf and Muḥammad (may God have mercy on them both), that they did takbīr in the ʿĪd seven and five according to the Shāfiʿī school; and that was in the wake of the command of the Caliph Hārūn al-Rashīd with it because it was the school of his ancestor Ibn ʿAbbās, may God be pleased with him. ʿAllāma Ibn ʿĀbidīn (may God have mercy on him) said: In *al-Ẓahīriyya* he said: "And the interpretation of what is narrated from Abū Yūsuf and Muḥammad, that they did that, is that Hārūn ordered them to do takbīr with the takbīr of his ancestor; so they did that in compliance with him, not as a school and belief."[1]

All that has passed of the obligation of obeying the imam is only in permissible matters and those open to ijtihad. As for if he ruled by something that contradicts the established rulings of the Sharia by consensus, then his ruling is not implemented and obeying him in it is not permissible; rather the following principle applies: no obedience to a creature in disobedience to the Creator — which is taken and derived from the following verse: **"But if they endeavour to make you associate with Me that of which you have no knowledge, do not obey them but accompany them in [this] world with appropriate kindness"** [Luqmān, 31:15].

And especially what is narrated from the Prophet ﷺ concerning obedience to the commander, that he said: “Hearing and obeying is upon the Muslim person in what he loves and dislikes, as long as he is not commanded with disobedience; so if he is commanded with disobedience, then there is no hearing and no

[1] *Al-Durr al-Mukhtār* and the gloss of Ibn ʿĀbidīn (*Radd al-Muḥtār*) (2/172).

[p. 252] obeying.”[1]

The imam deserves his removal for the like of issuing this ruling, according to the details which we shall explain in their place from the discussion of removing the imam and deposing him in Chapter Six, God willing.

The same ruling as that of the imam, just explained in detail, applies to parliament, the legislative council and the legislative body if they adopt such a law. So it is established from this what we said earlier: that there must be a constitutional body that undertakes cancelling the like of these laws and commands or amending them so that they agree fully with the principles of the Sharia.

10 – Freedom of criticism in Islam

The ruling of the obligation of obeying the commander does not mean that criticism of a step the imam took or a work he undertook is categorically forbidden. Rather Islamic government founded on straight foundations grants the people complete freedom in criticizing the imam — and especially if they saw from him what contradicts the rulings of the Sharia and opposes its fixed principles; and in this case they are also allowed to take him to court, to be questioned about it, and to have those of his commands that contradict the Book and the Prophetic Sunna annulled. For the imamate is not a rank that makes its holder exceed the limits of human nature and become infallible from error in undertaking and free from mistake in the matter. Accordingly came the command to consult the believers, so that each gives his opinion before the imam with all freedom and firmness without fear, blame or regret.

The Prophet ﷺ forbade the generality of the Muslims from following the imam in what contradicts the Sharia; rather he commanded them to strive to set him right as far as they could, as came in the hadith from Kaʿb ibn ʿUjra; he said: The Messenger of God ﷺ came out to us and we were nine; he said: “There will be after me commanders; whoever believes them in their lying and helps them in their injustice, he is not of me and I am not of him, and he will not come to me at the Pool. Whoever does not believe them in their lying and does not help them in their injustice, he is of me and I am of him, and he will come to me at

[1] *Ṣaḥīḥ al-Bukhārī* (9/63), Book of Judgements, chapter on hearing and obedience to the imam, hadith no. 7144.

[p. 253] the Pool.”[1]

Likewise what al-Bukhārī narrated from Abū Saʿīd al-Khudrī, from the Prophet ﷺ; he said: “No caliph is appointed but he has two intimate circles: a circle that commands him with good and urges

him on it, and a circle that commands him with evil and urges him on it; and the protected one is whom God protects."[2]

What al-Haythamī mentioned in *Majmaʿ al-Zawāʾid*, saying: And from Ibn ʿUmar he said: the Messenger of God ﷺ said: "Whoever attends an imam, let him say good or be silent."

Al-Ṭabarānī narrated it in *al-Awsaṭ*, and in it is Ṣāliḥ ibn Muḥammad ibn Ziyād, whom Aḥmad and others declared trustworthy and a group declared weak; and the rest of its men are men of the Ṣaḥīḥ.[3]

What al-Tirmidhī included from Abū Saʿīd al-Khudrī, that the Prophet ﷺ said: "Among the greatest jihad is a word of justice before a tyrannical sultan."[4]

What Ibn ʿAbbās, may God be pleased with him, narrated from the Prophet ﷺ that he said: "It is not fitting for a man to stand in a place where there is a word of truth to be said without saying it; for it will not bring forward his term nor deprive him of provision that is his."[5]

What is narrated from Abū Saʿīd al-Khudrī, that the Prophet ﷺ said: "Let none of you belittle himself, seeing a matter concerning which there is a word due to God upon him, and he does not say it; so he meets God, mighty and majestic, having lost that, and He says: What prevented you? He says: I feared the people. He says: It was Me whom you more rightly should have feared."[6]

> [1] *Sunan al-Nasāʾī* (7/160), Book of the Pledge, mention of the threat for one who helps a commander in injustice, hadith no. 4212. [2] *Ṣaḥīḥ al-Bukhārī* (8/125), Book of Judgements, chapter on the intimate circle of the imam, no. 7198. [3] *Majmaʿ al-Zawāʾid wa-Manbaʿ al-Fawāʾid* (5/231), Book of the Caliphate, chapter on speaking the truth before the imams, hadith no. 9167. [4] *Sunan al-Tirmidhī*, ed. Shākir (4/471), Book of Trials, hadith no. 2174. [5] It came in different wordings in the *Sunan* of Abū Dāwūd, Book of Battles, hadith no. 4344, and of Ibn Māja, no. 4011. [6] Narrated by Abū Dāwūd al-Ṭayālisī in his *Musnad* with a sound chain, and this wording is his; and Abū Yaʿlā al-Mawṣilī and from him Ibn Ḥibbān in his *Ṣaḥīḥ*; and narrated by Aḥmad ibn Manīʿ and ʿAbd ibn Ḥumayd and Ibn Māja in abridged form; *Itḥāf al-Khiyara al-Mahara bi-Zawāʾid al-Masānīd al-ʿAshara*, Book of Trials, chapter on commanding right and forbidding wrong, hadith no. 7402, Dār al-Waṭan in Riyadh.

[p. 254] So in view of these hadiths, the Rightly-Guided Caliphs called on the subjects to direct criticism at them, and accepted it with broad-mindedness whenever it was in fact directed at them. So here is Abū Bakr, may God be pleased with him: no sooner had he taken over the command of the believers and received the reins of the imamate over them than he stood among them delivering his sermon, which is the first brick and the basic step for founding the Rightly-Guided Caliphate and the white lighthouse for whoever follows it and tries to walk on its course. History has preserved for us that he said: "To proceed: O people, I have been put in charge of you and I am not the best of you. If I do well, help me; and if I do wrong, set me right. Truthfulness is trustworthiness, and lying is treachery. The weak among you is strong with me until I remove his grievance, God willing; and the strong among you is weak with me until I take the right from him, God willing… Obey me as long as I obey God and His Messenger; and if I disobey God and His Messenger, there is no obedience owed to me by you."[1]

How excellent he was: he declared in it with the utmost concision and eloquence the landmarks of the way for the Islamic caliphate, and clarified the status of the Commander of the Faithful and his basic

qualities, and called the Muslims to direct criticism at him and at his commands — while he is their imam and the first successor of their Messenger ﷺ. So by that he established a good precedent which those of the just Rightly-Guided Caliphs after him followed with completeness and fidelity. So look at ʿUmar al-Fārūq, may God be pleased with him, saying in one of his sermons before the heads of the masses: “For I am one like you; and today you are to speak the truth, whether that means disagreeing with me or agreeing with me; I do not want you to follow this whim of mine.”[2]

This was not merely a phrase he tossed off or a sentence he embellished and threw to the winds; he also put it into practice in the most splendid way — for though he was the imam of the Muslims in the furthest and nearest parts of the inhabited world, and a man of formidable power and firm opinion, he accepted with broad-mindedness every stinging criticism directed at him. Here is one story of this, which al-Qāḍī Abū Yūsuf narrated from al-Ḥasan al-Baṣrī: that a man said to ʿUmar ibn al-Khaṭṭāb: “Fear God, O ʿUmar”[3] — and he repeated it much to him. A speaker said to him: Be silent, you have said too much to the Commander of the Faithful. ʿUmar said to him: Leave him; there is no good in them if they

> [1] *Al-Bidāya wa-l-Nihāya*, Dār al-Fikr ed. (5/248). [2] *Al-Kharāj* of Abū Yūsuf (1/36), section on the fayʾ and the kharāj. [3] An expression usually used to rebuke sharply someone who has erred.

[p. 255] do not say it to us, and there is no good in us if we do not accept [it]. And he came close to rebuking the one who had silenced him.”[1]

As for his story in which he retracted his position upon a woman’s objection to him and regarded her as more knowledgeable than him, let the books of hadith narrate it to us with its splendid, shining details. It came in *al-Sunan al-Kubrā* of al-Bayhaqī: ʿUmar ibn al-Khaṭṭāb, may God be pleased with him, addressed the people, praised God the Exalted and extolled Him, and said: “Do not exceed bounds in the dowries of women; for it does not reach me that anyone gave more than what the Messenger of God ﷺ gave or what was given to him, except that I put the excess of that in the public treasury.” Then he came down, and a woman of Quraysh presented herself to him and said: O Commander of the Faithful, is the Book of God the Exalted more deserving to be followed, or your statement? He said: “Rather the Book of God the Exalted; what is that?” She said: You forbade the people just now from exceeding bounds in the dowries of women, while God the Exalted says in His Book: **“And you have given one of them a great amount [qinṭār], do not take [back] from it anything”** [al-Nisāʾ, 4:20]. So ʿUmar, may God be pleased with him, said: “Everyone is more knowledgeable than ʿUmar” — two or three times; then he returned to the pulpit and said to the people: “I had forbidden you to exceed bounds in the dowries of women; let a man do with his property whatever seems right to him.”[2]

Al-Bayhaqī also narrated from Abū Hurayra; he said: When ʿUmar ibn al-Khaṭṭāb, may God be pleased with him, wanted to enlarge the mosque of the Messenger of God ﷺ, his enlargement fell upon the house of al-ʿAbbās ibn ʿAbd al-Muṭṭalib, may God be pleased with him. So ʿUmar, may God be pleased with him, wanted to bring it into the mosque of the Messenger of God ﷺ and compensate him for it; but he refused, and said: [It is] a grant (*qaṭīʿa*) of the Messenger of God ﷺ. They differed, so they made Ubayy ibn Kaʿb, may God be pleased with them, [judge] between them. So they came to him in his house, and he was called the master of the Muslims; he ordered a cushion

for them and it was thrown for them; so they sat before him, and ʿUmar mentioned what he wanted, and al-ʿAbbās mentioned the grant of the Messenger of God ﷺ. Ubayy said:… [He ruled for al-ʿAbbās, so] al-ʿAbbās said: "O God, I do not take a reward for it; I have given it in charity to the community of the Muslims." So ʿUmar, may God be pleased with him, accepted it from him and brought it into the mosque of the Messenger of God [3].ﷺ

More astonishing than that is what Ibn Saʿd narrated in the *Ṭabaqāt* with his chain from Yaʿqūb ibn Zayd: that

> [1] *Al-Kharāj* of Abū Yūsuf (1/22). [2] *Al-Sunan al-Kubrā* of al-Bayhaqī (7/380), Book of the Dowry, no. 14336. [3] *Al-Sunan al-Kubrā* of al-Bayhaqī (6/277), before the Book of Gifts, no. 11937; and *al-Ṭabaqāt al-Kubrā* of Ibn Saʿd 1914, biography of al-ʿAbbās, may God be pleased with him.

[p. 256] ʿUmar ibn al-Khaṭṭāb went out on a Friday and the gutter of al-ʿAbbās dripped on him — and it was on ʿUmar's way to the mosque — so ʿUmar pulled it out. Al-ʿAbbās said to him: You have pulled out my gutter, and by God it was not put where it was except by the Messenger of God ﷺ with his hand. ʿUmar said: Then certainly it shall not be that you have any ladder other than me, and no one shall put it [back] except you with your hand. He said: So al-ʿAbbās climbed on ʿUmar's neck, put his feet on ʿUmar's shoulders, then put the gutter back where it was and placed it in its place.[1] And the gutter remained there on the western side of the mosque until this day of ours.

This splendid, beautiful moral conduct was not confined to the era of the Rightly-Guided Caliphate; rather the shining, bright Islamic history is full of the like of these events which the just among the caliphs of the Muslims wove over the passage of ages and the succession of eras. To give evidence of that we shall content ourselves here with relating two of them:

The summary of the first story: that in the year four hundred and twenty-nine, in the month of Ramaḍān, the Caliph ordered that there be added to the titles of Jalāl al-Dawla ibn Buwayh: "Shāhanshāh al-Aʿẓam Malik al-Mulūk" [the Greatest King of Kings, King of Kings], and the Friday sermon was pronounced in his name with them. Some of the jurists gave a fatwa forbidding that, and that "King of Kings" is not said except of God; and the common people followed them and threw bricks at the preachers.

It was written to the jurists about that … and al-Māwardī gave a fatwa forbidding [it] and was strict in that; and al-Māwardī was among the close associates of Jalāl al-Dawla. When he gave the fatwa forbidding, he cut himself off from him. Then Jalāl al-Dawla summoned him, and he went to him in great fear. When he entered, he said to him: I have become certain that if you favoured anyone you would have favoured me, because of what is between me and you; and nothing carried you except religion. and by that your standing with me has only increased.[2]

The second story al-Subkī also mentioned in the biography of Shaykh ʿIzz al-Dīn ibn ʿAbd al-Salām, whose summary: that, regarding a group of the state's Turkish commanders, it had not been established to the Shaykh that they were free, so the ruling of slavery still applied to them, as property of the public treasury of the Muslims. So that reached them, and the matter became serious with them over it, and the matter flared; and the Shaykh was determined that neither sale nor purchase is valid for them

[1] *Al-Ṭabaqāt al-Kubrā*, Dār Ṣādir ed. (4/20), biography of al-ʿAbbās, may God be pleased with him. [2] *Ṭabaqāt al-Shāfiʿiyya al-Kubrā* of al-Subkī (5/271), biography of ʿAlī ibn Muḥammad ibn Ḥabīb Abū al-Ḥasan al-Māwardī.

[p. 257] nor marriage, and their interests were suspended by that. Among them was the deputy of the Sultanate, so he flared up in anger. They gathered and sent to him; he said: We will hold a council for you and you will be called out [for sale] on behalf of the public treasury of the Muslims, and your emancipation will be obtained by a Sharia way. So they raised the matter to the Sultan, and he sent for him, but he did not retract. A word burst out from the Sultan in which there was harshness, whose upshot was disapproval of the Shaykh's entering into this matter, and that it does not concern him. So the Shaykh became angry, carried his belongings on a donkey, and put his family on another donkey, and walked behind them, going out from Cairo heading towards Syria… So the Sultan rode himself and caught up with him and sought to please him and soothed his heart; so he returned, and they agreed with him that he would call out [for sale] the commanders. So the deputy of the Sultanate sent to him with gentleness, but it did not avail in him; so the deputy was disturbed and said: How does this shaykh call us out and sell us when we are the kings of the earth? By God I will strike him with this sword of mine! So he rode himself in his company and came to the house of the Shaykh with the sword drawn in his hand, and knocked on the door. The son of the Shaykh — I think [he is] ʿAbd al-Laṭīf — came out and saw from the deputy of the Sultanate what he saw; so he returned to his father and explained the situation to him. He did not care about that nor change, and said: O my son, your father is too insignificant to be granted death in the way of God. Then he came out as if the decree of God had descended upon the deputy of the Sultanate; when his gaze fell on him, the hand of the deputy dried up and the sword fell from it and his joints trembled. So he wept and asked the Shaykh to pray for him, and said: O my master, what news? What will you do? He said: I will call you out and sell you. He said: And in what will our price be spent? He said: In the interests of the Muslims. He said: Who will take it? He said: I. So what he wanted was completed for him, and he called out the commanders one by one and raised high their price, and took it and spent it in the ways of good. This is something the like of which was not heard of anyone — may God the Exalted have mercy on him and be pleased with him.[1]

11 – Between criticism and insult

But despite that, the Islamic Sharia has drawn a clear dividing line that distinguishes between what is criticism of the sultan and what is regarded as an insult to him. It permits and indeed urges the former, while forbidding the latter with the most severe prohibition. That is as al-Tirmidhī included with his chain from Ziyād ibn Kusayb al-ʿAdawī; he said: I was with Abū Bakra under the pulpit of Ibn ʿĀmir while he was giving a sermon, and he was wearing thin clothes.

[1] *Ṭabaqāt al-Shāfiʿiyya al-Kubrā* of al-Subkī (8/216).

[p. 258] Abū Bilāl said: Look at our commander wearing the clothes of the transgressors. Abū Bakra said: Be silent; I heard the Messenger of God ﷺ say: "Whoever insults the sultan of God on the earth, God insults him."[1]

This makes clear that criticism of the sultan must be within its special framework and its limits established for it in the Sharia, without exceeding them and going beyond them so as to turn from it into an insult that is categorically forbidden in the Sharia.

Aḥmad narrated it in his *Musnad* in a fuller wording than this, saying: From Abū Bakra; he said: I heard the Messenger of God ﷺ say: “Whoever honours the sultan of God in this world, God honours him on the Day of Resurrection; and whoever insults the sultan of God in this world, God insults him on the Day of Resurrection.”[2]

Although there is some criticism of the hadith’s chain, many of the hadith scholars have narrated it with different chains and many routes, which makes it fit to be used as evidence that insulting the sultan is not permissible in the Sharia. The essential difference between them lies in the aim which its doer wants behind undertaking it: if it was counsel and reform and seeking the pleasure of God — not for humiliation nor for display — then it is constructive; otherwise it is insult or showing off. as is clear from what Aḥmad narrated with his chain from ʿIyāḍ ibn Ghanm, may God be pleased with him, that he heard the Messenger of God ﷺ say: “Whoever wants to counsel a holder of authority on a matter, let him not show it openly to him; but let him take him by his hand and be alone with him; if he accepts it from him, so be it; otherwise he has fulfilled what was upon him.”[3]

12 – Spending the funds of the public treasury

The government, whatever it may be, needs, in administering public affairs and performing its duties, money and exorbitant sums — what is called “the state treasury” in the general political terminology, while Islam assigns to it the term “*bayt al-māl*” (the public treasury). The treasury of the state before the dawn of Islam was usually regarded by kings as their purely personal property; so they dealt with it as they dealt with their own property,

> [1] *Sunan al-Tirmidhī*, ed. Shākir (4/502), and he said: this is a gharīb hadith; Chapters on Trials, hadith no. 2224. [2] *Musnad Aḥmad*, al-Risāla ed. (34/79), hadith no. 20433. [3] *Majmaʿ al-Zawāʾid wa-Manbaʿ al-Fawāʾid* (5/229), Book of the Caliphate, chapter on counsel to the imams and its manner, hadith no. 1961, 1962.

[p. 259] collecting it however they wished by imposing heavy taxes and crushing levies on the subjects, and spending it on whatever object they wished; and it no longer had a role except to guarantee them luxury of living and provide them with the satisfaction of desires.

Islam from the very beginning regarded it as a public trust in the hands of the imam which he must spend on the subjects and expend in their interests. Then it did not leave the imam independent and despotic in collecting funds and spending them; rather it imposed heavy restrictions on him in this regard: it defined first the special resources and sources for them — namely zakat, the tithe (*ʿushr*), the land tax (*kharāj*), the *fayʾ*, lost property and so on. Then it divided them into kinds and specified for each kind of them a special object of expenditure second. So the funds of zakat and charities have with Islam their special object of expenditure, and it is not permitted to spend them in other than it; and likewise for the land tax, the jizya and the other sources.

Proceeding from this, the jurists of Islam undertook codifying its rulings from both these aspects — collecting funds and spending them — with all elaboration and clarity in the light of the rulings of the Qur'an and the teachings of the Prophetic Sunna and the conduct of the Rightly-Guided Caliphs. So you see the Islamic library flourishing with many books in which the eminent scholars devoted works to this chapter — among them *Kitāb al-Kharāj* of each of the two eminent imams Abū Yūsuf and Yaḥyā ibn Ādam (may God have mercy on them both), and *Kitāb al-Amwāl* of Imam Abū ʿUbayd Qāsim ibn Sallām (may God have mercy on him) — which have remained original sources and principal references for whoever came after them of jurists and scholars.

It is narrated from ʿUmar, may God be pleased with him, that he said in one of his sermons, explaining how the public treasury should be run: "And I do not find that this wealth is set right except by three traits: that it be taken by right, and given in right, and withheld from falsehood. I and your wealth are only like the guardian of the orphan: if I am rich I abstain, and if I am poor I eat in what is right (*bi-l-maʿrūf*)."[1]

In a report of Ibn Saʿd this addition also came: "If I become well-off, I repay."[2]

> [1] *Al-Kharāj* of Abū Yūsuf (1/130). [2] *Al-Ṭabaqāt al-Kubrā* of Ibn Saʿd (3/256), mention of the caliphate of ʿUmar, may God be pleased with him.

[p. 260] The caliphs always put before their eyes that the funds of the Muslims are a trust in their hands which they must administer with all caution and scrupulousness. So there issued from them, concerning dealing with them, splendid stories which are a white blaze on the brow of humanity and a shining pearl on the breast of humanity over the passage of ages and the succession of eras. Come, let us turn our gaze to a story of them which explains to us how the caliph began to take a stipend from the public treasury of the Muslims. Ibn Saʿd narrated in his *Ṭabaqāt* that when Abū Bakr was appointed successor, he set out in the morning to the market with garments on his neck which he traded in. ʿUmar ibn al-Khaṭṭāb and Abū ʿUbayda ibn al-Jarrāḥ met him and said to him: Where do you want [to go], O successor of the Messenger of God? He said: The market. They said: What will you do, when you have been put in charge of the affair of the Muslims? He said: Then from where will I feed my dependants? They said to him: Go, so that we assign something for you. So he went with them, and they assigned for him every day half a sheep, and what clothes him on the head and the belly.[1]

Thus he began to obtain his stipend from the public treasury. But let us advance a little and cast a look at what al-Ḥasan al-Baṣrī (may God have mercy on him) narrates, which indicates that he did not make it a pleasant morsel which he and his dependants enjoyed; rather he accepted it against his will, amid the fears and anxiety that beset him, to the point that he used to say: "Woe to ʿUmar! I fear that it will not be permissible for me to eat anything of this wealth."

Al-Ḥasan continued, saying: "So he spent in two years and some [more] eight thousand dirhams. When death came to him he said: I had said to ʿUmar: I fear that it will not be permissible for me to eat anything of this wealth, but he prevailed over me. So when I die, take from my property eight thousand dirhams and return them to the public treasury. When they were brought to ʿUmar he said: May God have mercy on Abū Bakr; he has wearied those after him with a severe weariness."[2]

As for ʿUmar, may God be pleased with him, his manner of dealing with the public treasury becomes clear from what he once said in a sermon he delivered before the people:

“I will tell you what I consider permissible of it for me: two garments are permissible for me — one for winter and one for summer — and what I perform the Ḥajj and the ʿUmra on of mounts, and my food and the food of my family like the food of a man of Quraysh,

[1] *Al-Ṭabaqāt al-Kubrā*, Dār Ṣādir ed. (3/184). [2] *Kanz al-ʿUmmāl* (5/600), no. 14062.

[p. 261] not of the richest of them nor of the poorest of them. Then I after that am a man of the Muslims; what befalls them befalls me.”[1]

But he did not sit at ease on this small amount either; rather it is narrated that when the people were struck by a year [of famine] in which ghee became expensive, ʿUmar, may God be pleased with him, ate oil, and his belly rumbled. In a report of Yaḥyā he said: “ʿUmar, may God be pleased with him, used to eat it; when it became scarce he said: I will not eat it until the people eat it.” He said: So he used to eat oil, and his belly rumbled. Ibn Mukarram said in his report: so he said: Rumble as you wish, for by God I will not eat ghee until the people eat it.[2]

So these are splendid models of the scrupulousness of the Rightly-Guided Caliphs and their caution in the funds of the Muslims, the like of which the world did not witness before them nor after them. But nevertheless the Islamic Sharia does not obligate every caliph to follow them exactly; rather, looking to what motivated them, it holds that the purpose of all this is that the stipends of caliphs and rulers should not make them a burden on the public treasury, and should not exceed their needs through extravagance and waste. Otherwise the Prophet ﷺ himself assigned as provision to ʿAttāb ibn Asīd, when he appointed him over Mecca, forty ūqiyya [of silver] every year.[3]

This amount equals one thousand four hundred dirhams annually — which shows that the Sharia did not specify a special amount for stipends; rather decrease and increase in it are possible with the difference of time and place and in view of circumstances and situations, on condition that that not be taken as a means of extravagance and an instrument of waste.

The ruling on taxes in Islam

The Islamic Sharia has regarded imposing taxes on the subjects in the general run of cases as injustice and tyranny, and severe threats have come against it — contenting itself with what it specified for the public treasury of sources of revenue, like zakat, charities, the land tax, the jizya and so on. But the Muslims, if a calamity struck them and emergency states befell the Islamic state, so that its funds

[1] *Al-Ṭabaqāt al-Kubrā*, Dār Ṣādir ed. (3/275), mention of the appointment of ʿUmar as successor. [2] *Al-Sunan al-Kubrā* of al-Bayhaqī (9/73). [3] *Al-Sunan al-Kubrā* of al-Bayhaqī (6/578).

[p. 262] hardly sufficed the needs of the Muslims and their social interests — then in such a special exceptional case and for the pressing necessity of the Islamic state, the jurists permitted, with extreme caution, burdening the subjects with a tax to the extent of its necessity and its needs only, observing in that gentleness with the subjects to the utmost, and scrupulously avoiding injustice and oppressive burdens. It is called in the terminology of the jurists “the emergency tax” (*al-ḍarība al-nāʾiba*). It is

stipulated for that, first and last, that it be for necessity, and so limited to the extent of that necessity; and that the people not be charged with it except after the rulers have abandoned what they are upon of the life of luxury and extravagant living; and on condition that they be truthful of disposition and sound of intention in that. The jurists set out this question amid real fears that tyrannical rulers would use it as a means to achieve their ambitions and as a cover for collecting tolls (*mukūs*) and unjust levies from the people — as ʿAllāma Ibn ʿĀbidīn (may God have mercy on him) said: And Abū Jaʿfar al-Balkhī said: What the sultan imposes on the subjects as an interest for them becomes an obligatory debt and a deserved right, like the land tax. Our shaykhs said: And everything the imam imposes on them for an interest for them, the answer is thus — even the wage of the guards for guarding the road and [against] thieves, and the setting up of gates and the gates of streets. This is to be known [by the scholars] but not made public, for fear of strife. Then he said: So on this, what is taken in Khwarazm from the common people for repairing the dam of the Oxus or the outpost and the like of it of the interests of the common people is an obligatory debt; it is not permissible to refuse it, and it is not an injustice. But this answer is to be known so as to act on it and to refrain from speaking against the sultan and his agents in this — not to be publicized, lest they dare to increase beyond the deserved amount. End.

He followed it by saying: I say [the speaker: Ibn ʿĀbidīn]: "And it is fitting to restrict that to [cases] where there is not found in the public treasury what suffices for that."[1]

What is worth noting here is that there is a hadith which Abū Dāwūd narrated with his chain from ʿUqba ibn ʿĀmir; he said: I heard the Messenger of God ﷺ say: "The collector of tolls (*ṣāḥib maks*) will not enter Paradise."[2] And the word is usually explained as tax; so from this some sometimes imagine that imposing a tax on the subjects

> [1] *Al-Durr al-Mukhtār* and the gloss of Ibn ʿĀbidīn (*Radd al-Muḥtār*) (2/337), Book of Zakat, before the chapter on the object of expenditure. [2] *Sunan Abī Dāwūd* (3/132).

[p. 263] is forbidden absolutely and in every case, including the special exceptional case in which the jurists permitted it, and specifically what passed in the words of Ibn ʿĀbidīn (may God have mercy on him). The truth is not so; for the hadith scholars and the jurists explained the word in different ways. Here is Imam Abū ʿUbayd Qāsim ibn Sallām saying: It had a root in the Jāhiliyya, which the kings of the Arabs and the non-Arabs all did; and it was their practice to take from the merchants one tenth of their goods when they passed through their lands with them.[1]

ʿAllāma al-Ṭaḥāwī explained it as follows: that the tithe which the Messenger of God ﷺ lifted from the Muslims is the tithe that used to be taken in the Jāhiliyya, and it is other than zakat; and they used to call it *al-maks*, and it is what ʿUqba ibn ʿĀmir narrated concerning it from the Prophet [2] ﷺ.

There is no doubt that what prevailed in the circles of kings and emperors in the Jāhiliyya — of burdening the subjects with heavy taxes and accumulated tolls — was injustice and tyranny and an injury from them against the subjects. The ambitions behind imposing them were nothing but saving money and piling it up in their personal treasuries, so that luxury of living, extravagance and indulgence in their lives became possible for them. The two passages quoted above make clear that the threat in the hadith is aimed at imposing this kind of tax; and it also covers what governments

impose today without a Sharia necessity to justify it. As for the emergency tax which the jurists permitted and which ʿAllāma al-Shāmī mentioned, it is not correct to draw an analogy with that, by virtue of its aiming at meeting the pressing need of the Islamic state and observing the clear interest of the subjects; so it does not enter into "*al-maks*", and hence the threat of the aforementioned hadith does not apply to it.

Imam al-Ghazālī (may God have mercy on him) spoke at length on it: after he finished denouncing the rulers who impose taxes merely to pamper the army and make their own living luxurious, he followed it by saying: "As for if we supposed an obeyed imam in need of increasing soldiers to block the frontiers and protect the kingdom after the widening of its extent and the expansion of its territory, and the public treasury became empty of money, and the needs of the army pressed to what suffices them,

> [1] *Al-Amwāl* of al-Qāsim ibn Sallām (1/636), chapter on the mention of the tithe-collector and the collector of tolls, in the explanation of hadith no. 1462. [2] *Sharḥ Maʿānī al-Āthār* (2/31), Book of Zakat, chapter on zakat: does the imam take it.

[p. 264] and their hands became empty of the amount of their sufficiency — then the imam may impose upon the rich what he sees as sufficient for them at the time, until money appears in the public treasury. Then it is up to him to consider imposing that upon the yields of crops and fruits, so that singling out some people with it does not lead to the filling of breasts with rancour and the alienation of hearts; a small amount taken from much, which does not ruin them and by which the purpose is achieved."

The upshot of that is that Imam al-Ghazālī (may God have mercy on him) permitted imposing this kind of taxes with the following conditions:

- That the imam be among those whose obedience is obligatory.
- That there be a real necessity for protecting the state and defending the territory of the country and its heartland.
- That the public treasury be empty of money that fulfils that.
- That the taxes be in the amount that suffices for their needs at the time, until money appears in the public treasury.
- That imposing that on people be with justice and equity, and that he not differentiate in it between two men of one kind as to profession and work.

The jurists discourage rulers from imposing such taxes only because of what is plainly seen of rulers: that rarely do they observe the Sharia limits in it in completeness and perfection. So we see that the ruling of permissibility in the case of exceptional necessity has been surrounded by a mass of restrictions and a set of conditions, to protect the subjects from the commanders taking it as a prey for their ambitions and a means to attain their ease and their luxury.

Take for that, for example, the story of Shaykh ʿIzz al-Dīn ibn ʿAbd al-Salām (may God have mercy on him): when the Tatars began their attacks on the Islamic lands, the Sultan wanted to take money from the people to help finance jihad against them; and he gathered the jurists, judges and notables to

consult them in this matter. Among those who attended was Shaykh ʿIzz al-Dīn ibn ʿAbd al-Salām… and they went at length in the talk; and the reliance was on what Ibn ʿAbd al-Salām said, and the summary of what he said: that when the enemy attacks the lands of Islam, it becomes obligatory on everyone to fight them, and it is permissible for you to take from the subjects what you seek help with in your jihad,

[p. 265] on condition that nothing remains in the public treasury, and that you sell what you have of gilded belts and valuable equipment, and that every soldier confine himself to his mount and his weapon, and they and the common people be equal. As for taking money from the common people while there remain in the hands of the soldiers money and luxurious equipment, then no.[1]

Similar to that is what is narrated that when the Sultan al-Ẓāhir Baybars went out to fight the Tatars in Syria, he took the fatwas of the scholars that it is permissible for him to take money from the subjects to seek help with in fighting the enemy. So the jurists of Syria wrote to him about that. He said: Is anyone left? It was said: Yes, Shaykh Muḥyī al-Dīn al-Nawawī remains. So he summoned him and he attended. He said: Add your signature to the jurists'. He refused. He said: What is the reason for your refusal? He said: I know that you were in slavery to the commander Bunduqdār, and you have no money. Then God favoured you and made you a king. I heard that you have a thousand slaves, each slave having a belt of gold; and you have two hundred slave-girls, each slave-girl having a box of jewellery. So if you spent all that, and your slaves remained with woollen bands instead of the belts, and the slave-girls remained in their clothes without jewellery, I would give you a fatwa that you may take money from the subjects.[2]

The upshot is that all of these permitted on the whole imposing the tax in real necessity and only to the extent of it. Imam al-Juwaynī went a step further in *al-Ghiyāthī* and permitted that on a permanent and fixed basis also, if the need of the public treasury was fixed and permanent; for he said after discussing this subject in sections: So I say — and God is the one whose help is sought — there must be the imposing of funds which the imam sees as fulfilling the regular provisions, or close to them…

So if there is need to draw on funds to support the religion and [protect] the Muslims, and what may be expected to come in unforeseen from the unbelievers does not suffice, and it is established that a continuous flow of funds is needed for maintaining strength and defending the lands — then if the imam singled out certain wealthy people, that would breed resentment in souls [and ill thoughts] in minds and conjectures; but if he imposed a modest amount on surpluses, fruits and crops, that would be a way of

> [1] *Al-Nujūm al-Zāhira fī Mulūk Miṣr wa-l-Qāhira* (7/73), and *Ṭabaqāt al-Shāfiʿiyya al-Kubrā* of al-Subkī (8/215). [2] *Ḥusn al-Muḥāḍara fī Tārīkh Miṣr wa-l-Qāhira* (2/105).

[p. 266] caring for the soldiers and the subjects that is moderate and acceptable.[1]

If the jurists were beset by fear on the part of the commanders of tyranny that they would take the ruling of permissibility in itself as a means of burdening the subjects with tolls and unjust levies, how much more must we fear today, when fraud and embezzlement have spread through governmental bodies, state funds are squandered recklessly, a considerable part of the state treasury is devoted merely to the rulers' luxury and comfort, and exorbitant costs and huge expenditures are spent on

conferences that yield no benefit and visits that bring the state no return. Add to that the many enormous expenses of the royal palace which take an ample share of the budget, in which — regrettably — the Islamic states have preceded many non-Islamic states!

So if a government undertook reducing these extravagant, empty expenditures, and imposed strict, continuous oversight on the officials of the government and its employees to protect the funds of the state and safeguard its treasury from fraud and embezzlement, that would go far towards making it unnecessary to burden the subjects with crushing taxes and charging them with heavy levies.

Nevertheless, it is an undeniable fact that modern civilization has generated many expenditures which have become virtually necessary for living on earth with honour and dignity, and which cannot be included among luxury, extravagance and indulgence — in addition to governments today undertaking to provide many services to the subjects which in bygone times they did not provide and were not committed to, like the service of electricity and gas for example. There are fields whose expenditures have increased today over what they were before by much, like arming the defence sector and supplying it with modern war technologies and equipment, and constructing paved streets organized on a wide scale, and acquiring the media alongside transport and communications, and the costs of the education and health sectors. All this has come to be among the functions and duties of the government today, and they are expenditures which it appears difficult to cover with the established resources of the public treasury of zakat, the tithe, the land tax

> [1] *Ghiyāth al-Umam fī Iltiyāth al-Ẓulam* (1/283).

[p. 267] and the *fayʾ* and booty money. As for zakat and the tithe, in most of these matters it is not possible to spend them from the Sharia point of view for lack of the aspect of transfer of ownership (*tamlīk*) in them; and how would a large amount of the land tax be obtained, while the principle in the lands of Dār al-Islām is that they be tithe-paying [lands]? As for the jizya — on granting its application — its amount is small and will not fulfil these enormous expenditures. As for booty and the *fayʾ*, funding these sectors from them is almost, if not entirely, impossible; because they are only obtained in the wake of success in wars with the unbelievers, while wars today in themselves leave whoever plunges into them — even if he returned with success — empty-handed, exhausted of strength.

So it is concluded from all this that Islamic government founded on straight foundations will need — at least at the beginning of its era — to cover its necessary expenditures by burdening the subjects with “the emergency tax”; but this tax, in view of the details just presented, will be low and easy to bear, if it undertook imposing it with caution and scrupulousness and succeeded in reducing the royal expenditures and the empty governmental burdens that have no meaning except making the commanders’ living luxurious and comfortable. On another side, if it followed the divine rulings and submitted to the law of His Book and the Sunna of His Messenger in complete and perfect submission, it would find blessings from heaven and earth beyond all counting. Is it not enough as evidence of that what the Mighty One said: **“And if only the people of the cities had believed and feared God, We would have opened upon them blessings from the heaven and the earth”** [al-Aʿrāf, 7:96].

13 – The rights of non-Muslim minorities in Islam

There has been broadcast in the world today propaganda against Islam that it does not protect the rights of the non-Muslim citizens who inhabit the Islamic states as minorities; and it is only fabricated propaganda that has no share of truth nor portion of seriousness. For Islam, even if it is a universal call to divine unity addressing all the children of Adam to embrace it and submit to it, it calls people to that on the strength of evidence and the soundness of proof, so that they reflect and deliberate on its teachings and accept it with insight and understanding from them; and it has never permitted its followers to compel anyone to embrace it and belong to its religion. So here is the Noble Qur'an

[p. 268] calling out with that openly, saying: **"There is no compulsion in religion; the right course has become clear from the wrong. So whoever disbelieves in Ṭāghūt and believes in God has grasped the most trustworthy handhold"** [al-Baqara, 2:256].

Human history bears witness that the Muslims held fast to this divine ruling with the utmost tenacity; they did not use the weapon of force in compelling people to accept Islam, even in the most flourishing of its ages and the most advanced of its eras. Rather the most splendid example of tolerance is established from them: their judge permitted those who entered Islam compelled to return to their religion if they wished. Look at what Ibn Kathīr narrates to us in his history in the events of the year six hundred and eighty, saying: "And in Shawwāl a council was held because of the People of the Book of the dhimmīs who had become Muslim against their will; and a group of the muftis had written for them that they were compelled, so they were entitled to return to their religion; and the compulsion was established before the judge Jamāl al-Dīn ibn Abī Yaʿqūb al-Mālikī; so most of them returned to their religion."[1]

From this, the unbelievers who inhabit the Islamic state — after they have taken upon themselves the covenant with the state — become like the rest of its Muslim citizens: they have of civil rights what they [the Muslims] have, and it is upon the state to protect them and defend them as it does for the Muslims. Indeed, it is right for us to say: that the protection of rights and the safeguarding of interests which Islam has granted to citizens not belonging to it and who inhabit its state as a minority are such that no other religion has ever equalled or approached them. The duty of each of the two parties — the state and the non-Muslim minority — is clear from the terms Islam has assigned to the latter: "*al-muʿāhad*" (the one under covenant) or "*al-dhimmī*" (the one under protection). *Al-muʿāhad* expresses the duty incumbent on him to live in the state peacefully and safely, without causing any harm to the state or its interests; and *al-dhimmī* reflects the guarantee (*dhimma*) the state has given him for the protection of his life, his property and his honour.

Come, let us cast a look at what has come concerning the dhimmīs of the wise, right Prophetic teachings. Among that is what Imam Abū Dāwūd narrated with his chain from the Messenger of God ﷺ that he said: "Indeed, whoever wrongs one under covenant (*muʿāhad*), or diminishes [his right], or charges him beyond his capacity, or takes something from him without the consent

[1] *Al-Bidāya wa-l-Nihāya*, Hajar ed. (17/578).

[p. 269] of [his] soul — I will be his opponent on the Day of Resurrection."[1]

Abū Dāwūd also narrated with his chain from Abū Bakra; he said: the Messenger of God ﷺ said: "Whoever kills one under covenant without just cause, God forbids Paradise to him."[2]

What al-Bukhārī narrated with his chain from ʿAbd Allāh ibn ʿAmr, may God be pleased with them both, from the Prophet ﷺ; he said: "Whoever kills one under covenant will not smell the scent of Paradise, and its scent is found from a distance of forty years."[3]

The best document clarifying the rights of non-Muslims in the Islamic state is what the Commander of the Faithful ʿUmar ibn al-Khaṭṭāb, may God be pleased with him, covenanted upon with the Christians of Jerusalem; and among what came in it: "In the name of God, the Most Gracious, the Most Merciful. This is what the servant of God ʿUmar, the Commander of the Faithful, has given to the people of Īliyāʾ of security: he gave them security for themselves and their property, and for their churches and their crosses, and their sick and their healthy and the rest of their community: that their churches shall not be inhabited nor demolished, nor shall anything be diminished from them nor from their precinct, nor from their crosses, nor from anything of their property; and they shall not be compelled concerning their religion, and none of them shall be harmed."[4]

Among his concern for preserving the rights of non-Muslims is that he used to inspect their conditions and ascertain that harm from the Muslims did not reach them. Al-Ṭabarī (may God have mercy on him) narrated that he said to the delegation of Basra: "Perhaps the Muslims are causing harm to the people of protection (*ahl al-dhimma*), and doing things that lead them to break with you!" They said: "We do not know [anything] except fulfilment and good treatment."[5]

Notice also what Imam Abū Yūsuf (may God have mercy on him) narrated from Abū Bakra: that ʿUmar ibn al-Khaṭṭāb, may God be pleased with him, passed by the door of a people where there was a beggar asking: an old man, blind of sight.

> [1] *Sunan Abī Dāwūd* (3/171), Book of the Land Tax…, chapter on taking the tithe from the people of protection, hadith no. 3052; and let it be known that there is talk about its chain. [2] *Sunan Abī Dāwūd* (3/83), Book of Jihad, chapter on fulfilment towards the one under covenant, hadith no. 2760. [3] *Ṣaḥīḥ al-Bukhārī* (4/99), Book of Jihad, chapter on the sin of one who killed one under covenant, hadith no. 3166. [4] *Tārīkh al-Ṭabarī = Tārīkh al-Rusul wa-l-Mulūk*, and *Ṣilat Tārīkh al-Ṭabarī* (3/609), events of the year fifteen. [5] *Tārīkh al-Ṭabarī = Tārīkh al-Rusul wa-l-Mulūk*, and *Ṣilat Tārīkh al-Ṭabarī* (4/89).

[p. 270] He struck his upper arm from behind and said: Of which of the People of the Book are you? He said: A Jew. He said: What has compelled you to what I see? He said: [I beg] to meet the jizya, out of need and old age. He said: So ʿUmar took his hand and took him to his house and gave him something from the house; then he sent to the keeper of the public treasury and said: See to this man and those like him; for by God we have not treated him fairly that we ate [the fruit of] his youth and then abandon him at old age. "Alms are only for the poor and the needy" — and the poor are the Muslims, and this is of the needy of the People of the Book. And he removed the jizya from him and from those like him.[1]

Shortly before his death, he advised the caliph after him with many matters, among them: "And I advise him with the protection of God and the protection of His Messenger ﷺ: that their covenant be

fulfilled for them, that he fight in their defence, and that they not be charged except with their capacity."[2]

Abū ʿUbayd al-Qāsim ibn Sallām narrated with his chain from Khālid ibn al-Walīd, may God be pleased with him, that he said: "Do not take three steps to put yourself in command over three people, and do not take from one under covenant so much as a needle or anything more…"[3]

He also narrated: from Ṣaʿṣaʿa; he said: I asked Ibn ʿAbbās; I said: We travel in the land of the people of protection and we take things from them. He said: Without a price? I said: Without a price. He said: What do you say? I said: We say: it is lawful, there is no harm in it. He said: You say as the People of the Book said: **"There is no blame upon us concerning the unlettered.' And they speak untruth about God while they know"** [Āl ʿImrān, 3:75].[4]

So in compliance with the rulings of the Qur'an and the Prophetic Sunna, and following the model of the Rightly-Guided Caliphs, may God be pleased with them, the jurists gave great attention to explaining the rulings of the people of protection and their rights, and strongly emphasized observing them and performing them. Among that is what Imam Muḥammad ibn al-Ḥasan al-Shaybānī (may God have mercy on him) said: Because the Muslims, when they gave them protection (*dhimma*), committed themselves to repelling injustice from them, and they became of the people of Dār al-Islām.[5]

> [1] *Al-Kharāj* of Abū Yūsuf (1/139). [2] *Ṣaḥīḥ al-Bukhārī* (5/17), Book of Merits, hadith no. 3700. [3] *Al-Amwāl* of al-Qāsim ibn Sallām (1/13). [4] *Al-Amwāl* of al-Qāsim ibn Sallām (1/197), no. 415. [5] *Sharḥ al-Siyar al-Kabīr* (1/209).

[p. 271] To the extent that the jurists regarded calling them "unbeliever" as a sin if that pained them. It came in *al-Fatāwā al-Hindiyya*: "If he said to a Jew or a Zoroastrian 'O unbeliever', he sins if that is hard on him; thus in *al-Qunya*."[1]

Even more remarkable is what is narrated from the jurists that they regarded injustice to the dhimmī as more dangerous than injustice to the Muslim, with the reasoning that no way remains, after his death, for being absolved of it.[2]

The jizya in Islam

We grant that Islamic government imposes a kind of taxes on its non-Muslim citizens called "the jizya" — which Western researchers sometimes take as [grounds] for impugning Islam and degrading it, as being a conduct involving discrimination among citizens on the basis of their religions and their schools, with the reasoning that the unbelievers alone are singled out for imposing it and burdening them with it, to the exclusion of the Muslims. The truth is that if they had looked at it with the eye of fairness, far from blind religious partisanship, they would have discovered what is in imposing it of the interests and privileges which the unbelievers obtain to the exclusion of the Muslims. That is because Islamic government receives from the Muslim citizens the zakat of their wealth, whose percentage ranges between 2.5% minimum and 10% maximum — and it is higher than the percentage of the jizya which the unbelievers are committed to paying by much. Second, in return for this small amount, the Islamic state undertakes the responsibility of protecting them — their lives, honour and

property; just as it exempts from the jizya the insolvent, needy among them; indeed it provides for them from the public treasury their provisions, as passed in what we narrated of the story of ʿUmar, may God be pleased with him, with an old Jew, and his giving him provision, and his ordering the removal of the jizya from him and his like.

There is another point which explains what we are saying more fully and clearly, namely that the Islamic state, if the unbelievers attacked it, then it is permissible for the imam to command all his Muslim subjects to contribute to jihad against the enemy and to defend the heartland of Islam and the sanctity of the lands; and it is not permissible for him to charge the unbelievers with defending themselves and their lands — that is, protecting it and defending it; rather their protection and defence of them in such a case is obligatory on the Islamic government towards them, in return for what it receives from them of the sums of the jizya. This appears to be the meaning of the saying of ʿUmar, may God be pleased with him,

> [1] *Al-Fatāwā al-Hindiyya* (5/348). [2] *Al-Nawāzil* of the jurist Abū al-Layth al-Samarqandī, p. 207.

[p. 272] which we mentioned earlier: “that he fight in their defence.” ʿAllāma al-Ālūsī (may God have mercy on him) also held it, saying: “That it [the jizya] is a substitute for help in fighting on our behalf; and for this reason it varies [in amount]: because everyone who belongs to Dār al-Islām is obliged to support the abode with his person and his wealth; and since the unbeliever is not fit for it because of his inclination to Dār al-Ḥarb by belief, the jizya taken was put in its place, spent on the fighters.”[1]

The most splendid example of their implementing this principle and observing it is that they returned to the dhimmīs their jizya if they were prevented from defending them. To illustrate this, read with me the following story, which alone suffices as a convincing, decisive answer to that propaganda broadcast against Islam concerning the ruling of the jizya, which does not benefit the Muslims with the like of what the unbelievers paying it enjoy, as passed in detail just now. It came in *Futūḥ al-Buldān* of al-Balādhurī: when Heraclius gathered the masses for the Muslims, and the Muslims learned of their coming to them for the battle of Yarmūk, they returned to the people of Ḥimṣ what they had taken from them of the land tax, and said: We are too occupied to help and defend you, so you are in charge of your own affairs.

The meaning of handing over their affair to them was that it was possible for them to open the gate of the city for Heraclius also.

The historian al-Azdī narrated the text of Abū ʿUbayda, may God be pleased with him, as follows: “And we have only returned to you your wealth because we disliked to take your wealth and not defend your lands; but we shall withdraw to some land and send to our brothers so that they come to us; then we shall meet our enemy and fight them; and if God gives us victory over them, we shall fulfil for you your covenant — unless you do not seek that.”

Al-Balādhurī added that the people of Ḥimṣ replied to him as follows: “Your rule and your justice are more beloved to us than what we were in of injustice and deceit; and we shall certainly repel the army of Heraclius from the city together with your governor.”[2]

At any rate — has the world presented a parallel to this splendid moral performance and this just compensation, where they receive from the Islamic state those great services like the protection of their lives and their defence, in return for paying a small sum — at most forty-eight dirhams a year? In addition to that, Islam exempted kinds of them from this responsibility, and provided

> [1] *Tafsīr al-Ālūsī = Rūḥ al-Maʿānī* (5/273), under verse 29 of Sūrat al-Tawba. [2] *Futūḥ al-Buldān* (1/162), and *al-Ṭarīq ilā Dimashq* of Aḥmad ʿĀdil Kamāl, p. 410.

[p. 273] for them the mentioned services entirely free of charge — namely their women and their children, and the insolvent and the elderly of their men.

So, after establishing these three matters:

- That the Islamic state grants the dhimmīs all civil rights, including protection and defence of them — like the rest of the other citizens among the Muslims alike.
- That it also grants them exemption from the commitment to providing war and defence services if the enemies attacked it.
- That the percentage of the jizya imposed on them is less, by much, than the percentage of zakat which the Muslims pay.

— is there any fairness, then, in regarding the ruling of the jizya — specifically in the light of these three points — as injustice and bias? Is calling it a usurpation of the rights of the unbelievers and an injury to them anything but false, lying propaganda and a patent blindness to clear, established facts?!

This is what many of the Western researchers who are known for their fairness have acknowledged — among them Montesquieu, among the founders of modern democracy, for he said:

> It was the excess of the taxes that occasioned the prodigious facility with which the Mohametans carried on their conquests. Instead of a continual series of extortion devised by the subtle avarice of the Greek emperors, the people were subjected to a simple tribute which was paid and collected with ease. Thus they were far happier in obeying a barberous nation than a corrupt government in which they suffered every inconvenience of lost liberty. (Montesque [sic], *The Spirit of Laws*, Book 13, Chapter 16, Great Books, v. 35, p. 100)

[Tr.: The English is quoted in the original as given. The author's Arabic paraphrase that follows it reads:] "The increase of taxes (in non-Muslim states) was the element that helped the Muslims in widening the extent of their conquests; for Islam charged people with the jizya, which was easier to pay and collect than that plunder and robbery which the arrogant emperors of Greece used to impose on them. So they were happier in obeying a savage, barbaric people than to live deprived of freedom under the shadow of the corrupt, bribe-taking government that subjected them to kinds of pains."

[p. 274] So in this text — even if his blind partisanship went as far as describing the Muslims as savage barbarians — at the same time he did not hesitate to acknowledge that the jizya which the Islamic government imposed was small in amount, easy to pay, and smaller and less by much than the crushing taxes which the emperors of Greece used to impose on them, which the writer expressed as plunder and robbery; so the unbelievers were happier and more content in the Islamic government

than they were in a Greek empire; and that this was the factor that played a role in enabling the Muslims to widen the scope of their conquests and the extent of their influence.

Then Islam does not insist on taking it from them under the name of the jizya only — and especially if the unbelievers paying it disdained it; rather it permits — according to what some reports indicate — that it be taken from them in that case under another name too — specifically one that does not indicate humiliation and abasement. Among what indicates that is the story of ʿUmar, may God be pleased with him: when he resolved to impose the jizya on the Banū Taghlib — and they are a people of the Arabs — they refused and said: We are Arabs; we do not pay what the non-Arabs pay; but take from us as some of you take from others — meaning the *ṣadaqa* (alms). ʿUmar said: No, this is the obligation of the Muslims. They said: Then increase as you wish by this name, not by the name of the jizya. So he and they agreed that he would double the *ṣadaqa* upon them.[1]

There is another report which indicates — if it is sound — that this ruling is not specific to the Banū Taghlib; rather it applies to others than them too, if the interest of the Muslims required it. It is as came in *Futūḥ al-Buldān* of al-Balādhurī: He narrated also that Jabala came to ʿUmar ibn al-Khaṭṭāb while he was upon his Christianity. ʿUmar offered him Islam and the payment of the *ṣadaqa*, but he refused that and said: I will remain upon my religion and pay the *ṣadaqa*. ʿUmar said: If you remain upon your religion, then pay the jizya. He disdained it. ʿUmar said: We have only three options for you: either Islam, or paying the jizya, or going wherever you wish.

So he entered the land of the Romans with thirty thousand. When that reached ʿUmar, he regretted [it]. ʿUbāda ibn

> [1] *Fatḥ al-Qadīr* of al-Kamāl ibn al-Humām (2/201), Book of Zakat; and *Kitāb al-Amwāl* of Abū ʿUbayd, chapter on taking the jizya.

[p. 275] al-Ṣāmit reproached him and said: If you had accepted the *ṣadaqa* from him and then conciliated him, he would have become Muslim. ʿUmar, may God be pleased with him, sent in the year twenty-one ʿUmayr ibn Saʿd al-Anṣārī to the land of the Romans in a great army and put him in charge of the summer campaign — and it was the first summer campaign there was — and ordered him to be gentle with Jabala ibn al-Ayham and to appeal to his sympathy by the kinship between them, and to call him to return to the land of Islam, on condition that he pay what he had offered of the *ṣadaqa* and remain upon his religion.[1]

Some jurists held that it is not extended to other peoples besides the Banū Taghlib, with the reasoning that it is a ruling contrary to analogy; so they did not permit treating others than them like what was done with these, of changing the name of the jizya to the *ṣadaqa* after doubling it on them.[2] But what appears to me is that the prohibition applies only when the other term is one specific to the Muslims, like zakat and the *ṣadaqāt*. With any other name, it is most likely not prohibited. This is just as Imam al-Shāfiʿī (may God have mercy on him) permitted in some cases making peace with them without taking the jizya from them at all.[3] [If that is permissible, though it forgoes the original entirely, then what we have said should be all the more permissible, since it merely changes the name while the substance remains.]

14 – Ministries and government departments

As we presented earlier, Islam did not legislate a special ruling and did not define a fixed position concerning the ministries and administrative departments in the government — their number and their powers and so on of those details which are connected to them; rather it entrusted to the people of insight in every age to choose from among the prevailing methods what they see as most fitting to their circumstances and most in the interest of the condition of the subjects.

Despite that, no era was empty of actually employing ministers to help the imam and support him in the affairs of the state; and the greatest witness of that is what came in the Noble Qur'an: that Moses, upon him be peace, asked his Lord for a minister, saying: **"And appoint for me a minister (wazīr) from my family — Aaron, my brother"** [Ṭā Hā,

> [1] *Futūḥ al-Buldān* (1/161). [2] *Kashf al-Asrār ʿan Uṣūl Fakhr al-Islām al-Bazdawī* (4/204), chapter on knowing the divisions of the cause. [3] *Kitāb al-Umm*, Book of Jihad and the Jizya, chapter on humiliation with the jizya, 1/214.

[p. 276] 20:29–30].

There are reports in which the Companions were called ministers of the Prophet ﷺ; among them what is narrated from ʿAbd Allāh ibn Masʿūd, may God be pleased with him, that he said: "So He chose for him companions, and made them helpers of His religion and ministers of His Prophet [1]".ﷺ

But that does not mean that the office of minister was formally entrusted to them as is the practice in this age of ours; rather the word "*wazīr*" (minister) was only applied to them because they were helpers supporting the Prophet ﷺ. In this meaning came the saying of the Prophet ﷺ: "And as for my two ministers from the people of the earth, they are Abū Bakr and ʿUmar."[2]

Likewise it is not established that anyone was put in charge of the office of the ministry or employed as a minister for the caliph in the era of the Rightly-Guided Caliphate either; rather many of the Companions used to undertake helping the caliph in the affairs of the state and performing what was entrusted to them of responsibilities and works; and the word "minister" used to be applied to them then — as is narrated that ʿAlī, may God be pleased with him, when he was charged with bearing the burdens of the caliphate, said: "It is better that I be a minister than a commander."[3]

In the eras after them, the office of the ministry accompanied the caliphate as a shadow accompanies its owner; and the imam continued formally to appoint someone to it, employing him as a minister who helps him and supports him in his works and his duties. The scholars of Islamic political jurisprudence divided the ministry into two kinds: the ministry of delegation (*wizārat al-tafwīḍ*) and the ministry of execution (*wizārat al-tanfīdh*). Here is their clarification in what follows:

As for the minister of delegation, he is the minister whom the caliph designates and delegates to him something of his powers and his competences, so that he uses them in managing matters by his opinion and executing them according to his ijtihad, without being committed in them to obtaining the agreement of the caliph and his approval.

As for the minister of execution, he is the minister who has no authority or jurisdiction of his own, and is not able

[1] *Sharḥ al-Sunna* of al-Baghawī (1/215). [2] *Sunan al-Tirmidhī*, ed. Shākir (5/616). [3] *Tārīkh al-Ṭabarī* = *Tārīkh al-Rusul wa-l-Mulūk*, and *Ṣilat Tārīkh al-Ṭabarī* (4/427).

[p. 277] to execute matters by his opinion and his view; rather his role is confined to mediation between the caliph and the subjects and the governors: he conveys from him what he commanded, and executes from him what he mentioned, and carries out what he ruled, and the like of that of what relates to implementing the commands of the imam and his decrees only.

In Islamic history there are found examples of both these kinds which the scholars of Islamic politics mentioned, like al-Māwardī, Abū Yaʿlā and others. ʿAllāma Ibn Khaldūn (may God have mercy on him) saw that the ministry of delegation was obtained by a person as a result of the consolidation of his influence and his authorities over the caliph — in the sense that a person obtains a standing and sovereignty in the heart of the king, to the extent that the king remains trusting in him and in his management and his view; so he becomes a minister of delegation, and an authority is obtained for him similar to what is obtained today for the prime minister in the democratic system, where he is the one who manages and directs the affairs of the state and government — except that the caliph or the president at the same time retains the constitutional right to cancel his decisions and replace them with others.

Despite that, the kinds of ministries clarified above are not built on a text from the Qur'an or the Prophetic Sunna; they are only the offspring of situations and circumstances and the outcome of events and incidents. So it is not obligatory on the imam in the Sharia to take ministers of both these kinds. The principle in that is that the caliph has the right to grant someone all that he has of powers and authorities, or something of them; just as he has the right also not to delegate to anyone anything of that. The upshot is that employing ministers and appointing them is nothing but an administrative matter on which the Sharia did not decide a decisive matter; rather it permitted the caliph to follow in it the course which he sees as easiest administratively, as long as his government is administered on fixed Islamic foundations and principles.

It is regarded as most appropriate today, in view of contemporary circumstances and situations, that there be defined by way of the constitution or the law all that the kingdom needs of ministries and departments and the extent of their influence and the scope of their powers.

Likewise the matter of sub-departments: the Sharia has not decided for them a special number nor branches and special fields; rather throughout Islamic history such departments

[p. 278] and branches have arisen in response to the needs of the age and the requirements of the time. So it is permitted today also that Islamic government take of them whatever it wishes, on condition that it be out of real necessity and need.

14 [sic] – Regional autonomy in Islam

Among the burning issues that attract the attention of contemporary governments, and around whose solution the dispute intensifies and the clash increases, is the issue of the autonomy and local government of the regions and provinces belonging to a state. We would like to list in this regard also several basic matters:

First — and before everything — we repeat here also what we said more than once: that Islam has not legislated a decisive ruling concerning the type of government, whether federal or unitary. So the rulings of Islam do not form any obstacle in the way of implementing the method which the Muslims have chosen or will choose in view of the interests of their age and the requirements of their times.

Second: as we said in discussing nationalism, Islam does not support the idea of founding a state on the basis of sharing in language, lineage and colour; nevertheless regional autonomy and local government for provinces are not among what contradicts the principles of Islam altogether, if several conditions are observed in it.

It is unavoidable for any government — federal or unitary — that the various areas of the state and its regions be divided into different units for the purpose of facilitating the administration of the administrative affairs of the state and its executive tasks. Such administrative units existed in the first Islamic government that was founded at the hands of the Messenger of God ﷺ. So here is Mecca: as soon as it was conquered, the Prophet ﷺ put ʿAttāb ibn Asīd in charge of it and made him ruler over it. When Bahrain was conquered, he put al-ʿAlāʾ ibn al-Ḥaḍramī, may God be pleased with him, in charge of it. When Yemen submitted to the Islamic state, he divided it — because of its size — into two administrative units, each of which was called a "*mikhlāf*" (district), as its mention came in the hadith of Abū Burda, may God be pleased with him, which al-Bukhārī included in his *Ṣaḥīḥ*; he said: "The Messenger of God ﷺ sent Abū Mūsā and Muʿādh ibn Jabal to Yemen. He said: And he sent each one

[p. 279] of them over a *mikhlāf*. He said: And Yemen is two *mikhlāf*s."[1]

Al-Ḥāfiẓ said: "The *makhālīf* of Yemen — the singular of it is *mikhlāf*, and it is like a region (*iqlīm*) for others than the people of Yemen."[2]

He said also: "And the side of Muʿādh was the upper, towards Aden, and among his territory was al-Janad (with *fatḥa* on the *jīm* and the *nūn*), and he has in it a mosque famous to this day."[3]

Al-ʿAynī (may God have mercy on him) said: "That he put each one of them in charge of a *mikhlāf*; and the *mikhlāf* is the district (*al-kūra*); and Yemen is two *mikhlāf*s. I said: The territory of Muʿādh was the uplands and what rose of the lands of Yemen, and the territory of Abū Mūsā the lowlands and what sank of it."[4]

Likewise in the era of the Rightly-Guided Caliphate: when the extent of the Islamic government widened and the scope of its influence stretched until it took control of half the inhabited world, it was divided at that time into administrative units like these, and each side had its ruler appointed by the caliph and imam.

It is self-evident that the powers and competences of the local and regional authorities must be defined, and the matters specified in which local governments act independently on their own judgement, and the matters in which they are still purely subordinate to the central government. What is not hidden in this field is that Islamic government — central or local — is entirely subject to the rulings of the Qur'an and the Prophetic Sunna and committed to not deviating from them a hand-span; and from this it is never permitted for it to lay down a law or issue an order contrary to the Islamic Sharia in anything, or clashing with its fixed principles. Since justice was among the most

important Islamic principles and the ideals of its teachings for Islamic government, it is therefore enjoined upon it to fulfil its requirements in full, and that it not lay down any law nor take any administrative measure that exceeds its limits so as to become injustice and tyranny. Likewise it is necessary to make the Islamic directives the focus of attention in the sector of

> [1] *Ṣaḥīḥ al-Bukhārī* (5/161), Book of Military Expeditions, hadith no. 3431. [2] *Fatḥ al-Bārī* of Ibn Ḥajar (1/186). [3] *Fatḥ al-Bārī* of Ibn Ḥajar (8/61). [4] *ʿUmdat al-Qārī Sharḥ Ṣaḥīḥ al-Bukhārī* (24/251), Book of Judgements, chapter 22.

[p. 280] education for each of the central and local governments. Just as there are several fields for which the state must adopt a deliberate plan through consultation among the representatives of all the regions and the territories belonging to it, so that the position of all those regions concerning them is unified, preserving the cohesion and unity of the state — and that is like international relations, foreign affairs, international trade and so on.

So, with observing these basic principles which are the most fundamental in this matter, there is no harm in granting the territories the greatest possible autonomy.

Hence the scholars of Islamic political jurisprudence divided the commanders of the regions and the rulers of the lands into two kinds: the special command [or: the special delegation], which is that the commander invest someone over a region while granting him authorities and powers within a limited scope; and the general command [or: the general delegation], which is that the sultan invest someone over a region of the state with wide authorities, such that he is regarded as a deputy of the caliph in all his authorities: of investing judges and governors, managing the armies, collecting the funds from all their sources and spending them in their objects of expenditure, and fighting the polytheists and those who wage war, and so on.[1]

The idea of regional autonomy developed greatly in the Abbasid Caliphate, until there were granted in it to the governors and local commanders of the various regions general delegation in the aforementioned meaning of handing over all the authorities of the caliph to him within that region delegated to him.

Indeed, they — submitting to a realistic historical fact — divided the commanders with general delegation into two kinds: a commander by appointment (*amīr istikfāʾ*), who is the one to whom the general command or rule over a region or territory was entrusted by a contract of the imam's or the caliph's own choosing, so that he becomes a deputy of the imam in all his authorities and his powers, including managing the armies and undertaking jihad against whoever is next to him of the enemies.

A commander by seizure (*amīr istīlāʾ*), who is the one whom the imam did not invest with the command from choice on his part; rather he took control of a region and became a commander over it by his strength and his might. Then, for the purpose of his remaining in subordination to the Islamic caliphate —

> [1] *Al-Aḥkām al-Sulṭāniyya* of al-Māwardī, p. 400; and *Taḥrīr al-Aḥkām fī Tadbīr Ahl al-Islām* of Ibn Jamāʿa, p. 60, Qatar printing.

[p. 281] even if symbolically only — he asked the caliph to annex his command to the caliphate. So the caliph would accept his request to preserve the unity of the Umma and protect it from division and

tearing apart; and because he was a Muslim who governed the lands under the shade of the rulings of the Sharia and implements them to the extent of his authority. It has happened repeatedly that this seizing ruler did not have present in him those qualities and conditions necessary for taking up the grave office, like the command of the Muslims and ruling over them; but nevertheless, despite those defects of his, his incorporation into the caliphate and into the fold of the unified Umma were tolerated. To lessen the harm of the like of him upon the Umma and reduce what was expected from him of evils, the imam often undertook investing a righteous, qualified person with the office of deputyship of this seizing commander, to try to straighten his conduct as far as possible for him. Such commands were at first within the realm of exceptional rare cases; and with the progress of time and the weakening of the caliph's control, they increased extremely. ʿAllāma al-Māwardī (may God have mercy on him) says, while undertaking to explain the commanders of delegation in his time: "And if the caliph delegated the management of the regions to their governors and entrusted the consideration of them to those who had taken control of them — as the people of our time are upon…"[1]

Usually the royal families of the Buwayhids, the Sāmānids, the Ghaznavids and the Seljuks were within this kind of command.

Since this situation was the offspring of circumstances of necessity and the product of the deteriorating situations which the Umma was passing through, and which threatened its unity and targeted its tearing apart and dismantling, it was never an ideal model of Islamic government for later governments to imitate. But it clearly and explicitly indicates the flexibility by which the rulings of Islam are distinguished in this regard: such that the commanders were granted all the authorities, even authority over the armies and jihad against the enemy!

After this quick survey of this important political issue from the point of view of

> [1] *Al-Aḥkām al-Sulṭāniyya* of al-Māwardī (1/61). For more detail on this issue, see the book of Ḍiyāʾ al-Dīn al-Rayyis entitled *al-Naẓariyyāt al-Siyāsiyya al-Islāmiyya*, p. 278, Cairo printing 1976.

[p. 282] the Sharia and its stages through the history of the Islamic caliphate, let us cast a glance at the political atmospheres of our state and their positions towards this important, grave issue. First, it has become common among us to merge the call for regional autonomy with the call to nationalism (*al-qawmiyya*), so that anyone who raised this call or aspired to this demand was accused of treachery. In fact there is no connection between the requirements of regional autonomy and nationalism or the call to it in anything — as is accepted in the world today. For how many a region and territory belonging to a state has been allowed to issue its own special currency other than that of the state! Take Scotland, for example: its own special currency is issued, even though Britain's government is federal [sic: the UK is a unitary state, as the author himself says on p. 110] and Scotland represents a region and province of it.

On another side, regional autonomy means, from one aspect, that the region has first claim on its resources and products for its own benefit, before the other regions and provinces of the state exploit them. By contrast, many federal governments treat some of their regions in flagrant contradiction of this principle, exploiting their resources and supplying them to other regions while the province that produced them is deprived of benefiting from them for a long period. The clearest example of that is

what we have witnessed in our state: that natural gas was found in Baluchistan, and was immediately sent to Karachi, Lahore, Islamabad and other cities, while Quetta — the capital of Baluchistan — remained deprived of it for a not short period, let alone its other cities. It was as a consequence of this unjust conduct that the call for regional autonomy turned into a call to nationalism and took the character of independence movements seeking secession from the state.

The gist of the words is that Islam does not see any harm in granting the units of the state and its regions wide authorities in administrative affairs to the furthest possible extent; indeed it encourages this to a degree, since it will help protect the state from being dismantled by regional currents or torn apart by destructive separatist calls — and it greatly eases the management of their administrative affairs and the performance of their basic duties.

Chapter Five: Defence and Foreign Affairs

Introduction

[p. 283] As becomes clear from the heading mentioned above, this chapter is devoted to studying the issues and questions which Islamic government faces concerning international relations, and clarifying the rulings of Islam which it will follow in laying down foreign policies. Before plunging into the depths of the details of the subject, it is fitting for us to give a brief account of the explanation of two terms which will recur often in this chapter, namely Dār al-Islām and Dār al-Ḥarb, into which the jurists divided all the states of the world.

Dār al-Islām and Dār al-Ḥarb

Dār al-Islām (the Abode of Islam): it is the state which is under the control of the Muslims, and in which complete control has been obtained for them such that their word is manifest in it and their rulings are implemented in it. ʿAllāma al-Sarakhsī (may God have mercy on him) defined it with what is synonymous with this, saying: “For Dār al-Islām is a name for the place which is under the hand of the Muslims.”[1]

It is defined in *Jāmiʿ al-Rumūz*, citing *al-Kāfī*, as follows: Dār al-Islām is that in which the rule of the imam of the Muslims runs, and they are safe in it.[2]

So it is concluded that the abode only becomes Dār al-Islām if authority in it has been obtained for the Muslims, even if all the rulings of Islam are not actually being implemented in it. (This is another matter: that implementing the Sharia and applying all its rulings is in itself an important duty and a grave responsibility on the shoulders of the Muslims, especially in an Islamic state in which they have control over it and influence in it.)

The matter became confused for some, as they thought that the phrase “the rule of the imam of the Muslims” which came in the text of *Jāmiʿ al-Rumūz* mentioned just now [means]: implementing all the rulings of the Sharia; and from that they went

[1] *Sharḥ al-Siyar al-Kabīr* (1/1253). [2] *Jāmiʿ al-Rumūz* 4/556.

[p. 284] to [holding] that the state in which the Sharia and its rulings are not actually implemented is not Dār al-Islām at all.

But it is an illusion that has no share of soundness; for the only element that makes the state Dār al-Islām is that its authority and its control be in the hands of the Muslims such that they are able in it to implement the Sharia and apply all its rulings. Then if, being able to do so, they fail to do it out of slackness and negligence, they commit a grave sin, and must immediately give up this negligence and undertake their responsibilities and perform their duty towards implementing the rulings of the Sharia in the areas of their influence and to the extent of their powers.

We do not see any contradiction between the two definitions of al-Sarakhsī and *Jāmiʿ al-Rumūz*; for the principle is what al-Sarakhsī (may God have mercy on him) said: that the state be under the hand of the Muslims — what was expressed in *al-Jāmiʿ al-Rumūz* by the running of the rule of the imam of the Muslims in it — regardless of whether his rulings and commands are in conformity with the Sharia or not. Since it was difficult at that time to conceive the Muslims' slackness to the limit of carelessness about implementing the Sharia in a state that is under their hands and in their authority, the earlier jurists therefore did not undertake to state its ruling expressly; rather they contented themselves in that with the affirmative side of the definition of Dār al-Islām: that it is the state in which the rule of the Muslims runs. As for the later ones among them, they stated its ruling expressly also after they witnessed this deteriorating situation and saw this evil day for Islam, when its own children neglect to implement it in lands under their control and authority! Among such explicit statements is what ʿAllāma Ibn ʿĀbidīn al-Shāmī (may God have mercy on him) said: "And by this it became apparent that what is in Syria of the mountain of Taym Allāh called Jabal al-Durūz and some of the lands belonging to it are all Dār al-Islām; because even if they have Druze or Christian rulers and they have judges on their religion, and some of them openly insult Islam and the Muslims — yet they are under the rule of our holders of authority, and the lands of Islam surround their lands from every side; and if the holder of authority wanted to implement our rulings among them, he would implement them."[1]

This also makes clear what we said: that what counts in Dār al-Islām is that the Muslims have

[1] *Al-Durr al-Mukhtār* and the gloss of Ibn ʿĀbidīn (*Radd al-Muḥtār*) (4/175).

[p. 285] complete control over it and full influence, even if they did not actually implement in it all the rulings of the Sharia out of negligence and laziness in performing their duty and undertaking their responsibilities.

Dār al-Ḥarb (the Abode of War), by contrast, is the state which is under the hands of the unbelievers and in their control and their authority, as came in *Jāmiʿ al-Rumūz* also: "And Dār al-Ḥarb is that in which the command of the head of the unbelievers runs."[1]

From this, if authority over a state were established for non-Muslims and their influence in it were completed, then it is Dār al-Kufr (the Abode of Unbelief), even if the Muslims were allowed in it to establish their rites and set up their judicial courts; because what counts — as we said — is authority, influence and control, and it is obtained here for the unbelievers.

Accordingly, ʿAllāma Shaykh Rashīd Aḥmad al-Gangohī (may God have mercy on him) gave a fatwa that India is Dār al-Ḥarb, even though the Muslims were free in it in establishing the Friday prayer, the ʿĪds and the other religious rites.

But it is necessary here to draw attention to the fact that the jurists often apply the word "Dār al-Ḥarb" to every state over which the unbelievers have taken control and in which they have extended their authority and in which their rulings are implemented. The truth is that it is not necessary that every state like this be Dār al-Ḥarb in the technical meaning also; and the detail of that is that the states of the unbelievers are of two kinds:

Dār al-Ḥarb: it is a state that has no peace treaty or truce with the Muslims, and in which Muslims are not permitted to establish their religious rites. This kind is Dār al-Ḥarb in every meaning of the word, and all its rulings apply to it — among them that the Muslims residing in it must emigrate from it to an Islamic state, or another unbelieving state in which they are able to establish religious rites and act by the teachings of the Sharia in a safe, peaceful atmosphere.

And Dār al-Amn (the Abode of Safety): it is a state ruled by unbelievers, but the Muslims are able in it to establish their religious rites and follow the commands of the Sharia in their personal and social life with all

> [1] *Jāmiʿ al-Rumūz* 4/556.

[p. 286] freedom and without finding any obstacle from the government blocking them from it. The example of that in the early period of Islam is the kingdom of Abyssinia, to which a not small number of the Companions, may God be pleased with them, emigrated by the order of the Prophet ﷺ in the wake of the increase of afflictions and calamities upon them from the polytheists of Mecca. So the state was a state of unbelievers at that time; but it permitted the Muslims to act by their Sharia — which made it Dār al-Amn for them, and not Dār al-Ḥarb. Shaykh Shāh ʿAbd al-Ḥaqq al-Dihlawī (may God have mercy on him) says [in Persian]: "*Wa hijrat dar Islām bar do wajh wāqiʿ shuda: awwal intiqāl az dār-e khauf ba dār-e amān, chunānki baʿḍ-e ṣaḥāba dar ibtidā-e Islām ba Ḥabasha hijrat kardand, tā az khauf-e sharr wa fasād-e mushrikān-e Makka dar amān bāshand; wa chunānki baʿḍ az Makka ba Madīna raftand pīsh az hijrat-e Rasūl Allāh ﷺ wa istiqrār-e amr-e Islām. Wa thānī intiqāl az dār-e kufr ba dār-e Islām, wa īn baʿd az tamakkun wa istiqrār-e Āṅḥaḍrat ﷺ būd dar Madīna.*"[1]

[In Arabic translation:] "Emigration in Islam occurred in two kinds. The first: emigration from the abode of fear to the abode of safety, as many of the Companions emigrated in the early period of Islam to Abyssinia, fleeing for their lives from the persecution of the polytheists of Mecca and their harm; and likewise the emigration of some of them to Medina before the establishment of the rulings of Islam in it is also of this kind. The second: emigration from the abode of unbelief to the abode of Islam, which is the emigration the Muslims made after the establishment of the rulings of Islam in Medina."

Thus His Eminence (may God have mercy on him) divided the abode of unbelief — or say the abode of war — into two kinds: the abode of fear (*dār al-khawf*), and the abode of safety (*dār al-amn*). Likewise Shaykh Mawlānā Muḥammad Sahūl (may God have mercy on him) said, in a treatise of his

in which he clarified the fatwa of Shaykh Rashīd Aḥmad al-Gangohī concerning India being Dār al-Ḥarb, which was printed with it later; there came in it [in Urdu]:

> *"Yeh bāt yahān ẓāhir karnā bahut ẓarūrī hai ke āj kal Hindustān bāstiśnāʾ-e Islāmī riyāsaton ke agarche Ḥaḍrat-e Mujīb aur Ḥaḍrat Shāh ʿAbd al-ʿAzīz aur baʿḍ dīgar akābir kī taṣrīḥ ke muṭābiq dār al-ḥarb hai, magar wāqiʿāt se maʿlūm hotā hai ke woh dār al-amān hai — yaʿnī jis ṭarḥ se Ḥabasha qabl-e hijrat-e sharīf ke bāwujūd dār al-ḥarb*

[1] *Ashiʿʿat al-Lamaʿāt* 1/35, in the explanation of the hadith "Actions are only by intentions".

[p. 287] *hone ke dār al-amān thā, isī ṭarḥ se Hindustān bhī āj kal dār al-amān hai. Yehī wajh hai ke yahān se Musalmānon ko hijrat ẓarūrī nahīn hai. Kātib al-ḥurūf ke istifsār ke baʿd Ḥaḍrat Gangohī ne aisā hī mushāfahatan farmāyā thā jo bande ko khūb achchhī ṭarḥ se yād hai.*"

"What must be drawn attention to here is that India — except what is in it of the Muslim princely states — is Dār al-Ḥarb according to the express statements of His Eminence the Respondent [i.e. Shaykh al-Gangohī] and His Eminence Shāh ʿAbd al-ʿAzīz and some other great ones; except that it becomes clear from external reality that it is not Dār al-Ḥarb but Dār al-Amān, exactly like Abyssinia: before the emigration it was regarded as Dār al-Amān despite its being Dār al-Kufr; so likewise India today is Dār al-Amān; and from this emigration from it is not obligatory on its Muslim people. This is what Shaykh al-Gangohī said orally upon the inquiry of the writer of these lines — what he still remembers well."

Relations of the Islamic government with other states

Since it has become clear from the detail that has just passed that all states, in relation to the Islamic government, are divided into three kinds — Dār al-Islām, Dār al-Amn and Dār al-Khawf — we shall clarify below the details of its relations with each one of these three kinds.

Relations with Muslim states

We mentioned earlier, in the discussion of the multiplicity of governments and their unity, that the ideal from the Sharia point of view is that all the Muslims throughout the length and breadth of the world have one government administered by one imam and caliph. But — regrettably — they have divided and separated in external reality into more than fifty units, or rather states. So first, all these states should strive to bring about unity among the Muslims of the world and to bring them together in a single, unified Islamic government. So every state must give attempts at establishing unity the place of precedence in its foreign policy, contributing its share towards founding a unified world Islamic state that gathers them all

[p. 288] in a single rank.

God has given the Islamic states great privileges which He did not give to others than them among the holders of other religions. For all their states — beginning from the Far Maghrib and ending with Indonesia — form a chain in which some of its links support others; just as they occupy the best geographical location in the world, where they are located in its heart, possessing the most important main international routes like the Bosphorus Strait, the Suez Canal, the Gulf of Aden, the Strait of

Hormuz and so on — in addition to their containing in their interior the most important oil reserves, to the point that the current saying became famous about them: “Oil is found wherever the Muslims are found”; and likewise their wealth and their enormous human heritage. Add also their tremendous material wealth which they never possessed before in all their glorious history: billions upon billions of dollars which they pumped and piled up in the banks of America and the other Western states, for those states to enjoy to the full and profit from, even by lending at interest to the Islamic states if they are in need of them for fulfilling their necessary needs. So in view of these situations, Islamic unity does not guarantee for these states the loftiness of their standing politically only; rather it provides for them their interests from both aspects: economic and defensive also. So if God decreed for it that it be completed, it would emerge on the world stage as a nation with power and a lofty standing among the states of the world in defence and economy.

But, as we noted there as well, the formation of this Islamic unity perhaps cannot be completed and obtained except by the shedding of blood among the Muslims and their fighting one another — which would drag the Umma to a far worse and more evil situation. So until God enables their kings to sacrifice for the sake of unifying their word, so that they form from their states a unified Islamic state, or at least form among them a coalition and union, we find ourselves compelled to consider these dismantled units as abodes of Islam, because their rulers are Muslims. So at the least, there should be among these Islamic states connections of affection and relations of mutual support among one another.

Accordingly, the first priority in forming the foreign policy of the Islamic state is that it try to bring about a relationship and establish a good brotherly connection with its sister states

[p. 289] of the other Islamic states, built on the basis of solidarity and mutual support.

This includes that if the unbelievers launch an attack on one of those states, its sisters must support it and strengthen its position — indeed supply it with military support if its own resources fall short of protecting and defending it. The teachings of the Qur’an and the directives of the Prophetic Sunna and the texts of Islamic jurisprudence are explicit and clear in this field. God, glorified and exalted, said: **“And cooperate in righteousness and piety, but do not cooperate in sin and aggression”** [al-Māʾida, 5:2].

He, mighty is the Speaker, also said: **“The believers are but brothers”** [al-Ḥujurāt, 49:10].

The Prophet ﷺ said: “The Muslim is the brother of the Muslim; he does not wrong him nor hand him over [to the enemy].”[1]

He, upon him be blessing and peace, said also: “The believer to the believer is like a building, part of which supports another part.”[2]

Also: “You see the believers, in their mutual mercy, their mutual love and their mutual sympathy, like the body: if one limb complains, the rest of its body calls out to it with sleeplessness and fever.”[3]

From this the jurists stated expressly that the unbelievers, if they attacked a town of the Muslims and there was not sufficiency in them for protecting their land and repelling their enemy, then it is obligatory on whoever is next to them of the Muslims to fight their enemy with them all together.

ʿAllāma Ibn Nujaym (may God have mercy on him) said: “And it is an individual obligation (*farḍ ʿayn*) if the enemy attacks: so the woman goes out without the permission of her husband, and the slave without the permission of his master… What is meant is its attacking a specific town of the lands of the Muslims; so it is obligatory upon all the people of that town, and likewise whoever is near to them if there is not sufficiency in its people; and likewise whoever is near to whoever is near, if there was not sufficiency in whoever was near, or they were lazy and disobeyed — and so on until it becomes obligatory on all the people of Islam east and west.”[4]

Relations with non-Muslim states

The first thing we notice in this regard is that there is a vast gulf and a clear difference between

> [1] *Ṣaḥīḥ al-Bukhārī* (3/128), Book of Grievances, hadith no. 2442. [2] *Ṣaḥīḥ al-Bukhārī* (1/103). [3] *Ṣaḥīḥ al-Bukhārī* (8/10). [4] *Al-Baḥr al-Rāʾiq Sharḥ Kanz al-Daqāʾiq* and *Minḥat al-Khāliq* and *Takmilat al-Ṭūrī* (5/78).

[p. 290] the purposes of life among the Muslims and among the unbelievers. For the Muslim — personally, or at the level of the state and government — aims, through his life, at attaining the pleasure of God, glorified and exalted, through spending it in obeying Him and submitting to His rulings, beginning with accepting the creedal principles like faith in God and His messengers, and specifically the one who is the loftiest of them in standing and the most eminent of them in rank even if the last of them in time, our master Muhammad ﷺ. While the one bare of this faith — person or government and state — will never strive to attain this aim. So if the purposes of their lives and the aims which each of them seeks from his life on earth differ, it is impossible for a Muslim to form with the unbelievers a connection of real affection, or to establish with them a firm heartfelt relationship such as there is between two persons whom the bond of sharing in purposes and union in aims and goals gathers. It is this kind of friendship that the Qur’an forbade with the most severe prohibition, saying: **“Let not believers take disbelievers as allies (awliyāʾ) rather than believers. Whoever [of you] does that has nothing with God”** [Āl ʿImrān, 3:28].

He said also: **“O you who have believed, do not take the Jews and the Christians as allies. They are [in fact] allies of one another. Whoever is an ally to them among you — then indeed, he is [one] of them”** [al-Māʾida, 5:51].

And: **“You will not find a people who believe in God and the Last Day having affection for those who oppose God and His Messenger, even if they were their fathers or their sons or their brothers or their kindred”** [al-Mujādila, 58:22].

And: **“O you who have believed, do not take My enemies and your enemies as allies, extending to them affection while they have disbelieved in what came to you of the truth, having driven out the Prophet and yourselves [only] because you believe in God, your Lord”** [al-Mumtaḥana, 60:1].

His Eminence Shaykh Mufti Muhammad Shafiʿ (may God have mercy on him), in the commentary on these aforementioned verses, undertook to shed light on the ruling of the relations of the Muslims with non-Muslims, in a weighty, comprehensive style covering all its forms and states. We see it as

most fitting to transmit it to you in Arabic translation. He (may God have mercy on him) said: “Many of the Qur’anic verses have mentioned this meaning in summary and in detail: in them the Muslims are forbidden with the most severe prohibition from taking the unbelievers as allies, having affection for them and befriending them. So if the ignorant among the unbelievers looked at it without [knowing] the reality of the matter, they would think that there is no room in Islam for anything of being courteous to them or

[p. 291] being kind to them or dealing with them with good character. On another side, many of the Qur’anic verses and the Prophetic hadiths, in word and deed, and the stories of the dealing of the Rightly-Guided Caliphs and others than them of the Companions, may God be pleased with them all, clearly and explicitly indicate the permissibility of being kind to them and showing them goodwill, to which it is difficult to find a parallel in the nations and the other religions. So in view of these two aspects, some — even those of superficial view among the Muslims — may feel a contradiction and conflict between the rulings of the Qur’an and the Prophetic Sunna and its teachings. The truth is that both these ideas were only born from the passing look and the deficient tracing of the rulings of the Qur’an and the Sunna and its teachings. For if all the Qur’anic verses that have connection with this subject were gathered, then the view were deepened in them, non-Muslims would have no grounds for complaint, nor illusion of contradiction and inconsistency between the verses and the rulings established from them. So we explain this place with an explanation that clarifies the import of each of alliance (*muwālāt*) and kindness to someone and goodwill towards him, and distinguishes them from one another.

The truth is that there are several degrees of relations and connections between two persons or two groups. Among them: alliance (*al-muwālāt*), or heartfelt affection; and it is specific to the Muslims. It is categorically impermissible for a Muslim to form this kind of connection with an unbeliever.

Among them: goodwill (*al-muwāsāt*), and it is the relationship of mutual sympathy and sincere counsel and doing someone good. It is permissible for the Muslim to establish it with all the unbelievers except those waging war among them; and its detail came in the eighth verse of Sūrat al-Mumtaḥana, where God, glorified and exalted, said in it: **“God does not forbid you from those who do not fight you because of religion and do not expel you from your homes — from being righteous toward them and acting justly toward them”** [al-Mumtaḥana, 60:8].

The third degree: it is courtesy (*al-mudārāt*), and its meaning: gentleness, good character, companionship and social intercourse. Bringing it about is also permissible with all the unbelievers, if the aim from it was benefiting them religiously, or hosting them if they asked to be his guests, or protecting oneself from their strife and their harm. This third rank is what is meant in His words, the Exalted: **“Except when taking precaution against them in prudence”** [Āl ʿImrān, 3:28] — a phrase that comes within

[p. 292] the aforementioned verse of Sūrat Āl ʿImrān; i.e. alliance with the unbelievers is not permissible except in the form where you intended by it protecting yourselves. Since courtesy outwardly resembles alliance, it was properly excepted from it in the verse.

The fourth degree: it is transactions (*al-muʿāmalāt*); and its meaning: that transactions be concluded with the unbelievers in the sector of trade or leasing or employment, profession and industry and so on. Concluding them is also permissible with all the unbelievers — except if it causes harm to the generality of the Muslims. The action of the Prophet ﷺ and the dealing of the Rightly-Guided Caliphs and others than them of the Companions, may God be pleased with them all, bear witness to that. Hence they prohibited selling weapons to the unbelievers, while permitting trade and leasing, and employing them or being employed with them in their factories and their institutions.

So it became known from the foregoing detail that it is never permissible for the Muslim to conclude with an unbeliever alliance or heartfelt affection; while goodwill and sincere counsel are permissible with all of them except those waging war among them; and likewise the Sharia permits him to be courteous to them and to have good character towards them if it was for hosting them, or for the purpose of benefiting them religiously and providing religious information to them, or protecting oneself from their evil and their harm."[1]

The gist of the words is that Islam has forbidden alliance and heartfelt affection, with the unbelievers — the kind that erases the difference in life's purposes between the two parties. As for other than that — of truce, the conclusion of peaceful agreements, human goodwill, being kind to them and counselling them on the basis of humanity, and cooperation and mutual support exchanged for realizing the common human interests — all this is permissible — indeed preferred and beloved — in Islam. We see it as best to present here several texts of the Qur'an and the Sunna related to the subject, and several examples from the eras of the Prophet and the Companions in this regard.

[1] *Maʿārif al-Qurʾān*, Sūrat Āl ʿImrān, verse 82 [sic: 28], part 2, pp. 50–51.

Keeping covenants and agreements

[p. 293] First, here is the Qur'anic text which indicates the legitimacy of making peace and reconciliation with non-Muslim states if they do not conflict with the interest of the Muslims, and it is His words, the Exalted: **"And if they incline to peace, then incline to it [also] and rely upon God"** [al-Anfāl, 8:61].

And once a truce has been concluded, it strongly emphasizes fulfilling it, saying: **"O you who have believed, fulfil [all] contracts"** [al-Māʾida, 5:1].

And: **"And do not let the hatred of a people for having obstructed you from al-Masjid al-Ḥarām lead you to transgress"** [al-Māʾida, 5:2].

Even in the form where the Muslims feared from their enemy the breaking of the covenant, the Sharia also did not permit them to take any measure except after cancelling the treaty and openly repudiating it. God the Exalted said: **"If you [have reason to] fear from a people betrayal, throw [their treaty] back to them, [putting you] on equal terms. Indeed, God does not like traitors"** [al-Anfāl, 8:58].

The history of the two eras of the Message and the Companions is full of splendid stories and pioneering events showing how faithfully and well they carried out this command and applied this principle. Among those stories is what Muslim narrated in his *Ṣaḥīḥ* from Ḥudhayfa ibn al-Yamān; he said:

“Nothing prevented me from witnessing Badr except that I set out, I and my father Ḥusayl. He said: The unbelievers of Quraysh seized us; they said: You want Muhammad. We said: We do not want him; we only want Medina. So they took from us the covenant of God and His pledge that we would go away to Medina and not fight with him. So we came to the Messenger of God ﷺ and told him the news; he said: ‘Go away; we will fulfil their covenant for them, and we will seek God’s help against them.’”[1]

Let us weigh the gravity of the situation by our own standards. It was the first battle the Muslims fought in defence of their religion, the battle by which God had decreed to judge between truth and falsehood and distinguish one from the other; those Muslims who took part in it would win reward, pride and honour in Islamic society such as none

[1] *Ṣaḥīḥ Muslim* (3/1414), Book of Jihad, chapter on fulfilling the covenant, hadith no. 4603.

[p. 294] after them would attain; and it was a struggle of 313 men, barely armed, against a thousand fully armed warriors, which left them in the direst need of manpower, even a single man. Moreover, Ḥudhayfa and his father had a plausible justification for breaking the covenant, since they had not taken the covenant and the pledge upon themselves willingly; rather it was under compulsion from the unbelievers and coercion. But the Prophet ﷺ forbade them from breaking this covenant — if it is correct to call it a covenant — with clarity and firmness, in avoidance of the slightest blemish of disloyalty and treachery. By that he set up a bright lamp and a pioneering model example for his Umma for avoiding treachery even in so critical and desperate a situation.

Likewise Abū Dāwūd narrated with a sound chain from Abū Rāfiʿ, may God be pleased with him; he said: “Quraysh sent me to the Messenger of God ﷺ. When I saw the Messenger of God ﷺ, Islam was cast into my heart. So I said: O Messenger of God, by God I will never return to them. So the Messenger of God ﷺ said: ‘I do not break the covenant, nor do I detain messengers; but return, and if what is in your soul now is in your soul, then come back.’ He said: So I went; then I came to the Prophet ﷺ and became Muslim.”[1]

Although there was at that time no contract or covenant between the Prophet ﷺ and the polytheists of Mecca, he nevertheless ordered him to return to them so that it would not be a breach of what is regarded as a covenant by custom and implication. That is because of what ʿAllāma al-Khaṭṭābī (may God have mercy on him) said: “The meaning is perhaps that the message requires an answer, and the answer does not reach the senders except upon the tongue of the messenger after his departure; so it became as if a covenant had been contracted for him for the duration of his coming and his return — and God knows best.”[2]

As for the era of the Companions, read with me the following story which Imam Abū Dāwūd (may God have mercy on him) narrated: that there was between Muʿāwiya and the Romans a covenant, and he was travelling towards their lands so that when the covenant ended he would raid them. A man came on a horse or a nag, saying: God is greatest, God is greatest — fulfilment and not treachery! They looked, and it was ʿAmr ibn ʿAbasa. So Muʿāwiya sent to him and asked him; he said: I heard the Messenger of God ﷺ say: “Whoever has between him and a people a covenant, let him not tighten a knot nor untie it until

[1] *Sunan Abī Dāwūd* (3/82), Book of Jihad, chapter on the imam being consulted about covenants, hadith no. 2758; its chain is sound. [2] *Maʿālim al-Sunan* (2/317).

[p. 295] its term ends, or he throws [it] back to them on equal terms." So Muʿāwiya returned.[1]

Let us notice that Muʿāwiya, may God be pleased with him, did not actually break the covenant; because he entered the land of the enemy and attacked them after the end of the period of the ceasefire and the halting of war. But since he had begun marching towards them before it ended, ʿAmr ibn ʿAbasa, may God be pleased with him, regarded this as contrary to scrupulousness and caution, and Muʿāwiya, may God be pleased with him, yielded to him, for fear that it might be disobedience issued from him and opposition to the saying of the Prophet ﷺ. So perhaps it is the unique example in which the conqueror gave up what he had conquered of lands merely for fulfilling the requirement of caution and scrupulousness!

Just as the story indicated that what plunged them into the depths of the battles was not the greed to take control of lands nor the desire to prevail over servants; rather their aim from all that was attaining the pleasure of God, glorified and exalted. So when they saw that [God's pleasure] lay in giving up the conquered lands, they gave them up at once.

Muʿāwiya, may God be pleased with him, also has that splendid story which al-Qāsim ibn Sallām narrated with his chain as follows: "The Romans made peace with Muʿāwiya on [condition] that he pay them money, and Muʿāwiya took hostages from them and put them in Baalbek. Then the Romans acted treacherously. Muʿāwiya and the Muslims refused to consider it lawful to kill the hostages in their hands, and let them go, and sought [God's] victory over them by that [conduct], and said: Fulfilment in [the face of] treachery is better than treachery for treachery."[2]

Pacts of joint defence

Alongside ceasefire agreements, there are found examples of the pacts which the Prophet ﷺ contracted and concluded with the unbelievers concerning common defence and common protection.

Among that is that Medina, when the Prophet ﷺ came to it, was dominated by the tribal system, and many tribes inhabited it — among them tribes of the Jews also — each one of which had its master and its head; and there was no central government uniting them. So the Prophet ﷺ called them to

[1] *Sunan Abī Dāwūd* (3/83). [2] *Al-Amwāl* of al-Qāsim ibn Sallām (1/211), paragraph 446.

[p. 296] join a single government formed by mutual agreement — a matter which these welcomed. So at that time the Prophet ﷺ undertook laying down the constitution of the city-state in Medina in the form of a written document in which he included the rights and duties of all the citizens; and it is the first written constitution in human history, according to what Dr. Ḥamīdullāh (may God have mercy on him) verified. It contained 43 [sic] clauses, and clauses 37 and 44 of them were devoted to the alliance between the Muslims and the Jews concerning mutual support if an enemy attacked Medina. Here are their texts:

37. "And that upon the Jews is their expenditure and upon the Muslims their expenditure; and that between them is help against whoever wars against the people of this document; and that

between them is sincere counsel and good conduct, not sin."

38. "And that between them is help against whoever attacks Yathrib."[1]

Likewise it was in the Treaty of al-Ḥudaybiya: the contract between the Prophet ﷺ and the polytheists of Mecca was concerning ceasefire only; as for the Banū Khuzāʿa, there was between them and the Muslims an alliance concerning common defence, as a continuation of what they had been allied upon with the Banū Hāshim in the Jāhiliyya — and most of them had not yet become Muslim.

The detail of that is that when the Treaty of al-Ḥudaybiya took place between the Messenger of God ﷺ and Quraysh, among what they stipulated was that whoever liked to enter into the contract of the Messenger of God ﷺ and his pledge, let him enter into it; and whoever liked to enter into the contract of Quraysh and their pledge, let him enter into it. [So the Banū Bakr entered] into the pledge of Quraysh, and Khuzāʿa entered into the pledge of the Messenger of God ﷺ. This amounted to nothing other than an alliance for common defence: that the polytheists and the Banū Bakr, if they attacked one of these two allies, it would be binding on the other to help his ally and support him in protecting him and defending him.

Then the Banū Bakr rose and attacked Khuzāʿa by night, and struck from them a man; and they argued and fought, and the Banū Bakr were reinforced by Quraysh with weapons, and some of Quraysh fought with them at night in hiding.

When the Banū Bakr and Quraysh supported each other against Khuzāʿa [and struck from them what they struck] and broke what was between them and the Messenger of God ﷺ of covenant and pledge, ʿAmr ibn Sālim al-Khuzāʿī went out — Ibn Saʿd said: among forty riders — until he came to the Messenger of God ﷺ in Medina; and that was what stirred up

[1] *Majmūʿat al-Wathāʾiq al-Siyāsiyya li-l-ʿAhd al-Nabawī wa-l-Khilāfa al-Rāshida* (1/59–62).

[p. 297] the conquest of Mecca. So the Messenger of God ﷺ said: "You have been helped, O ʿAmr ibn Sālim." He informed the people that he was travelling to Mecca, and ordered them to make earnest preparations — which led to the conquest of Mecca, may God ennoble it.[1]

So the scholars of Islamic politics argued by it that it is permissible for the Muslims to make alliances with the unbelievers and conclude with them treaties concerning common defence. Al-Ḥāfiẓ Ibn Ḥajar (may God have mercy on him) said: "And that is not counted among alliance with the unbelievers nor affection for the enemies of God; rather it is of the kind of employing them and reducing the force of their gathering and setting some of them against others."[2]

Goodwill and sincere counsel

God loves goodwill and sincere counsel and good dealing with the unbelievers on the basis of humanity. At the individual level, this is shown by what came in the Qur'an of emphasizing good companionship and good social intercourse with the polytheist parents, except obeying them in polytheism and unbelief, where God, glorified and exalted, said: **"But if they endeavour to make**

you associate with Me that of which you have no knowledge, do not obey them but accompany them in [this] world with appropriate kindness” [Luqmān, 31:15].

His general command in this regard has passed in the verse of Sūrat al-Mumtaḥana: **“God does not forbid you from those who do not fight you because of religion and do not expel you from your homes — from being righteous toward them and acting justly toward them”** [al-Mumtaḥana, 60:8].

This indicates [the permissibility of] good relations with the polytheists and keeping ties with them, individually and socially at the level of the state; and the researcher who studies the Prophetic biography, upon its owner be blessing and peace, finds abundant examples in it of ties of this kind. Among them is what al-Bukhārī narrated with his chain from Asmāʾ bint Abī Bakr, may God be pleased with them both; she said: My mother came to me while she was a polytheist in the time of the Messenger of God ﷺ. So I asked the Messenger of God ﷺ for a fatwa; I said: And she is desirous [of my kindness]; shall I keep ties with my mother? He said: “Yes, keep ties with your mother.”[3]

[1] ʿ*Uyūn al-Athar* (2/212). [2] *Fatḥ al-Bārī* of Ibn Ḥajar (5/338). [3] *Ṣaḥīḥ al-Bukhārī* (3/164).

[p. 298] More explicit and more astonishing than that is what was of his ﷺ goodwill towards the polytheists of Mecca: they had rolled up their sleeves to war against him and show him enmity; they spared no effort in persecuting him and persecuting his Companions and bringing down upon them what was within their capacity of calamities and afflictions. They boycotted him and his family in the Shiʿb of Abū Ṭālib — a boycott that compelled them to live on eating the leaves of trees and the skins of animals. But despite all that, when the vicissitudes of fate turned and the days revolved against Quraysh, and a severe famine struck them in which they ate bones and skins — what the Qur’an expressed, according to the commentary on the verse, by the coming of the sky with a visible smoke — Abū Sufyān, still an unbeliever, came to the Messenger of God ﷺ and said: “O Muhammad! Your people have perished; so call upon God to remove it from them.” So the Messenger of God ﷺ asked for rain for them, and rain came down upon them, and the affliction of the famine was removed. ʿAllāma al-Sarakhsī (may God have mercy on him) said that he also sent to them five hundred dinars to distribute among the needy among them.[1]

He gave Abū Sufyān a large amount of ʿajwa dates as a gift, and asked him for a gift of leather.[2] And Dr. Ḥamīdullāh (may God have mercy on him) held that asking them for a gift of leather also was only from the motive of gentleness with them; perhaps the Prophet ﷺ thought that Quraysh would not find anyone to buy their leather because of the blocking of the road to Syria, and that it would rot and spoil if it remained with them unused; so he asked them for it in exchange for the dates, to fulfil their food need.

Read also the story of Thumāma ibn Uthāl, the master of the Banū Ḥanīfa: an expedition of the Prophet ﷺ directed to Najd captured him; then the Prophet let him go, and Islam had been made beloved to him in the wake of seeing the character of the Prophet ﷺ and his splendid traits and his virtuous dealing; so he became Muslim. Yamāma was at that time the road of grains and cereals for Quraysh; so Thumāma swore that no grain of wheat would come to them from Yamāma until the Prophet ﷺ gave permission for it — which troubled the unbelievers and exhausted them. So they

wrote to the Prophet ﷺ: “You command keeping ties of kinship”; so he wrote to Thumāma that he leave [the way open] between them and the carrying [of grain] to them.[3]

[1] *Al-Mabsūṭ* of al-Sarakhsī (10/92), chapter on the peace of kings. [2] *Al-Amwāl* of al-Qāsim ibn Sallām (1/328). [3] *Fatḥ al-Bārī* of Ibn Ḥajar (8/88).

[p. 299] Perhaps human history has not seen — over its whole extent — an example of goodwill and good companionship more splendid and more majestic than what came from the Prophet ﷺ when God enabled him, on the day of the conquest of Mecca, over his enemies who were thirsty for his blood, whose fierce enmities had stretched for a long period in which they harmed him in every way of harm possible for them. But he did not treat them harshly and did not take revenge from them; rather it was nothing from him except that he said to them: “No blame upon you today; you are the freed ones (*al-ṭulaqāʾ*).”

These events teach us that what is hateful is not the unbelievers themselves, but their false beliefs and their mischief (*fitna*). As for showing them goodwill and sincere concern on the basis of humanity, that is desirable in the Sharia. It is from this very principle of sincere concern for them that the command to invite them to Islam springs; and jihad likewise has no aim other than sincere concern for all humanity — preserving and protecting it from the corruption and strife that unbelief and tyranny bring upon it.

Cooperation in good works

Above all that, Islam permits partnership and cooperation with the unbelievers in matters of good, righteousness and keeping ties — indeed urges it — as an explicit, clear Qur’anic text came concerning it: **“And cooperate in righteousness and piety, but do not cooperate in sin and aggression”** [al-Māʾida, 5:2].

Let it be known that this portion of the verse came in the context of [forbidding] aggression against the unbelievers; and the verse in its entirety is as follows: **“And do not let the hatred of a people for having obstructed you from al-Masjid al-Ḥarām lead you to transgress. Cooperate in righteousness and piety, but do not cooperate in sin and aggression. Fear God; indeed, God is severe in penalty”** [al-Māʾida, 5:2].

So it includes cooperation with the unbelievers too in righteousness and good works. From this, if the unbelievers put forward a project which aims at the interest of humanity, and in which there is not what conflicts with the interest of Islam and the Muslims, then it is permissible — indeed recommended — for the Muslims to contribute to it and take part in accomplishing it.

There are found in the biography of the Prophet ﷺ many examples of the relationship of partnership and participation with the unbelievers in matters of good, repelling evil and deterring from injustice — the most prominent of them the pact which the Prophet ﷺ contracted

[p. 300] in participation with the unbelievers, by the name “Ḥilf al-Fuḍūl” (the Pact of the Virtuous). Here are its details in what follows:

Ḥilf al-Fuḍūl (the Pact of the Virtuous)

The pacts of mutual cooperation took place in the Jāhiliyya on the basis of the tribe, in the sense that a person was committed to helping whoever belonged to his tribe, whether in the right or the wrong, just or unjust, wrongdoer or wronged. In all these cases a person was bound to support his tribesman, even if he was upon clear injustice and evident aggression.

Ḥilf al-Fuḍūl was the noblest pact ever heard of and the most honourable among the Arabs. The first to speak of it and call to it was al-Zubayr ibn ʿAbd al-Muṭṭalib. Its cause was that a man of Zubayd came to Mecca with goods, and al-ʿĀṣ ibn Wāʾil bought them from him; and he had power and nobility in Mecca, so he withheld his right from him. So the Zubaydī sought help against him from the allies: ʿAbd al-Dār, Makhzūm, Jumaḥ, Sahm and ʿAdī ibn Kaʿb; but they refused to help him against al-ʿĀṣ ibn Wāʾil and rebuked him — that is, they repelled him. When the Zubaydī saw this ill treatment, he went up on Abū Qubays at sunrise, while Quraysh were in their gatherings around the Kaʿba, and cried out at the top of his voice:

> *O family of Fihr, for one wronged in his goods, in the heart of Mecca, far from home and kin…*

So al-Zubayr ibn ʿAbd al-Muṭṭalib stood up for that and said: This cannot be left unanswered. So Hāshim, Zuhra and Taym ibn Murra gathered in the house of Ibn Judʿān, and he made food for them, and they allied in Dhū al-Qaʿda in a sacred month, standing; and they contracted and covenanted by God that they would be one hand with the wronged against the wrongdoer until his right is paid to him — as long as the sea wets a wool-tuft, and as long as Ḥirāʾ and Thabīr stand firm in their places — and on mutual support in livelihood. So Quraysh named that pact "Ḥilf al-Fuḍūl".[1] So they stood against al-ʿĀṣ ibn Wāʾil and rescued from him his right.

The Prophet ﷺ took part in it before he had been sent as a messenger; but after his mission he praised it, saying: "I would not exchange a pact I witnessed in the house of Ibn Judʿān for the finest red camels, nor would I break it. Hāshim, Zuhra and Taym allied that they would be with the wronged as long as the sea wets a wool-tuft; and if I were called to it

> [1] *Al-Rawḍ al-Unuf*, ed. al-Salāmī (2/46).

[p. 301] I would answer."[1]

It is also narrated — with a slight difference in wording — in each of al-Ḥākim's *Mustadrak*, and the *Sīra Nabawiyya* of Ibn Hishām and Ibn Kathīr.[2]

It was only named Ḥilf al-Fuḍūl because of its containing many virtues (*faḍāʾil*); and it was said: that Quraysh were preceded to the like of this pact by Jurhum, so three of them allied, they and those who followed them: one of them al-Faḍl ibn Faḍāla, the second al-Faḍl ibn Wadāʿa, and the third Fuḍayl ibn al-Ḥārith. So since the later pact of Quraysh resembled the action of these Jurhumīs, it was named Ḥilf al-Fuḍūl — and *al-fuḍūl* is the plural of *faḍl* — and they are the names of those whose mention preceded.[3]

At any rate, in view of the aforementioned hadith in which the Prophet ﷺ praised Ḥilf al-Fuḍūl and showed his resolve to answer [it] if he were called to it today, ʿAllāma al-Suhaylī (may God have mercy on him) and others of the jurists held that it is permissible for the Muslims — indeed

recommended — that they enter with non-Muslims into a covenant aiming at helping the wronged and repelling injustice and the like of that of the good purposes beneficial to humanity.

Jihad

It has become clear from the detail that has passed that the nature of the Islamic state's relationship with non-Muslims is determined by the conduct of the unbelievers, as God the Exalted said: **"So as long as they are upright toward you, be upright toward them"** [al-Tawba, 9:7].

But the elements which form a real threat to Islam and the Muslims, which have launched all their forces in hostility against them and made them a target for their aggression and persecution; and which try to obstruct the course of the Islamic call by putting obstacles in its way; or whose habit and occupation have become corruption and destruction against humanity — the Islamic government founded on straight foundations does not know, to deter them from their errors, any option except jihad and struggle, armed and unarmed.

> [1] *Al-Ṭabaqāt al-Kubrā*, al-ʿIlmiyya ed. (1/103), and *ʿUyūn al-Athar* of Ibn Sayyid al-Nās 1/59. [2] *Al-Mustadrak* of al-Ḥākim, end of the Book of the Mukātab 2/220, and al-Dhahabī confirmed it; and *al-Rawḍ al-Unuf* (1/56); and *al-Sīra al-Nabawiyya* of Ibn Kathīr 1/258. [3] *Al-Rawḍ al-Unuf*, ed. al-Salāmī (2/46).

[p. 302] As for fighting (*al-qitāl*) — or armed jihad — many of the Qur'anic verses have dealt with explaining the purposes of its legitimacy; among those is His words, glorified and exalted: **"Permission [to fight] has been given to those who are being fought, because they were wronged. Indeed, God is competent to give them victory"** [al-Ḥajj, 22:39].

So from it is known the first purpose of fighting, namely that it be for defending Islam or the Islamic state if the unbelievers attacked it. Let it be noted that the form of "permission" (*al-idhn*) used in the verse, which tells of permission and allowance only without emphasis on it, came by virtue of its being the first verse that speaks of the legitimacy of fighting for the Muslims, and that was in the wake of the rulings of patience and forbearance with which the Muslims had been charged in their Meccan life, without it being permitted for them in it to raise weapons or fight. Otherwise, other than it of the Qur'anic verses and the Prophetic hadiths indicate that fighting and armed struggle are obligatory on the Muslims in such a case — not merely permitted. God the Exalted said: **"Fight in the way of God those who fight you, but do not transgress. Indeed, God does not like transgressors"** [al-Baqara, 2:190].

The second purpose of fighting in the light of the Noble Qur'an is: rescuing the Muslims who face waves of injustice and persecution in an unbelieving state in which they reside. God — mighty is the Speaker — said: **"And what is [the matter] with you that you fight not in the cause of God and [for] the oppressed among men, women and children who say, 'Our Lord, take us out of this city of oppressive people and appoint for us from Yourself a protector and appoint for us from Yourself a helper'?"** [al-Nisāʾ, 4:75].

This also covers the case where the unbelievers set up obstacles and placed hindrances in the way of the Islamic call — what the Qur'an expressed in places by "obstruction from the way of God" (*al-*

ṣadd ʿan sabīl Allāh). For God, and He is the most truthful of speakers, said: **"They ask you about the sacred month — about fighting therein. Say: 'Fighting therein is great [sin], but averting [people] from the way of God and disbelief in Him and [preventing access to] al-Masjid al-Ḥarām and the expulsion of its people therefrom are greater [evil] in the sight of God. Fitna is greater than

[p. 303] killing.' And they will continue to fight you until they turn you back from your religion if they are able"** [al-Baqara, 2:217].

The third aim which Islam aims at behind the legitimacy of fighting is: curbing *fitna* (persecution/oppression). The ruling of jihad for curbing *fitna* is not confined to cases where those persecuted are Muslims; rather whenever the unbelievers set up in the world a tyrannical, oppressive, despotic system, and began to bind God's servants in it with their man-made rulings and invented laws, the Islamic Sharia commands its followers to fight them in such a case, to rescue humanity from their injustice by breaking their power and ending their dominance, and striving to establish the just divine order in its place. This is what we mean to include among the aims which Islam seeks behind the legitimacy of fighting, and it is what is meant in His words, the Exalted: **"And fight them until there is no fitna and [until] the religion, all of it, is for God. If they cease — then indeed, God is Seeing of what they do"** [al-Anfāl, 8:39].

It is what Ribʿī ibn ʿĀmir, may God be pleased with him, expressed in the council of Rustam — commander of the army of Iran — when he asked him about what had brought them to Iran; he answered him, saying: "God has sent us to bring out whom He wills from the worship of servants to the worship of God, and from the narrowness of this world to its breadth, and from the tyranny of religions to the justice of Islam."[1]

Whoever reviews the system of the tyrannical Chosroes and becomes acquainted with the forms of his enslaving of the subjects will grasp precisely how true these words of Ribʿī were.

At any rate, these are several purposes for whose realization jihad was legislated in Islam; and this brief discussion has no room for further detail on them. There are extended books and studies aiming at refuting the propaganda broadcast against the legitimacy of jihad in Islam, and specifically the claim that its aim is to compel people to embrace it and forcing them to accept it.

The wars people waged before the dawn of Islam, and those the great powers wage today, have no aim but control over lands and wealth, or preserving nationalist (*al-waṭaniyya*) or linguistic partisanship and the like of that of purely material purposes

> [1] *Al-Bidāya wa-l-Nihāya*, Hajar ed. (9/622).

[p. 304] which serve their interests only. Their fires, when they flare, leave behind every law and moral regulation entirely discarded, without being restricted by them or committed to them in anything. Islam, by complete contrast, first established that fighting must be for a legitimate cause and a good purpose — which made it a war with honour and dignity, and protected it from being an instrument of enslavement and colonization and the ownership of lands and control over wealth, on the one hand. Second, it granted the world just rules for the methods followed during engaging in fighting, which the world had never known in the fields of wars. Proceeding from this, the Muslim jurists took the lead in the service of the subject of international relations with every elaboration and

detail — classification and composition, rule-making and foundation-laying, ramification and application — with all precision and careful thought such as had never occurred to humanity before them — indeed humanity had not been able even to conceive of it. All the books of jurisprudence in general, and the books composed on the subject of the *siyar* [the law of war and peace] in particular, are full of the rulings of Islam and its teachings in this field. So Islamic government must take them into account and implement them in all its international dealings, whether in the state of truce or war.

Chapter Six: On Removing the Imam and Overthrowing the Government

Introduction

[p. 305] Many Western writers have expressed their opinion that Islam does not permit following any way to topple the government and remove it once it has been formed and established. Perhaps its source is nothing but the superficial, hasty look at the Islamic rulings which emphasize the prohibition of rebellion (*al-khurūj*) against the imam and forbid it categorically. But it is in reality a pure error which has no basis at all from argument or reason. Rather, just as Islam possesses within its folds safe ways for appointing the imam and designating the caliph, so too its teachings cover how to remove and depose him by calm, peaceful ways.

1 – Peaceful, safe removal

The following are the peaceful grounds on which the imam is removed from office under the Sharia:

(1) If he removed himself — that is, he submitted the resignation and showed his inability to continue the work as caliph and imam; for the Sharia judges in this form that he is removed, as is apparent.

(2) That something befall him which prevents him from performing the functions of the imam — as if madness overtook him, or illness struck him which prevented him from undertaking even his ordinary affairs and his daily occupations. So it is self-evident that his removal is judged in this form also.

(3) If he committed something of the matters of transgression (*fisq*), like drinking wine and taking bribes and imposing non-Sharia taxes on the subjects, and other than that of the matters of transgression, including injustice and tyranny in rule as well. Its ruling is that he deserves removal for his committing these matters; but fighting him and armed rebellion against him are not yet permissible. This means that if the Muslims are able to remove him by a safe way, they are obliged to do so, as al-Ḥāfiẓ Ibn Ḥajar (may God have mercy on him) said: “What the scholars hold concerning the commanders

[p. 306] of tyranny is that if he is able to depose him without strife (*fitna*) and without injustice, it is obligatory; otherwise the obligation is patience.”[1]

The meaning of patience here: the prohibition of raising weapons against him and removing him by acts of armed violence; this does not preclude efforts by safe, peaceful means — for example, the

matter could be referred to the shūrā council or the court to determine whether the transgressions he has committed warrant his removal; and if they find that they do, they would remove him.

(4) And if there was not found any of these three matters, but his policies and his plans do not appear in agreement with the interests of the state, such that aversion occurs towards him among the people — does he deserve by this his removal or not? I did not find its ruling expressly stated in the words of the scholars, neither in negation nor in affirmation. What seems most correct to me, in view of the general rules, is that there would be no harm if the shūrā which chose him and put him in charge of the imamate removed him in such circumstances by peaceful constitutional means. It is supported by the hadith of Anas ibn Mālik, may God be pleased with him, that the Messenger of God ﷺ cursed three, among them: "A man who led a people [in prayer] while they disliked him."[2]

Let it be known that there is talk about the chain of this hadith; but the route by which al-Ḥasan al-Baṣrī narrated it as mursal is sound, just as it is soundly narrated as mawqūf from ʿAmr ibn al-Ḥārith ibn al-Muṣṭaliq, may God be pleased with him; and al-Tirmidhī (may God have mercy on him) himself cited it after this hadith.

So the hadith indicated that it is not commendable for a person to insist on the imamate of Muslims who dislike him; so if it were possible to replace him with one better than him and more righteous, doing so would accord with the import of this Prophetic hadith, upon its owner be blessing and peace.

Also, ʿAwf ibn Mālik narrated from the Messenger of God ﷺ; he said: "The best of your imams are those whom you love and who love you, and who pray for you and you pray for them; and the worst of your imams are those whom you hate and who hate you, and whom you curse and who curse you."[3]

> [1] *Fatḥ al-Bārī* of Ibn Ḥajar (13/8), Book of Trials, chapter on his saying ﷺ: The destruction of my Umma… [2] *Sunan al-Tirmidhī*, ed. Shākir (2/191), Book of Prayer, chapter on one who leads a people…, hadith no. 358. [3] *Ṣaḥīḥ Muslim* (3/1481), Book of Leadership, hadith no. 4768.

[p. 307] It came in the same hadith that the Companions asked the Prophet ﷺ, saying: Shall we not oppose them with the sword?

So he answered them ﷺ, saying: "No, as long as they establish the prayer among you. If you see from your rulers something you dislike, then dislike his action, and do not withdraw a hand from obedience."

But — as we said before — its meaning is nothing but the prohibition of opposing them with the force of the sword and weapons, and what is in it of shedding blood and stirring up strife; and seeking his removal by a calm, peaceful way does not negate it.

Proceeding from this, if the Muslims wanted to lay down the constitution of the state on Islamic foundations, it is fitting that they provide in it for a clause concerned with defining the ways and mechanisms that will be adopted for his deposition in the like of these situations and states.

(4) [sic] It has prevailed in most states of the world today that the headship of the state — whether the head of state or the prime minister occupies it — is held for a fixed term, and its holder leaves office automatically merely by the passing of that period, so that another president fills his place. Although

no fixed term existed for the caliph or chosen imam in Islamic history, Islam — as we said more than once — has granted its rulings which it legislated in the sector of politics a flexibility with which the needs of this age and its requirements are accommodated; for we do not find any ruling in the Qur'an or the Prophetic Sunna which contradicts defining a period for the imamate and the command. So if the shūrā which chooses and appoints the imam sets a fixed term for him, there is no harm in that from the Sharia point of view. But the term should be long enough for the president to carry out his policies and plans effectively. If this is accepted, it would be the fourth way for the removal of the imam, summarized in that he is removed by the passing of the period of the imamate defined for him.

Rebellion against the imam [undertaking acts of armed violence against the imam]

It becomes clear from the teachings of the Prophet ﷺ and his directives that he regarded civil wars in the Islamic state as among the worst of matters and the most heinous of wrongs. It is the matter which he ﷺ strongly emphasized

[p. 308] in his sermon of the Farewell Pilgrimage, saying:

"For your blood and your property — Muḥammad said: and I think he said — and your honour are sacred to you, like the sanctity of this day of yours, in this land of yours, in this month of yours; and you will meet your Lord, and He will ask you about your deeds. Lo, do not return after me as misguided ones [or: unbelievers], some of you striking the necks of others. Lo, let the present inform the absent; for perhaps some of those whom it reaches will be more retentive of it than some of those who heard it." Then he said: "Lo, have I conveyed?" twice.[1]

Hence we see that the Islamic Sharia has sometimes tolerated grave wrongs merely for protecting the Muslims from plunging into civil wars. The Prophet ﷺ repeatedly forbade, with a categorical prohibition, in different ways and various styles, armed rebellion against the imam or the caliph whose rule has been established and whose authority is in place — so that ferocious wars do not break out and bloody battles do not erupt among the Muslims. There passed before us the hadith of ʿAwf ibn Mālik al-Ashjaʿī in which came: "Lo, whoever has a governor appointed over him, and he sees him do something of disobedience to God, let him dislike what he does of disobedience to God, and let him not withdraw a hand from obedience."[2]

It is even reported from Ḥudhayfa ibn al-Yamān, may God be pleased with him, that the Prophet ﷺ said once, in what he said about the trials (*fitan*) of the end of time: "And there will stand among them men whose hearts are the hearts of devils in the bodies of humans." So he asked him, saying: What should I do, O Messenger of God, if I reach that? So the Prophet ﷺ answered him by saying: "You hear and obey the commander; and if your back is struck and your property taken, then hear and obey."[3]

In a report: "If God has a caliph on the earth, and he struck your back and took your property, then obey him."[4]

These hadiths aim only at prohibiting rebellion against the imam, to avoid

[1] *Ṣaḥīḥ al-Bukhārī* (5/177), chapter on the Farewell Pilgrimage, hadith no. 4406; *Ṣaḥīḥ Muslim*, chapter on al-Qasāma. [2] *Ṣaḥīḥ Muslim* (3/1482), Book of Leadership, hadith 4768. [3] *Ṣaḥīḥ Muslim* (3/1476),

Book of Leadership, hadith 4763. [4] *Jāmiʿ al-Uṣūl* (10/46).

[p. 309] bloodshed among the Muslims themselves; so it does not contradict what we said earlier: that it is obligatory on the Muslims to devote their efforts to adopting safe, peaceful ways to turn the like of this ruler away and remove him from the throne of rule. It is also permissible for a person to defend himself as far as possible for him, as its detail will come in what follows, God willing.

But there is one form in which the Prophet ﷺ permitted armed rebellion to topple the government of the imam and bring down his system — and it is what came in the hadith of ʿUbāda ibn al-Ṣāmit, may God be pleased with him: that the Prophet ﷺ took their pledge on hearing and obedience in what we are eager for and what we dislike, and in our hardship and our ease, even when others are preferred over us, and that we not dispute the matter with its people — "unless you see open unbelief (*kufran bawāḥan*), concerning which you have from God a proof."[1]

The upshot of that is that the attempt to overturn the system of rule by raising weapons against it is only permissible if there issued from the ruler what is regarded as explicit, clear unbelief; because the Prophet ﷺ restricted it with "open" (*bawāḥ*) — meaning that what issued from him must be so explicit and clear in its unbelief that every Muslim would understand and regard it as unbelief. And they must have clear proof and argument concerning both matters: its being open unbelief in itself, and its issuing from that ruler. So if there were not valid with them a proof except what they received from the mouths of people, or they extracted from weak analogies and false conjectures, or the factor behind it were misguided propaganda against the ruler — then in all these forms, they are never permitted armed rebellion.

The Sage of the Umma, Shaykh Mawlānā Ashraf ʿAlī al-Thānawī (may God have mercy on him), made a fine point here, which in summary is that what is meant by seeing in his saying, upon him be blessing and peace: "unless you see open unbelief" is the seeing of the eye, not opinion and the seeing of the heart — by virtue of its having been made transitive here to one object; for if it meant the seeing of the heart, it would have made it transitive to two objects [Tr.: the Arabic text has "of the eye" here, evidently a slip]. The import of the seeing of the eye: that he witness with his eye and observe the issuing of open unbelief from the ruler. As for if it was not like that — if he merely had a suspicion or a groundless conjecture — then rebellion is not permissible for him. The upshot is that it is not permissible

[1] *Ṣaḥīḥ al-Bukhārī* (9/47), Book of Trials, hadith 7056.

[p. 310] to rebel except by the establishment of both these two matters: its being unbelief in itself, and its issuing from the ruler.

In addition to that, there are two other conditions, which [he] did not mention because they are so obvious, namely: that they have the ability that enables them to remove him and turn him away from the government by weapons and force; and that it not be feared that rebellion would lead to the entanglement of the Umma in an evil more dangerous and a harm greater than the harm of this ruler's remaining. As if it were feared that the Muslims would not agree after his removal on one person, so wars would continue among those seeking the government — which would bring the oppressed people no gain or benefit, despite its struggle and its fighting, except the shedding of blood and the

taking of souls. Or it were feared that the unbelieving enemy would use this situation in its interest, so it launched the raid on the state and took control of it — with the dire and miserable result that the state be transformed — because of the unbelievers' taking control of it — from Dār al-Islām to Dār al-Kufr. So their example would be nothing but like one who built a house and demolished a city, and their situation would be worse than that of Ḥunayn of the proverb, for they would come back from all their efforts and sacrifices without even his pair of slippers [i.e. utterly empty-handed].

There are two other matters to which it is fitting that we give our attention. As for the first: it is that there is a difference between the attempt to remove the imam and turn him away by the force of weapons, and between what is defence of the self or property. As for the first, it is not permissible except in the form of open unbelief, according to its details that have passed; while a person retains the right of defending himself and his property if the ruler wronged him concerning them; and even if he were compelled for its protection and defending himself and his property to raise weapons against the ruler, it is also permitted in the Sharia — and that is because of what the Prophet ﷺ said: "Whoever is killed defending his property is a martyr."[1]

In a report of al-Tirmidhī, Abū Dāwūd and al-Nasāʾī: "Whoever's property is sought without right, and he fights and is killed, he is a martyr."[2]

Second: war which a person is compelled to for defending himself and his property usually does not take the character of strife among the Muslims; because in the general run of cases it is individual, personal, without

> [1] *Ṣaḥīḥ al-Bukhārī* (3/136), Book of Grievances, hadith 2480. [2] *Jāmiʿ al-Uṣūl* of Ibn al-Athīr (2/742).

[p. 311] causing prolonged bloodshed at the level of the state. Since it does not count as *fitna*, it is permitted in the Sharia. By contrast, the acts of violence taken against the imam and for the purpose of toppling his government usually do not produce anything except the shedding of blood and their spilling on a wide scale — what is a great strife; so the Sharia did not permit it except in special exceptional cases.

As for what some jurists mentioned — that a group of the Muslims, if they rose against the imam over a grievance, and showed what entitles them to fight, as if [the imam] wronged them or wronged others than them with an injustice in which there is no doubt, then it is obligatory on the others to help them until he treats them fairly and returns from his tyranny[1] — its meaning is defence against injustice, and not rebellion to overturn the system of the government.[2]

There is another form which the Sage of the Umma, Shaykh al-Thānawī (may God have mercy on him), mentioned: namely, if the imam commits a transgression that affects people's religion, compelling them to disobey God. If this is done to one or two people, it is coercion, governed by the rules explained in their proper place. As for if he made it his policy and began to insist on applying the laws that clash with the Islamic Sharia — either preferring them over the law of God, and that is explicit unbelief; or out of slackness and laziness from applying the Sharia of God, in such a way that it is most likely that continual action contrary to the Sharia will breed contempt for it in people's hearts — then the like of this slackness and laziness, even if it is not an explicit unbelief by which its

committer is declared an unbeliever, is nevertheless in the ruling of unbelief; so rebellion is also permitted in such a case. But it is necessary here to draw attention to two important matters:

The first: it is possible in this last form specifically that disagreement occur over whether his continual action against the Sharia counts as open unbelief or not. So some may affirm it and see rebellion against the imam as permissible, while some may negate it and then forbid rebellion against him. The difference of opinions like this is an ijtihad-based disagreement; it is not permissible for one to blame the other. It is in this light that the disagreement of the Companions, the Followers and those after them over

> [1] *Al-Durr al-Mukhtār* and the gloss of Ibn ʿĀbidīn (*Radd al-Muḥtār*) (4/265). [2] *Imdād al-Fatāwā* 5/121.

[p. 312] rebellion against the imams of their time is to be understood — like the rebellion of our master Ḥusayn, may God be pleased with him, or the people of al-Ḥarra against Yazīd and others of the commanders of the Banū Umayya; and likewise the support of Imam Abū Ḥanīfa (may God have mercy on him) for the rebellion of Zayd ibn ʿAlī and Ibrāhīm al-Nafs al-Zakiyya, in which others of the imams and mujtahids disagreed with him.

The second: the jurists have agreed altogether that rebellion, in all forms of its permissibility, requires two things: power and strength (*al-qudra wa-l-manʿa*), and that it not cause a harm greater than the harm of this imam's remaining. Here too opinions may differ. This is just as Imam Abū Ḥanīfa (may God have mercy on him), even if he saw rebellion as permissible in itself, nevertheless did not take part in it, giving as reason: "If one man rose for it, he would be killed, and the people's affair would not be set right. But if he found righteous helpers against it, and a man to lead them who is trusted in the religion of God… And this is an obligation which is not like the obligations which a man undertakes alone; and this, whenever the man undertook it alone, he would shed his blood and expose himself to being killed; so I fear that he would help in killing himself."[1]

At any rate, Imam Abū Ḥanīfa and al-Ḥasan ibn Ṣāliḥ ibn Ḥayy (may God have mercy on them both) used to permit armed rebellion against the transgressing imams who administer the helm of government with what entails contempt of the Sharia; but the jurists after them — including the followers of Ḥanafī jurisprudence also — agreed, in the light of their seasoned experiences in this field, that acts of armed violence like this usually do not lead, for the Umma, to a better outcome; so it is better that one be careful of it and avoid it — as al-Ḥāfiẓ Ibn Ḥajar (may God have mercy on him) said in the biography of al-Ḥasan ibn Ṣāliḥ (may God have mercy on him):

"[Al-Ḥasan ibn Ṣāliḥ] used to see the sword — meaning rebellion against the imams of tyranny; and this is an old school of the predecessors; but the matter settled on abandoning that, because they saw that it led to what is more severe than it. For in the event of al-Ḥarra and the event of Ibn al-Ashʿath and others than them there is an admonition for whoever reflects… And al-Ḥasan, with that, did not rebel against anyone."[2]

Al-Ḥāfiẓ (may God have mercy on him) himself said, in the explanation of one of the hadiths narrated from Ibn ʿAbbās,

[1] *Al-Jawāhir al-Muḍiyya fī Ṭabaqāt al-Ḥanafiyya* (1/50), biography of Ibrāhīm ibn Maymūn al-Ṣāʾigh.
[2] *Tahdhīb al-Tahdhīb* (2/288), biography of al-Ḥasan ibn Ṣāliḥ.

[p. 313] may God be pleased with him: “Ibn Baṭṭāl said: In the hadith is an argument for abandoning rebellion against the sultan even if he is tyrannical. The jurists have agreed on the obligation of obeying the dominating (*mutaghallib*) sultan and on jihad with him, and that obeying him is better than rebelling against him, because of what is in that of sparing blood and calming the masses; and their argument is this report and others that support it. They made no exception except where open unbelief issued from the sultan; then obeying him in that is not permissible; rather fighting him is obligatory for whoever is able to.”[1]

But Imam Abū Bakr al-Jaṣṣāṣ (may God have mercy on him), building on the action of Imam Abū Ḥanīfa (may God have mercy on him), held, in the commentary on the noble verse **“My covenant does not include the wrongdoers”** [al-Baqara, 2:124], that it is permissible to rebel against the imams of tyranny even if this involves bloodshed and strife — on condition that there be ability for it, and that it not lead to a more dangerous harm and a greater corruption. Indeed he held that the government of transgressors has no legitimacy and their rulings are not to be implemented.

But what appears to me is that the later jurists chose the same position which passed in the aforementioned text of *Fatḥ al-Bārī*. ʿAllāma al-Sarakhsī (may God have mercy on him) said: “And by this wording argues whoever claims that the ruler is removed by tyranny; and this is not our school, and we have explained that in what we dictated of the commentary on *al-Ziyādāt* ‘in the chapter on arbitration’.”[2]

Political movements

There is another issue worth mentioning and studying in this discussion of ours, namely: when rebellion against the imam is not permissible, is there a safe way that Islam permits to bring down a government and replace it with another, to meet the people’s demands and recover their rights? How does Islam look at the political movements which are adopted in contemporary political circles to achieve this purpose?

It is a fact that Western ideas and theories have become — for centuries — the first bricks upon which we Muslims found the structure of our intellectual life and the edifice

[1] *Fatḥ al-Bārī* of Ibn Ḥajar (13/7). [2] *Sharḥ al-Siyar al-Kabīr* (1/869), chapter on hiring in the land of war and the extra share [*nafl*], paragraph no. 1567.

[p. 314] of our civilizational existence in all branches of life in general, and politics among them in particular. Hence many political practices imported from the West have come to be regarded as virtually indispensable to political life, regardless of whether they are sound or corrupt. Among these practices: the methods of popular protest prevailing widely, like strikes and demonstrations accompanied by sabotage and destruction, and other than that of the ways people tread to pressure the government and carry it to yield and respond to their demands.

Concerning the ruling on these political practices from a Sharia perspective, we say: some of them are definitively forbidden, not permissible in the Sharia at all and absolutely — like a hunger strike to the

point of starving oneself to death; and likewise any other method that leads to violating the sanctity of someone’s blood or property or honour, or harming public governmental property, or damaging the funds of the state. Aggression against the properties of the state and its funds is among the gravest of sins, one for which it is extremely hard to make amends or escape punishment; by virtue of its not being a special personal property of the rulers only — rather in it is a right for all the citizens of the state and its inhabitants. So toying with it and inflicting any harm on it means injuring the right of the whole people. Since it relates to the rights of servants, release from it is not possible except by being absolved by all the holders of rights — and how is a person to be absolved, or to seek release, from all the inhabitants of the state?! So his shoulder then remains weighed down with the burden of this great, enormous disobedience.

As for the ruling on the general strike, we say: if someone appeals to the people and asks them to express their anger and resentment at a government measure by closing their businesses for a time, and then leaves them free to respond to this request or not — there is no harm in the Sharia in the mere request or in responding to it, provided the people are not coerced or compelled. For a strike like this is permissible in itself in the Sharia as a permissible measure for attaining the permissible goal — on condition that there be excepted in it what is indispensable for human beings, like medical care and others, and especially in emergencies.

But it has become an inseparable part of the strike that whoever appeals for it and calls to it does not content himself

[p. 315] with appealing and calling; rather the situation has deteriorated to the point that they compel the people to contribute to their strike and force them to suspend their works and close their commercial shops, and rain stones on whoever dared to take his car out into the street, and block the streets and public roads, and use violence against whoever does not contribute to the strike — or at least vent their fury on them. It is not hidden that all these works are definitively forbidden in the Sharia; besides that they cause several other evils as well: for the poor worker who earns his daily food is deprived, he and his family, of their provision; and the sick one who suffers from the severity of his illness — loss of treatment increases him in suffering and hardship; and some of them meet their death because of their inability to obtain treatment.

What one never ceases to be astonished and amazed at in this regard is: the double standard of democracy and its treatment with two faces: for it claims to support freedom of expression and opinion on one side, while denying those who do not join the strike any right to these freedoms, and forcing them to take part whether they like it or not. So this is among what clashes with the principles of Islam and contradicts moral values and principles, and specifically the principle of respecting freedom of opinion and thought.

Rarely is a strike free of these evils and harms in this age of ours; and that a strike of a safe, peaceful kind should occur in this atmosphere of ours, whose organizers act with decency and honour, leaving to the people the way to respond to their calls or not — that is extremely rare.

The permissible act, if it is taken as a means to forbidden things and a way to committing what is not permissible in the Sharia, then that permissible thing should be forbidden in keeping with the

principle of blocking the means (*sadd al-dharāʾiʿ*). From this, the measure of the strike which produces destruction and sabotage, and the disturbance of security and peace, and obstructing people from continuing their works, does not fall within the measures permitted in the Sharia.

Since it is established that politics is not intended in itself — rather the original intent and the ultimate goal is attaining the pleasure of God, glorified and exalted — therefore let us take the ways and methods which our Lord, majestic and exalted, is pleased with, of what does not contradict the Sharia; otherwise there is no meaning to attempting

[p. 316] to implement Islam by way of contradicting its rulings one after the other.

Marches and demonstrations — their ruling likewise is that they are permissible in themselves if they do not cause severe harm to the people; but their nature, like the strike, rarely is free also of acts of violence, sabotage and causing problems for the people; and it is apparent that the saying of their permissibility from this aspect is not possible.

After this detail, the question which we put forward at the beginning of the discussion repeats itself here: is there a way other than them for pressuring the government and obtaining rights from it?

So in answer to it we say: the truth is that the Sharia has guided us to a way and taught us a principle — if we took it with regard, the tyrannical governments would surrender to it and the despotic authorities would submit to it — namely what the Prophet ﷺ expressed by his saying: “No obedience to a creature in disobedience to the Creator.”

If the people once embraced it, kept it always before their eyes, and refused as one to carry out any government command or ruling that contradicts the Sharia — then by God tell me: what trick would the government have left, what arrow in its quiver?! Suppose that all the judges working in the courts announced their refusal to work as long as it is not permitted for them to rule by the rulings of the Sharia; and the lawyers, all of them, if they determined their resolve on not appearing before the courts in the capacity of advocacy as long as its laws are not dyed with a religious dye; and the employees of the banks, if they all refrained from providing their services in them, and the beneficiaries of them — the depositors — abstained, to the last of them, from depositing funds in them; and all the merchants from using their financing facilities as long as their system is not purified of usury — if all of these undertook this strike built on the basis of the aforementioned Sharia rule [no obedience to a creature in disobedience to the Creator], they would find it more useful for their purpose and more damaging to the governmental bodies — enough to bring them at once to yield to their demands and needs.

So this is the Sharia method for showing protest against the government; except that — since it needs something of sacrifice — people find it unpalatable and the public do not find it easy. For it is very easy for a person to shout “Long live Islam” and raise slogans on its behalf while

[p. 317] freely engaging in usurious transactions; and likewise it is easy — how easy it is! — that the judge and the lawyer be occupied with undertaking their professions according to man-made laws even if clashing with the rulings of the Sharia, and with that they contribute to the demonstrations in the right of Islam and shout “Long live Islam”. As for using these professions and functions of theirs which they practise — of the judiciary, advocacy, banking and others — as a weapon to attain the

goal of implementing Islam, it needs something of resolve and sacrifice; and how much we need them and how much they are lacking among us!

We grant that this approach will only work if the majority of the people is prepared for it, or at least a large number of them for whom the government reckons and gives weight, such that it suffices for pressuring it. It is known that preparing this amount is not completed except after directing the people and making it aware This requires organized planning by the political parties and groups — provided they first open their minds to this idea and wholeheartedly accept this principle — and then that they prepare a programme and planning a project aiming at the awareness of the people and its education in this field, beginning from the educational institutions and ending with the public mass meetings. So if this campaign undertook acquainting people with the harms of the jobs in which they are compelled to cooperate in forbidden matters, and their grasping the extent of the value of the lawful and its gravity — so that it made the majority of the people averse to them and dislike them, and then prepared to abandon them even at the cost of material sacrifice and of living a less comfortable and luxurious life than it was before — then this campaign would obtain a dazzling success and an overwhelming victory, and would pave the way for implementing the Sharia more than any strike or demonstration.

This is just as the army has often suspended or abrogated the constitution in Pakistan and other states, and succeeded because each time some judges of the higher courts lent its action legal legitimacy. But some of them refused to endorse any unconstitutional measure; and though they lost their posts and material benefits, they won the trust, esteem and respect of the people and praise for their role — so much so that people felt the other judges should have followed their example, and were certain that it would not have been within the power of

[p. 318] anyone to cancel the constitution if they all refused to document it legitimately. This actually happened when a large number of the judges of the Supreme Court in Pakistan agreed on opposing what General Pervez Musharraf undertook of cancelling the constitution; so the world saw, and witnessed with its own eyes, that success in the end was not except for those judges, not for the tyrannical despot.

As we presented in what has passed, the basic constitution of the Islamic state and its primary sources of legislation are nothing but the Qur’an and the Prophetic Sunna — and the constitution of Pakistan has provided for that, praise be to God. So if the motives for preserving them were aroused in the people, and the sentiments of protecting them were stirred in it as they were against Pervez Musharraf, this principle [no obedience to a creature in disobedience to the Creator] would play its role greatly, as a splendid and highly effective method of safe, peaceful protest.

Political movements and the aspect of self-reform

This point too is of gravity and standing in the subject: that Islam does not aspire, from political efforts and movements, to obtaining authority or possessing power over lands and servants; rather the ultimate goal of them in Islam is: reforming the system of government, seeking the pleasure of God, glorified and exalted, by making it in agreement with His Sharia, and administering it according to

what He loves and is pleased with. Since it is not necessary for achieving this goal that the holders of these efforts and movements themselves reach the seats of authority, there is no need, from the Sharia point of view, for them to take power themselves if the goal can be achieved by reforming those already in power, or through others — groups or individuals.

The first thing stipulated for this is that these workers in the field of Islamic politics belonging to its groups be sincere of intention, sound of disposition, free of the taints of love of status and position and seeking command and authority. But what actually happens is far from this; for when a person plunges into political battles and begins to engage in their activities, he is quickly — by the very nature of the atmosphere in which he works — infected with the vices of the ego: running after fame, and eagerness for the masses' turning towards him, and love of status

[p. 319] and position — which distracts him from his original goal, and makes him seek from every step of his the satisfaction of these psychological instincts, and aim by it that people return the credit to him alone for the deeds and achievements that he realized or will realize. As a result of all this, political leaders began to let themselves be carried along behind the desires of the common people and to be pushed towards realizing their demands and their wishes, and to ride the backs of their whims — instead of leading them with a sound leadership on straight lines — which made them lose sight of the real interests of the state and the Umma in their steps and plans. This is among the woes which secular democracy has dragged upon humanity. As for Islam and its politics, they firmly oppose these vices. If the working intention is not made sincere, and the idea urging the efforts and attempts is not purified, then naturally the movement and the group in its entirety go in the direction of error — which deprives them of the help of God and His aid, and then excludes them from success. So their condition does not resemble except the return of an echo in the air or a cry in the valleys. So proceeding from this, the leaders of the movements and the political groups must have passed through the stages of personal reform and completed the purification of the soul and spiritual education, and been able to rid themselves of being concerned with status, position, reputation and fame.

Let us turn the reins of our attention a little to the Meccan era, which comprised thirteen years which the Prophet ﷺ and his Companions spent holding fast to what God commanded them of patience and forgiveness [*And be patient, and your patience is not but through God*] — no jihad, no politics, no government. Rather they were charged with patience however much the unbelievers struck them with harm and brought down afflictions upon them. The ruling of patience was not from the motive of weakness nor the drive of cowardice; for they were capable of at least some struggle, resistance and self-defence — and among them were those for whom the world bore witness of heroism and bravery. If 313 barely armed men, with no more than two horses and eight swords between them, were able to resist a thousand fully armed heroes and triumph over them at Badr — was it not within their capacity in Mecca to repay them with the least of what was possible for them: a slap for a slap and a blow for a blow? Yes![1] So know that the ruling of patience in the Meccan era aimed, behind it, at the making of men and straightening their moral conduct, and founding personal conduct on lofty values and human principles,

> [1] A point which His Eminence Shaykh, the Sage of the Umma, Mawlānā Ashraf ʿAlī al-Thānawī (may God have mercy on him) gave.

[p. 320] and planting the idea of the otherworldly life in their souls and developing it and watering it, and purifying their hearts from the taints of love of wealth and status, and cleansing them of the other moral vices. Islam made this the starting point in forming the caravan of the Islamic call, so that it would be in complete readiness and full piety and spiritual education for plunging into the depths of the thorny battles of politics — which, as soon as a person enters them, begin to play with him and flip him among whims and vices: some base vice receives him and another snatches him, and another strife lies in wait for him and hunts him. So when He completed their spiritual education, and straightened their conduct, and reformed their character, it was no sooner than they plunged into the battle of politics that they were able to establish the first Islamic government, splendid to the utmost, the like of which the world has not witnessed throughout its history at all, nor will it ever see its equal again. That only became possible by virtue of their spiritual education which took thirteen years, so humanity reaped from its fruits what it had never reaped before.

So it is obligatory on whoever undertakes the burden of leading the Umma in the field of politics that they have passed the stage of spiritual education such that their hearts have become filled with virtuous morals and their conduct adorned with noble traits — pure with all purity from the taints of eagerness for status and position, and clear with all clarity from the turbidities of reputation and seeking acceptance among the masses. If those were not easy for them to perfection, then let vices and blameworthy psychological sentiments at least be overcome in them, entirely subject to the purpose of attaining the pleasure of God, such that it is always the focus of their attention in all their plans and their political steps. This is the original aim and the ultimate goal of politics in Islam, and it is impossible to attain except after ridding oneself of those psychological vices. How excellent is the Persian poet, saying:

> *Yā makun bā pīl-bānān dūstī — yā binā kun khāna bar andāz-e pīl*

Either refrain from the companionship of elephant-keepers, or build your house on the pattern of their dwellings [i.e. large enough for an elephant].

The last of our prayer is that praise belongs to God, Lord of the worlds.

Appendix A: The Components of an Islamic Constitution

Introduction

[p. 321] It has become [the case] today that most states of the world have their own special constitution. What is most fitting, in view of what we mentioned earlier of the principles of Islamic politics and its rulings, is that they be codified, so that they are included in the constitution of the state, so that they become clear and evident to the common people and the elite. Indeed many of them deserve inclusion in the constitution. More than forty years ago I wrote two studies: in one of them I clarified the components of the Islamic constitution in the Qur’an, and in the other I clarified the requirements of the Islamic constitution in Pakistan in view of its circumstances and situations.

Because of their connection with the subject of our book, we add them to it as two appendices, A and B.

A look at the constitution

The constitution of the state in reality forms that first brick on which the structure of the system of government in it is built, and on which its existence is founded. It is the pole around which the mill of the state's development and its flourishing, its consolidation and its prosperity revolves; and it is the root on which the people's coexistence in the state with safety, peace, calm and prosperity depends. So if this first basic brick of the state were laid crooked, then you may bid farewell to its order and progress!

It is known that the term constitution refers to the body of rules that clarify the form of the state and its basic goals and the system of rule in it, its authorities and the manner of distributing these authorities, and the clarification of their competences; and the clarification of the rights of citizens and their duties; and other than that of main rulings, like the system of forming the government, and the manner of electing the president and the members of parliament, and their conditions and their qualities and the way of removing them; and the clarification of who takes the authority of legislation and its powers; and the competences of the courts, and the definition of the laws by which it rules in pleadings and disputes; and the manner of appointing employees in the governmental departments, and the distribution of their functions among the units

[p. 322] of the state and its territories; and the clarification of the bases on which the budget of the state and its allocations will be arranged; and the principles of imposing taxes on the people; and how the regional governments are formed, and to what extent their powers will be, and which are the matters in which the reference will be entirely to the central government; and to what extent the structure of government may be altered in a state of emergency, and specifically the state of war with another state; and in such a state, what are the special privileges which the governmental bodies will be able to use.

So these matters are clarified and defined in the constitution of the state, and the state's organs are then run according to it for as long as it endures. After the constitution is implemented and applied to the state once, it is obligatory on the government that it perform all its works and its duties in the light of that constitution and in full subordination to it. So if it did not do that and undertook what contradicts the constitution of measures, or issued what contradicts it of rulings, the people would be able to cancel it by way of appeal in the Supreme Court. But if there were included in the constitution itself erroneous clauses that clash with the interests of the subjects and conflict with them, then the government, whatever it may be, would be compelled to act by it, without there being in the hands of the people the option to reform it or a way to get rid of its evil consequences and its miserable ends — except amendment in the constitution, and that is extraordinarily difficult, if not impossible. The Pakistani nation, which was struck because of the amendment in the 1962 constitution with heavy losses which cannot be compensated nor mended at all, estimates very well the extent of its difficulty and its hardship; and it still suffers crises and endures problems and faces difficulties because of that

erroneous constitution, which was implemented once and continued its harming of the state and its interests repeatedly.

So the drafting of the state's constitution, due to begin on 3 March, requires that those undertaking it have an ample share of far-sightedness, breadth of horizon, cleverness and intelligence — alongside deliberation and reflection, arduous effort and serious attempt. The work of laying down the constitution, even if the direct contribution in it is for the members of parliament and the house of representatives, it is never in the people's interest to ignore it or turn a blind eye; rather it is touched by a need for complete alertness and full understanding

[p. 323] in all stages of its accomplishment.

For the people chose the members representing it only so that they would undertake, on its behalf, laying down a constitution that realizes its interests and fulfils all its requirements and meets its needs. So if they did not undertake that, the people's trust in them would be shaken, and they would have the right to question them, and then to carry them to perform their responsibilities by laying down a constitution to its satisfaction.

It is self-evident, needing no proof or evidence, that only a constitution in accordance with the teachings of the Sharia can succeed in Pakistan. This is what the head of state declared in a legal order for the constitution [Tr.: presumably the Legal Framework Order of 1970]; and all the political parties acknowledged the pressing need for it during the campaign for the last parliamentary elections, and promised the nation to contribute their share in founding it on pure Islamic foundations and principles. No wonder in this; for the state was created out of Islam, so there is no room in it nor scope for laying down or implementing a non-Islamic constitution.

What concerns us in this field is the role of the party that has won the majority of votes in parliament, and then has the main authority in the process of laying down the constitution and codifying it and arranging it: to what extent will it fulfil its covenant and its promises and undertake its responsibility and its duty?

In this discussion we shall study, in summary, the principles of the Islamic constitution — of its meaning and its import, its components and its privileges. We consider it a duty to put this before the people, so that they have knowledge, understanding and a correct conception of the Islamic constitution, and thus a touchstone by which to test the new constitution: whether it conforms to those qualities or not? Then: whether it deserves acceptance as a constitution for the Islamic state or not?

When we say that Islam is comprehensive and all-embracing for all the branches of life and its fields, we do not mean that every partial issue and secondary case of these fields has had its ruling expressly stated in the Qur'an and the Prophetic Sunna or the texts of Islamic jurisprudence. Rather the meaning: that Islam has legislated in every branch of the branches of life and its fields basic principles, and laid down main rulings sufficient

[p. 324] for extracting all their particulars from them. The constitution is like that: Islam has granted us concerning it essential directives and basic starting-points, fixed, not capable of change — even if all humanity agreed on issuing a decision contrary to them or clashing with them, they would have no right to do so. As for what is besides these principles, it has entrusted their matter to the people of

insight among the Muslims, to choose by mutual consultation what they see as most useful for their interests and most fitting to their circumstances — on condition that it not contradict those basic principles in anything.

Many of the constitutional issues that are discussed when laying down the constitution for the Islamic state are of this kind: Islam places no obstacle to choosing them by consultation, provided the choice conforms to these basic principles — like the multiplicity of the legislative body and its unity, the official language of the state, and the administrative units into which the state will be divided, and the specification of the manner of its connection with the central federal government so as to preserve the cohesion of the state, and the number of ministers and members of the house of representatives, and the ideal way for the accounting and financial auditing of the state. These are matters for which Islam has not defined a special form; rather it has entrusted them to the collective consultation of the Umma; so whatever it chose in this regard would be permissible and capable of actual implementation from the Sharia point of view.

As for the main issues and basic principles concerning which Islam has taken a clear, decisive position, which will remain definitively fixed over the passage of ages and the succession of eras, without there being in it latitude for change or room for amendment — even if the whole people agreed upon it, let alone the members of parliament and the legislative body — these are what we regard as the components of the Islamic constitution, such that no constitution can be truly Islamic without them. Here below we clarify them and their basis from the Noble Qur'an.

The components of the Islamic constitution

(1) Supreme sovereignty and absolute dominion in this universe belong to God the Exalted.

Its basis is His words, the Exalted: **"Judgement belongs to God alone"** [Yūsuf, 12:40; and al-Anʿām, 6:57].

It is the first clause with which the Islamic constitution opens, and it is what distinguishes it from the systems of

[p. 325] secular democracy which acknowledge for the people alone dominion and authority, and which permit for it legislation contrary to the rulings of God if the whole people or its majority agreed on it. As for Islam, it does not acknowledge supreme sovereignty except for God; and man rules over his fellow human beings under the shade of his vicegerency and his deputyship. God the Exalted said: **"Indeed, I will make upon the earth a vicegerent"** [al-Baqara, 2:30].

(2) No legislation is enacted, and no law is agreed upon, and no administrative measure is issued, contrary to the Book of God and the Prophetic Sunna; and any already taken shall not be retained.

"And whoever does not judge by what God has revealed — then it is those who are the disbelievers" [al-Māʾida, 5:44].

(3) The ultimate goal and the original intent of the government: that it establish justice and fairness, and uproot strife (*fitna*) and corruption from their roots, and provide Muslims with opportunities to perform their acts of worship, and undertake commanding right and forbidding wrong. God the

Exalted said: **“[They are] those who, if We establish them in the land, establish prayer and give zakat and enjoin what is right and forbid what is wrong. To God belongs the outcome of [all] matters”** [al-Ḥajj, 22:41].

And: **“And when you judge between people, judge with justice”** [al-Nisāʾ, 4:58].

And: **“And if it were not for God checking [some] people by means of others, the earth would have been corrupted”** [al-Baqara, 2:251].

(4) All the offices of the government and its properties are a trust in the hands of the rulers, and it is the duty of government bodies to render them to those entitled to them. God the Exalted said: **“Indeed, God commands you to render trusts to whom they are due”** [al-Nisāʾ, 4:58].

(5) The government shall not be individually despotic; it shall only be consultative (*shūrawiyya*), and all its important affairs shall be administered in consultation with the people of the state and its inhabitants. God the Exalted said: **“And whose affair is [determined by] consultation among themselves”** [al-Shūrā, 42:38].

(6) Unity shall be on the basis of Islamic brotherhood, and it is upon the state to end partisanship (*al-ʿaṣabiyya*) among the Muslims on the basis of geography, tribe, language, race and the like, which contradicts the principles of the Sharia, and to strive earnestly to build and consolidate the unity of the Umma, and to establish social justice among all its Muslim citizens. God, glorified and exalted, said: **“The believers

[p. 326] are but brothers”** [al-Ḥujurāt, 49:10].

And: **“And made you peoples and tribes that you may know one another. Indeed, the most noble of you in the sight of God is the most righteous of you”** [al-Ḥujurāt, 49:13].

(7) It is stipulated for the head of state that he be a Muslim, truthful, trustworthy, bearing scholarly and practical abilities and qualifications. God the Exalted said: **“My covenant does not include the wrongdoers”** [al-Baqara, 2:124].

And: **“Indeed, God has chosen him over you and has increased him abundantly in knowledge and stature”** [al-Baqara, 2:247].

(8) The state guarantees to all its citizens the basic rights of the human being: that they be safe from aggression against them in life, honour or property; and it grants them the freedom of assembly for good purposes, and the freedom of constructive criticism. God, glorified and exalted, said: **“And do not kill the soul which God has forbidden, except by right”** [al-Isrāʾ, 17:33].

And: **“And do not consume one another’s wealth unjustly”** [al-Baqara, 2:188]. And: **“O you who have believed, let not a people ridicule [another] people”** [al-Ḥujurāt, 49:11]. And: **“There is no compulsion in religion”** [al-Baqara, 2:256]. And: **“And let there be [arising] from you a nation inviting to [all that is] good”** [Āl ʿImrān, 3:104]. And: **“You are the best nation produced for mankind: you enjoin what is right and forbid what is wrong”** [Āl ʿImrān, 3:110].

(9) No one shall be sentenced to a punishment as long as his crime has not been established. God, glorified and exalted, said: **“O you who have believed, if there comes to you a disobedient one**

with information, investigate, lest you harm a people out of ignorance and become, over what you have done, regretful” [al-Ḥujurāt, 49:6].

(10) The judiciary shall be free, in fulfilling the requirements of justice and equity, from any pressure and interference — except the law of the pure Sharia. God, glorified and exalted, said: **“O you who have believed, be persistently standing firm in justice, witnesses for God, even if it be against yourselves or parents and relatives”** [al-Nisāʾ, 4:135].

And: **“So judge between them by what God has revealed and do not follow their inclinations”** [al-Māʾida, 5:48].

[p. 327] **(11)** The state shall guarantee the provision of vital needs for the needy, the disabled and the bankrupt among the citizens, and supply their necessities; and it shall undertake the just distribution of collective wealth, which enables the whole people to benefit from it, and it shall not remain circulating among the rich among them. God the Exalted said: **“And what God restored to His Messenger from the people of the towns — it is for God and for the Messenger and for [his] near relatives and orphans and the needy and the stranded traveller — so that it will not be a perpetual distribution among the rich from among you”** [al-Ḥashr, 59:7].

And: **“And from their properties was [given] the right of the [needy] petitioner and the deprived”** [al-Dhāriyāt, 51:19].

(12) The government shall not confiscate the individual personal properties which their owners have owned by ways permitted in the Sharia. God the Exalted said: **“And do not consume one another’s wealth unjustly”** [al-Baqara, 2:188].

(13) No tax shall be imposed on the citizens beyond their capacity, and they shall not be charged with any administrative matter that is not within their ability. God the Exalted said: **“And relieves them of their burden and the shackles which were upon them”** [al-Aʿrāf, 7:157].

And: **“God does not charge a soul except [with that within] its capacity”** [al-Baqara, 2:286].

(14) The government shall provide to all Muslim citizens the service of education and upbringing which enables them to learn the Noble Qur’an and to know the basic rulings of Islam, and to live a good life on earth in observance of the Islamic teachings and in their light; and likewise it shall make available to them the opportunity for excellence and mastery in the economic sciences also, so that they make the state self-sufficient by itself, not in need in that of anyone. God, glorified and exalted, said: **“And teach them the Book and wisdom”** [al-Baqara, 2:129].

(15) Non-Muslim citizens (except the apostates among them) shall in principle enjoy all the human rights which the Muslims among them obtain. God, glorified and exalted, said: **“But if he was from a people with whom you have a treaty — then a compensation payment presented to his family”** [al-Nisāʾ, 4:92].

And: **“O you who have believed, fulfil [all] contracts”** [al-Māʾida, 5:1].

(16) The state shall undertake the duty of jihad according to the Islamic rulings. God the Exalted said: **“And strive for God with the striving due to Him”** [al-Ḥajj, 22:78].

[p. 328] **(17)** Relations of peace, tolerance and kindness with non-Islamic states shall be strengthened — except those hostile to Islam and the Muslims. God the Exalted said: **“God does not forbid you from those who do not fight you because of religion and do not expel you from your homes — from being righteous toward them and acting justly toward them. Indeed, God loves those who act justly”** [al-Mumtaḥana, 60:8].

(18) The state shall be committed to fulfilling the covenants and permissible treaties which it contracted and concluded with other states, or to repudiate and terminate them openly and publicly. God the Exalted said: **“Except for those with whom you made a treaty among the polytheists and then they have not been deficient toward you in anything or supported anyone against you; so complete for them their treaty until their term [has ended]”** [al-Tawba, 9:4].

And: **“If you [have reason to] fear from a people betrayal, throw [their treaty] back to them, [putting you] on equal terms”** [al-Anfāl, 8:58].

(19) A non-Muslim shall not be put in charge of an executive office with access to the confidential matters of the Muslims and the secrets of government. God the Exalted said: **“O you who have believed, do not take as intimates those other than yourselves”** [Āl ʿImrān, 3:118].

(20) No change at all shall be permitted in the clauses of the constitution which have been taken from the Qur’an and the Prophetic Sunna directly. God the Exalted said: **“And the word of your Lord has been fulfilled in truth and in justice. None can alter His words”** [al-Anʿām, 6:115].

These are the basic points without which no constitution can be called Islamic. We have contented ourselves, in their bases, with what came concerning them of the Qur’anic verses, and did not undertake to explain the Prophetic hadiths which clarify them and detail them more. Indeed, the first written constitutional document in the world was the one the Prophet ﷺ drew up on establishing the Islamic government in Medina the Illuminated, in which he set out the civil rights of the citizens of Medina, Muslims and non-Muslims among them; and it contains 47 clauses, and ʿAllāma Ibn Hishām (may God have mercy on him) brought it in his *Sīra*.

Appendix B: The Islamic Clauses in the Constitution

[p. 329] As we presented in what has passed, there are many political issues on which Islam has decided a definitive, decisive ruling, from which it is not permitted for the Umma to deviate, nor to oppose it or contradict it. To ensure compliance with them and their application at the level of the state, the constitution-making for the state must pass through the four steps which we shall clarify in this discussion of ours.

The first step

That it make the Objectives Resolution which the legislative assembly adopted in the year 1951 [sic; 1949] a necessary part, not separable from the constitution in any case; because it is what defines the course of the basic policy of the state and specifies the direction of its main plan — in it is

acknowledged that the true rule belongs to God, glorified and exalted, and that the elected representatives of the people will undertake using their authority within the framework of those limits and the commitment to those restrictions which the rulings of the Qur'an and the Sunna impose upon them. Let it be provided in the constitution itself that the law or the governmental measure which contradicts the points adopted in that resolution will be subject to review and appeal in the Supreme Court of the state.

The second step

The second stage is of gravity and standing in the Islamization of the constitution, namely: specifying the sound principles and foundations for legislation and law-making in the state; and let the constitution guarantee that no law will be enacted contrary to any ruling of the Qur'an and the Sunna, that no administrative measure contrary to the Qur'an and the Sunna will be taken, and that existing laws of the state contrary to them will be amended until they agree with the rulings of the Sharia.

Let the following matters and points be noted in that with precision and mastery:

(a) In view of the express statement which the constitution includes of amending and changing

[p. 330] the laws which contradict the Sharia, let there be defined in the constitution itself an appropriate period sufficient for the process of Islamizing the laws in the new constitution — and it should not exceed five years in any case; and I am confident that it suffices for codifying the Islamic laws if one worked in it with seriousness and sincerity.

(b) And in this clause of the constitution, let both the Qur'an and the Sunna be stated clearly and explicitly; it is not enough to use the word "Islam" or "the Qur'an" alone — and that is in acceptance of and faith in the Prophetic Sunna as a source of legislation and a basis of law.

(c) And so that the benefit of this clause is completed, it is necessary to state in the constitution that the house of representatives, if it adopted a law contrary to the Qur'an and the Sunna, it may be challenged and overturned on appeal in the Supreme Court.

(d) It is necessary to specify the way which is followed in ruling on a law as being contrary to the rulings of the Qur'an and the Sunna; and for this purpose let the constitution provide that this task is entrusted to the scholars of the Sharia who learned the sciences of the Qur'an and the Sunna and studied them in a regular study. The best way for that is that a special judicial body belonging to the Supreme Court be designated, comprising a judge from its judges and five (or six) proficient scholars.

(e) And concerning the designation of the committee which undertakes reviewing the laws and making them in agreement with the Sharia, let the constitution provide with precision and careful thought for the qualities of the members of this committee which will perform the task of codifying the Islamic laws.

In view of these matters, we see that the clause concerned with legislation should be in the constitution as follows:

(1) No law shall be legislated contrary to the Qur'an and the Sunna; and if there were in the constitution of the country a law contrary to them, it shall be amended and changed according to what

comes in the following paragraph.

(2) And to undertake the task mentioned in the first paragraph, the head of state shall form, within six months from the day of implementing the constitution, a committee called “the Islamic Law Committee”, in which there shall be representatives of all the Muslim Islamic sects present in the state.

[p. 331] **(3)** Two thirds of the members of this committee shall be of the scholars who are characterized by the following qualities:

a. That he has occupied the office of fatwa for a period of ten years at least in one of the well-known religious institutes or universities.
b. Or he has remained the reference of fatwa in a region of the regions of the Muslims for a period of ten years at least.
c. Or he has worked as a Sharia judge in one of the official Sharia judicial departments.
d. Or he has undertaken teaching the subjects of the commentary on the Noble Qur’an and the Prophetic hadith or jurisprudence for a period of ten years at least in an institute or university among the religious institutes and universities.

(4) And the remaining third of the members of the Islamic Law Committee shall be of legal specialists who:

a. Have occupied the office of judge in the High Court or the two High Courts in succession for a period of five years at least.
b. Or have remained a lawyer for the High Court or the two High Courts in succession for a period of fifteen years.

(5) And the best arrangement for this appears to be that the head of state, before appointing them, request from all the religious and political parties in the state the names of members of this committee by way of proposal; he shall not omit any name common to all the proposals — unless that person does not meet the conditions mentioned in paragraphs 3 and 4.

(6) The Islamic Law Committee shall undertake the fitting codification of the Islamic rulings within five years from the day of its establishment, and its report — interim or final — shall be laid before the national parliament, which shall enact it as law within six months of receiving it.

(7) If objections were raised and remarks were brought against the laws which the legislative assembly legislated, that they are contrary to the rulings of the Qur’an and the Sunna, then the decisive word and the final

[p. 332] ruling in it shall be for the judicial body belonging to the Supreme Court, which the head of state designates for this purpose, and at least five of its members shall be from the scholars of the Sharia.

(8) And for the judicial body belonging to the Supreme Court mentioned in paragraph 7, there shall only be designated of the scholars those in whom the qualities mentioned in paragraph 3 are present; and all the regulations proposed for the other judges shall apply to them also.

Explanatory points for this clause

(1) With regard to applying this clause to the personal laws of the sects among the Muslim Islamic sects, what counts in it is the interpretation which that particular sect accepts.

(2) No weight shall be given to any explanation and clarification of the Qur'an and the Prophetic Sunna contrary to what all the schools of jurisprudence agreed upon; so that explanation shall be regarded as abrogated, cancelled to the extent of the mentioned contradiction.

We see that the condition of restriction by the Qur'an and the Sunna in the work of legislation only bears fruit and produces good if it is mentioned in the constitution according to the details that have passed.

The third step in Islamizing the constitution

It is: that the constitution provide for stipulating Islam for each of the head of state and the prime minister.

The fourth step

It is: that the work of laying down the constitution put before its eyes those twenty-two points which 31 great scholars drew up and agreed upon [Tr.: in Karachi in January 1951], among them those belonging to every Muslim Islamic sect. So let the new constitution be founded on those principles and starting-points, and let whatever contradicts them of the clauses of the constitution be regarded as abrogated and void. Here below we present those principles in translation.

[p. 333]

The basic principles of the Islamic state

The Islamic constitution must provide in it for the following principles:

(1) God, glorified and exalted, is the true Ruler of the universe — creatively and legislatively.

(2) The law of the state shall be built on the Book and the Sunna, and no law shall be enacted, and no administrative measure ordered, contrary to the Book and the Sunna.

(Explanatory note)

If laws of this kind were actually in force in the state, then it is necessary to state in the constitution that they will be abolished, or brought into conformity with the Sharia gradually within a defined period.

(3) The state shall not be built on a geographical, racial or linguistic conception; it shall only be built on the principles and goals that emanate from the constitution of Islamic life.

(4) It shall be the duty of the Islamic state to command what is right and establish it, and forbid what is wrong and remove it, and establish the Islamic rites and raise them high, and provide the service of basic religious education for every Muslim Islamic sect according to their schools.

(5) It shall also be its duty to strengthen the bonds of unity and brotherhood among all the Muslims of the world, and to block all the ways which call and incite to racial or regional partisanship or other material differences among the Muslims of the state — and that is for preserving Islamic unity and its consolidation.

(6) The state shall provide the basic human needs — of food, housing, clothing, medical care and education — for every disabled citizen incapable of earning a livelihood, or who has actually become temporarily incapable of it because of unemployment or illness or other causes, regardless of religion, race and the like.

(7) The citizens of the state shall obtain all the rights which the Sharia has granted them — of the protection of life, property and honour, and freedom of religion and belief, and of worship, and of the person, and freedom of opinion,

[p. 334] and of movement, and of assembly, and of earning a livelihood, and equality in social advancement, and the right to benefit from charitable institutions — all of that within the framework of the law.

(8) No right of these mentioned civil rights shall be stripped from any citizen except where Islamic law permits it; and no one shall be punished on a criminal charge unless he has been given an opportunity to defend himself and a court has convicted him.

(9) The recognized Muslim sects shall have, within the limits of the law, complete freedom in practising their religious affairs; and they shall have the right to give religious education to their followers, and to spread their ideas and their beliefs freely. They shall be judged in their personal affairs and their disputes according to their school of jurisprudence; and it shall be more fitting to provide a judge from among those belonging to that sect.

(10) Non-Muslim citizens shall likewise enjoy, within the limits of the law, the freedom of belief, worship, civilization and culture, and religious education; and they shall have the right to request that they be judged in their personal affairs according to their religious law or what has prevailed among them of rites and traditions.

(11) It is obligatory to fulfil the Sharia covenants which the state has contracted with the non-Muslim citizens, and they shall have all the civil rights mentioned in clause 7, equally between them and the Muslims.

(12) It is stipulated for the head of state that he be a male Muslim, trusted in his trustworthiness and his competence and the correctness of his opinion by the masses or their elected representatives.

(13) The head of state is the one who is responsible for the administration of the state, and it is permitted for him to delegate something of his authorities to an individual or a group.

(14) The government of the head of state shall not be an individual, despotic government; rather it shall be built on the basis of shūrā, in the sense that he undertakes his works and performs his

responsibilities by consultation with the members of the government and the representatives of the people.

(15) The head of state shall never have the right of suspending the constitution, wholly or partially, nor of administering

[p. 335] the government without shūrā.

(16) The group which undertakes the authority of choosing the president shall have the authority to remove him also.

(17) The head of state shall be in civil rights like the generality of the Muslims, and shall be subject to the sovereignty of law.

(18) The same law and regulations shall apply to officials and members of the government and to ordinary citizens alike, and the courts shall enforce them on both.

(19) The judiciary shall be independent and entirely separate from the executive, so that the courts are not affected, in performing their duties and fulfilling their responsibilities, by any pressure or governmental influence.

(20) The spread of, and propaganda for, ideas and theories subversive of the basic principles, values and foundations of the Islamic state shall be categorically prohibited.

(21) The various provinces and territories of the state shall be treated as administrative units of the unified state; and their status shall not be as sectarian units on the basis of racial, linguistic or tribal [identity]. They are only territories into which the state has been divided for administrative convenience; and it is permitted that administrative authorities be delegated to them in subordination to the sovereignty of the centre; and it is not their right to secede from the centre at all.

(22) No weight shall be given to any explanation and clarification of the constitution contrary to the Book and the Sunna.

[End of the book.]